

The National Authority for Data Protection and Freedom of Information
Report
on its activities in 2023
B/7156
National Authority for Data Protection and Freedom of Information
Budapest, 2024.

Introduction

I welcome the Honorable Reader!

Due to the challenges of the 21st century, the focus of data protection regulation in recent years has shifted to the comprehensive renewal of the digital space. In 2023, significant progress was made towards the adoption of the EU digital legislative package, resulting in an expansion of the NAIH's responsibilities.

One of the most significant elements of the new regulation is the so-called Data Governance Act (DGA). The aim of the DGA is to facilitate data-centric innovation, that is, the sharing of data between strategic areas, sectors (such as healthcare, environmental protection, energy, finance, public administration, etc.), and EU countries, in order to harness the potential of data for the benefit of European citizens and businesses. From January 1, 2024, the NAIH will perform the tasks assigned to the "competent authority" under the DGA. (More information on the new EU digital regulations can be found in the chapter titled "EU Digital Regulations (Updates).")

We can also report changes regarding national regulation: on December 13, 2023, the National Assembly adopted the law on the system for the utilization of national data assets and certain services, which includes amendments to Act CXII of 2011 on the right to informational self-determination and freedom of information, effective from January 1, 2024. Among other things, the amendment established a task and authority for the NAIH to regularly monitor compliance with the requirements for the transparency of public interest and publicly accessible data and their accessibility. The amendment introduces a new, expanded data provision obligation for public authorities, local governments, and state-owned enterprises, which obligated entities must fulfill by January 31 of each year, providing data for the previous year (for more details, see the Freedom of Information chapter).

The expansion of tasks has also led to personnel changes; from the second half of 2023, two deputy presidents assist the president: a general deputy president responsible for general tasks and an international deputy president dealing with EU and international matters.

In May 2023 – for the third time since the establishment of the NAIH – the Spring Conference of European Data Protection Authorities was held again in Budapest, attended by visitors from 39 countries. The conference, convened annually, aims to facilitate cooperation and the exchange of best practices among the members of the Conference (accredited EU and non-EU data protection supervisory authorities) in order to promote and maintain the protection of personal data and privacy in Europe. A new feature of the May conference was the introduction of a public day, open to interested audiences, alongside closed sessions organized for accredited members, which focused on presenting the role and function of the data protection officer, inspired by the thoughts of Giovanni Buttarelli, the former European Data Protection Supervisor.

Another important event in 2023 was Hungary's ratification of the renewed data protection convention of the Council of Europe (the so-called 108+ Convention) as the 30th country. The two main objectives of the modernization are to reflect on the challenges of the digital age while maintaining unchanged respect for the fundamental principles, as well as strengthening the monitoring mechanism of the convention. The convention, established in 1981, is notable for being the first document with international legal binding force to derive the right to the protection of personal data from the right to privacy, while remaining independent of it, and to this day, it is the most widely applicable international legal data protection norm.

Budapest, February 20, 2024.

Dr. Attila Péterfalvi

Associate Professor

President of the National Authority for Data Protection and Freedom of Information

6

7

I. Statistical Data on the Authority's Operations and the Authority's Social Relations

I.1. Statistical Characteristics of Our Cases

The operational area of the Authority, in line with the objectives of the National Digitalization Strategy (2021-2030) – aligning with the Authority's IT strategy – aims to support the realization of the organization's electronic, organized, consistent, and transparent institutional operation with the least possible administrative burden at the authority level.

Reducing administrative burdens is a complex task, which entails, on the one hand, the possibility of customer-friendly and rapid online initiation and processing of cases at the front-office level, and on the other hand, electronic communication realized through regulated electronic administrative services. At the back-office level, it simultaneously means the simplification and electronicization of document management and administrative processes, as well as the reduction of process turnaround times.

Our strategic goal remains the more comprehensive implementation of e-administration through the introduction of new e-administrative services, as well as the necessary development of the related internal specialized systems. The introduction of e-administrative services requires the electronic nature of processes and the realization of a paperless, fully electronic background operation, which means the further development of electronic specialized systems, the development of processes, and, where possible, automation in administration, customer relations, and background processes alike.

More widely automated processes save time, result in cost reduction, increase the accessibility of the results of the authority's work through further digitalization, and lead to significant reductions in resource requirements.

We continuously seek solutions that help us manage internal processes, information flow, and available resources more effectively. Our goal is to coordinate the organization's internal and external processes, thereby improving communication among colleagues, more efficient use of authority resources, and providing decision-makers with access to real-time data.

8

9

The Authority's Document Traffic Statistics for 2023

Due to the expansion of tasks articulated by professional areas and based on the increasing trend in the number of cases year by year, further expansion of administrative and increasingly complex tasks supporting the authority's operations is expected.

The secure provision of these tasks is no longer fully supported by the document management system currently used by the Authority, therefore, in the near future, the introduction of a new document and records management system will become necessary and justified.

The new system may provide the opportunity for the application of specialized task modules that operate in an integrated manner with the document management system. Its elements can be made available to the Authority and its clients in a unified, organized, and transparent structure. The flexibility and scalability of the new system can provide a basis for expanding both current and future needs, and by applying appropriate data management procedures and security measures, it can fully ensure data integrity and data security.

While simultaneously and continuously fulfilling daily case management, administrative organization, management, coordination, and administrative tasks, the Authority has already begun preparations during the reporting period for tasks related to the planned introduction of the new system, data migration, system parameterization, system integration, and the establishment of new document management processes.

10

11

Investigative Procedures 2023 – Data Protection

Investigative cases initiated based on complaints in 2023:

2023

1328

Carried over from previous year(s)

789

Investigative cases initiated ex officio in 2023:

2023

84

Carried over from previous year(s)

35

In the Authority's internal administrative specialized system, 8672 new cases were registered in 2023. Together with the carried-over cases from previous years (2342), there were 11,014 cases pending before the authority this year. The increase in the number of cases significantly exceeded last year's by nearly one thousand three hundred.

By comparing the data sets, it can be established that the number of authority cases increased by nearly fifty percent compared to the previous year (from 708 to 1040), but the number of cases related to GDPR cooperation (IMI) also rose sharply (from 1,489 to 1,846). In addition, the number of investigations and consultation submissions also exceeded the previous year's case volume.

The significant case types showing higher traffic for the Authority in 2023:

Investigative cases

2894

Consultation cases

1410

Authority inspections

715

Legislative opinions

206

GDPR cooperation (IMI)

1846

12

13

Investigative Procedures 2023 – Freedom of Information

Investigative cases initiated based on complaints in 2023:

2023

503

Carried over from previous year(s)

150

Investigative cases initiated ex officio in 2023:

2023

4

Carried over from previous year(s)

1

The number of data protection authority procedures in 2023

The number of data protection authority procedures initiated upon request in 2023:

2023

388

Carried over from previous year(s)

350

Distribution of investigative procedure types for data protection in 2023:

Case Type

Total

Carried over from previous years

New Cases

Investigative procedure ex officio

119

35
84
Investigative procedure ex officio in data protection - Law Enforcement Directive
8
5
3
Investigative procedure ex officio in data protection - GDPR and others
110
30
80
Investigative procedure ex officio in data protection - GDPR and others - data protection incident
1
-
1
Investigative procedure based on complaint
2117
789
1328
Investigative procedure based on complaint in data protection - data protection incident
220
57
163
Investigative procedure based on complaint in data protection - Law Enforcement data protection incident
5
5
-
Investigative procedure based on complaint in data protection - Law Enforcement Directive
72
37
35
Investigative procedure based on complaint in data protection - GDPR and others
1820
690
1130
14
15
Distribution of Authority Procedures by Type in 2022
Type of Case
Total
Carried Over from Previous Years
New Cases
Data Protection Authority Procedure ex officio
124
82
42
Data Protection Authority Procedure ex officio - Law Enforcement Directive
5
4
1
Data Protection Authority Procedure ex officio - Law Enforcement Directive - Data Protection Incident
3
1

2	
83	Data Protection Authority Procedure ex officio - GDPR and Others
55	
28	
33	Data Protection Authority Procedure ex officio - GDPR and Others - Data Protection Incident
22	
11	
	Data Protection Authority Procedure ex officio - GDPR and Others - Freedom of Press and Expression
-	
-	
-	
	Data Protection Authority Procedure upon Request
738	
350	
388	
	Data Protection Authority Procedure upon Request - Law Enforcement Directive
24	
16	
8	
	Data Protection Authority Procedure upon Request - Law Enforcement Directive - Data Protection Incident
2	
2	
-	
	Data Protection Authority Procedure upon Request - GDPR and Others
666	
313	
353	
	Data Protection Authority Procedure upon Request - GDPR and Others - Data Protection Incident
44	
19	
25	
	Data Protection Authority Procedure upon Request - GDPR and Others - Freedom of Press and Expression
2	
-	
2	
	Ex officio Data Protection Authority Procedures in 2023
2023	
42	
	Carried Over from Previous Year(s)
82	
16	
17	
	Development of Transparency Authority Procedures in 2023
	Ex officio initiated transparency authority procedures upon notification
13	
	Ex officio initiated transparency authority procedures
149	
	Development of Authority Inspections in 2023

2023 Inspections

715

Carried Over from Previous Year(s)

151

Distribution of Information Freedom Related Cases by Type in 2023

Type of Case

Total

Carried Over from Previous Years

New Cases

Investigative Procedure based on Complaint in Information Freedom Case

653

150

503

Consultation – in Information Freedom Case

147

7

140

Investigative Procedure ex officio in Information Freedom Case

5

1

4

18

19

Type of Case

Total

Carried Over from Previous Year

New Cases

Cooperation as Concerned Authority EEA Co-Authority Procedure - Data Protection Incident

13

5

8

Cooperation as Concerned Authority EEA Co-Authority Procedure GDPR

56,60,61,62,64,65

1828

451

1377

Cooperation as Concerned Authority EEA Co-Authority Procedure - Freedom of Press and Expression

5

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5

The Authority's customer service received 6,012 phone calls in 2023. There was a slight increase in the number of in-person consultations (78); however, there was no significant change in the number of personal document inspections that can be requested in administrative authority procedures (55).

Our clients, in addition to the highlighted issues in our previous reports, primarily requested information on the methods of submitting applications related to complaints, public interest notifications, and the rules concerning the reporting of abuses, as per the 2023 Act XXV (new Complaints Act).

The staff providing customer service at the Authority, in addition to providing specific assistance, drew attention to the information published on the NAIH website (link:

https://naih.hu/panasz-vagy-kozerdeku-bejelentes-a-panasztorveny-szerint#_ftn7), which contains detailed definitions of complaints and public interest notifications, as well as various methods for their submission.

Type of Case

Total

Carried Over from Previous Years

New Cases

Data Protection Authority Inspection - Law Enforcement Directive

-
-
-

Data Protection Authority Inspection - Law Enforcement Directive - Data Protection Incident

33

17

16

Data Protection Authority Inspection - GDPR and Others

25

10

15

Data Protection Authority Inspection - GDPR and Others - Data Protection Incident

657

124

533

Number of Legislative Opinions in 2023

2023

200

Carried Over from Previous Year

6

Type of Case

Total

Carried Over from Previous Year

New Cases

Regulatory Opinion upon Request (Legislative Draft Opinion, Consultation)

202

6

196

Regulatory Proposal (Legislative Draft Opinion, Own, Legislative Initiation)

4

-
4

Key Areas of International Cooperation in 2023 (GDPR, IMI)

2023

1390

Carried Over from Previous Year

456

20

21

I.2. Annual Conference of Data Protection Officers

In November 2023, the President of the Authority issued a call – in accordance with the provisions of Section 25/N of the Infotv. – to 4,461 data protection officers who had been reported to the Authority through the electronic data protection officer notification system by more than 12,000 data controllers and data processors. The call was for the conference of data protection officers, and through the EU Survey system, the general preparedness and needs of the data protection officers were assessed, while also providing an opportunity for the data protection officers to shape the content of the conference presentations and to propose topics.

The primary goal of the conference is to establish a uniform legal practice in the application of laws regarding the protection of personal data and the recognition of public interest data, as well as to

ensure regular professional communication between the Authority and the data protection officers. Given the large number of data protection officers reported to the Authority, and in consideration of their right to participate, as well as to facilitate the high-level utilization of the professional knowledge shared, the conference in 2023 was conducted exclusively electronically.

The results of the survey and the presentations compiled based on the questions posed – similar to the conference videos from previous years – can be viewed on the Authority's website, thanks to the MTVA Médiaklikk service.

In his opening speech, Dr. habil. Attila Péterfalvi, the President, first reviewed the latest EU regulatory changes affecting the Authority's scope of competence, with a particular focus on the Digital Services Regulation aimed at reforming the world of online platforms, as well as the Data Governance Regulation, which also affects the Authority's scope.

He also evaluated the annual statistical data on the Authority's operations, highlighting the positive experiences of transparency procedures, which are considered a novelty in 2023, as well as the cases affecting the Authority that were received through the IMI system. Additionally, he addressed several decisions in which the Authority took a stance on issues with long-term implications, including its resolution regarding the use of artificial intelligence, as well as the decision concerning paparazzi activities affecting former public figures.

In 2023, our customer service staff provided written general information in 9 cases regarding inquiries related to requests for appointments concerning the submission of complaints, and assisted in how individuals could approach the Authority regarding matters related to the protection of personal data, as well as the recognition of public interest or publicly accessible data.

22

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on the listing of high-risk artificial intelligences. The expert delivered a separate presentation on the Authority's related experiences so far – illustrating the serious technical and social difficulties of defining artificial intelligence through the cases of Budapest Bank and ChatGPT.

The speaker also addressed the main elements of the amendment to the regulation on electronic identification and trust services (eIDAS), including the implications of creating a European digital identity, which is considered a major novelty, as well as developments related to digital citizenship.

The legislation on Interoperable Europe primarily aims to regulate online procedures in the public sector and ensure cross-border interoperability; according to the current draft, in the case of the introduction of new electronic administrative systems that also handle personal data, the Authority will be responsible for supervising the trial operation in a mandatory test environment and checking legal compliance before commissioning.

Dr. Gergely Barabás, head of department, summarized the novelties of the 4/2022 European Data Protection Board guidelines adopted in spring 2023, which are the result of several years of preparatory work and public consultation related to the rules for imposing GDPR fines. The purpose of the guidelines is to harmonize the methodology for imposing fines used by supervisory authorities against data controllers and processors considered as businesses. However, the guidelines also emphasize that fines can be imposed on natural persons as well – provided that they are considered data controllers – under the General Data Protection Regulation, as the practice of Hungarian and other Member State supervisory authorities shows numerous examples of imposing fines on natural person data controllers.

In his introduction, the speaker first focused on recalling the essential content of Article 83 of the GDPR, and then pointed out the EU principles that justify the need for a separate guideline in addition to the detailed provisions of the GDPR that govern the imposition of data protection fines. Regarding the content of the guidelines, he drew attention to the fact that the calculation of the amount of the fine continues to fall within the discretion of the supervisory authorities; the expectation is not a mathematical derivation during the fine calculation, but rather an assessment of the specific circumstances of the case within the defined framework of the GDPR. Additionally, the national supervisory authority must continue to justify the determination of the fine amount based on its own national procedural law.

Dr. Júlia Sziklay, PhD, international vice president, elaborated on the EU data protection developments

of 2023 in her presentation. The role of the European Data Protection Board and its most important documents adopted during the year were discussed in the area of unified European data protection cooperation, as well as the form of cross-border cooperation conducted by supervisory authorities within a one-stop-shop framework.

Among the opinions adopted by the EDPB, the opinion on the Transatlantic Data Privacy Framework (Opinion No. 5/2023) was presented in more detail due to its particular significance, as well as the joint opinion issued with the European Data Protection Supervisor regarding the new procedural regulation draft affecting the GDPR (Opinion No. 01/2023).

Following an overview of the Board's main dispute resolution procedures, the EDPB's main guidelines were presented, among which Dr. Júlia Sziklay focused on the main content elements of the guidelines concerning the right of access, Opinion No. 01/2022, and then summarized the most important data protection-related decisions of the Court of Justice of the European Union, highlighting the decision regarding the issuance of a copy of health documentation, Case No. C-307/22.

Dr. Norbert Vass, head of department, first informed the audience about the novelties provided by the European Union Digital Package, as many of its elements impact the protection of personal data. After reviewing the various aspects of digital sovereignty, he enumerated the legislative acts included in the Digital Package.

Regarding the Digital Services Regulation (DSA), which will apply to providers of intermediary services in the internal market starting from February 2024, its risk-based approach was discussed, which uniquely establishes stricter requirements for larger online platforms in its regulatory structure and also applies other procedural guarantees. The Data Governance Act (DGA) regulates access to public databases by mandating the establishment of a central one-stop agency and also governs the operation and supervision of data intermediary businesses and data altruism organizations.

Participants were also informed about the detailed rules of the Data Act, which regulates the sharing of data between businesses (B2B), as well as the new data processing tool's unified regulatory challenges arising in connection with the Artificial Intelligence Act (AI Act), including prohibited uses.

24

25

Based on the preliminary results obtained through a direct questionnaire method, the main findings were summarized, and several factors associated with serious risks were identified. Within the framework of a coordinated approach, the results specifically related to data protection officers operating in the public sector were compared with the results of a survey covering all data protection officers reported to the Authority prior to the conference.

Finally, responses were provided to certain groups of questions received from data protection officers in connection with the conference, including questions regarding the conditions for using cloud services outside the European Union, inquiries about the content of data protection obligations applicable to public authorities, as well as expected measures and potential legal bases due to the differences in the concept of consent under the Civil Code and the GDPR in the context of data processing involving image capture.

I.3. The Appearance of the National Authority for Data Protection and Freedom of Information in the Media

Between January 1 and December 31, 2023, a total of 1,227 news items were published in the media regarding the National Authority for Data Protection and Freedom of Information. Among the types of media, reports about the Authority's activities were most frequently encountered in online media, with a total of 1,041 occurrences. In the printed press, there were 47 instances, and in electronic media, the NAIH appeared 138 times.

The proportion of NAIH appearances in various media in 2023

Source: Observer Budapest Media Monitoring Ltd.

The guidance on determining the amount of data protection fines developed a "five-step method," introducing a completely new perspective rooted in criminal law into data protection law, which is detailed in the presentation.

Dr. Eszteri Dániel PhD, head of department, presented the Authority's main decisions regarding data

protection incidents from the year 2023. Among other things, the NAIH's position on the transferability of obligations related to data security to the affected parties was mentioned. Following this, the conference participants learned about the lessons from a procedure initiated due to a data protection incident caused by the vulnerability of an outdated content management system, and the presentation also addressed an incident related to data processing conducted in connection with the organization of a primary election. The list of the year's most significant cases related to data protection incidents concluded with an evaluation of inadequate incident management practices by a district heating service provider.

Dr. Tóth Éva, head of department, delivered a presentation on the new publication obligation of budgetary bodies, followed by insights into the experiences of the transparency authority procedure. Emphasizing the significance of the new publication obligation, she highlighted that public authorities using public funds often do not adequately fulfill their general publication obligations under the Infotv., and the Authority's positions on publication have not been enforceable until now, with citizens unable to turn to the courts in cases of missed publications. One of the most important outcomes of the new regulation is thus the elimination of "impunity" in the publication of economic data, as decisions made in the transparency authority procedure are enforceable, and the extension of the Authority's sanctioning powers has taken place. The further part of the presentation detailed the specific rules of the new obligation as recorded in the Infotv., as well as potential further development opportunities for the regulation.

Dr. Kiss Attila, head of department, reported on the results of surveys regarding data protection officers for the year 2023 in his presentation. Since 2020, the European Data Protection Board has initiated an annual coordinated action focusing on certain areas of data protection, to which the NAIH joined in 2023. The current action aims to examine the role and status of data protection officers, with the Authority's focus directed towards officials in the domestic public sector.

26

27

the court should not decide on the right of access in advance, but rather take into account the experiences of the expert examination. [NAIH-6627-1/2023]

The next question that arose in this context is the legal basis for the data processing by the private expert. Section 53 (1) of the Szaktv. narrows the legal basis for data processing to the consent of the data subject, whereas according to the GDPR, data processing can be carried out on one of the legal bases listed in Article 6, thus this section of the Szaktv. also requires review to ensure compliance with the GDPR.

Practical problems have also arisen concerning the audio recording to be made by the expert, based on the rule that "during the examination, the expert may make an audio recording with the written consent of the examined person or their legal representative." The purpose of the expert in making and using the audio recording is to reconstruct what was said during the examination and to form a substantiated professional opinion based on what was said. However, in practice, it is not clear to experts how long the retention of the recording is justified and lawful, and at what point in the data processing they can exercise their right to withdraw consent. According to the grammatical interpretation of the cited provision of the relevant IRM regulation, the consent of the data subject can only be considered given for the making of the recording, and the scope of the consent does not extend to the use of the recording – while the purpose of making and using the recording remains the same as stated above. Thus, the expert handles and uses the recording based on the legal basis of fulfilling a legal obligation according to Section 40 (1) of the Szaktv., but after achieving the purpose – which may be the preparation of the written transcript or its acknowledgment by the data subject – the recording cannot be deleted, as Section 42 of the Szaktv. prescribes a mandatory retention period. The possibility of withdrawing consent is a fundamental condition for the application of the consent-based legal basis. In the referenced case, however, due to the questionability of the withdrawal of consent, the consent cannot be considered a valid legal basis for the making of audio recordings either.

In light of the above, the Authority suggested to the Ministry of Justice the repeal of Section 20/A (3) of the IRM regulation and the clarification of the provisions regarding the making and use of audio

recordings. The repeal of the provision has taken place. According to the response from the IM, furthermore, the comprehensive resolution of the issue can occur during the conceptual review of the legislation affecting expert activities. [NAIH-4665/2023].

1

on the operation of judicial experts, 31/2008. (XII. 31.) IRM regulation

II. Data Protection Matters

II.1. Application of the General Data Protection Regulation

II.1.1. Data Processing by Judicial Experts

In its report for the year 2022, the Authority presented that it identified several legal interpretation problems related to data processing operations conducted during judicial expert activities. As a continuation of this topic, and based on the experiences from the examination of new judicial expert data processing cases, the Authority held a professional consultation in the summer of 2023 with representatives of the Hungarian Chamber of Judicial Experts, during which numerous theoretical and practical questions were discussed. According to the unified position of the Chamber and the Authority, legislative amendments are also necessary in this field. The Authority has also submitted its proposals regarding family law legislation affecting the Act XXIX of 2016 on judicial experts (hereinafter: Szaktv.) to the ministry responsible for the preparation of the regulation.

The Authority primarily observed that in the context of personal data related to the examination of judicial psychologist experts appointed in family law litigation, the court's appointing orders do not contain instructions for restricting or granting access. At the same time, the appointed expert is bound by confidentiality obligations, and a situation may arise where the information disclosed by the minor during the expert examination contains information that could have adverse consequences for the child if known by the legal representative. According to the procedural experiences of the Authority, in such cases, at the initiative of the expert, the appointing court subsequently issues an order denying the right of access; however, there have also been instances where, instead of a decision, the court established a lack of jurisdiction. In cases initiated by parents or legal representatives at our Authority due to the infringement of the right of access, the decision requested by the expert from the appointing court is a preliminary question that results in the suspension of the data protection authority procedure initiated by the application. In light of the above, considering the interests of children, the Authority sees it as justified that the appointing authority makes a decision regarding this matter in every case. To ensure this, it is necessary to amend the relevant provisions of the Szaktv. and the Pp. so that the appointing authority or

28

29

communications containing personal rights protection related to letter and private secrets were involved (for example, one parent disparaging the other; or the other parent detailing the threats they faced in the family law dispute), or it contained details of an ongoing government office procedure. The Authority found in its investigation that the data recorded in the medical system contained numerous pieces of information that conceptually do not belong to the content to be recorded in health documentation; some of the examined entries could not be considered within the scope of Section 136 of Act CLIV of 1997 on Health (hereinafter: Eütv.) related to the examination and treatment of children and did not relate at all to the healthcare of the children. Information recorded in the provider's system, as a remark made by one parent that does not pertain to the child, may qualify as personal data of that parent, and the other parent is not entitled to access this information in the exercise of their access rights on behalf of the child. At the same time, parts that are related to the children (for example, the children's clothing and possible diseases arising from it, the fact that the children regularly visit other doctors, etc.) cannot be declared as remarks of the parent that have no connection to the care of the children, and it cannot be said that these parts do not contain content related to the child, regardless of whether their recording was justified as part of the documentation; thus, the Authority ordered their unredacted release. The Authority drew the attention of the general practitioner to ensure that relevant data is recorded in the sections of Complaint-Diagnosis-Opinion related to the substantive care of the children, as these will also be transmitted to the EESZT, and other information should be stored in another manner.

This case also highlighted the unfortunate situation – indicated by many such complaints sent to the Authority – that after the breakdown of a cohabitation, in many cases, parents are unwilling to cooperate with each other, even though their cooperation in the interest of the children would be their obligation as prescribed by the Civil Code, and the parents use the entity or person providing care for the child to validate their perceived or actual rights. In this case, it did not serve the children's interests that the child healthcare service, which fundamentally operates as a trust relationship, forced the children to change doctors because the general practitioner faced an undue burden in ensuring parental rights enforcement, which could also be traced back to the lack of parental cooperation.

[NAIH-3606/2023]

In another case related to health documentation, the complaint was that the healthcare provider, in response to the request for health documentation made electronically by the affected individual, provided the complete personal data of the affected individual.

II.1.2. Matters Related to Health Documentation

Another area frequently affected by the access rights exercised by legal representatives on behalf of their children is the management of health documentation. Currently, the right to a copy of health documentation as a patient right is not specifically named in the sectoral regulations but can be enforced through the exercise of rights of the data subject arising from data protection regulations: the right to access is declared by the law on healthcare, but its enforcement, including the request for a copy, can occur under the rules of the GDPR. The Authority disagreed with the ministry and ombudsman's position that "the provider fulfills its information obligation by informing either parent in the case of joint parental custody, even if they live separately." The patient – in this case, the child – is the data subject regarding the handling of the data contained in the documentation, and the provisions of the GDPR apply when ensuring the data subject access rights exercised by the legal representative. Each parent, who jointly exercises parental custody and thus has legal representation rights, is individually entitled to enforce the data subject rights on behalf of the child while acting within the framework of the data subject rights established in the GDPR. The data controller healthcare provider cannot deny access rights to any legal representative on the grounds that they have already provided the documents to the other parent under the cooperation framework prescribed by the Civil Code. The provider may only consider other conditions for enforcement – for example, multiple requests for copies by the same data subject, disproportionate or excessive requests, etc. – but cannot deny the data subject access rights by referring to the parental cooperation obligation, as the GDPR does not recognize such access limitation criteria. For the reasons described above, such practices are contrary to the rules of the GDPR and the provision of data subject enforcement rights.

Essentially, an investigation regarding this enforcement of rights was ongoing before the Authority when the complainant requested the complete health documentation of their three children from the general practitioner on a weekly basis, and the general practitioner provided the documentation in such a way that certain parts were redacted. There has been a protracted family law dispute between the complainant and their spouse for several years, the main subject of which is the custody and guardianship of the three common children. In this context, both parents – in order to improve their position in the litigation – attempt to gather incriminating evidence against the other parent and data that would support their own position in the case, using the care of the children for this purpose. The general practitioner redacted parts of the provided copy that, in their opinion, either reflected the statements of the other parent, the

30

31

with the document in their possession – simultaneously suggests that they are the rightful claimant. Based on the redacted copy, the consistency of the data can also be established. If, however, the concerned party sends a complete copy despite this, the university is obliged to redact the image and document identification data, and to treat the copy in this manner going forward. [NAIH-10199/2023] In another case, the Authority imposed a data protection fine of 10 million HUF on a private healthcare provider, the subject of the procedure being the refusal to provide a copy of health documentation. However, the provider not only failed to ensure the exercise of the rights of the concerned party, but also completely disregarded the requests for copies made by the concerned party, responding in no

way to them. The institution did not cooperate with the Authority either, making no statements during the procedure apart from a single response, ignoring the orders received from the Authority, and failing to provide a satisfactory answer in its only statement. This behavior significantly hindered the investigation of the facts. Had it cooperated, it would have quickly become apparent that the provider had incorrectly recorded the concerned party's family name in its system. Based on the incorrect family name, it concluded that it did not hold documentation on the concerned party, even though the other personal identification data of the data subject was correctly recorded in its system. Thus, had it intended to fulfill the request, it would have been able to identify the applicant. [NAIH-5267/2023]

An important issue was highlighted in the context of access to documentation by a complaint submitted against a healthcare service provider. In certain municipalities, a healthcare provider company performs medical on-call services under a service contract with the local government. The complained company provides such healthcare services at predetermined times and locations in several municipalities. The applicant's late husband received care multiple times at one of the clinics of the complained company; however, according to the applicant, neither she nor her late husband received any documentation regarding the care. For this reason, the applicant repeatedly requested the release of the documentation generated during her late husband's healthcare through postal letters sent to the clinic's address, but all her letters were returned with the postal marking "not sought," as the company was providing care at a different clinic at the time of the letters' arrival, and thus none of its employees received the letters. The company referred to the fact that the medical on-call service is a non-existent entity, and therefore it bears no data controller responsibility. During its procedure, the Authority also examined how the company facilitates the submission and reception of requests from concerned parties in its general procedure. The Authority found in its decision that the medical on-call service is merely a name given to a service, and requested a copy of an identification card and TAJ card. The provider indicated the enforcement of the principle of accuracy as the reason for the copy request, thereby filtering out any potential name or number errors in the request. According to its statement, this also reduces the possibility of misuse of the applicant's data (identity theft), thereby reducing the risk that the university, as the data controller, would release the concerned party's data to an unauthorized person. Since this involves the processing of special data, whose unauthorized access could cause serious harm to the data subject, the verification of entitlement is conducted with heightened caution, and it is necessary to demonstrate to whom, when, and on what authorization the documentation is released, in compliance with the accountability requirement. According to the Authority's position, the data controller has an equal obligation to ensure data security alongside guaranteeing the rights of the concerned parties, and to take all measures to avoid unauthorized transmission of data. Health data enjoys enhanced protection as special data; therefore, it is not only a reasonable demand but also a legal obligation for the data controller to ensure before releasing health documentation that the documentation is indeed requested by the entitled party and is released to them.

According to the Authority's consistent practice, a copy of an identification card does not serve to verify identity; however, it may be suitable to suggest the identity of the applicant and thus their entitlement. There is less likelihood of misuse and requesting health documents in someone else's name if the applicant possesses copies of the identification cards. However, the data controller is only authorized to process the content of the identification card copies in the scope in which it otherwise processes the personal data of the concerned party. The range of personal data contained in complete copies of identification cards – image and document identification – is broader than the data set that the healthcare provider lawfully processes for the purpose of providing medical treatment, and broader than what is necessary for achieving the above-mentioned goals set by the university. Therefore, taken together, this means that the document copy is not suitable for identifying the concerned party – the applicant – but the Authority sees the healthcare provider's interest in suggesting the identity of the person requesting a copy of the health documents – and thus their entitlement – as justified, and for this purpose, requests additional data provision from the concerned party in a manner appropriate to the purpose. According to the Authority's position, this goal can be achieved by requesting from the concerned party a form of their document copy that allows for the redaction of data not otherwise processed by the provider. Thus, the concerned party sends a copy of their document, making their image and document identification unrecognizable.

personal data available if the identity of the data subject has been verified, but this must be ensured through a lawful, suitable, and effective procedure alongside informing the data subjects. It is worth considering what procedure, organizational, and technical measures best serve this purpose. Practice recognizes several solutions in this regard: forms, password-protected attachments, two-factor authentication, passwords sent via SMS, custom-developed IT interfaces, password-protected online accounts, email address verification through clicking a URL sent via email, periodically recurring data verification obligations, etc. It is important that in this situation, the purpose of data recording and verification is to ensure the identification of the applicant and the previously processed data subject, thus the applied procedure must meet this goal. If doubts arise regarding a data subject's identity under such provisions, it becomes easier to objectively assess whether there is even a channel that seems adequate from a data security perspective, or whether the identity of the given applicant has been called into question to such an extent that the request cannot be fulfilled through any channel until proper data verification is completed. In the present case, the data controller did not refer to any circumstance before the Authority that would have called into question whether the applicant is the same person as the notifier, thus it did not consider the necessity of data verification likely.

During the procedure, the data controller also referred to the fact that neither the notifier nor their relative personally collected the medical documentation; however, the data controller also uploaded it to the EESZT interface, which it deemed secure. According to the Authority's position, any healthcare provider may refer to this when fulfilling access requests and may inform the data subject that the requested documents are available to them in the EESZT. The Authority's position is that this option exists only if the provider ensures that the data subject has access to the EESZT, that the requested documents are fully available there, and that the data subject does not object to accessing the EESZT after being informed about it. If the data subject requests a paper copy despite this information, the issuance of the copy cannot be denied, as the data subject may request something other than the electronic fulfillment of the request.

The Authority, during its examination of the data controller's data processing information, also found that the provision stating "the patient is entitled to view the health documentation and to make an excerpt or copy thereof or to receive a copy at their own expense" is unlawful, as the data subject may request the first copy free of charge. [NAIH-9878/2023]

The term "public use" does not qualify as a data controller; rather, the service and thus the data processing is carried out by a legal entity, the company that uses this designation, and therefore it must also bear the consequences arising from the service and its designation, including data controller liability. The Authority further established that the company did not provide transparent information to the data subjects regarding the possibilities of submitting data subject requests, did not facilitate the exercise of data subject rights, and since patients receive care at the clinic, they could reasonably assume that they could send their data subject access requests to that address. Therefore, the Authority instructed the company to take measures to properly receive data subject requests and provide adequate information about the process of exercising data subject rights. [NAIH-4656/2023]

In one case before the Authority, the notifier complained that the dentist who previously treated their child did not respond to their letters requesting the release of health documentation created during the treatments. They also objected to the fact that there is continuous camera surveillance in the waiting room of the clinic, the live feed of which is visible in the treatment room. After examining the camera system, the Authority found that the camera also points to the door of the restroom, thus the data processing violates the principle of fair data processing and the data subjects' right to human dignity. During the procedure, the data controller stated that they had already informed the notifier during a personal meeting that the requested documents could be collected in person at the clinic. The Authority reminded the data controller that if they do not take action in response to the request, they are obliged to inform the data subject of the reasons for the lack of action without delay, but no later than one month from the receipt of the request, and if they deny action based on the request due to the request's clearly unfounded or excessive nature, the burden of proving this nature falls on them. However, the data controller did not substantiate in any way that they did not respond to the notifier's

letter because they had personally informed them about the possibility of collecting the documents at the clinic. Furthermore, the Authority found that the data controller's data processing information did not contain provisions regarding the method of submitting data subject requests. The notifier submitted their request for a copy via email and explicitly requested its fulfillment via email. The data controller did not consider it appropriate to send health documentation containing special personal data in a letter sent to a simple Gmail account. In the Authority's view, the data controller's general intention regarding the proper identification of data subjects, to only release documents when...

34

35

specifically refers to the enforcement claim of the surviving relative cited above, which is also recorded in the Eütv with the same content, while the text of the norm can be interpreted as applicable to the entire section, thus any affected party can enforce their rights through the EESZT concerning their own data, not just data related to the deceased. The Authority stated that, according to the cited paragraph, the relative must be ensured access to the requested data via the EESZT; however, this does not mean that they will gain access to the deceased's entire EESZT account. The Authority also initiated the clarification of the legal regulation [NAIH-5976-2/2023].

Furthermore, two independent submissions were received in which the complainants stated that they had requested the health documents of their deceased relative from the Ministry of Interior as the operator of the EESZT. However, their request was denied, and they were directed to the institutions that treated the deceased before their death, citing that determining the cause of death and thus assessing the scope of documents that can be released is a medical professional issue, which the ministry does not have jurisdiction over, and that it is the responsibility of the data controller recording this information in the EESZT to release it. To understand the enforcement of the provisions of the Eütv. presented above and the subsequent developments regarding the legislative amendment proposal it provided, the Authority contacted the Ministry of Interior. In its response, the ministry demonstrated that as a result of discussions conducted due to the recognized problem and the legislative amendment proposal, a government decree came into effect, which states that in the case of a legal claim for data recognition detailed in the law by the deceased's relative, the ministry will involve the National Hospital Directorate as a data processor for the assessment of the professional issue, which may further engage additional data processors. The ministry also informed that they will prepare the procedure for informing the deceased's relative about the health data stored in the EESZT of the deceased. [NAIH-8361/2023, NAIH-8369/2023]

In another submission concerning the data of deceased individuals, the mother of a deceased child requested the issuance of the death examination protocol from the healthcare provider. The issuance of the document was denied on the grounds that no autopsy was performed—which pertains to hospital deaths—but rather a forensic medical examination took place in the ongoing criminal proceedings, and its protocol must be requested from the authority conducting the case; the healthcare institution cannot release it due to the criminal proceedings. The Authority established that the Eütv. and the Eüak define the concept of health documentation differently, and the document generated in connection with the death examination does not fall under the documentation concept according to the Eüak. This is relevant because

II.1.3. Data of Deceased Individuals

Within the group of health data processing, there is a specific case category concerning the recognition of data and documents related to deceased individuals.

The Authority conducted an investigation based on a submission in a case where the sibling of a deceased person wished to access certain medical documentation related to the deceased. The deceased had a heart condition, visited their general practitioner two weeks before their death, and was hospitalized a few days later, where they passed away. The general practitioner denied the request for documentation based on Section 7 (7) of Act XLVII of 1997 on the handling and protection of health and related personal data (hereinafter: Eüak), stating that the treatment provided by them

was not related to the patient's subsequent death in the institution. The Authority had to establish its position on what the law means by "related to or can be linked to the cause of death" and "treatment prior to death." The latter was particularly relevant in this case, as the general practitioner's professional statement indicated that the cause of death was not related to the care they provided, raising the question of whether the documentation could be released under the cited other legal basis. Since the legislator did not define the duration to be considered when interpreting treatment prior to death, the Authority, while analyzing the affected individual's right to self-determination, the medical confidentiality obligation that persists after death, the deceased's right to dignity, and the legislative rationale, concluded that data related to treatment prior to death should be interpreted narrowly and that such treatment must somehow be relevant to the causal process leading to death—even if the cause of death could not be established. Otherwise, ultimately, all care provided from birth would be considered treatment prior to death, but such an interpretation was clearly not intended by the legislator. This also implies that no general statement can be made regarding what the term "treatment prior to death" encompasses, and a specific duration cannot be generally defined; rather, the question must be assessed on a case-by-case basis, weighing all circumstances of the given case. [NAIH-3831/2023]

In parallel with the investigative case, a request for an opinion was received from the Ministry of Interior, which also sought the Authority's position on the interpretation of the term "treatment prior to death," as well as the interpretation of the provisions contained in Section 24 (14) of the Eütv. This latter provision allows for the exercise of the request for a copy of health documentation through the EESZT. Interestingly, the justification for the provision...

36

37

the temporary unavailability of the website and turned to the National Media and Infocommunications Authority for the enforcement of the temporary measure. The Authority was enabled by the Infotv. to implement the aforementioned temporary measure and order the electronic data to be made unavailable in the case of the website. The introduction of this legal institution has made it more effective to act against serious violations in cases of infringement of the right to the protection of personal data, as if the data controller is unidentifiable with the tools available to the Authority, or if the data controller obstructs the procedure, or fails to provide the information necessary for the conduct of the procedure to the Authority, this does not constitute an absolute barrier to effective law enforcement and the elimination of the caused legal injury, but rather the Authority can effectively intervene to remedy the violation. [NAIH-6288/2023]

II.1.5. Matters related to political campaigns and elections

A significant number of complaints have been received by the Authority regarding certain political data processing activities. In light of these, the Authority has initiated proceedings ex officio regarding general practices. Such a procedure was conducted concerning the SMS messages and phone calls sent during the campaign of the 2022 parliamentary elections, as well as regarding the opinion poll named "Budapest Residents' Assembly" in 2023, and the Authority also investigated the data processing related to the 2022 opposition primary election.

The Authority clarified the circumstances surrounding the sending of unsolicited opposition SMS messages related to the opposition primary election. During the investigation, Datadat Professional Kft. and Datadat GmbH (the company's new name: Estratos Digital GmbH) identified themselves as data processors in the examined data processing, however, as a result of the investigation, the Authority established the data controller status of both the Ninety-Nine Movement Association (hereinafter: Association), Datadat Professional Kft., and Datadat GmbH, since based on the established facts, all companies had an active role in determining the means of data processing and shaping the manner of data processing. The Authority also examined under Article 26 of the GDPR whether the data controllers qualify as joint controllers or parallel controllers. In this process, the Authority concluded that the purpose of the data processing was determined by the Association, while the means of data processing were determined by the Association, Datadat Professional, while the exercise of the rights of relatives concerning the deceased's documents is conducted according to the

provisions of the GDPR, but not according to the Eütv. Thus, the concept of the exercise of rights of relatives according to the Eüak. does not conceptually affect the entire documentation related to the death investigation, therefore the Authority has no jurisdiction to act in such submissions. Furthermore, the complainant became aware of the requested document in the criminal proceedings.

[NAIH-5917/2023]

II.1.4. "Blocking" of websites

A significant change regarding the Authority's tools and procedural efficiency is that the Infotv. – as amended by Section 66 of Act CXXII of 2021, effective from January 1, 2022 – has made it possible for the Authority to "block" websites, i.e., to temporarily make them unavailable in certain, seriously unlawful cases, and to order this. The Authority initiated the provision of this measure with the legislator in order to be able to act more effectively against the operators of those websites who, without revealing their identities, use their anonymity to cause serious disadvantages to the affected parties through unlawful data processing.

Complaints have been received by the Authority for some time, objecting that on one such website, without the knowledge and consent of the complainants, they were depicted in identifiable and even named ways in intimate situations, with sexual content photographs published in a manner accessible to anyone. According to the most recent report, compromising photos of the reporter were publicly shared on this website. Among the images, the reporter's Facebook profile was also shared, which made it even more identifiable. Similarly, numerous other individuals' intimate images are published on the website. Thus, the content published on the website contains special, sensitive categories of personal data, and is accessible to anyone without restriction. The website's practice is not to comply with deletion requests, and indeed, the requests of the affected parties are published in a mocking tone. There is no information published about the operator or editors of the website, and the website does not have an imprint. The Authority contacted the domain registrar registered in the United States to learn the identity and contact details of the data controller, and as a temporary measure, ordered the registrar to temporarily remove all content published via electronic communication networks on the URL associated with the website. The registrar received the Authority's inquiry but did not comply with its contents, therefore the Authority blocked the publication of personal data by ordering the removal of the content.

38

39

also contained errors that could indicate foreign connections; however, in terms of content, the messages were intended for Hungarian citizens and can undoubtedly be considered campaign messages.

Due to the aforementioned difficulties in uncovering the facts, the roles in data processing could not be clarified, meaning that the identity of the data controller(s) could not be determined. Therefore, the Authority established in a report, without specifying the identity of the data controller, that the data processing did not comply with legal requirements, considering the extremely broad range of affected individuals.

[NAIH-4360/2022]

In the case of "mass telephone calls," many complaints were received, in which the complainants objected to their public telephone numbers being processed for unsolicited political calls without their consent. Similar to the case of mass SMS sending, the multi-step involvement of foreign data processors complicated the procedure and compliance with transparency and accountability. The unnecessary storage of a large number of personal data abroad and their use for political purposes raises legitimate doubts about legality. If the Authority faces difficulties and it takes months to uncover such data processing, then it cannot be expected that the affected individuals would be able to comprehend it.

Information pursuant to Articles 13 or 14 of the GDPR must be provided before the commencement of data processing, at the latest at the first point of contact. This must minimally include the identification of the sender (the client) of the verbal or written message, the source of the contact data, the legal basis for its processing, and, depending on the circumstances, possibly other necessary information regarding the availability of further information. The preliminary information does not mean that the

availability of information is no longer necessary during the existence of data processing (the further processing of contact data); this obligation exists throughout the entire duration of data processing. If the website collecting the data ceases to exist, but the collected personal data is still processed, then the data controller is responsible for providing easily accessible information to the affected individuals and, at the latest, indicating the availability of new information to the affected individuals at the next point of contact.

The Authority identified the responsible individuals for data processing by unraveling the contractual chains, reaching them through numerous intermediaries. The mass political calls were carried out through telephone service providers, call centers, and intermediary agents that provided the caller phone numbers mentioned in the complaints. Kft. and Datadat GmbH jointly determined this, thus qualifying as joint data controllers regarding the examined data processing.

Furthermore, the Authority established that the information related to the examined data processing was also inadequate, resulting in the absence of the most important elements of the affected individuals' consent to data processing. Therefore, regarding the examined data processing, the Association and Datadat Professional Kft. processed the personal data of the affected individuals without a valid legal basis, thus acting unlawfully. Based on these findings, the Authority instructed the Association to verifiably delete all personal data previously collected from the affected individuals through their website, to subsequently provide information to the affected individuals about the processing of their personal data on their website, and to cooperate with the Authority in the future. The Authority instructed Datadat Kft. to carry out its data processing operations in accordance with the provisions of the GDPR and to conclude legal transactions according to the actual roles played in data processing, thus properly defining the roles played in actual data processing and entering into agreements in accordance with the content of Article 26(1) and (2) of the GDPR regarding data processing. The report of the investigation was also published on the Authority's website.

[NAIH-6752/2023]

There were two main groups of cases regarding the data processing of the electoral campaign: the mass sending of unsolicited SMS messages and the conducting of unsolicited mass telephone calls. In the case of "mass SMS sending," many reports were received by the Authority before the 2022 parliamentary elections regarding complainants receiving unsolicited political SMS messages containing a surname and the name associated with the subscriber on their mobile phones, urging them to vote for the political group indicated in the message. The messages were sent by foreign data processors within the framework of mass messaging services. However, it was established that the multi-step involvement of foreign data processors complicates compliance with transparency and accountability. The Authority found it difficult, or even impossible, to reach the foreign data processors, and the unnecessary processing of politically related personal data abroad, thereby prolonging the uncovering of the facts, complicates the likelihood of compliance. Upon reviewing the text of all types of SMS messages, it was determined that they did not contain any specific information referring to the data controller, nor any reference to the potential availability of further information. Furthermore, the forwarded SMS messages often contained spelling errors.

40

41

regulated the details of data processing to be defined by law: the types of data, the purpose and conditions of data processing, the accessibility of the data, the identity of the data controller, as well as the duration of data processing or the necessity of periodic review.

The Authority recommended to the Ministry of Interior that

- initiate the amendment and supplementation of Act LXVI of 1992 on the registration of citizens' personal data and addresses [regulation of the accessibility of personal data of individuals under 18 years of age; establishment of data protection rules for activities aimed at expressing political opinions; ensuring the possibility for the data subject (or their legal representative) to prohibit the release of their personal data in the case of inquiries of a polling nature, regardless of age],

- draw the attention of government offices to ensure compliance with the provisions of Section 5 (3) of the Infotv. during the legality check of municipal regulations.

In its recommendation to the Municipality of Budapest, the Authority suggested that

- review and amend the relevant regulations of the Internal Rules of Procedure,
- review its data processing practices and in the future, in cases affecting a wide range of individuals, choose a solution that does not require the processing of personal data. [NAIH-6166/2023]

II.1.6. "Borderline" cases

The Authority considers cases to be "borderline" when the enforcement of the right to the protection of personal data and another fundamental right—particularly, but not exclusively, the freedom of expression—must be balanced against each other, and the establishment of a constitutional balance in this context is a substantive legal application issue. Below, we present the most interesting cases of this type.

The legal representative of a minor Applicant contacted the Respondent (a private healthcare provider) by phone to request an appointment for a blood test for their 15-year-old child. After utilizing the service, the legal representative of the Datadat Group played a similar role in this case as described above. Further detailed information can be found in the published report, and the Authority continues to investigate some of the identified issues within the framework of an official authority procedure. [NAIH-4949/2023]

The Authority received numerous complaints regarding the data processing related to the notification letters about personal voting at the "Budapest Residents' Assembly" from the Municipality of Budapest, as the municipality approached the residents of Budapest for the purpose of expressing opinions in order to fulfill its "public interest tasks" by directly contacting residents via letter. The Authority conducted an investigation, resulting in a recommendation to the Ministry of Interior and the Capital City Municipality. In the recommendation, the Authority specifically addressed the following:

- the questions posed, the data processing information,
- the rules regarding the public participation of individuals under 18 years of age,
- the group data request and its regulatory environment.

In relation to these, the Authority detailed in the recommendation that among the questions posed to the public, the substantive purpose of the data controller regarding three questions was not primarily to consult on transportation-related issues defined in the group data request, but rather for the data controller to share its own political stance with citizens through direct mail. Therefore, the Authority identified this purpose as political marketing.

In the Authority's opinion, the questionnaire that can be considered political marketing violated the prohibition on direct marketing inquiries as defined in the GDPR (38) preamble in the case of minors. The data controller should have obtained the prior consent of the legal representative for the request of personal data of minors. The Authority also established that the relevant law does not contain rules regarding the possibility of objection to the "Budapest Residents' Assembly" and similar opinion inquiries, nor to data requests related to political marketing. The Ministry of Interior did not substantively examine the data request and the adequacy of the legal basis supporting it, but considered the reference to the necessary legal provisions sufficient, meaning it formally checked the request but did not assess its content. The Authority identified as another issue that the municipality's Internal Rules of Procedure does not contain detailed rules for data requests and the handling of the personal data obtained, meaning that the municipal regulation does not...

42

43

informs the public that "...the clerk of the office and all of its employees (except for 1 person) are on leave or sick leave," and then provided information that "...the former office employees are on sick leave due to psychiatric problems." Therefore, since the entry indicates that not all office employees are on sick leave, the individuals on sick leave cannot be identified even in the context of the small office.

The Authority's position is that the entry contested in the application falls within the scope of freedom of expression; the statements made in the entry express a personal opinion and value judgment regarding the behavior of the office employees, and the author of the entry did not aim to disclose the

health-related personal data of individual office employees as special personal data. According to the preamble (4) of the General Data Protection Regulation, the right to the protection of personal data is not an absolute right; its enforcement – and its application by legal practitioners – must take into account other fundamental rights, such as freedom of expression, which is why the Authority rejected the notification without substantive examination. [NAIH-3709/2023]

In another case, the Authority clearly deemed the request to initiate a data protection authority procedure regarding a Facebook post expressing an opinion related to the mayor's leave as unfounded and rejected it. The Authority established that the mayor is a person performing a public task, and the data regarding his leave, as well as any other reasons for his impediment in performing public duties, are public personal data in the public interest according to Section 26 (2) of the Infotv. (Information Act), which can be disseminated while respecting the purpose limitation of data processing. The Authority found that the closed Facebook group, where the publication took place, was created for discussing public issues, where group members share their opinions on matters of public interest. According to the Authority, this constitutes purpose-limited data processing as the Applicant – who is also a person performing a public task, a local government representative – expresses his opinion on the mayor's workplace presence on the social media platform. Therefore, the dissemination of the mayor's public interest personal data occurs in accordance with Section 1 of the Infotv., aimed at ensuring the transparency of public affairs, and in line with Section 2 (2) of the Mötv. (Local Government Act), ensuring broad public access to local public affairs. The contested entry attached as a copy to the Applicant's submission thus falls within the scope of freedom of expression. In this context, the Authority referred to the relevant judicial practice, which states that the mayor, as a local public task performer, had to consider that in his capacity as a representative, the Applicant described negative experiences related to the health services provided by the Applicant in the Google Maps review section, providing his full name and photo. In response to the review, the Applicant stated that examinations for minors regarding STDs (sexually transmitted diseases) can only be conducted with parental consent. The response clearly created the impression that the legal representative intended to take the Applicant for an examination due to a sexually transmitted disease, whereas that was not the case. The Applicant disclosed false health data in his comment in a manner that made the Applicant clearly identifiable. The legal representative of the Applicant – in order to reassure and protect the interests of the minor Applicant – deleted his opinion, thus the response to it also became inaccessible. According to the Applicant, his response provided general information and thus was “in no way related to a specific person, including the complainant's child” – which is not accurate for the reasons stated above.

According to Article 9 (1) of the General Data Protection Regulation, the processing of health data and data related to sexual life is prohibited. Based on point e) of Article 9 (2), the paragraph (1) does not apply if the data processing concerns personal data that the data subject has explicitly made public. However, the Applicant and his legal representative did not make the data regarding the STD examination public; it was solely the Applicant who disclosed it in connection with the Applicant. The Applicant did not specify another legal basis for the publication of the contested health data of the Applicant, claiming that no data processing took place.

The Authority established in the procedure that: the Applicant violated the General Data Protection Regulation, specifically Article 6 (1) and Article 9 (1), when he made public health data concerning the minor child. The Authority assessed as an aggravating circumstance that the legal representative of the Applicant had to remove the opinion formed about the health service provided by the Applicant in order for the data published by the Applicant concerning the minor Applicant to also be deleted.

[NAIH-3888/2023.]

A public official filed a complaint stating that the newly elected mayor of the municipality published a Facebook post stating that the former employees of the municipality's mayor's office (hereinafter: the office) are undergoing psychiatric treatment. According to the Authority's findings, the entry did not involve the processing of personal data, as personal data processing occurs when the data subject can be identified through the data processing. In the referenced entry, the mayor, however – without naming the affected individuals – first...

obligation to tolerate opinions expressed and criticism regarding its activities, particularly in relation to a social issue. The public nature of the information provided in the online news article is clearly established, as the data controller in question publicly shared its stance on the questions posed by the complainant in connection with a socially relevant issue that continues to attract public interest today. [NAIH-394-2/2023]

II.1.7. Other important matters falling under the General Data Protection Regulation

1. Data processing complaint against a dating agency

The Authority examined a data processing complaint against a dating agency (hereinafter: Dating Agency) within the framework of an official procedure initiated upon request. The company provides matchmaking services to individuals who enter into a contractual agreement with it, and the complainant was one of its clients. The complainant objected that the Dating Agency transmitted all personal data collected about him to potential partners without his consent, as he had only provided his data to the Dating Agency by filling out the appropriate data form. The complainant further complained that data had also been transmitted to individuals who fell under certain exclusionary conditions he had set, thus they should not have received his data at all. Additionally, the complete transfer of his data meant that the recipients could learn all information about the complainant, including his religious data, in a manner that allowed for his clear identification. During the dispute between the parties, it became evident that the data processing, and particularly the data transfer process, had not been sufficiently clarified.

The Dating Agency operates several websites to advertise its services. There was no data processing information available on the websites, and the Dating Agency could not present any written data processing information that would have been in effect at the time of the complainant's contract; only the contract itself was available, which did not provide adequate, transparent information. The content of the verbal information received at the time of contract signing was disputed between the parties and could not be reconstructed for the Authority.

During the procedure, the data processing information prepared as a result of the procedure and the standard form of the contract still did not contain substantive information regarding the data transfer, the procedure followed, the selection process, or the scope of the transferred data. There was no clarity in them regarding the criticism that would be directed at the public figure, and therefore, as a public figure, he must tolerate negative opinions regarding his activities, provided they are not unreasonably offensive or humiliating. For public figures, the boundaries of opinion expression are broader; this applies to representatives of local governments and mayors as well. (BDT2010. 2215.) [NAIH-3816/2023]

The Authority found the media outlet liable and ordered it to pay a substantial data protection fine and to delete the unlawfully published personal data, which it failed to do despite the explicit objection and deletion request of the applicant regarding the article that presented a unilateral opinion about his professional activities and qualifications. The Authority did not accept the individual balancing of legitimate interests presented by the respondent, as it only considered the interests of the media outlet itself and misinterpreted the concepts of public participation and public figure in relation to the applicant. The respondent incorrectly concluded that the applicant had become an active public figure by assisting her politician husband during the campaign period. The question related to the article – the topic of childbirth outside the institution – is of public interest; however, according to the Authority's position, it cannot be referred to as a data processing purpose of opinion-forming information when the content and wording of the news article suggest a unilateral stance that excludes the possibility of individual opinion formation. [NAIH-3977-4/2023]

The Authority held the media outlet liable for disregarding the rights of the data subjects as a result of the investigation into the data processing, in which the applicant's political involvement and the actions related to the criminal proceedings, as well as her academic career existing at the time of the article's publication, made the applicant's person a matter of public interest. This also made the alleged crime committed by the applicant a subject of public debate, as the moral expectations for a former politician and university educator are higher, and they are subject to stricter scrutiny, thus generally reflecting on the moral state of society as a whole, and it has implications if a respected public figure is involved in a

criminal proceeding. [NAIH-257-13/2023]

The Authority did not find any violation in the investigation where a member of parliament complained about the data processing of a news outlet, where a telephone conversation with the complainant was recorded and published online without his consent. As a result of the investigation, the Authority established that the complainant, as a person performing a public task, voluntarily accepted the publicity that comes with his parliamentary position, and the

46

47

2. Data Management of Agents Involved in the Enforcement of Road Usage Fees

A complainant expressed concern that the service provider operating the highway toll payment system (hereinafter: the provider) engages foreign agents for the collection of additional fees in the case of vehicles with foreign license plates and transfers the available data regarding the vehicle to these foreign agents. The provider conducts the toll collection, fee verification, and additional fee enforcement activities related to the usage fee payable for the proportional use of national public roads based on statutory designation and authorization, during which it enforces the additional fee to be determined in the case of unauthorized road usage against the operator/owner of the unauthorized vehicle, and has contracted with foreign companies for cases of non-Hungarian residency. The relevant legislation does not regulate the position of the authorities involved in querying data of vehicles with foreign license plates from a data protection perspective; however, according to the Authority's position, it would be necessary to express this in the legislation governing data management to ensure the transparency of data processing. Therefore, the Authority made a proposal to the ministry with the relevant tasks and powers to regulate the role of agents involved in data management during the enforcement of road usage fees, in order to ensure that the fundamental circumstances of data processing – the identity of the data controller, the role of agents and collaborators in data processing – are regulated at the legislative level, in accordance with data protection regulations. The legislator accepted the proposal. [NAIH-7639/2023]

3. Handling of Adoption Approval Decisions by Credit Institutions in the Context of Baby Waiting Loan Agreements

The ministry responsible for preparing the regulation provided a favorable response regarding a case in which a complainant couple entered into a baby waiting loan agreement with a credit institution and then adopted a child through a secret adoption, the fact of which was reported to the credit institution, and they requested a suspension of repayment. The complainant objected that they had to submit the final decision approving the adoption in its entirety to the credit institution, which contained personal data and information that were not necessary for the assessment of the request for suspension of repayment. Among these, the complainant objected to the handling of the child's name prior to adoption and the experiences during the mandatory care period. The decision approving the adoption contains numerous personal data that are not necessary to determine whether the supported couples are eligible for the loan, and the legal basis for each data processing, the retention period, and information regarding the handling of special data are not identifiable; moreover, several elements were contradictory and confusing. The dating websites did not provide the basic information regarding who operates them, nor who provides the service. A common feature of the questioned websites was that the central element of their marketing was the strongly emphasized personal involvement of a person named "A. É.", creating the impression that he was providing the matchmaking service, while it also arose that no such person exists in the employment of the dating service, and the use of the name was merely a marketing tactic to gain the trust of users. The dating service stated during the procedure that the named person does not actually participate in matchmaking, does not know the members' data, but rather the dating service acted as both the data controller and the service provider.

Therefore, the Authority found that the involvement of the person indicated on the website and in the documents, as well as their actual role in data processing, could not be transparent to the complainant, and the promises made in this regard were practically false. According to the Authority's position, it is unacceptable to provide false information about the identity of the data controller based on marketing considerations, as this cannot be considered real and adequate information.

The Authority thus established that the dating service did not provide data management information in accordance with Article 13 of the GDPR, and the information was neither transparent nor easily accessible, and it could not comply with the principle of accountability in this regard. Regarding the data classified as special (religion), it could not prove a lawful legal basis for either the processing of the data or its transfer. The Authority particularly highlighted in terms of the violation of transparency that neither the method nor the legal basis for data transfer was transparent. The Authority found the previously evaluated problems regarding transparency particularly objectionable through the nature of the service. In the context of a matchmaking service, data processing is not a secondary issue, but a central element of the service. The clients of the dating service are individuals who wish to meet unknown persons for sensitive reasons and provide their data because they trust the service provider. In light of the above, the Authority instructed the company to ensure complete and transparent data management information and to publish it appropriately. Regarding special data, either provide a suitable legal basis or cease processing such data. [NAIH-4788/2023]

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must be a designated person who is not the same as the beneficiary specified in the contract. According to the insurer's statement addressed to the Authority, the rights of the affected party can also be exercised by the "designated beneficiary in the contract," who may be a person that the affected party has designated in writing during their lifetime, and who has been released from the insurer's confidentiality obligation. In its statement, the insurer acknowledged that the designation of the "designated beneficiary in the insurance contract" is ambiguous, and its interpretation is disputed; therefore, the insurer only provides information related to the insurance contract to the heirs, as there is no position available that would unequivocally prove that the "designated beneficiary in the contract" is the same as the beneficiary. Due to the insurer's interpretation of the "designated beneficiary in the contract," the notifier was unable to access the document on which the insurer based its refusal to pay the insurance amount.

Based on all of this, the Authority established that the insurer violated the affected party's right of access by not providing access to the data and documents related to the life insurance contract to the notifier, who was designated as the beneficiary in the life insurance contract. The Authority also determined that natural persons designated as beneficiaries in life insurance contracts fall into the category of "designated beneficiaries in the contract," and they can exercise the rights of the affected party that the deceased was entitled to during their lifetime. Accordingly, the Authority instructed the insurer to grant access to the notifier, as the beneficiary in the event of death, to the personal data managed in connection with the notifier's father's life insurance contract, to the data related to the insurance contract, and to review and amend its practice regarding the provision of access to data related to deceased persons. [NAIH-357/2023]

5.

Investigation of data processing related to supporting the career choices of children living in child protection specialized care

The Authority conducted an investigative procedure based on a public interest notification regarding the inquiry sent by the State Secretariat for Social Affairs of the Ministry of Interior (hereinafter: Data Controller) dated March 24, 2023, titled "Request regarding the career interests of children and young adults living in child protection specialized care," sent to all maintainers of child protection specialized care institutions, and the legality of the data processing carried out based on it.

The Authority's position is that the provisions of the government decree on the baby-waiting support, as well as the complete handling of the final decisions permitting adoption by credit institutions based on this authorization, violate the principle of data minimization. To amend the government decree on baby-waiting support, the Authority suggested that in the future, the fact of adoption should be verified by an official certificate issued by the competent guardianship authority, which should only contain the fact of adoption, its occurrence, as well as the number of the decision permitting adoption and the date it became final, in addition to the personal identification data of the supported individuals and the adopted child—excluding the name prior to adoption in the case of the adopted child. The Authority proposed that the legislator should make the application of this official certificate mandatory for

verifying the occurrence of adoption. The reason for this is that sensitive personal data, which qualify as information detailing the family's life and circumstances, are recorded in the justifications of the decisions permitting adoption. The handling of these personal data by credit institutions is not justified and far exceeds the scope of data processing necessary to achieve the purpose of data processing—the verification of the existence of the right to suspension of repayment and support—resulting in credit institutions violating the principle of data minimization in fulfilling their legal obligations. [NAIH-6491/2023]

4. Exercise of the right of access in the case of a life insurance contract

According to a submission received by the Authority, the notifier's father entered into a life insurance contract with an insurer, designating the notifier as the beneficiary. Following the death of the notifier's father, a request was made for the payment of the insurance amount; however, the insurer rejected the claim. The notifier filed a complaint against the rejection of the claim, which the insurer denied based on a medical advisory opinion treated as confidential, which the notifier was not aware of. The notifier repeatedly requested that the insurer provide the advisory opinion on which the insurer based its refusal to pay the insurance amount. The insurer, citing insurance secrecy, did not comply with the notifier's request, as it held the view that access to the requested personal data could only be granted to the heir according to the inheritance distribution order, not to the beneficiary. According to the insurer's position, the person designated in the contract as the designated beneficiary has no right to exercise the affected party's rights.

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was called upon to delete in a definitive and irretrievable manner, which the Data Controller fully complied with. [NAIH-495/2024, previous case number: NAIH-4511/2023]

6. Investigation regarding the change of publicly disclosed names of children placed in baby-saving incubators from unknown parents

There have been several reports in the press regarding newborns found in baby-saving incubators in various hospitals (for example, in Miskolc, Békéscsaba, and Hatvan). In these reports, alongside the name of the municipality and the hospital, the gender of the children found in the incubators and the names given to them by those who found them were disclosed, and in some cases, the children's weight and even their length were mentioned.

Based on Section 38 (3) a) of the Infotv., the Authority conducted an ex officio investigation regarding whether the publicly disclosed names of the children found in the incubators (such as Hajnal Marcell, Réthy Ferenc, Szombati Martin) would be changed later, or whether the fact of their finding and its other circumstances could potentially become known to anyone for their entire lives due to the disclosed names.

According to Section 4:151 (1) b) of the Civil Code, the guardianship authority determines the name of the child if both parents are unknown (guardianship name determination), which powers are exercised by the municipal government clerk in relation to the data processing under investigation. According to Government Decree 149/1997 (IX. 10.) on guardianship authorities and child protection and guardianship procedures, the necessary data for the birth registration is determined by the municipal government clerk in agreement with the child's guardian, ensuring that it does not violate other legitimate interests, and it cannot refer to the circumstances of the child's finding. If the child's real data and the data of the biological parents later become known, the municipal government clerk initiates the re-registration of the child's birth.

In this matter, the Authority contacted the clerks of the aforementioned three municipalities and requested the documents generated during the guardianship name determination. Based on these, it was established that for the children placed in the baby-saving incubators in the hospitals of the examined cities from unknown parents,

The inquiry was based on the implementation of the Apponyi Franciska Future Workshop Program, which aimed to support the career choices of children and young adults living in child protection professional care and to enhance their labor market opportunities. Within this framework, the Data Controller intended to assess the career interests of children raised in foster care networks and residential and child homes operating under the care of the addressees, as well as the young adults

receiving aftercare, who are studying in grades 5, 7, and 9-12, and their ideas regarding employment in the labor market.

For this purpose, the Data Controller requested data provision from the individual care locations through its data processor, the Slachta Margit National Institute for Social Policy (hereinafter: NSZI), by filling out open online forms. The form required the child's TAJ number, and the data collection extended to the children's school performance, their special educational needs, and ICD codes related to the children's health status. Neither the form nor the request letter included the contact information for the data processing information notice.

The purpose of the data processing was indicated by the Data Controller as the development of a personalized career program; however, according to the statement made during the procedure to the Authority, the actual preparation of career plans and models should have been the responsibility of the respective care location.

During the investigation, it was established that the Data Controller violated the principle of legality, fair processing, and transparency under Article 5 (1) a) of the GDPR; the principle of purpose limitation under Article 5 (1) b); the principle of data minimization under Article 5 (1) c); the principle of integrity and confidentiality under Article 5 (1) f); the principle of accountability under Article 5 (2); as well as Article 6 (1) of the GDPR, as it did not provide a valid legal basis for the data processing; the information requirements under Articles 12-13-14 of the GDPR; and it did not fulfill the data controller obligations under Article 24 (1) of the GDPR.

In addition, the Data Controller violated the requirements of data protection by design and by default arising from Article 25 of the GDPR; the obligations regarding data processors arising from Articles 28 (1)-(3) of the GDPR; its cooperation obligation under Article 31 of the GDPR; its obligations regarding risk assessment and data protection impact assessment arising from Articles 32 and 35 of the GDPR; its obligation to cooperate with the data protection officer under Article 38 (1) of the GDPR; as well as its cooperation obligation towards the Authority under Section 54 (2) of the Infotv.

Considering the severity and number of the established violations, the Authority imposed on the Data Controller, among other things, the personal data collected through the questionnaire.

52

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Considering that the data controller has taken the necessary measures indicated in the Authority's repeated request, and has informed the Authority in writing about the measures taken and their evidence within the deadline specified in the request, the Authority has thus concluded the investigation. [NAIH-1644/2023 (previous case number: NAIH-9385/2022)]

II.1.8. Procedure as the Lead Authority

In the past year, the Authority has dealt with 28 cases concerning cross-border data processing, in which it acted as the lead authority.

Of the above case number, 12 complaints from data subjects were received through the advocacy organization NOYB, in which the Authority acted as the lead authority. In these cases, the Authority determined that, based on the report published by the European Data Protection Board's "Cookie Banner Taskforce" on January 17, 2023, the one-stop-shop mechanism is not applicable, as the alleged violations fall under the scope of the ePrivacy Directive. In its rejection decisions, the Authority also established that even if the GDPR were applicable, the cases would not qualify as cross-border data processing, as the contested websites are in Hungarian, and based on all circumstances of the case, the data processing carried out on them does not target the personal data of data subjects outside Hungary.

A prominent group of cases among the lead supervisory authority cases involves complaints against Wizz Air Hungary Airlines Ltd. (hereinafter: the Obligor), as these have been received in the largest numbers since the GDPR became applicable. Several of these cases have been ongoing for some time and are under consultation among the member state authorities; one case was concluded with a decision last year, two further proceedings are pending decision-making, and in another case, the next step is also the review of a draft decision, so these will also be concluded soon.

In the aforementioned case concluded with a decision, the authorities reached an agreement on an important legal interpretation issue. Initially, there was disagreement among the Polish, French, Dutch

authorities, and the lead authority; however, a suitable solution and legal interpretation were found. The case concerned a complaint filed by a Polish citizen before the Polish data protection authority, and it was subsequently determined that the Hungarian data protection authority was competent to conduct the proceedings regarding the subject of the complaint. Following an investigative procedure, the Authority initiated an official procedure ex officio. The previously disclosed names of the children were indeed changed, thus no legal violation occurred in any case. [NAIH-3885/2023]

7. Examination of the legality of surveillance conducted by a private individual with a camera placed next to a relative's grave in a (public) cemetery

The Authority received a report in which the notifier submitted a complaint regarding the legality of surveillance conducted by a private individual with a camera equipped with solar power and mobile internet connection placed next to a relative's grave in a public cemetery.

According to the Authority's consistent practice spanning several years [see: NAIH/2020/5589; NAIH/2017/2155/2/V; NAIH/2015/1090/5/V], even the operator of the (public) cemetery cannot surveil individuals present in the (public) cemetery during opening hours. Outside of opening hours [i.e., in a closed (public) cemetery], camera surveillance may theoretically be possible from a data protection perspective, but the cameras could not target individual burial sites or gravestones; rather, they could be placed at the boundary of the (public) cemetery (along the line of the fence) and along the main junctions within the (public) cemetery.

Based on the report, the Authority initiated an investigation and, pursuant to Section 56 (1) of the Infotv., requested the data controller to deactivate the camera placed next to the relative's grave in the public cemetery and to cease the camera surveillance; considering that even modifying the camera's field of view or applying further masking, distortion, or digital obscuring would not render the examined data processing lawful.

The data controller did not contest the statements made in the Authority's request. In response to the request, they attached a modified camera image taken by the examined camera, based on which the data controller applied further digital obscuring (masking); however, they did not deactivate the camera under investigation and did not cease the camera surveillance.

In light of the above, the Authority again requested the data controller to deactivate the camera and to cease the camera surveillance pursuant to Section 56 (1) of the Infotv.; which the data controller ultimately complied with: They deactivated the camera under investigation and supported their statement with screenshots.

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the Authority has a legal obligation arising from the principle of accountability to document the procedure carried out based on the request of the data subject. The Authority – explicitly remaining within the circumstances of the specific case – did not share this position. The principle of accountability – although the GDPR does not specify the manner of demonstrating compliance – cannot be considered a provision that generally prescribes mandatory data processing. Moreover, it is important to highlight the second clause of Article 11(1) of the GDPR, which states that the data controller is not obliged to retain, obtain, or process additional information solely for the purpose of identifying the data subject in order to comply with this regulation. Since the legal obligation was not an appropriate legal basis in this case, and the Obligor did not justify any other legal basis, the Obligor could not have retained personal data solely for the purpose of being able to respond to potential future requests. In this case, the Authority did not find the legitimate interest legal basis to be substantiated either – it would have existed if the legitimate interest of the Obligor had been real and existing at the time of the commencement of data processing, and if its existence could have been substantiated through a balancing test – because if the data controller fulfills the requests of the data subjects, the likelihood of a potential legal action due to non-fulfillment necessitating the demonstration of compliance on the part of the data controller is low. In this case, although the data controller may have a legitimate interest in processing personal data related to the fulfillment of the request, it cannot be considered to have existed and been real at the time of the commencement of data processing. In such cases, it may be sufficient to document the measures taken with log files or, in the case of deletion requests, to show that the registration system does not contain data related to the data

subject. However, if the data subject disputes the adequacy of the fulfillment or, abusing their rights, regularly submits requests to the data controller to retaliate against perceived or real grievances, or if a problem arises during the fulfillment of the request, e.g., the data controller could not fulfill the request for some reason, there is a real risk that the data subject will seek remedy from the Authority or the court. Thus, considering each case individually, with appropriate balancing of interests, the Authority finds the processing of personal data related to the data subject's request acceptable based on the legitimate interest of the data controller.

During the data protection authority procedure, the Obligor referred to the legitimate interest legal basis concerning the data processed for evidentiary purposes. The Authority concluded that the legal basis is not properly defined, meaning that it is not the legitimate interest, but rather the fulfillment of a legal obligation that underpins the data processing. According to the complainant, the data subject submitted a request for account deletion to the Obligor, who, in response, informed the complainant about the extension of the procedural deadline due to the large number of requests. The Obligor ultimately fulfilled the deletion request within the deadline, but did not inform the complainant about it. The Obligor only informed the complainant about the completion of the deletion after a significant delay because the complainant inquired repeatedly about its realization. However, the information provided at that time did not cover the fact that the data processing as a whole did not cease with the deletion, as the Obligor retained certain personal data for further data processing purposes.

In light of all this, the Authority – ultimately with the agreement of the other relevant authorities – found that the Obligor extended the deadline for fulfilling the data subject's rights without proper justification, as the large number of requests in the GDPR does not mean what the Obligor referred to, namely that a large number of requests are generally received by the data controller from the data subjects whose personal data it processes, but rather that the data subject submitted a larger number of requests to the data controller, regarding which the deadline is extended. Furthermore, the Authority found that Article 12(3) of the GDPR not only requires the data controller to act based on the data subject's request but also to inform the data subject about the measures taken.

The Authority also identified significant substantive deficiencies in the subsequent notification regarding the deletion, as the information about the measures taken must cover everything, meaning that in the specific case, it should not only state that the account deletion has occurred but also specify what further personal data the Obligor retains about the complainant for legal obligations or legitimate interests, what the purpose of processing this data is, and the planned duration of such processing.

The complaint also concerned the lawfulness of data processing. In this regard, the Obligor referred to certain (consumer protection, tax law, accounting) statutory obligations, regarding which the retention obligation, according to the Authority's position, also existed in the specific case. Furthermore, the Obligor argued that it is entitled to process the complainant's data both for the purpose of documenting the measures taken based on the data subject's request and for evidentiary purposes during the data protection procedure. The Obligor stated that the legal basis for the data processing carried out for the purpose of documenting the measures taken based on the data subject's request is the fulfillment of a legal obligation, which the Obligor identified as the principle of accountability under Article 5(2) of the GDPR, meaning it considered that...

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regulations similar to those of the emergency call system (ESR) regarding data processing, furthermore

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to formulate clear provisions regarding when a recorded call to the primary care on-call service is considered health data, and how long the recorded audio file should be retained by the data controller, taking into account the applicable conditions.

The Ministry of the Interior informed the Authority that it agrees with the recommendations contained therein and that the related amendment to the law will be developed during the autumn legislative cycle of 2024.

It should be emphasized that the Authority's investigation was limited solely to the recording of calls

received by the primary care on-call service, the handling of the audio recording as personal data, and the exercise of related rights of the data subjects; however, image recording and the related data processing were not the subject of the investigation, considering that the Authority could only investigate based on complaints received regarding specific locations, but not in general.

[NAIH-450/2024 (NAIH-7897/2023)]

2. Data processing related to the organization of class reunions

The Authority received a request for a legal opinion regarding whether an educational institution can lawfully provide the contact details of former classmates to an organizer who does not have personal identification data for the purpose of organizing a class reunion, so that the organizer can notify them about the reunion within the framework of the contact procedure.

In 2015, the Authority published a recommendation on this subject; however, considering that the legal environment has significantly changed since the applicability of the General Data Protection Regulation (GDPR), it now only holds historical legal significance. Therefore, the Authority issued a new opinion, which it also published on its website.

In its opinion, the Authority stated that it did not identify an appropriate legal basis for the educational institution to forward the personal data of former classmates to the organizer for the purpose of contact procedures, as the educational institution does not have such a public duty towards former classmates. The Obligor, when submitting evidence in the investigation and then in the authority procedure, fulfilled its obligations regarding declaration, documentation, and cooperation under the GDPR, the Information Act, and the Administrative Procedure Act.

II.1.9. Recommendations and opinions issued by the Authority

1. Recording of phone calls to the primary care on-call service (1830)

The Office of the Commissioner for Fundamental Rights (hereinafter: AJBH) informed the Authority that during an investigation related to a complaint concerning the recording of calls to the primary care on-call service, it found that the practices of the service provider offering the primary care on-call service raised suspicions of violations related to the informational self-determination rights of individuals seeking assistance. In light of the findings in the report, the AJBH submitted a notification to the Authority regarding the image and audio recording practices of the primary care on-call service based on Section 36 of Act CXI of 2011 on the Commissioner for Fundamental Rights (Ajbt.).

In this case, the Authority initiated an investigation concerning the audio recording practices of the primary care on-call service, during which it requested information from the National Ambulance Service regarding calls received by the primary care on-call service, and subsequently concluded that the legal provisions regarding the handling of recorded calls as personal data are incomplete and unclear.

In light of this, the Authority, based on Section 38 (4) a) and Section 57 of the Information Act, addressed a recommendation to the Ministry of the Interior (BM), which is responsible for health care and thus authorized to legislate on health-related matters, to regulate the issues related to the data processing in question by law, in such a way that

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appropriate legal sources are formulated at the level of the management control system (MIR) and clear provisions are established, for example, for the unified emergency number 112.

The unified emergency number for the primary care on-call service (1830) is operated by the National Ambulance Service, and the primary care on-call system is planned to be gradually introduced throughout the country by spring 2024, with the exception of Budapest.

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involving a public area inspector, who, as a person authorized for crime prevention data processing, may also use body cameras in accordance with Section 7 (2) of Act LXIII of 1999 on Public Area Supervision (Kftv.).

[NAIH-8330/2023; NAIH-8821/2023]

II.1.10. Cooperation with the Work of Other Authorities

The Hungarian Competition Authority (hereinafter: GVH) has, on several occasions, requested the

Authority's opinion regarding the proceedings against Viber Media S.á.r.l., as well as TikTok Inc. and TikTok Technology Limited, concerning the alleged violation of the prohibition of unfair commercial practices against consumers in the competition supervision proceedings, in relation to the compliance of the companies with data protection regulations.

The GVH requested the Authority's opinion – among other things – on the commitment statement submitted by the companies under investigation in the competition supervision proceedings, particularly regarding whether the measures proposed in the commitment statement can be considered adequate based on the applicable data protection regulations, with particular attention to the significant involvement of minors among the users of the TikTok platform; and if those measures are potentially inadequate, what modifications the Authority would consider justified and why.

In addition to the above, the GVH sought the Authority's opinion regarding the collection of statistical data and the personalization of service content (with particular regard to the legal basis for such data processing); furthermore, also concerning the data processing standard of the Interactive Advertising Bureau Europe (IAB).

The Authority issued opinions on each occasion in accordance with Article 57 (1) (c) and Article 58 (3) (b) of the GDPR. [NAIH-1086/2024 (previous case numbers: NAIH-3240/2023, NAIH-8159/2022); NAIH-2003/2023]

the acquisition of consent is impossible, and the educational institution has no means to properly assess the legitimate interest of the organizer as a third party. [NAIH-5830/2023].

3. Data Protection Limitations on the Use of Body Cameras in Parking Enforcement Tasks

The Authority has received several submissions regarding the fact that in certain municipalities, parking enforcement tasks and waiting public service tasks are not carried out by public area inspectors, but rather by parking attendants who do not qualify as public area inspectors, employed by the municipal governments or the economic companies established for this purpose. According to the submissions, parking attendants have increasingly experienced acts of aggression from those involved in recent times; as a result, the sense of security of parking attendants has significantly decreased. To enhance the safety of parking attendants and to ensure the effective investigation of reports, it is intended to equip parking attendants with body cameras that record images and sounds.

The Authority has strongly emphasized that public area surveillance is only permissible in a narrow scope; neither the parking attendant nor the economic company authorized to carry out parking enforcement tasks can act as a data controller conducting data processing for law enforcement purposes, nor can they conduct camera-based data processing for crime prevention purposes in light of point 10a of Section 3 of the Infotv. (unlike public area inspectors). Furthermore, it is also a significant consideration that equipping parking attendants with body cameras may, in certain cases, be classified as workplace monitoring data processing, which can raise numerous questions and issues.

Based on the information available to it, the Authority currently holds the position that equipping parking attendants with body cameras solely for the purpose of enhancing their safety and facilitating evidence collection (effective investigation of reports) is not acceptable; currently, there is no identifiable legal basis for equipping parking attendants with body cameras, considering the principled limitations set forth in Article 5 of the GDPR.

To achieve the objectives mentioned in the submissions (enhancing the safety of parking attendants and ensuring the effective investigation of reports), the Authority suggests developing alternative solutions that do not involve or involve fewer personal data processing activities, such as employing parking attendants to work in pairs, or

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The information regarding data processing was limited, and the Data Controller provided the information to the Reporter based on Article 15(1) of the General Data Protection Regulation. In this regard, the Authority established that the inquiries submitted by the Reporter to the Data Controller are related to the Data Controller's crime detection tasks; therefore, the processing of personal data contained in the inquiries is considered data processing for law enforcement purposes, to which the provisions of the Infotv. apply.

According to Section 17(3) of the Infotv., the data controller may restrict or deny the exercise of the data subject's right of access if such action is absolutely necessary to ensure any interest specified in Section 16(3)(a)-(f) of the Infotv. During the procedure, no information emerged indicating that the Data Controller had restricted or denied the Reporter's right of access. The Authority found during its investigation that the Data Controller did not comply with the relevant provisions of the Infotv. and did not fully fulfill the part of the Reporter's request related to the exercise of the right of access, thereby violating the right of access as per Section 14(b) of the Infotv. and Sections 17(1)-(2) of the Infotv. Based on Section 56(1) of the Infotv., the Authority instructed the Data Controller to fulfill the part of the Reporter's request related to the exercise of the right of access concerning all personal data processed by the Reporter in accordance with the provisions of Section 17 of the Infotv. or to inform the Reporter about the limitation or denial of the request. Finally, the Data Controller complied with the Authority's instruction and fulfilled the part of the Reporter's request related to the exercise of the right of access based on the provisions of Section 17 of the Infotv. [NAIH-263/2023]

II.2.2. Review of the re-submitted request for the exercise of data subject rights

In the data protection authority procedure initiated upon request, the Authority examined the legality of the procedure related to the request for the exercise of the right of access submitted to one of the national security services (hereinafter: Data Controller). The Applicant requested the Data Controller to disclose personal and classified personal data regarding their health condition and sought information on whether they had been exposed to neurotoxins or other harmful external influences. The subject of the request was not clearly defined in the submission made to the Data Controller, and it was not recognizable from the wording of the submission that part of the Applicant's request was aimed at exercising the right of access. The Data Controller did not provide information regarding citizens' health data.

II.2. Processing of personal data for law enforcement, defense, and national security purposes (data processing operations falling under the Infotv.)

II.2.1. Responses to requests for the exercise of data subject rights based on the Infotv.

The Authority initiated an investigation against the Data Controller based on the Reporter's request in accordance with Section 38(3)(a) of the Infotv. regarding the legality of the procedure for assessing the Reporter's request for the exercise of data subject rights.

According to Section 14(b) of the Infotv., the data subject is entitled to request that the data controller and the data processor acting on its behalf or at its direction provide information regarding their personal data processed under the conditions specified in this law (right of access). Pursuant to Section 17(1) of the Infotv., in order to ensure the exercise of the right of access, the data controller shall inform the data subject upon request whether their personal data is processed by the data controller itself or by a data processor acting on its behalf or at its direction. In the request submitted by the Reporter to the Data Controller, they not only sought information about the processing of their personal data and related information but also requested clarification regarding the investigation conducted against them, disputed the findings and conclusions made by the investigative authority, and raised objections to the investigative/procedural actions taken.

The Authority determined that only that part of the Reporter's submission could be regarded as a request for the exercise of data subject rights, which pertains to the information regarding the processing of their personal data and related information; the other parts of the submission cannot be evaluated as requests for the exercise of data subject rights. In this context, the Authority emphasized that within the framework of the exercise of data subject rights, the data controller is obliged to provide information solely about the personal data it processes concerning the data subject and the information defined in Section 17(2) of the Infotv. The Reporter requested information regarding all personal data processed by the Data Controller in the exercise of their right of access. However, the Data Controller's response regarding the fulfillment of the right of access was solely based on the personal data contained in the inquiries submitted by the Reporter to the Data Controller.

and the rights of the data subject granted by this law, as well as the manner of their enforcement, particularly that the data subject may exercise their right of access with the assistance of the Authority. The Authority found that the Data Controller acted unlawfully when it rejected the Applicant's request for access to personal data under Section 14(b) of the Infotv. based on Section 46(1)(b) of the Ákr. The Data Controller violated the Applicant's right of access under Section 14(b) of the Infotv. and Section 17 of the Infotv., as it did not provide information regarding the fulfillment, limitation, or denial of the Applicant's request for access in accordance with the provisions of the Infotv. In light of this, the Authority ordered the Data Controller to fulfill the Applicant's request for access in accordance with Section 17 of the Infotv., or to provide information regarding the limitation or denial of the request in accordance with the Infotv. [NAIH-5383/2023]

II.2.3. The legality of data processing related to correspondence received by detainees from organizations specified in Section 174(4) of the Bvtv.

Following a notification, the Authority examined the legality of the data processing practices related to the correspondence of detainees in a correctional facility. The data processing related to the correspondence of detainees, its registration, and monitoring by correctional facilities constitutes data processing for law enforcement purposes, to which the provisions of the Infotv. must be applied.

According to Section 5(1)(a) of the Infotv., personal data may be processed if it is ordered by law or, based on the authorization of law, within the scope defined therein, for a purpose based on public interest, by a local government decree concerning data that does not qualify as special data or criminal personal data. According to Section 76(1) of Act CCXL of 2013 on the execution of penalties, measures, certain coercive measures, and the enforcement of administrative detention (hereinafter: Bvtv.), the correctional facility, as the authority responsible for enforcement, may process personal data related to the convicted person for the purpose of fulfilling the tasks defined in this law. According to Section 76(2)(m) of the Bvtv., the correctional facility may lawfully process personal data necessary for the exercise of the rights and the fulfillment of the obligations of the convicted person. Based on Section 174 of the Bvtv., detainees have the right to correspondence, and according to Section 174(2) of the Bvtv., it is the task of the correctional facility to forward letters written by the convicted person and to deliver letters received for the convicted person. Section 174(3) of the Bvtv. states that the correctional facility may process personal data, special data, and criminal personal data not only for the purpose of maintaining a register but also in the interest of fulfilling its national security tasks, which may include health-related personal data for certain data subjects. Therefore, the Data Controller informed the Applicant that the matters contained in their submission do not fall within its tasks and authority.

After the Applicant clarified their request, part of it clearly aimed at exercising the right of access under Section 14(b) of the Infotv. The Applicant approached the Data Controller multiple times in a short period with requests aimed at exercising the right of access. The Data Controller substantively assessed the Applicant's request for access to their nationally classified personal data in an administrative authority procedure. The Data Controller also substantively assessed the Applicant's previously submitted request for access to their personal data and informed the Applicant of the denial of their request for exercising the right of access.

The Applicant again requested access to their personal and classified personal data from the Data Controller. The Data Controller rejected the Applicant's request for exercising the right of access based on a decision made regarding the access permit, in accordance with Section 46(1)(b) of the Ákr. However, the procedure related to the assessment of requests for exercising the right of access by the Data Controller is not an administrative authority procedure, thus the rejection of the request for exercising the right of access based on Section 46(1)(b) of the Ákr. is not justified.

The relevant provisions of the Infotv. do not allow the Data Controller to refrain from substantively assessing repeatedly submitted requests for exercising the right of access. Section 15(3) of the Infotv. only authorizes the Data Controller to demand reimbursement of costs directly incurred in relation to the repeated and unfounded enforcement of the rights of the data subject. Furthermore, there may also be changes in the scope of personal data processed by the Data Controller in the meantime. Data controllers are obliged to respond to requests aimed at exercising the rights of data subjects in all cases based on the provisions of Section 17 of the Infotv. In the case of limitation or denial of the right

of access, the data subject must be informed of the fact of the limitation or denial of access, as well as the legal and factual grounds for it, in accordance with Section 17(4) of the Infotv., provided that the disclosure of these does not jeopardize the enforcement of any interest defined in Section 16(3)(a)-(f).

64

65

management, in accordance with Section 127 (1) of the Bvtv., it is necessary to ensure the possibility of electronic document examination in correctional institutions as well. The Authority drew the attention of the correctional institution to the fact that, according to Section 127 (1) of the Bvtv., the possibility of electronic document examination must be provided to convicts regarding documents generated in ongoing or past criminal proceedings against them. In the case examined, the District Court sent documents related to the Claimant's property division case to the Claimant. Furthermore, according to Section 127 (1) of the Bvtv., the court, the prosecutor's office, or the investigative authority does not forward documents generated in ongoing or past criminal proceedings against the convict, or copies thereof, as an electronic dispatch that the correctional authorities receive via the Robotzsaru system, but sends the documents on an electronic data carrier.

The Authority established during the investigation that the correctional institution's practice regarding the handling of incoming correspondence for detainees via the Robotzsaru system from the organizations specified in Section 174 (4) of the Bvtv. is inadequate from the perspective of personal data protection, as the case managers and administrative staff of the correctional institution unlawfully accessed the content of the electronic correspondence with the Claimant's District Court, as well as the personal data contained therein, some of which was also recorded in the subject field of the filing system. Thus, there is a violation related to the handling of personal data.

Since this was a violation concerning the general practice of the correctional institution, the Authority made recommendations based on Section 56 (3) of the Infotv. to the National Command of the Prison Service (hereinafter: BVOP) as the supervisory authority of the correctional institution. The Authority called on the BVOP to reform the practice of the correctional authorities regarding the handling of incoming correspondence for detainees from the organizations specified in Section 174 (4) of the Bvtv. through the Robotzsaru system, by applying technical and organizational measures, in such a way that it complies with the protection of personal data and the provisions contained in Section 174 (4) of the Bvtv., or to indicate to the organizations specified in Section 174 (4) of the Bvtv. that transmit documents electronically to detainees under the general rules of electronic administration and trust services as per Act CCXXII of 2015, that in such a mode of sending, the correctional authorities cannot comply with data protection and data security regulations. Therefore, considering that the correctional institution is entitled and obliged to ensure the security control of correspondence based on the convicts, at the same time, Section 174 (4) of the Bvtv. contains a restrictive provision stating that the correspondence of the convict with authorities, recognized by international treaties promulgated in law as having jurisdiction, international legal protection organizations, the Commissioner for Fundamental Rights, as well as with the organization or staff of the national preventive mechanism and the defense counsel cannot be substantively controlled.

In the case, the documents sent electronically to the Claimant by a District Court through the OBH system were received and filed by the correctional institution in the Robotzsaru system, and were copied to an external data carrier in order to ensure the Claimant's access to the documents. The staff members performing case management tasks partially accessed the content of the documents and the personal data of the Claimant during the case management operations for the purpose of identifying the recipient detainee and the type of case, as well as selecting the relevant professional area. Due to the technical capabilities of the Robotzsaru system, the staff performing case management tasks can only determine who the recipient of the electronic documents from the courts is—whether it is the correctional institution or a specific detainee—after opening the correspondence and partially familiarizing themselves with its content, after which the identification of the type of case and the selection of the relevant professional area can take place, thus, for the purpose of performing case management operations and identifying ongoing cases, it is unavoidable to partially familiarize oneself with the content of the documents.

At the same time, according to the restrictive provision contained in Section 174 (4) of the Bvtv., the

correctional authorities are not entitled to access and handle the content of the correspondence of detainees with the organizations specified in Section 174 (4) of the Bvtv. and the personal data contained therein. Section 99 (3) of Government Decree 16/2014 (XII. 19.) IM on the detailed rules for the execution of imprisonment, detention, pre-trial detention, and detention replacing fines also only authorizes correctional authorities regarding correspondence with the organizations specified in Section 174 (4) of the Bvtv. and with the defense counsel to record only the date of sending or receiving, as well as the registration of the recipient or sender.

In its response letter, the correctional institution referred to the fact that although the right of the convict to electronic communication is suspended during the execution of the sentence...

66

67

the expectation that the relationship between the anonymized data and the identified or identifiable natural person is no longer recoverable, meaning that the natural person can no longer be identified. In this case, based on the contents of the indictment, the identity of the Applicant remained identifiable, particularly for the individuals involved in the cases.

Considering that the extracted indictment contained the Applicant's criminal personal data in a manner that could be linked to the Applicant, the Authority examined whether the prosecution acted in compliance with the principles of purpose limitation and data minimization during the transmission of the personal data included in the extracted indictment. Section 4 (1) and (2) of the Infotv. establishes the principles of purpose limitation and data minimization. The principle of purpose limitation is one of the most important internationally established principles regarding data processing, according to which personal data may only be processed for a clearly defined, lawful purpose, for the exercise of rights and the fulfillment of obligations. When respecting this principle, the data controller only processes personal data that is necessary for the performance of its tasks and powers. Considering the principle of data minimization ensures that only the narrowest, justified scope of data is processed in relation to the purpose of data processing. The requirements of purpose limitation and data minimization extend to all stages of data processing, including data transmission. It should be emphasized that data controllers must pay attention to data protection principles during the transmission of personal data, including the principles of purpose limitation and data minimization. Even in the case of lawful data processing purposes, only data that is essential for the realization of the purpose of data processing may be processed and transmitted.

The Authority found that the prosecution failed to individually examine the purpose limitation and necessity of the processing concerning each transmitted personal data during the transmission of the extracted indictment. The extracted indictment included the Applicant's criminal personal data related to their previous conviction, the necessity of transmitting such personal data was not substantiated by the prosecution in relation to the purpose of data processing, namely the enforcement of the rights of the victims. In light of this, the Authority established, based on point b) of subsection (1) of Section 61 of the Infotv., that the processing of the Applicant's personal data was violated because the prosecution violated the principles of purpose limitation and data minimization established in subsections (1) and (2) of Section 4 of the Infotv. during a data transmission operation.

Taking into account all circumstances of the case, the Authority did not find it justified to impose a fine on the prosecution. The Authority suspended the Applicant's right to electronic administration – sending documents addressed to them in a closed envelope on paper or on electronic data carriers complies with data protection regulations. [NAIH-3949/2023]

II.2.4. Violation of the principle of purpose limitation and data minimization in criminal proceedings

At the request of the Applicant, the Authority examined in a data protection authority procedure whether the prosecuting authority lawfully transmitted the Applicant's criminal personal data to the victims of the criminal proceedings and the legal representatives of the victims. According to the preamble of Act XC of 2017 on Criminal Proceedings (hereinafter: Be.), the law places special emphasis on the enhanced protection of victims of crimes and the enforcement of their rights, thus this is also a task for the authorities conducting criminal proceedings. In its decision, the Authority established that the prosecution fulfilled its highlighted task as recorded in the Be. (enhanced protection of victims of crimes and facilitating the enforcement of their rights) by transmitting the

extracted indictment, which is part of the case files and can be accessed by the victims in light of their procedural position, to the victims of the proceedings and their legal representatives, particularly considering that the defendants concealed the judicial and administrative decisions in the payment order and enforcement proceedings they initiated against the victims, which had definitively established the violations committed by the companies previously represented by the Applicant. The victims and their legal representatives, in light of their procedural position, were entitled to access the extracted indictment as a document related to the crime affecting them based on the relevant provisions of the Be. [98. (3), 51. § (1)]. Through the prosecution's transmission, the legal basis for the data processing of the individuals who accessed the extracted indictment, namely the victims and their legal representatives, is Article 6(1)(f) of the General Data Protection Regulation, which states that personal data may be lawfully processed if necessary for the purposes of legitimate interests pursued by the data controller or a third party, as well as Article 9(2)(f) of the General Data Protection Regulation, which states that special categories of data, in this case, criminal personal data, may be processed if necessary for the establishment, exercise, or defense of legal claims, or when courts are acting in their judicial capacity. The prosecution extracted the indictment, in which the defendants were listed by the initials of their last names and first names, without including their identifying data, and the companies named in the indictment ceased to exist without a legal successor after the submission of the indictment. However, even with this method of extraction, anonymization was not achieved. The Authority emphasizes that regarding anonymization...

68

69

must be provided, from which it is not clear that the transfer of personal data took place for the purpose of the data request. The organization contacted within the framework of the data request must be warned in the application regarding the data request. According to Section 264 (8) of the Criminal Procedure Act (Be.), the restriction specified in paragraph (7) may last until the completion of the preparatory proceedings or the conclusion of the investigation, unless the lifting of the restriction would jeopardize the effectiveness of another criminal proceeding against the affected party. The organization contacted within the framework of the data request must be informed about the lifting of the restriction. The Authority, in order to establish the facts, again contacted the police department based on points a) and c) of Section 54 (1) of the Information Act (Infotv.) to request a detailed justification regarding what prevented the lifting of the restriction in the case of the proceedings concluded with a proposal for indictment, considering the provision in Section 264 (8) of the Be. The police department stated that the acting member of the investigative authority failed to inform the Bank about the lifting of the restriction specified in Section 264 (7) after the arrival of the indictment to the investigative authority and the conclusion of the investigation according to Section 348 (5) b) of the Be. The prosecution submitted an indictment to the Budapest Court, which rendered a first-instance judgment. Based on the oral information from the prosecution, the first-instance judgment was not yet final due to the appeal by the Applicant. The inquiry made by the Bank by the investigative authority was conducted lawfully and justified according to point e) of Section 262 (1) of the Be., just as the restriction ordered in Section 264 (7) was also justified. As a result of the failure to provide information regarding the lifting of the restriction according to Section 264 (8) of the Be., the Applicant's rights were not violated; simultaneously with gaining access to the investigation documents, the Applicant became aware of the inquiry made by the Bank by the investigative authority. The Authority, based on Section 56 (1) of the Infotv., instructed the police department to inform the Bank about the lifting of the restriction specified in Section 264 (7); and to take measures to ensure that in the future, the rule contained in Section 264 (8) is applied during criminal proceedings. In its response, the police department informed the Bank, based on Section 264 (8) of the Be., that the continuation of the restriction under Section 264 (7) is no longer justified, considering that the investigation has been concluded. The police department also informed the Authority that measures have been taken to prevent similar cases in the future, so that the warning under Section 264 (7) of the Be. should only be included in the data request sent by the territorial and local bodies of the BRFK to the contacted authority if it is absolutely justified and necessary for the effectiveness of the criminal proceedings, and furthermore, rejected the part of Section 264 (7) regarding the prohibition of unlawful processing of

personal data, as the prosecution lawfully processed the Applicant's personal data, including criminal personal data related to previous convictions. However, during the data transfer, the prosecution should have taken into account the principles of data protection, including the principles of purpose limitation and data minimization.

The Applicant and the prosecution both filed a petition against the Authority's decision at the Metropolitan Court, and the court proceedings are ongoing.

[NAIH-601/2023]

II.2.5. A police department did not inform the contacted Bank that it could lift the restriction specified in Section 264 (7) of the Be.

In the complaint received by the Authority, the Applicant stated that the police department conducted a criminal proceeding against him, during which the police department contacted the Bank regarding the Applicant's banking data within the framework of a data request under the Be. The Applicant did not see confirmation that the data request had been authorized by the prosecution and despite the fact that the investigative phase of the criminal proceeding had been completed at the Bank, the investigative authority did not indicate that it would lift the information restriction concerning the Applicant, thus violating the Applicant's rights. The Applicant also complained that the police department did not inform him at the same time as the access to the documents in the criminal proceeding that his rights were restricted by the Bank. The Authority initiated an investigation based on point a) of Section 38 (3) of the Infotv. to determine whether there was a violation of the law regarding the processing of personal data.

In its response to the Authority's inquiry, the police department informed the Authority that it had forwarded the criminal proceeding to the prosecution with a proposal for indictment; furthermore, a final decision in the case had not yet been made, and in the absence of such, it was not possible to comply with the provisions of Section 264 (7) of the Be. According to Section 264 (7) of the Be., if informing about the data request would jeopardize the effectiveness of the criminal proceeding, the organization contacted within the framework of the data request may not provide information to others about the fact of the request and its contents, as well as the content of the data transfer carried out during it, based on the explicit provision of the requesting authority, and must ensure that all of this remains confidential. In the case of a request from the affected person regarding the processing of his own personal data, such information must be provided.

70

71

since the knowledge of the Applicants' personal data by the accused party violated the protection of personal data. The Police Headquarters informed the affected parties about the data protection incident; however, it did not report the incident to the Authority, as it considered it not to be risky, given that the Applicants had a familial relationship with the person they reported, and therefore were already aware of each other's personal data.

The presenter of the case, referring to Section 99 (10) of the Criminal Procedure Code (Be.), deemed that the name data, which is otherwise to be treated confidentially, could be included in the resolution terminating the proceedings and thus could be forwarded without the consent of the affected person. However, the commentary related to Section 99 (10) of the Be. states that confidentially handled data can only be included in cases and to the extent that is absolutely necessary – for example, instead of the full address, it is sufficient to indicate the name of the settlement when determining the jurisdiction of the court conducting the proceedings. The protection of personal data can indeed be ensured in these cases by strictly applying the principle of necessity. In the case under review, the part of the resolution contained the name of the Applicant, which specified to whom the document should be delivered. According to the provisions of Section 363 of the Be., a resolution made in criminal proceedings – including the resolution terminating the proceedings – does not need to contain the identifying data of those persons to whom the resolution is to be delivered. The resolution must contain the designation of the person(s) and the data necessary for identification to which the provision applies. The inclusion of the names of the addressees in the resolution inherently violates the principle of purpose limitation in data processing, as their inclusion is entirely unnecessary and can only have an administrative reason. If the Applicant had not requested the confidential handling of their data, the

Police Headquarters would still have had to include the delivery data of the addressees (name, address) in a separate delivery clause. The Police Headquarters stated the following regarding the practice applied: "After the completion of all procedural acts, a record is prepared, which the person affected by the proceedings signs after reading it. Thus, the affected person can already monitor on the signed document which of their data was handled confidentially and which were visible." The Authority's position is that this procedure is not sufficient to ensure the confidentiality of data handling, as even if the content of the document has been anonymized, the Applicant is forced to indicate their name on the document by signing the record of their witness hearing; however, if it is clearly legible, it becomes accessible to the accused during the examination of the documents. Consequently, it would also be necessary to redact the signature.

The necessary measures should be taken to lift the restriction ordered according to the above – after the conclusion of the proceedings. Measures have also been taken for the leadership staff to randomly check the complete implementation of the above. [NAIH-5889/2023.]

II.2.6. Matters related to confidential data handling

II.2.6.1. Failure to handle personal data confidentially during criminal proceedings

In one case, two Applicants submitted a joint request to the Authority, in which they objected that the Budapest Police Headquarters, XI District Police Station, failed to handle their data confidentially despite their explicit request. According to the application, the Applicants filed a report with the Police Station, in which they requested the complete, name-specific confidential handling of their data according to Section 99 of the Be., given that they had a familial relationship with the reported person, thus having a compelling interest in not revealing the fact that they were the reporters. One of the Applicants repeatedly requested the confidential handling of their data during their witness hearing. A resolution terminating the proceedings was issued in the criminal case, which the Police Station sent to the accused and the accused's defense attorney, excluding one of the Applicants, and it contained the name of the Applicant. The Applicants approached the Police Station to inquire whether their personal data had indeed been sent to the accused and their defense attorney. The Police Station investigated the contents of the submission and found that the Applicants had indeed requested the complete, name-specific confidential handling of their personal data. However, due to the negligence of the official, the name of one Applicant was included in the extract of the record of their witness testimony, which was sent as part of the investigative documents to the accused's defense attorney. The Police Station did not ensure the anonymization of the sent investigative documents concerning either Applicant, and the name of one Applicant as the reporter was also included in the resolution terminating the proceedings. The violation of the provisions regarding confidential data handling in Section 99 of the Be. resulted in a data protection incident.

72

73

II.2.6.2. Failure to handle personal data in a closed manner, delayed reporting of a data protection incident

The Authority conducted an official inspection and then an official procedure following an incident report from a police station. According to the incident report, a report was drawn up with the involvement of the person affected by the incident. The Reporter (as the victim) requested the closed handling of their personal data, which request was also confirmed by their signature. The person who drew up the report did not delete the data intended for closed handling from the report after its preparation, and thus it was forwarded to the competent prosecutor's office along with that data. The Reporter filed a complaint with the Police Headquarters, in which they objected that due to the lack of closed handling of their data, the person they reported became aware of their residential address. In the examined case, the request for closed data handling (the report containing the complaint) was indicated in the paper-based case file in the RZsNeo system. The case officer took action to prepare an extract, but did not delete the data intended for closed handling from the report and incorporated it into the RZsNeo system as is. The monitoring of closed data handling should have been expected not only from the case officer but also from their direct supervisor, the head of the Criminal Division of the relevant Police Station, as well as from the case manager who carried out the filing operation. There should not have been a non-redacted report in the electronic case files in the RZsNeo system, yet this

occurred in the examined case. According to the statement from the Police Station, apart from the persons involved in the administration of the Reporter's complaint and the Prosecutor's Office, no other authority or person became aware of the personal data. The Prosecutor's Office involved in the examined case was not aware that the personal data of the affected person should have been handled in a closed manner, and thus was not in a position to protect the data before the complaint was submitted. For this reason, the person reported by the affected individual became aware of the affected person's residential address due to the lack of closed data handling.

3 The closed data handling in the police case management and administrative system (hereinafter: RZsNeo system) operates in such a way that personal data appears in the report even in the case of closed data handling. Closed handling must be executed in such a way that after the report is taken, the entire report must be printed after reading the pop-up message that appears, which must be signed by the client (in this case, the reporter/victim) and the person conducting the investigative action. Following this, the report appears in an editable format in its entirety, from which the personal data that the affected person requested to be handled in a closed manner must be deleted one by one. The extracted report must be signed, and then this report must also be placed among the paper-based investigative documents.

The Police Station also stated that when the report was signed during the witness hearing, it was known that no additional data was indicated on the document apart from the name, however, since the Applicant did not specifically indicate which of their data they requested to be handled in a closed manner, the Authority interprets their statement as meaning that all their data, including their name, should be protected. In light of all this, the Authority established the fact of unlawful handling of personal data based on point ba) of paragraph (1) of Section 61 of the Infotv., due to the violation of the data security measures contained in paragraphs (1) and (3) points b) and h) of Section 25/I of the Infotv.

The Authority did not accept the argument of the Police Station that the incident did not pose a risk due to the familial relationship between the reporters (Applicants) and the reported individual. The Applicants specifically requested the closed handling of their personal data, including their names, precisely because of the familial nature of the case, as they believed that their familial relationships created a compelling interest in preventing their identities from being revealed. In their case, their names were protected data in themselves to prevent them from being associated with their status as reporters. By failing to handle their personal data in a closed manner, what they sought to avoid actually occurred, thus the incident was detrimental to them. The Applicants had a legally guaranteed right to request closed data handling, moreover, the Fundamental Law guarantees them the right to respect for private and family life. According to paragraph (1) of Section 25/K of the Infotv., an incident is considered high risk if it is likely to have consequences that significantly affect the realization of any fundamental right belonging to the affected individual. The Authority believes that in this case, the incident resulted in a violation of the Applicants' rights guaranteed by the Fundamental Law, and consequently, the high risk of the incident can be established. The Authority holds that the Police Station should have reported the data protection incident to the Authority based on paragraph (1) of Section 25/J of the Infotv. Given that the Police Station failed to report the incident, the Authority established a violation of paragraph (1) of Section 25/J of the Infotv.

The Authority considered all circumstances of the case and decided to impose a data protection fine on the Police Station based on point bg) of paragraph (1) of Section 61 of the Infotv. [NAIH-1637/2023]

74

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Individuals in pre-trial detention may also be present within the field of view of the contested cameras. There is no reference to the rules applicable to convicted individuals in the Bvtv. concerning those undergoing compulsory treatment or those in pre-trial compulsory treatment.

The Authority established that there is a direct risk of violation of rights related to the exercise of rights defined in the Infotv., considering that the legal regulation regarding the application of electronic surveillance devices concerning detainees is not clear—since it is limited to the surveillance of convicted individuals, while the IMEI and the penal enforcement authorities interpret the possibility of applying electronic surveillance devices or monitoring devices in a broader sense concerning the

individuals being monitored. Therefore, the Authority recommended to the Minister of the Interior to review Section 145 (1) and Section 150 of the Bvtv. in light of the unclear provision and to consider extending the data processing prescribed by the referenced legal provisions to the entire population of detainees, or in the case of the IMEI—given its distinct and specialized detainee population compared to other penal enforcement authorities—to assess whether it is necessary to create a separate regulation that would govern the detailed rules of these security measures for this institution. The aim of the proposed measure is to align Sections 145 and 150 of the Bvtv. with the practice of law enforcement and for the legislator to clearly regulate the legal background concerning not only convicted individuals but also those detained for other reasons.

In its response letter dated August 24, 2023, the ministry informed the Authority that due to the unclear regulation of the subject matter, it considers the amendment of the Bvtv. justified and shares the Authority's view that it is necessary to regulate the legal basis for the application of electronic surveillance devices concerning individuals undergoing compulsory treatment and those in pre-trial compulsory treatment, the purpose of the application, and accordingly the location of installation, as well as the conditions for recording, retention, deletion, and the use of personal data contained in the recordings. [NAIH-4848/2023]

In the examined case, it was established that the scope of the data affected by the data protection incident is broad, as the protocol contained data related to the identity of the affected individual and their contact information; which became linkable to criminal personal data. Unauthorized access to the protocol could enable identity theft, and as a result of the incident, the identity of the Reporter and their position in the criminal proceedings became known to the accused.

The incident is considered to be of high risk, taking into account all circumstances of the case.

According to statements made during the official inspection, the Police Headquarters did not take appropriate data security measures to ensure that the confidential personal data did not appear in the RZsNeo system. The presenter of the case did not complete the action aimed at creating an excerpt, as they did not delete the data intended to be handled confidentially from the protocol. The Authority also established that the Police Headquarters reported the incident to the Authority late, beyond 72 hours after becoming aware of the incident.

The Authority established the violation of the obligations set forth in Section 25/I (1) and in points b) and h) of paragraph (3) of the Infotv., as well as the obligation contained in Section 25/J (1) of the Infotv. The Police Headquarters did not carry out its data processing in accordance with the relevant laws, as it failed to execute the closed data processing and reported the data protection incident late. For all these reasons, the Authority established the fact of unlawful processing of personal data based on point b) of Section 61 (1) of the Infotv. [NAIH-7702/2023]

II.2.7. The Authority's proposal for the amendment of the Bvtv.

On September 20, 2021, a notification was received by the Office of the Commissioner for Fundamental Rights (hereinafter: AJBH) via postal mail, stating that individuals placed in the Women's Department of the Justice Observation and Psychiatric Institute (hereinafter: IMEI) are disturbed by the cameras installed above the dining area and the nurse's station, which they claim negatively affect the health condition of certain patients. The AJBH forwarded the complaint to the Authority on April 14, 2022. The Authority initiated an official investigation into the matter.

Section 150 of the Bvtv. pertains to the surveillance of convicted individuals, not the broader category of detainees. The Authority pointed out that in the case of the IMEI, the detainee population consists not only of convicted individuals but also of those undergoing compulsory treatment.

76

77

can exercise it through its operation. Information regarding the factual and legal grounds for the refusal may only be waived in cases specified by law. According to the correctional institution, the exercise of rights by the affected party is realized in such a way that, based on Section 26 of the Act on the Execution of Sentences (Bvtv.), the detainee may inspect the documents available in paper form, may request copies of them, while the documents available in electronic form may be accessed in digital storage or printed form. Section 26 (4) of the Bvtv. defines the documents that are not subject to the right of access. However, it can be established that recordings do not fall within the category of

documents that cannot be accessed according to Section 26 of the Bvtv., thus their access cannot be excluded. According to the statement of the correctional institution, the camera recording was not part of the disciplinary procedure's documentation. Essentially, the disciplinary documents only recorded that the notifier did not request the review of the recordings during the disciplinary procedure at the time of their hearing; nevertheless, those recordings were reviewed, based on which the violation of the mask-wearing rules was established.

The Authority determined that the part of the requests concerning the possibility of accessing the camera recordings should have been evaluated as an access request submitted within the framework of the affected party's rights under the Information Act (Infotv.) and answered accordingly. If the correctional institution did not possess the recording, the notifier should have been directed to the data controller. The Authority emphasized that regarding the recordings made by the camera system, detainees employed at the workplace must be informed, as part of the preliminary information, based on Section 16 of the Infotv., about – among other things – the identity of the data controller, the name and contact details of the data protection officer, and the rights of the affected parties, as well as the ways to enforce those rights. With this information, individuals appearing in the recording will know where and what rights they can enforce regarding their personal data appearing in the recordings. Regarding the preservation of the submitted requests and ensuring their availability, the investigation revealed that there are no measures in place to protect the requests of detainees, which contain personal data, during the process of data handling, from the point when the detainee submits their request to the person authorized to receive it, until it is recorded in the Phoenix 3 electronic information system. Such a security measure could be, for example, that at the time of submission of the request, the receipt...

II.2.8. Requests for access to recordings made in connection with the camera data processing of correctional institutions

The Authority conducted an investigation based on a report from a detainee (hereinafter: the notifier) regarding the camera surveillance during the employment of detainees at one of the correctional institutions (hereinafter: the correctional institution). The Authority examined the issue of access for the affected party to the camera recording made for the purpose of monitoring employment, the handling of the recording in terms of retention period, as well as the identity of the data controller and the question of joint data processing. Beyond the handling of the camera recordings, it also investigated what data security measures serve the availability of requests submitted by detainees.

During the organized work for the detainees at the correctional institution – at the time of the examined recording – wearing a mask was mandatory due to Covid. The notifier received a disciplinary penalty for violating the mask-wearing rules. The notifier repeatedly requested – both verbally and in writing – the provision of the camera recording as evidence; however, their requests were consistently denied. According to the correctional institution, it could be established based on the review of the recordings that the notifier violated the mask-wearing rules on several occasions. The correctional institution treated the notifier's submissions as requests for access to documents. During the investigation, it was also revealed that access to the camera recording was primarily granted to a company established by the correctional institution for the employment of detainees; the event that triggered the disciplinary procedure was viewed by the person monitoring the work, the results of which were recorded in writing and included in the documentation of the disciplinary procedure.

The notifier's requests were indeed not phrased in such a way as to request access to the recordings as data carriers containing personal data or to view the recordings as personal data. However, in essence, they clearly aimed at accessing the recordings containing the affected party's personal data. The existence of the recordings as personal data is independent of the disciplinary procedure; they were created prior to the procedure. The affected party must be ensured the right to view the recording containing personal data – within the framework of the access right regulated in the Infotv. – as long as the recording is still available. The access request can only be denied if the conditions specified in the Infotv. are met. In this case, the affected party must also be informed about the fact of the denial, the legal and factual grounds for it, as well as the available remedies, and in the case of denial, that their rights can be enforced based on point b) of Section 17 (4) of the Infotv. by the Authority...

The agreement must also cover the tasks related to the fulfillment and response to requests submitted within the framework of the rights of the affected parties.

The data protection officer of the Ltd. referred in the examined case to point 5 of the cooperation agreement signed on February 11, 2021, between the Ltd. and the correctional institution regarding the handling of image recordings, which was concluded after the creation of the recording. According to the referenced point 5 of the agreement, the correctional institution is the data controller of the recordings made by the camera system, to which the Ltd. has access under a separate agreement or for the purpose of investigating disciplinary, administrative offenses, or suspected criminal acts if necessary.

The amended paragraph (1) of Section 150 of the Bvtv. as of January 1, 2023, specifically names the data processing with electronic surveillance devices at the workplace under the management of the correctional authority, and the new paragraph (1a) allows for the use of electronic surveillance devices operated by another law enforcement authority at an external workplace for the purpose defined in paragraph (1), which is not under the management of the correctional authority. This provision thus enables joint data processing as defined by law, but does not regulate its details. Accordingly, if the employment by the Ltd. is considered work performed at an external location and the correctional institution has direct access to the camera system, then the correctional institution and the Ltd. must record their obligations and the distribution of their responsibilities in a written and publicly disclosed agreement as joint data controllers.

Since the data processing examined did not fully comply with data protection regulations and there was a violation regarding the handling of personal data, the Authority called upon the correctional institution and the Ltd. to review the data processing and clearly determine the identity of the data controller(s) and any data processor, accordingly define their tasks, and establish the appropriate rights and obligations. The data controller must ensure compliance with the obligations related to preliminary information as stipulated in Section 16 of the Infotv. in connection with the examined camera data processing. Requests for viewing recordings from the camera system should be treated as access requests and responded to or denied in accordance with the provisions of the Infotv. If the correctional institution is not the data controller of the recording, information about the identity of the data controller must be provided to the applicant in all cases. The Authority urged the correctional institution to ensure that the handling of requests submitted by detainees to the correctional institution, which contain personal data, is carried out with appropriate data security measures (e.g., the fact of detention, duration, and the subject of the request would be confirmed to the detainee, and a copy of the request would remain in the possession/deposit of the detainee).

The investigation found that the recordings were deleted after 60 days, according to the default settings of the camera system, which complied with legal requirements in the examined case. A request to refrain from deleting the recordings within the statutory deadline was not received by the data controller in a verifiable manner, and the disciplinary procedure, which referenced the recording, had already concluded well before the deletion time.

The handling of camera recordings was carried out for the purpose of monitoring employment as defined in point 13 of Section 3 of the Bvtv., which is organized by the Ltd., a company established for the mandatory employment of detainees. The recording was not included in the documents of the disciplinary procedure conducted by the correctional institution, and the correctional institution did not have access to it during the procedure. The violation of mask-wearing rules was observed by a person supervising the employment of detainees within the activities of the Ltd., who subsequently viewed the recordings. The fact and result of the viewing of the recordings were recorded in the Inspection Log issued by the Production Department of BVOP Ltd. Subsequently, the same person who conducted the inspection initiated the disciplinary procedure with a disciplinary report issued by the correctional institution, which was approved by another person belonging to the staff of the correctional institution. According to the provisions of Section 25/B of the Infotv., if joint data processing occurs in relation to the data processing of camera recordings conducted during employment organized for detainees, then in the absence of a detailed applicable legal regulation according to the Infotv., the joint data controllers must define the fulfillment of their obligations related to joint data processing in a written

and publicly disclosed agreement to the extent not regulated by their applicable legal obligations. This includes, in particular, the obligations related to responding to requests from affected parties and the distribution of responsibility in case of any failure to meet these obligations. Regarding the camera system used during the employment of the Ltd., the Ltd. and the correctional institution must enter into an agreement containing the above and, according to Section 25/A (3) of the Infotv., if the data controller is obliged to designate a data protection officer, create and implement an internal data protection and data security policy that complies with the actual situation and legal provisions. The Authority emphasized that in the case of joint data processing, these

80

81

paragraph, as well as based on Section 51 (2) of Act XXI of 2022 on the management of defense data currently in force, the data of individuals belonging to the reserve personnel is managed by the central personnel authority of the Armed Forces. Accordingly, following the termination of the employment relationship, the collection was lawfully transferred to the management of the central personnel authority. Since the individual no longer belonged to the reserve personnel, the material collector should have been sent to the HM Military History Institute and Museum for further safekeeping; however, according to the information from the central personnel authority, this did not occur. The personal material collector was duly transferred to the Central Archive during the Authority's investigation, and the individual was also informed of this fact. Regarding the data provision and access from the personnel material collector, the investigation did not reveal any data protection incident or any data provision that lacked a properly justified purpose. The Authority instructed the central personnel authority of the Armed Forces to review its procedures to ensure that in the future, the transfer of personal data to be sent to the Central Archive based on legislation would not be delayed. Subsequently, the head of the authority informed the Authority that the staff designated for the management of personal material collectors had been trained on the requirements set forth in Act XXI of 2022 on the management of defense data. The personal material collectors were checked, and in the future, special attention will be paid to the sending of personal material collectors belonging to the reserve personnel to the Central Archive after the expiration of the deadline prescribed by law. An electronic record system was introduced to prevent delays, and two officials were designated to monitor deadlines. [NAIH-383-9/2023.]

II.2.10. Examination of the data management of Kerepes City's public area surveillance system

The Authority initiated an official data protection authority procedure regarding the examination of the data management of Kerepes City's public area surveillance system, which was preceded by an investigation conducted in 2020 based on a notification. The subject of the investigation was the legality of the operation of the surveillance system located in Kerepes City. The notification was related to the activities of the Mayor of Kerepes City (hereinafter: Mayor), who on June 16, 2020, published a public post on the Facebook social media platform – with a comment attached – featuring a picture of an individual, allegedly a resident of Budapest's XIII district, placing waste in the City's public area and the vehicle they used, stating that a police report had also been filed in the matter.

[NAIH-4952/2023]

II.2.9. Management of the personnel document collection of a previously professional military member for defense purposes

A former professional military member, a reserve officer, contacted the Central Archive of the Military History Institute and Museum of the Ministry of Defense (hereinafter: Central Archive) to request information about the storage of their personnel collector; however, these documents were not available at the Central Archive. Subsequently, they initiated an investigation with the Authority to determine what happened to the documents containing personal data related to their professional career and family, as well as their employment documents containing service periods, and how it was possible that these documents were not retrievable years after the termination of their service relationship.

According to the information provided by the Central Archive, based on Section 10 (6) of Act XCVII of

2013 on military administrative tasks related to the fulfillment of certain defense obligations (hereinafter: Haktv.), the data of the Armed Forces personnel is managed – with the exception of those belonging to the reserve personnel – after the termination or cessation of the employment relationship or other work-related legal relationship. According to Section 13/A (2) of the Haktv., the data of individuals belonging to the reserve personnel is managed by the central personnel authority of the Armed Forces. The investigation revealed that the individual's personnel file was forwarded by their former unit to the central personnel authority of the Armed Forces that year, from where it was not submitted to the Central Archive after the expiration of the time specified by law.

According to the information from the Central Archive, the individual's personnel file was not submitted to the archive after the termination of their professional service relationship; however, in connection with the case, contact was re-established with the central personnel authority of the Armed Forces, which informed the Central Archive that the individual's document collection is still under the organization's management. The individual requested to be placed in the reserve personnel at the same time as the termination of their employment relationship. The then-applicable Section 13/A (1) of the Haktv.

82

83

Subsequently, on August 18, 2022, the Mayor published a video recording on the facebook.com community page, captured by a surveillance camera, showing a person engaging in self-gratification at the Szilasligeti HÉV stop. This video was published alongside a video recording of the Mayor's statement made in his official capacity. The fact that the Mayor has access to recordings from the surveillance camera system also supported the Authority's findings during the investigation. In light of all this, the Authority concluded the investigation and initiated a data protection authority procedure. In this context, the Authority conducted an on-site inspection at the headquarters of the Kerepes City Mayor's Office, without prior notification, to ensure the effectiveness of the procedural action.

During the inspection and in the subsequent part of the procedure, it was established regarding the camera system (hereinafter: System) that five MÁV-HÉV cameras, which also record audio, are integrated into the System. The System provided remote access (Quick Connect). The data controller of the System, including the recordings made by the MÁV-HÉV Zrt. cameras, is the public area supervision operating within the Mayor's Office. The legal basis for data processing is established by the provisions of the Infotv. and Act LXIII of 1999 on Public Area Supervision (hereinafter: Kftv.). Regarding the recordings of the MÁV-HÉV Zrt. cameras, it was also ascertainable that the public area supervision's data processing was independent of MÁV-HÉV Zrt.'s data processing because it made substantive decisions regarding the camera images recorded by MÁV-HÉV Zrt., as it undoubtedly stored these recordings in its own System, reviewed them when necessary, utilized them, and transmitted data to the Police based on the authorization of the Kftv. Four recording streams were stored outside the closed System, on another server of the Mayor's Office. The purpose and reason for the handling of recordings beyond the legal retention period could not be established even by the later internal investigation of the Mayor's Office. The purpose of data processing was later indicated as crime prevention, with the legal basis being point a) of paragraph (1) of section 5 of the Infotv. The clerk was not aware of the use of the recordings.

The handling of these recordings—beyond the retention period defined in the Kftv., on storage outside the closed camera system, without a lawful purpose—violated section 4 (1)-(2) of the Infotv., the principle of purpose limitation in data processing, and also infringed upon the principle of accountability contained in section 23 (2) of the Infotv.

Contrary to the previous statement—that only a narrow circle has exclusive access to the recordings stored on a separate drive—contradictory facts were proven. The .mp4 file containing the public area camera recordings

The investigation revealed that the recordings from the surveillance system are not only stored on a closed network but also that the recordings requiring action are stored on a separate drive, which is accessible not only to public area supervisors but also to the technical department head, the clerk, and

the mayor. According to the statement of the Mayor's Office, the Mayor learned about the resident's address "by hearsay."

The Authority established during the investigation that the leak of the recording made public on June 16, 2020, by the public area camera system, and its publication by the Mayor's Facebook profile stemmed from violations of data security and data protection regulations. Particularly from the severely unlawful practice that "due to local customs, the Mayor accessed the recording through the drive designated for this purpose, which is accessible with authorization, for the purpose of making a report." It was established that the extraction of the recording was not logged, and the identification of the license plate of the vehicle appearing in the recording was carried out—unjustifiably, in a manner unnecessary for making the report—by "trial and error" from a registry that can be accessed by public area supervisors for purposes other than reporting illegal waste disposal. Since the extraction of the recording was not logged, section 25/E (3) of the Infotv. was violated, as well as the provisions contained in sections 25/F (1) and (4).

The findings were later corroborated by the on-site inspection conducted by the Authority within the framework of the administrative procedure, as the log files saved during that inspection did not include any log data related to this recording. The Mayor's Office—of which the public area supervisor operates as part of one of its organizational units—did not fulfill its obligation under section 23 (2) of the Infotv. (principle of accountability), as it did not substantiate the legal compliance of data processing by explaining its actions with local customs. Within the framework of the investigation, the Authority issued several requests to the Mayor's Office based on section 56 (1) of the Infotv. It called for special attention to be paid during the creation of the new regulations—not only to the logging procedure and the establishment of data security measures but also to ensure that unauthorized persons do not gain access to the data and that personal data is not processed without a lawful purpose. The Mayor's Office took certain measures; however, it did not send an appropriately revised regulation, thus—according to the available data—a legally infringing situation continued to exist regarding the operation of the public area camera system and the use of its recordings.

84

85

the information security supervisor was not aware. Furthermore, the company responsible for the system administration tasks of the mayor's office did not participate in the establishment of the System, did not receive any professional inquiries related to the setup, and only became aware of the System's implementation afterwards. The mayor's office did not fulfill its obligations arising from the Ibtv.

The identified situation regarding the incomplete and inadequate logging of data processing operations also existed during the inspection conducted in the administrative procedure, as well as in the handling of recordings examined during the procedure, despite the fact that the data controller had already become aware of this deficiency based on the findings of the investigation and stated during the investigation that in the future, the logging of data processing operations related to camera recordings would be done appropriately. Similarly, during the investigation, it was already known from the findings made by the Authority that the Mayor's access to the recordings made by the public area camera system was unlawful. The Authority established that there were no log entries regarding backups; the Authority only became aware of this from the handwritten log and the backup history available on the NVR 4.0 user interface. According to the IT expert opinion, there could be several reasons for this:

1. In the management of user rights, different logging rules are set for each user in the logging settings assigned to users, and previous recordings were not exported by an admin user. The system allows for this, as the settings permitted access to the Hik-Connect platform necessary for remote access to the security camera system. During the inspection, the account status was "Disconnected," but the system could still be accessed remotely at any time if the user knows the identifiers required for connection. During the inspection, the Authority also performed the video file extraction with an admin user, and it was recorded in the log with the appropriate timestamp; thus, the admin's management activities are logged, but the logging of user activities is not. The backups made during the inspection are visible in the log file, while the fact of other backups is only available on the user interface, but not in the log file.

2. An automatic backup is created of the recordings captured by the camera system, which is not

logged by the system.

3. The log file has been manipulated.

Regardless of which of the possible reasons existed, it can be stated that the data controller did not comply with the legal obligation regarding the electronic log, as the circle of persons accessing the folder storing the recordings was not limited only to those entitled to access the recordings; a broader circle – exceeding the persons of the notary and the public area inspector – had rights to the recordings stored on the separate drive. In addition to the single public area inspector, the notary, and the former notary, an additional 10 persons had access. There is no doubt that the access of the Mayor, his assistant, a department head, and another employee who did not work as a public area inspector during the examined period was unauthorized. For the additional 6 persons with access, it was also not verified that they had previously been public area inspectors, and thus their prior access to the recordings would have been lawful.

The access of this group of persons does not comply with the provisions set out in Section 7 (3), Section 7/A (1) and (2), and Section 8 (1) of the Kfttv., thereby – considering the provisions of Section 5 (a) of the Ibtv. – seriously violating Sections 25/I (3) (a), (b), and (c) of the Infotv. and the provisions of Section 5 (a) of the Ibtv., which also results in a violation of the fulfillment of the general data controller tasks set out in Section 25/A (1) of the Infotv. Section 25/A (2) (b) (ba) of the Infotv. is also violated, as the processing of personal data was not limited to such persons and to such an extent and duration as necessary for the purpose of data processing.

The Authority also established that the camera recordings of MÁV-HÉV Zrt. also record sound, which does not have a legal basis for data processing in terms of public area supervision according to the Kfttv.

Regarding the lack of data security, the Authority established that the operator room of the camera system, as well as the elements of the data controller system located there (workstation and server), lacked even the minimum conditions for physical security, as at the time of the inspection, the electronic security system was not operational. The access control system only logged entries, not exits. In the case of entry with a key, entries and exits were not logged; visitor checks and registrations did not take place. Public area camera recordings were also stored on computing devices to which the connection of external data carriers was not restricted. All users with access to the file folder (which was a broader circle than those entitled to manage the recordings) could access the stored recordings indefinitely and in an uncontrolled manner. The same user code and password associated with the System were known to the public area inspector, the assistant inspector, and the former public area inspector. They operated the System in such a way that its existence was known.

86

87

are significant, as the established facts indicate that the public space camera footage recorded and stored by the System was accessed by the individual operating the Mayor's Facebook profile, who shared it. This violated points a), b), and c) of Section 25/I (3) of the Infotv. They also did not account for how this footage was made public. The failure to comply with the statutory guarantees required by law (keeping an electronic log and a data controller's register) objectively and specifically undermined compliance with the principle of accountability and the justification of specific data processing activities.

Considering that the footage originally managed in the System was published on the Mayor's facebook.com social media page, it can be established that they did not ensure the denial of access to the tools used for data processing by unauthorized persons and did not fulfill the data controller's obligation to prevent unauthorized reading and copying of data carriers, clearly violating the obligation to prevent unauthorized access to personal data stored in the system. There were no appropriate measures in place to ensure the legality of data processing concerning all circumstances of the data processing, particularly its purpose, and the fundamental rights of the data subjects in relation to the risks posed by the data processing. The System is intended to serve data processing for law enforcement purposes under the Infotv., and the data controller failed to take the necessary technical and organizational measures in accordance with this [Infotv. Section 25/A (1) and (2) points a) and b)].

The Authority established that a data protection incident occurred concerning the footage recorded on August 15, 2023. It is a fact that the footage was published on the Mayor's Facebook page on August 18, 2023, and it is also a fact that it contained personal data, as the publication of the footage aimed at the identification of the person appearing in it. Neither the public space inspector nor the other witnesses heard during the proceedings knew how the footage was leaked. Thus, as a result of some data security breach, it could have reached the Mayor and the individual managing the Facebook page who published the footage containing personal data. According to the public space inspector's statement, he heard that the Mayor published the footage on Facebook, which he also reported to the clerk, meaning that at least two individuals within the mayor's office were aware of the incident and could have taken action regarding it. Despite this knowledge, the mayor's office did not report the incident to the Authority, nor did it take steps to investigate it or eliminate its cause, thus failing to prevent future incidents, violating the provisions of Infotv. Section 25/F (1) and (4). The data controller is obliged to record data in an automated data processing system (electronic log) to ensure the verifiability of the legality of data processing operations conducted electronically, so that it can be determined which personal data is involved in the data processing operation (in this case, a specific footage or series of footage), the purpose and justification of the data processing operation, the exact time of its execution, the identification of the person executing the data processing operation, and in the case of data transmission, the recipient of the data transfer. The data recorded in the data controller's register and the electronic log must be retained for ten years following the deletion of the processed data. In all the footage examined by the Authority, the data providing information in accordance with Infotv. Section 25/F (1) was missing from the electronic log system.

The data protection and data security policy recorded several data points that, according to Infotv. Section 25/E (1), must be included in the data controller's register; however, not all data required by the legal provision was included, thus the absence of the data controller's register was also established. This violated the provisions set forth in points j) and k) of Infotv. Section 25/E (1). The data controller's register must be maintained in written or electronic form and must be made available to the Authority [Infotv. Section 25/E (3)]. The mayor's office was unable to present a data controller's register containing data related to data protection incidents arising from public space camera footage, as well as data regarding measures that restrict or deny the exercise of the data subjects' right of access under this law, or the reasons for the absence of this information (no incidents had occurred, no denial of data subject rights). They also did not have a record of users with access to the footage. The existence of such a record would serve to verify that a user performing a specific data processing operation according to the electronic log is indeed a person authorized to access the data, and for what purpose this user was granted access rights. Together with the existence of appropriate log data, this would allow for the verification of the legality of data processing through the maintenance of the access rights register, making it possible to determine which person, for what specific purpose, and on what legal basis performed a specific data processing operation. The absence of this also violates the principle of accountability [Infotv. Section 23 (2)]. According to this principle, the data controller is responsible for proving that the processing of personal data complies with data protection requirements, which the data controller or the data processor is obliged to demonstrate. The above provisions are particularly relevant in the examined case.

88

89

of keeping. The inspection was conducted according to the methodology issued by the Commission – based on the questions compiled by the Eurodac SCG, which were expanded and edited into a questionnaire by the Authority – based on the responses provided by the examined body, as well as through an on-site investigation carried out at the National Expert and Research Center (hereinafter: NSZKK) and the National Directorate-General for Aliens Policing (hereinafter: OIF). As a result of the investigation, the Authority did not establish any illegality regarding data processing, but made recommendations to the NSZKK to enhance data security.

2. National Expert and Research Center (NSZKK)

The Forensic Expert Institute (hereinafter: Institute), which is organizationally part of the NSZKK, is responsible for the handling of fingerprints – thus biometric data. The Institute employs experts and

technicians. Biometric data (fingerprints) and identification data are transmitted to the NSZKK. Data received during the asylum and immigration procedures are pseudonymized. The biometric data arrive in the Automated Fingerprint and Palm Print Identification System (hereinafter: AFIS) without encryption, but separated from the identifying personal data. The AFIS logs every intervention and event by users and non-users. The NSZKK handles palm prints and 10-finger fingerprints. Palm prints are significant in criminal data processing, not in queries made in Eurodac. In the immigration procedure, fingerprint cards arrive 100% digitally; there is no paper-based request in such cases. Paper-based requests arrive on average 5 times a year, thus their number is negligible compared to the total number of cases. The fingerprint cards received in paper form are stored physically in the NSZKK facility, which is entirely an administrative zone and is equipped with appropriate physical protection. Only the NSZKK communicates with the Eurodac system from the national side.

Responses to queries submitted to Eurodac return "match / no match." In the event of a match, an expert from the NSZKK must confirm that it is indeed a match; during this examination, the expert does not see any other identifying data. Regarding the methodology of the examination, in the case of the so-called numerical standard, different member states work with different standards. The domestic practice used at the Institute evaluates 10 distinctive points. If it does not contain 10 identification points (e.g., in the case of a fragment of a palm print recorded at a crime scene), the sample is unsuitable for identification. Regarding requests from data subjects, the data protection officer stated that it is not typical for them to be submitted to the NSZKK. However, there have been instances where necessary measures were not taken in response to them. During its procedure, the Authority uncovered an unchanged data processing practice nearly a month after the data protection incident during the inspection. Therefore, the Authority established a violation of the data controller obligations set out in Section 25/J (1) and Section 25/K (1) of the Infotv.

As a result of the Authority's data protection authority procedure, based on point ba) of Section 61 (1) of the Infotv., it established the illegality of the data processing method carried out with the surveillance camera system due to violations of data security and accountability requirements, as well as a violation regarding the failure to report and manage the data protection incident, and decided to impose a data protection fine of 8,000,000 HUF. [NAIH-507/2023]

II.2.11. Officially initiated inspections

1. National inspection of the Eurodac system

One of the objectives of the Dublin system, established on June 15, 1990, is to prevent individual asylum seekers from submitting asylum applications in multiple EU member states. Since asylum seekers and irregular migrants often do not possess valid travel documents or other documents suitable for establishing their identity, fingerprints are a significant element in determining the exact identity of these individuals. This is why the Eurodac system (European Dactylographic Comparison system) was created, which allows countries applying the Dublin Regulation to determine, by comparing the fingerprints stored in the system, whether a foreign national seeking asylum who is illegally staying in one of the Dublin area member states has previously applied for asylum in another member state or has illegally entered the given area. Based on the comparison of fingerprints, member states can determine which member state is entitled and obliged to conduct the asylum or immigration procedure against the individual in question.

In the first half of 2023, the Authority conducted an officially initiated investigation regarding the data processing related to the implementation of the Eurodac regulation. During the investigation, the Authority checked the fulfillment of specified conditions regarding the legality of data processing, particularly the logging of data processing operations, the issues of purpose limitation and proportionality of data processing, the activities of the designated data protection officer, the fulfillment of tasks related to informing data subjects, and the rules concerning retention periods and sensitive data.

90

91

to facilitate the exchange of information between Europol, other EU bodies, third countries, and international organizations, provides a secure network necessary for data exchange as a secure information exchange network application.

SIENA alone does not provide a legal basis for the disclosure of criminal data; it is merely a communication channel, and the exchange of criminal data between cooperating member states can only occur if there is an appropriate legal basis. The cooperating member states act in accordance with their own legislation when fulfilling requests. The SIENA application itself is a structural messaging system. The Authority, as the national supervisory authority, conducted an on-site inspection at the headquarters of the International Criminal Cooperation Center (hereinafter: NEBEK) and the Criminal Directorate of the National Tax and Customs Administration to monitor data processing related to SIENA – pursuant to Article 42 of the Europol Regulation. During the on-site inspection, the Authority's staff became familiar with the SIENA workspace and viewed several workstations.

At NEBEK, among the authorities using the SIENA application, there are fully authorized bodies that communicate independently with the authorities of other cooperating states within the SIENA system. Additionally, the director of NEBEK may grant full authorization for the use of the SIENA system. The Economic Protection Directorate of the Budapest Police Headquarters (BRFK) and the Investigation Directorate of the BRFK also have full authorization. There are also authorities with reading and draft response preparation rights, which send the prepared draft response to the Europol Hungarian Liaison Office (hereinafter: EMÖI), which finalizes and sends out the response. These are bodies established to perform general police tasks. NEBEK and EMÖI see all incoming and outgoing requests and draft responses. NEBEK can also verify messages sent by fully authorized bodies, and the verification of outgoing responses is conducted on a random sampling basis.

All organizational units of the National Tax and Customs Administration (NAV) using SIENA have full authorization and communicate independently with the authorities of other cooperating states within the SIENA system. Initially, the Criminal Coordination Directorate acted as a professional filter and had full authorization, while the other organizational units only had reading and draft response preparation rights. The SIENA system retains data for three years from the last activity performed in the given case. The data of the SIENA system is stored on the Europol server; Hungarian units do not store data.

During the specified period, several detainees approached them with deletion and access requests. Given that personal data is stored in an anonymized form, these requests from the data subjects cannot be fulfilled; due to a lack of authorization, the NSZKK cannot link biometric data with identification data. Without the consent of the appointing authority, a request for the exercise of data subject rights cannot be fulfilled either, as it could hinder the investigation, for example.

3. National Directorate for Alien Policing (OIF)

Within the OIF, data processing related to the Eurodac system is carried out by the OIF Refugee Directorate, the International Cooperation Directorate's Dublin Coordination Department, and the IT Directorate. The Refugee Directorate is an independent organizational unit under the direction of the director-general, which includes the Asylum Department and the Professional Supervisory Department for Reception Facilities. The Asylum Department and the Dublin Coordination Department do not directly send fingerprint and identification data to Eurodac. Data processing occurs in the asylum procedure (based on the submission of an application for recognition as a refugee) and in the alien policing procedure, the latter being necessary when the asylum seeker cannot identify themselves with documents. The purpose of data processing in the asylum procedure is to determine whether the person applying for recognition as a refugee has submitted an application in another EU member state. During data processing, the ten fingerprints (not palm prints) and identification data of the person applying for recognition as a refugee are recorded on the fingerprint form and are then transmitted in digital form to AFIS in all cases. Only fingerprints are forwarded to Eurodac, marked with a Eurodac identifier. If a match is indicated in Eurodac's response, the next step is identification. If a request is received by the Dublin Coordination Department and further information is requested based on the identification number within the Dublin procedure, the Dublin Coordination Department requests additional information from the NSZKK Forensic Expert Institute.

4. Monitoring the Domestic Use of the SIENA Application

SIENA is the secure information exchange network application provided by Europol for international criminal information exchange.

According to the preamble of the European Parliament and Council (EU) Regulation 2016/794 of May

11, 2016, which replaces and repeals Council Decisions 2009/371/JHA, 2009/934/JHA, 2009/935/JHA, 2009/936/JHA, and 2009/968/JHA (hereinafter: Europol Regulation) (24), Europol serves the member states,

92

93

- a centralized system for the identification of Member States with information on judgments concerning third-country nationals and stateless persons (ECRIS-TCN)

The European Criminal Records Information System (ECRIS) has been operational since April 2012 and provides a decentralized means for the electronic transmission of criminal record information to the central authorities of Member States. The ECRIS-TCN will be a centralized system that allows Member States to identify those Member States that possess information on previous judgments against third-country nationals made in any Member State based on the uploaded identification data, so that the central authorities need only send requests through ECRIS to the central authorities indicated in the hit, rather than to all Member States.

- interoperability between EU information systems

The framework established by the interoperability regulations ensures the interoperability between the EES, VIS, ETIAS, Eurodac, SIS, and ECRIS-TCN.

- the renewal of the Visa Information System (VIS)

- the renewal of the Eurodac system

According to plans, these individual components are to be completed in a phased manner, in a predetermined logical order. The implementation has been cumbersome; so far, only the SIS has been successfully launched on March 7, 2023, while the legislative process for other elements is still ongoing, meaning that the full content is not yet known. The introduction of the SIS can be considered overall successful, although there was an unplanned IT outage (service interruption towards border traffic), which was managed. The greatest difficulty arises from the requirement that each element must be introduced simultaneously by all Member States, necessitating close coordination among them. Hungary is progressing according to plan with the implementation; however, the Council of the European Union has had to adopt a new timetable for implementation several times, resulting in multiple changes to the project deadlines. The difficulties are further illustrated by the fact that an existing system had to be updated for the SIS rather than creating a completely new one, yet the system's introduction was not without problems. The completion of the project implementation is projected for 2026-2027.

II.2.12. Consultation and cooperation with other bodies

The European Commission's EES-ETIAS project

As reported by the Authority in previous years, the EES-ETIAS project coordinated by the European Commission has been under preparation since 2016, and its launch has been delayed by several years compared to the original plan. The Government Decree 1538/2018 (X.30.) on the establishment of a working group to coordinate the governmental measures necessary for the development of the European Border Registration System and the European Travel Information and Authorization System has created a coordinating and reporting working group for domestic organizations actively participating in the project, in which the Authority also participates with advisory rights. Among the results of the working group, it can showcase the successful preparation of several domestic legislative amendments; however, its main task is to coordinate governmental measures and maintain contact with EU institutions, report on the latest EU-level decisions, and ensure accountability for domestic organizers for the successful implementation of the project.

The components of the project are as follows:

- Introduction of the third generation of the Schengen Information System (SIS)

- European Border Registration System (EES)

The European Border Registration System records and stores the dates, times, and locations of entry and exit of third-country nationals entitled to short-term (maximum 90 days within any 180-day period)

stays crossing the borders of the Member States operating the EES (so-called EES file, with personal data and biometric identifiers – facial image and fingerprints), and calculates the duration of authorized stay, taking into account the time already spent, in addition to generating alerts for Member States when the duration of authorized stay is about to expire.

– European Travel Information and Authorization System (ETIAS)

The purpose of the ETIAS system is to establish an IT system for the authorization of entry into the Schengen area for short-term stays (not exceeding 90 days within 180 days) for citizens of visa-exempt third countries, as well as for the pre-checking of their entry. Therefore, visa-exempt third-country nationals will need to register in the system before entering at the Schengen border, which will subject them to a preliminary check.

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In the proceedings, the courts conducting judicial review do not have statutory authority to examine the legality of the classification of national classified data used in the immigration procedure that forms the basis of the decision. The legality of the classification can be examined in the secret supervision authority procedure under the Infotv. In this regard, the affected individuals submitted a notification to the Authority regarding the legality of the classification of their national classified data used in the immigration procedure, citing Section 38 (2), (3) points a) and c), Section 51/A (1), and Section 52 (1) of the Infotv.

The Authority, based on Section 38 (3) point a) of the Infotv, initiated investigations to determine whether the documents identified by the Notifiers contain classified data and to identify the classifiers. During the Authority's investigations, it was established that the documents contain national classified data, and the identity of the classifiers was determined. Based on the findings of the investigations, the conditions for initiating the secret supervision authority procedure were met; therefore, the Authority closed the investigations based on Section 55 (1) point ac) of the Infotv and initiated secret supervision authority procedures under Section 62 of the Infotv to verify the legality of the classification of the classified data contained in the documents.

During the classification procedure, among other things, the classifier must weigh the public interest in the accessibility of the classified data against the public interest in the classification. The classified data examined in these secret supervision authority procedures were not public interest data or data made public in the public interest, but rather personal data of the affected individuals. The classifiers conducted the comparison of public interests during the classification procedure, during which it was determined that the interests justifying the classification of the personal data contained in the documents outweighed the public interest in the accessibility of the data. However, the Authority emphasized in its decisions that the right of the affected individuals to access their personal data, which is a private interest, is not part of the classification procedure and can be considered in the procedure related to the issuance of access permits.

In its decisions concluding the secret supervision authority procedures, the Authority established, based on Section 63 (1) point c) of the Infotv, that the classifiers acted in accordance with the laws regarding the classification of national classified data during the classification of the data contained in the documents identified by the Notifiers. The Authority is able to raise funding issues due to the end of the EU budgetary cycle.

II.3. Secret supervision authority procedures in data protection matters

Legality of the classification of national classified data arising from the issuance of expert authority opinions used in immigration procedures

Several notifications were received by the Authority regarding the legality of the classification of national classified data in connection with the issuance of expert authority opinions used in immigration procedures. The Notifiers stated in their submissions that neither the decision of the authority conducting the immigration procedure rejecting the application nor the expert authority opinion identifying the national security risk as the reason for the rejection contains the expert authority opinion, thus failing to include the facts and circumstances that form the basis for the rejection of the application, as the acting expert authority included data arising from the national security examination

in a classified document prior to issuing the expert authority opinion.

Although the affected national classified personal data can be accessed based on the access permit issued by the classifier in accordance with Section 11 of Act CLV of 2009 on the protection of classified data (hereinafter: Mavtv), in the examined cases, the classifier refused to issue the access permit, citing Section 11 (2) of the Mavtv. The affected individuals emphasized that they cannot exercise their right to effective legal remedy in the immigration procedure because they do not know the reasons for the rejection of the application, and they believe that this procedure also violates their rights to access their personal data. In their submissions, they expressed the necessity to examine whether the classifier conducted the necessity-proportionality test during the classification procedure and made a reasonable decision regarding the classification of the data, and whether the classifier took into account the affected individuals' other private interests alongside their right to access personal data during the weighing of public interests.

Based on the applicable Hungarian laws, as well as the current Hungarian judicial interpretation and application of the law, neither in the immigration procedure nor against the decision rejecting the application for access permits has there been initiated...

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to ensure compliance, and then send the password to the customer service via a separate channel. The complainant sent the document containing the banking data but did not comply with the requests regarding password protection. In their view, the data security requirements set forth in Article 32 of the GDPR impose obligations on the data controller to guarantee security, which cannot be transferred to the data subject. According to the complainant, the data controller should have provided a secure technical environment for the transmission of the data.

Complaints regarding the above practice of the data controller have also been received from other data subjects by the Hungarian data protection authority.

In its decision regarding the case, the Authority stated with significant legal importance that the data controller violated Article 25 (1)-(2) of the GDPR by designing the data processing environment in such a way that it transferred the responsibility for the application of data security measures to the data subjects in order to manage certain risks it assessed. The decision also established that the data controller violated Article 32 (1)-(2) of the GDPR, which contains obligations related to the guarantee of the security of personal data. This was due to the fact that it did not apply technical and organizational measures that were proportionate to the risks and in line with the state of the art to ensure the receipt of data from the data subjects submitting compensation claims.

As a result, the Authority imposed a data protection fine of 40,000,000 HUF on the data controller. The company has since developed a more secure online platform and a mobile application for receiving customer complaints; therefore, the Authority did not call on the data controller to take further measures to guarantee data security. [NAIH-109/2023]

2. Data protection violation due to improper deletion

A public interest notification was received by the Authority, drawing attention to the fact that several documents (complaint investigation protocols) containing personal data of natural person customers (e.g., name and address) were accessible through certain links on the website of a district heating service provider.

In connection with the notification, the Authority initiated an official inspection in 2020, which aimed to determine whether the data controller complied with Articles 33-34 of the GDPR and whether it informed the Reporters about the completion of the secret supervisory authority procedure based on Section 62 of the Infotv. [NAIH-3976/2023, NAIH-4799/2023, NAIH-6768/2023, NAIH-6769/2023]

II.4. Reporting data protection incidents

In the procedures related to data protection incidents, the trend continued this year that in most cases, alongside the examination of incident management, the Authority also had to simultaneously examine the general data security compliance of data controllers, as only such a comprehensive investigation of the facts could determine whether the data controllers acted in accordance with the provisions of the GDPR.

In 2023, 533 new incident reports were received by the Authority, which is a slight decline compared to

previous years (627 in 2022, 781 in 2023). Among the methods available for data controllers to submit incident reports, the incident reporting system available on the Authority's website specifically designed for this purpose (<https://dbn-online.naih.hu/public/login>) was the most popular, with more than half of the incidents, 309, reported through it. Of the remaining reports, 176 reached the Authority via the official portal, 34 by email, and 14 by post.

II.4.1. Significant data protection incidents falling under the General Data Protection Regulation

1. Transferring data security obligations to the data subject

The Luxembourg Data Protection Authority contacted the Authority within the framework of a mutual assistance procedure regarding a complaint related to the data processing activities of a company based in Hungary. According to the submission, a Luxembourg citizen filed a complaint with the data controller's customer service, in which they expressed a grievance and requested reimbursement for the service fee and other costs incurred as a result.

The data controller requested the complainant to email the invoices for the incurred costs, as well as an official bank statement in PDF format regarding the complainant's bank account details. The data controller asked that the PDF document containing the banking data be sent by the complainant in a password-protected compressed file to comply with the GDPR data security requirements.

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can also index them in this way, and with the knowledge of the direct links, they are otherwise accessible to anyone. The deletion of specific documents was only carried out by the data controller at the repeated request of the Authority and upon the initiation of the official procedure.

In this regard, the Authority established in its decision dated June 23, 2023, that the company violated Articles 32(1)-(2) and Article 33(3)(d) of the GDPR, and consequently imposed a data protection fine of 16,000,000 HUF. [NAIH-6364/2023]

3. Data protection incident due to vulnerabilities in an outdated system

The data controller is an IT service provider that reported the incident to the Authority. According to the report, the data controller's user-accessible (so-called frontend) server was attacked, during which the attacker exploited a vulnerability in the frontend content management system. By analyzing the network traffic logging data, it was determined that the attacker generated significant network traffic, and a total of 8,547 data records were affected by the incident. As a remedy for the incident, the data controller temporarily suspended the related service, began to fix the exploited vulnerability, and took measures to automatically block network traffic and enforce password changes, as well as informed the affected users about the incident in a public announcement.

During the procedure, the Authority examined both the compliance of the data controller with the incident management and data security requirements. Regarding incident management, the Authority found that the Data Controller acted in accordance with the provisions of Articles 33-34 of the General Data Protection Regulation.

In the examination of data security requirements, the Authority found that the content management system used by the data controller was in use in 2011-2012, and this system was already considered extremely outdated at the time of the attack in 2022. The Authority further established that the data controller did not perform a version update on the content management system it used, which resulted in vulnerabilities that were exploited by attackers to carry out an SQL injection type attack that led to the data protection incident.

Based on this, the Authority held the data controller accountable for violating the requirements set forth in Article 32(1)(b) of the General Data Protection Regulation, and due to the infringement, imposed a data protection fine of 27,000,000 HUF concerning the obligations arising from the handling of the data protection incident caused by the disclosure of personal data. According to the data controller's response, the available documents were uploaded as part of the new website created in 2017, which are documents qualifying as public interest data generated in connection with the performance of its public duties, but which were not properly anonymized due to administrative oversight. The company sent the minutes regarding the deletion of the data from the website to the Authority. The Authority accepted the company's notifications and measures regarding the facts and handling of the data protection incident and closed the official inspection on April 12, 2021.

On August 11, 2022, the Authority received another complaint from the previous public interest notifier, drawing the Authority's attention to the fact that all previously removed links and the PDF files accessible through them, containing personal data—including the notifier's data—were again accessible through the same pathways as before. Therefore, the Authority, in accordance with Section 60(1) of the Infotv., initiated an official data protection procedure against the district heating provider on August 24, 2022.

Based on the responses provided by the company in the official procedure, it was established that although the links to the incorrectly published reports had previously been deleted from the website, they were still available on the backend server, and had not been deleted from there. Thus, only the links pointing to the documents were deleted from the website, not the documents themselves. By entering the name of the private notifier into an internet search engine, the documents appeared in the search results. Therefore, the company again deleted the document from the website and this time also from the backend server, and contacted the internet search service provider to remove the data from the search results.

In its decision, the Authority established that the data protection risks, in this case, the unnecessary handling of personal data that can be publicly found on the company's website, can only be adequately reduced by a deletion that results in the actual data being deleted or properly anonymized from the affected documents and not just the references to them. The mere removal of references from the website is neither proportional to the risks nor an adequate incident management measure. The removal of references alone is insufficient to guarantee the security of the data; they should have either been properly anonymized or deleted from the server serving the website, as search engines...

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could have been detected. A crucial element of the facts was that the setup of two-factor authentication for the client's employees to access the live version of the system developed by the client also occurred after the incident. The fact that the incident in question occurred, and that the client only became aware of its severity through the attacker's message, more than a month and a half after the security breach, was significant evidence that the client did not adequately comply with the GDPR data security requirements.

In its decision made in December 2023, the Authority found that the client failed to fulfill its obligations under Article 32(1)(b), Article 32(2), and Article 33(2) of the GDPR. Based on all of this, it instructed the client to inform the data controllers about the findings of the decision within thirty days from the receipt of the decision, and imposed a data protection fine of one hundred ten million forints due to the violations. The client filed a lawsuit against the decision in January 2023, and the judicial review of the case is still ongoing.

[NAIH-1245/2023]

II.4.2. Data protection incidents falling under the scope of the Infotv.

Improper handling of a data protection incident involving health-related personal data

The Authority initiated an investigation based on a report concerning the alleged illegality of the processing of the health-related personal data of the Reporter by a correctional institution (hereinafter: Data Controller). The Data Controller's processing of health-related personal data of detainees constitutes data processing for law enforcement purposes, to which the provisions of the Infotv. must be applied.

The Reporter submitted a request to the Data Controller to exercise the right of access to their health documentation, which the Data Controller rejected, citing that the requested health-related personal data was not available.

Section 79 of Act CCXL of 2013 on the execution of penalties, measures, certain coercive measures, and administrative detention (hereinafter: Bvtv.) and the correctional institution are obliged under Section 32(1) of Act CVII of 1995 on the correctional organization to maintain records of the health-related personal data of detainees and the documents containing them. The Authority further instructed the Data Controller to update the content management system it uses to the latest available version update, and if it decides to introduce a new content management system, to verify this fact to the Authority.

[NAIH-245/2023]

4. Data protection violation due to lack of adequate data security measures

In November 2022, the Authority became aware of an information technology attack and data protection incident affecting a company providing IT services based on articles published on various online news portals, and subsequently decided to initiate a data protection authority procedure *ex officio*.

Based on the facts uncovered during the procedure, it was established, among other things, that the attacker gained access to the credentials of one of the client's employees, thereby allowing the attacker to access the system developed by the client, which contained personal data of millions of individuals. The fact that the attacker specifically accessed the personal data stored in the live system could not be proven during the procedure. This was due to the client's inadequate data security measures, as, among other things, the logging of the IT activities of its employees was not sufficient. If the attacker had entered the live system with valid credentials, it was done using the rights of the affected user, and due to insufficient logging, the attacker's activities could not be separated from the lawful activities of the profile owner.

The Authority also found that although the immediate cause of the incident was employee error, with adequate data security measures, this could not have resulted in such severe consequences.

Following the client's awareness of the incident in November 2022, the client implemented nearly twenty fundamental measures, including system-wide changes that were expected according to the state of technology, whereas if the incident had merely been caused by employee negligence, such measures would not have been necessary. The Authority criticized the client for implementing the mentioned security measures only after becoming aware of the incident, as such measures should have already been part of the system in a case involving a large number of personal data. If these measures had already been part of the client's security system at the time of the attack, the attack would not have been successful, or it would have been thwarted much sooner.

102

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The Data Controller became aware of the rejection of the Reporter's request or complaint regarding the occurrence of the data protection incident. The Data Controller informed the Reporter that the requested health-related personal data could not be found in the paper-based records, and due to a software error, the requested personal data could not be retrieved from the electronic records. The Data Controller also notified the Reporter about the written inquiry made to the software development company.

The Data Controller did not inform the Authority about the occurrence of the data protection incident; the Authority learned about the incident during the investigation procedure. The data and information related to the incident as defined in Section 25/J (5) of the Infotv. were only partially known to the Authority due to the failure to fulfill the reporting obligation.

The Authority assessed that the action taken by the Data Controller to remedy the incident was to contact the software development company to ensure access to the health-related personal data stored in the electronic records. In the meantime, the IT development company successfully retrieved the health-related personal data stored in the Reporter's electronic records, thus partially remedying the data protection incident. As a result, the Data Controller was able to fulfill the Reporter's request to exercise their right of access.

From the response letter sent by the Data Controller to the Authority, it could not be determined whether the data specified in points a), c), and d) of Section 25/J (5) of the Infotv. were recorded (how many individuals were affected by the incident and approximately how much data was involved), how the incident was assessed in terms of risk, whether the cause and circumstances of the incident were investigated, whether information was provided to the Reporter and any other affected parties as required by Section 25/K (3) of the Infotv., and whether any other measures were taken – aside from contacting the software development company – to remedy the incident.

The Authority established that a violation related to the processing of personal data occurred because the Data Controller did not act in accordance with the provisions of Sections 25/J-25/K of the Infotv. regarding the reporting and handling of the data protection incident. The Authority, based on Section

56 (1) of the Infotv., instructed the Data Controller to immediately comply with the reporting obligation under Section 25/J (1) of the Infotv. regarding the incident and to act in accordance with the provisions of Sections 25/J-25/K of the Infotv. in the reporting and handling of any potential future incidents occurring during data processing. [NAIH-3957/2023]

Based on the commencement of the execution of the sentence, the correctional institution is obliged to retain the health-related personal data of detainees for twenty-five years from the execution of the sentence or the cessation of enforceability.

The execution of the Reporter's sentence was ongoing at the time of the report, and the retention period for the documents containing the requested health-related personal data had not yet expired; thus, the Data Controller was obliged to manage and store the health-related personal data requested by the Reporter in the context of exercising their right of access based on the referenced laws.

Nevertheless, the Reporter's health data contained in paper records could not be found in the Data Controller's records, and the electronically recorded health data were not accessible for a certain period (between December 17, 2022, and April 2023), meaning that the health-related personal data requested by the Reporter in the context of exercising their right of access were not available to the Data Controller.

Based on the above, the Authority established a breach of data security, which resulted – on the one hand – in the loss of personal data stored in the paper-based records and, on the other hand, in the periodic impossibility of accessing the Reporter's electronically recorded health-related personal data, thus constituting a data protection incident.

According to Section 25/J (1) of the Infotv., in the event of a data protection incident, the data controller must record the nature of the data protection incident, including – if possible – the scope and approximate number of affected individuals, as well as the scope and approximate quantity of data involved in the incident, the probable consequences resulting from the data protection incident, and the measures taken or planned by the data controller to address the data protection incident – aimed at mitigating any potential adverse consequences arising from the data protection incident. If the incident poses a risk to the enforcement of the rights of the affected individuals, the Data Controller is obliged to report the data protection incident to the Authority without delay, but no later than seventy-two hours after becoming aware of the data protection incident.

Based on the available information, the Authority determined that the data protection incident is classified as risky because the incident resulted in a violation of the Reporter's rights, preventing them from exercising their right of access for months, as the requested health-related personal data, classified as special personal data, were not available to the Data Controller due to loss and periodic impossibility of access, who was responsible for the data protection incident.

104

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II.5.2. Preliminary Consultation Procedure for Impact Assessment Regarding the Use of Body Cameras During Airport Baggage Handling

According to the data processing planned by Budapest Airport Zrt., the ground handling organizations would be required to have employees engaged in baggage and cargo handling wear body cameras during their work processes. This is due to the fact that in recent years, handlers have committed numerous violations at Budapest Ferenc Liszt International Airport by unlawfully opening baggage. In addition to potentially stealable high-value items, firearms and ammunition transported with permission, as well as martial arts equipment and other dangerous tools, objects, and materials are also involved in baggage thefts. The number of such packages can reach several thousand on a daily basis during peak times (e.g., summer season). During unauthorized package openings, handlers gain access to these items without inspection, can take them at any time, or hand them over to unauthorized individuals, thereby losing their inspected, so-called "sterile" status. Therefore, the body cameras used during handling processes monitor and enhance the security of an area that has previously been outside the scope of monitorable controls.

Experience and statistics from reports attached to the impact assessment materials have shown that employees who have undergone background checks still commit abuses in strictly regulated areas and critical parts during baggage handling and processing operations. Budapest Airport Zrt. considers the

use of body cameras to be the most effective solution for reducing aviation security and flight safety risks. The purpose of data processing is to reduce aviation security and flight safety risks, to minimize risks related to unauthorized access to arriving and departing packages and baggage placed in the aircraft cargo hold, and to ensure compliance with international and domestic regulations.

Budapest Airport Zrt. has prepared a data protection impact assessment document regarding the introduction of body camera data processing in accordance with Article 35 of the GDPR, in which it evaluated the emerging data protection risk factors. At the request of the Zrt., the Authority initiated a preliminary consultation procedure under Article 36 of the GDPR concerning the risk assessment of the planned data processing.

Based on the impact assessment, when selecting tools that result in data processing, the state of science and technology is considered, along with other examined tools that do not jeopardize aviation security (mobile cameras, fixed cameras installed in the cargo area).

II.5. Data Protection Authorization and Preliminary Consultation Procedures

II.5.1. Data Protection Authorization Procedures

According to Article 41 of the GDPR, the compliance with approved codes of conduct may be monitored by an organization that has the appropriate expertise regarding the subject of the code and which has been accredited for this purpose by the competent supervisory authority, without prejudice to the tasks and powers of the competent supervisory authority. In accordance with the consistency mechanism, the Authority consulted with the Committee on the draft criteria for the accreditation of such organizations, and the version developed thereafter was published on the Authority's website. According to Article 43 of the GDPR, without prejudice to the tasks and powers of the competent supervisory authority under Articles 57 and 58, the issuance and renewal of certificates is carried out by a certifying organization that has the appropriate expertise in the field of data protection. Among the options offered in Article 43(1) of the GDPR, the Hungarian solution implements the provisions of point b), meaning that accreditation is carried out by the National Accreditation Authority (NAH) in accordance with the EN-ISO/IEC 17065/2012 standard, the 765/2008/EC European Parliament and Council Regulation, and the additional requirements established by the Authority, while the Authority acts as a specialized authority during such procedures. The document containing the additional requirements is available in both English and Hungarian on the Authority's website.

In 2023, a preliminary position statement was issued based on the above, initiated by a request submitted by TAM CERT Hungary Ltd.

It is worth mentioning that after the relevant amendments, Government Decree 45/2015 (XII. 30.) now includes the administrative service fee payable for the Authority's actions as a specialized authority, which is as follows for the data protection certifying organization:

- a) in the accreditation procedure, 192,000 HUF,
- b) in the procedure for expanding its accredited status, 192,000 HUF,
- c) in the supervisory examination procedure initiated at its request, 76,800 HUF.

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<https://www.naih.hu/adatkezelokent-fordulok-a-hatosaghoz/magatartasi-kodex-ellenorzo-szervezet-en-gedelyezese>

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It should be noted that, starting from January 1, 2024, the use of body cameras during the loading of cargo and baggage has been made mandatory for ground handling organizations at airports, according to Section 67/B of Act XCVII of 1995 on Civil Aviation. Body cameras have proven to be the safest and most reliable solution compared to other options. The entire area of the airport is covered by a CCTV camera system, and their use is a common practice at all airports in European Union member states, being a necessary element of the security system. However, the cargo hold of aircraft, where unauthorized baggage openings occur, is not covered by this system (it cannot be observed). The areas in question (cargo holds of aircraft) cannot be monitored through installed, equipped cameras, as their installation could damage the structure of the aircraft, which poses a critical safety risk. Technical and maintenance professionals consulted regarding the "fixed" camera devices that may be temporarily installed on aircraft pointed out the risk that, on one hand, there is no fitting method

suitable for all aircraft types (including various weather conditions), and furthermore, injuries may occur on or near the aircraft door during installation or its rapid, careless, forced execution, which could lead to flight delays or even cancellations.

Concerns have been raised by ground handling organizations regarding the potential violation of personal rights in cases where the ground staff equipped with cameras take recordings of members of the passenger public. The company has sought to minimize this risk factor by ensuring that the ground or specialized personnel do not have access to the recordings. The downloading and storage of the recordings are only possible on a designated computer, which has specialized software installed for reading them, and which also requires knowledge of a technical key known to the administrator. During the saving of the recordings from the computer, there is an option for the saved recordings to go through a blurring system, which can effectively render every visible face in the recording unrecognizable. Additionally, in the risk analysis, the necessary and sufficiently narrow time frame for data protection awareness, information, and recording duration (limited to the loading process) has been determined to address and reduce the risks related to the constant feeling of surveillance and psychological influence on the ground staff.

The Authority has thoroughly reviewed the impact assessment materials submitted by the company and the ground handling organizations, and in relation to the outlined measures, it did not identify any unacceptably high residual risks concerning the rights and freedoms of those affected. In light of the above, the Authority did not make any further recommendations or instructions during the preliminary consultation procedure and has concluded it.

[NAIH-3773/2023]

108

109

whether data has been generated, and if so, from whom it can be requested. Several submissions addressed the manner of fulfilling data requests, the operation of the HIKAP/KIKAP portal, the accessibility and downloading of data, the application of the opportunity for familiarization that is only ensured by personal appearance, the prevention of note-taking and copying, the issues related to the machine readability of the transmitted data, and the application of a digital "watermark" indicating the notifier on the released data.

On December 13, 2023, the National Assembly adopted a new paragraph to Section 30 of the Infotv., which provided additional grounds for refusal for public authorities. Thus, from January 1, 2024, the authority is not obliged to release the requested public interest or publicly accessible data if it is not in its actual possession and, for example, would require the acquisition or collection of data held by another authority performing a public task under its direction or supervision. The request can also be refused if fulfilling it would necessitate the production of new data compared to the public interest data or publicly accessible data actually in the authority's possession. The application of these grounds for refusal is not mandatory, and they cannot be applied to ongoing data requests.

The legislator also supplemented Act CXXII of 2009 on the more economical operation of state-owned economic companies with a new Section 3/A, which results in the restriction of the public availability of data in the public interest. If, in the case of foreign investments, the documents generated in connection with the concluded contracts, as well as the preparation of decisions related to them, the conclusion, modification, or termination of contracts, and documents aimed at the future establishment, modification, or termination of foreign or foreign economic relations, or documents generated for the purpose of preparing decisions related to these contain:

- financial,
- technical, and
- business data

the knowledge of which threatens the valid enforcement of Hungary's foreign and foreign economic interests free from unauthorized external influence or jeopardizes national security interests, then the fulfillment of the request for their knowledge as public interest or publicly accessible data must be refused – until the public interest justifying the refusal exists, but for a maximum of 10 years from their date or the date of signature. This restriction extends to state-owned economic companies.

III. Freedom of Information

According to the provisions of Section 71/D (8) of the Infotv., which will enter into force on January 1, 2024, the Authority prepares a report on its inspection activities regulated in Chapter VI/B of the Infotv. "annually – as part of the report defined in Section 38 (4) b)". Considering that this inspection activity is closely related to the Authority's other tasks and powers related to the enforcement of the right to access public interest and publicly accessible data, and overlaps with them in some elements in an inseparable manner, the entire report of this chapter is published as the report prescribed in Section 71/D (8) of the Infotv. and is recommended for the attention of the Honorable Reader.

The year 2023 was a year of change in the history of Hungarian freedom of information that can be described as a "historical milestone," as on February 28 of this year, the opportunity opened for the NAIH, as the designated domestic supervisory authority for the enforcement of the right to access public interest and publicly accessible data, to examine and correct the fulfillment of the new, specific publication obligation defined in the Infotv. in a so-called transparency authority procedure concerning online publication. This new legal institution requires a completely different approach from those obligated and from the NAIH than previously, and it may have a positive impact on proactive freedom of information, the practice of electronic publication, and the assurance of the accessibility of public interest data, as it draws attention to the requirement and consequence of even fuller and more accurate enforcement of this fundamental right.

There has been a significant increase in all types of cases, reports, and complaints related to freedom of information received by the Authority (complaints, consultations, so-called "borderline" data protection authority procedures) compared to the year 2022. An interesting fact is that while approximately 450 first-instance data request lawsuits were initiated in courts in 2023, there were 660 freedom of information investigation procedures ongoing at the NAIH during this period.

A new emerging trend is that since the removal of the ascertainable cost reimbursement due to the disproportionate use of human resources, authorities performing public tasks affected by data requests increasingly refer to the circumstance among the grounds for refusal that they do not handle the requested data in the requested form, are not obliged to produce it, or do not qualify as data controllers. However, for some reason, they do not inform the requester of the reason for the latter case, nor do they indicate what the reason is.

110

111

b) the average number of days necessary for fulfilling requests for public interest and publicly accessible data, as well as

c) the exact internet accessibility of the publication location of public interest and publicly accessible data.

According to Section 30 (3) of the Infotv., public authorities must continue to maintain a record of rejected data requests and the reasons for those rejections, as they have done so far.

In addition to the above, the Authority is obliged to perform the following tasks as part of the information freedom monitoring framework, based on Section 71/D of the Infotv.:

- The obligated authorities will be checked by the Authority twice a year based on the data provision. The Authority's inspection will focus on the publication of public interest and publicly accessible data.
- A separate inspection will also be conducted based on reports.
- For the purpose of conducting the inspection, the Authority may request data from the authorities, which they must comply with within 8 days from the receipt of the request.
- The Authority may formulate recommendations for the inspected authorities regarding compliance with the requirements for the transparency of public interest and publicly accessible data and ensuring access to such data.
- The head of the authority concerned by the recommendation will prepare an action plan for the implementation of the necessary measures and send it to the Authority within 15 days from the receipt of the recommendation.
- The Authority will prepare an annual report on the inspections as part of its public report.

During the relatively short preparation period between the announcement of the regulation (December 22, 2023) and its entry into force (January 1, 2024), the Authority has taken all necessary steps for the effective and smooth application of the regulation.

Within this framework, the Authority has made the intelligent data sheet for fulfilling the data provision obligation publicly available at <https://naih.hu/adatlap-eves-jelenteshez>. In order to inform as many public authorities providing data as possible about the new, extended data provision obligation that will come into effect on January 1, 2024, and must be fulfilled by January 31, 2024, the Authority has taken measures regarding similar data categories of contracts and documents concluded under international agreements managed by the official company. The decision regarding the accessibility of the data is based on the opinion provided by the minister exercising ownership rights or supervision over the economic company, which is formed by weighing the public interest related to the accessibility of the data and the public interest serving as the basis for refusal (compelling public interest test), which must be provided no later than fifteen days. The duration from the request for the opinion until its provision or until the expiration of the opinion-giving deadline without result does not count towards the deadline available for fulfilling the request for data accessibility.

III.1. Data provision by public authorities and statistical data from the Authority's information freedom investigations conducted in 2023

III.1.1. Data provision by public authorities

The implementation of the reform titled "Improving Transparency and Access to Public Interest Information" (milestones 229 – 233) of Hungary's Recovery and Resilience Plan C9.R26 requires the preparation of semi-annual reports for the second half of 2022 and for every subsequent year until the first half of 2026.

To fulfill this commitment, the Act on the Utilization of National Data Assets (Act CI of 2023) supplemented the Infotv. with a new Chapter VI/B [Section 71/D], which established a new task and authority for the Authority (hereinafter: information freedom monitoring), and determined an expanded data provision obligation for public authorities compared to the previous provisions in Section 30 (3) of the Infotv.

According to the provisions of the law, public authorities, specifically including local governments and state-owned economic companies, are obliged to provide data regarding the previous year by January 31 of each year starting from 2024

a) on the number of fulfilled and rejected requests for public interest and publicly accessible data, and the typical reasons for the rejections,

112

113

Looking back at previous years, there has been a significant increase in the reporting obligations for the year 2023 compared to 2021 and 2022, due to the legislative changes described above, as data submissions were received from 997 entities in 2022 and 1,350 entities in 2023.

The Ministry of Interior and Territorial Development initiated the publication of a notification and informed the municipal governments through this channel.

Following the preparation, a total of 5,895 obligated entities submitted data to the Authority. The data submissions appeared as obligations for the following types of entities:

- State economic companies, state public authority bodies, state public institutions, budgetary bodies under the Act on Public Finances, registered legal entities, public bodies (public sector);
- Local governments, representative bodies and their organs, budgetary bodies established and supervised by local governments, national minority local governments and their organs (local government sector);
- Private legal entities performing public tasks;
- Nonprofit economic companies in public ownership, state economic companies designated by law to perform public tasks, state economic companies operating with a corporate share in state property of national economic significance, municipal economic companies (economic companies in public ownership);
- Foundations established from public assets (public foundations, foundations performing public tasks under the Civil Code, asset management foundations, public interest asset management foundations performing public tasks);
- Economic companies indirectly in public ownership;
- Other and other organizations performing public tasks: water management associations, sports

federations, higher education institutions, other organizations performing public tasks in the field of copyright protection and justice (other public task performing bodies).

The distribution of the reporting entities by type is contained in the following table.

114

115

The ratio of fulfilled and rejected data requests in public interest data requests also shows a positive change compared to previous years, similar to the increase in the number of entities providing data:

- In 2022, out of 11,019 public interest data requests reported for 2021, 3,881 cases (35%) were rejected;
- In 2023, regarding the data submissions for 2022, out of 9,739 data requests, 3,260 (33%) ended with restrictions or exclusions on accessing public interest data;
- In 2024, in the reports for 2023, out of 14,840 submitted public interest data requests concerning 30,238 data categories, the data controller public task performing body denied access to 6,210 (21%) cases.

The largest group of obligated entities consists of municipal governments in the local government sector, as well as national minority local governments and their organs.

In 2021, there were 432 local municipal governments and their organs, along with 15 national minority local governments; in 2022, 584 local municipal governments and their organs, as well as 25 national minority local governments submitted data. For 2023, data submissions were made by 2,612 local municipal governments and their organs, 870 budgetary bodies established and supervised by local governments, and 301 national minority local governments and their organs – totaling 3,783 municipal entities.

Based on the territorial distribution of the reporting entities, after Budapest (660), the highest number of submissions came from Pest County (570), while Komárom-Esztergom County (162) had the least.

116

117

The reasons for excluding data access designated by public task performing authorities are as follows:

- Infotv. § 27 (1) – classified data;
- Infotv. § 27 (2) a) – defense interest;
- Infotv. § 27 (2) b) – national security interest;
- Infotv. § 27 (2) c) – prosecution/prevention of crimes;
- Infotv. § 27 (2) d) – environmental or nature conservation interest;
- Infotv. § 27 (2) e) – central financial/exchange rate policy interest;
- Infotv. § 27 (2) f) – foreign affairs interest;
- Infotv. § 27 (2) g) – ongoing judicial or administrative authority proceedings;
- Infotv. § 27 (2) h) – rights related to intellectual property;
- business secret
- bank secret
- tax secret
-

other secret

- the data to be accessed does not qualify as public interest data and is not publicly accessible for public interest reasons;
- Infotv. § 28 (3) – the data controller's specification was not fulfilled by the data requester;
- Infotv. § 29 (1a) – a repeated data request concerning the same data set within one year;
- Infotv. § 29 (1b) – the data requester does not provide their name/designation and contact information;
- the public task performing authority to which the data request was submitted does not handle the data to be accessed;
- Infotv. § 27 (5) – the data serves as a basis for decision-making;
- Infotv. § 27 (6) – the data serves as a basis for future decisions;
- Infotv. § 27 (6) – accessing the data would jeopardize the lawful operational order of the public task performing authority or the performance of its duties and powers free from unauthorized external influence, thus particularly the free expression of the position that generated the data during the preparation of decisions;
- the data requester did not pay the established fee.

However, it does not qualify as a reason for refusal if the data requester withdraws their data request as part of the data provision practice. Since the data provision pertains to one year, in the case of a public interest data request submitted in the last days, it may occur that the data controller lawfully extends the time available for fulfillment by an additional 15 days.

The content expansion of the data provision that came into effect on January 1, 2024 – regarding the number of data requests submitted in the given year and the average number of days spent on fulfilling data requests – provides a more detailed picture of the practice of public task performing authorities in evaluating public interest data requests.

118

119

The legislative amendment that came into effect on January 1, 2024, further supplemented the duration of data provision with information regarding the fulfillment of data requests. Such additional information includes the average number of days required to respond to data requests. A significant proportion of the authorities submitting data provision reports (3711, 63%) made a "zero" statement, meaning that no public interest data requests were received in 2023, thus the time spent on responding to them is also zero.

Among the authorities to which public interest data access requests were submitted (2184), 69% (1513) responded to the data requester in less than 15 days, while in 17% (379) of cases, this duration was 15 days, and in 13% (292) of cases, this duration exceeded 15 days.

III.1.2. Statistical Data of the Authority's Freedom of Information Investigations in 2023

In 2023, the Authority initiated 509 freedom of information investigations to ensure the enforcement of the fundamental right to access public interest data. In the investigations, 96% (483) of the reporters submitted public interest data requests, so it may occur that the submitted data request is not answered until the fulfillment of the data provision (submitted but unprocessed data request).

The most commonly applied reasons for refusal in previous years (2021, 2022) also ranked first in the data provisions of 2023. The application of refusal reasons deviated significantly (17%) in one case – the authority to which the data request was submitted does not handle the data.

120

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58% of the examined authorities complied, while 42% did not fulfill their reporting obligation under Infotv. § 71/D (4).

In the case of the three large groups of authorities involved in the investigation:

- of the state public institutions (124), 87 (70%),
- of the local government, representative body, and its authorities (125), 53 (48%),
- of the state public authority bodies (111), 71 (57%) complied with the data provision stipulated in Infotv. § 75/D (4).

Among the freedom of information investigations initiated in 2023, the Authority issued a request under Infotv. § 56 (1) in 140 cases, and a repeated request in 30 cases. In 12 cases, the Authority made a report under Infotv. § 59, and 4% (20) complained about the electronic publication practices of certain public task performing authorities.

The investigations covered the data access and data provision practices of a total of 426 public task performing authorities, of which the three prominent groups were state public institutions (124, 29%), local government, representative body, and its authorities (125, 29%), and state public authority bodies (111, 26%).

122

123

The Authority, prior to the deadline for the first data provision, called the attention of budgetary bodies to the new obligation in several announcements. Nevertheless, the data provision was initially often omitted because the bodies were unaware of the new obligation. Surprisingly, this occurred even with larger universities [NAIH-6341/2023] and significant central budgetary bodies [NAIH-9470/2024, NAIH-4798-13/2023, NAIH-5084/2023, NAIH-6346/2023].

Most hospitals also did not fulfill their data provision obligations until May 2023 [NAIH-5367/2023, NAIH-5365/2024, NAIH-5366/2024, 5297/2023, 5438/2023], which is why the Authority requested information from the National Hospital Directorate and published a notice calling the hospitals' attention to the new obligation. As a result, on May 15, 2023, several hospitals fulfilled their data provision obligations.

As reasons for the omission or deficiencies in data provision, most bodies often cite administrative errors, staff shortages, or the departure of knowledgeable employees. A common issue is that a contract missing from the Authority's records has already been concluded, but it is not entered into the body's records for a long time, thus unlawfully preventing timely data provision. In several cases, not just one deficiency led to the violation. For example, a budgetary body received a notification letter regarding the new publication obligation, but due to data deficiencies within the institution and personnel lapses that caused this, the upload was omitted. Later, an expansion of storage in the filing system had to be carried out, but the necessary contractual data was not transferred into an Excel spreadsheet, and the upload was again omitted. Subsequently, due to a change in leadership, personnel changes related to the handover procedures, and the resulting anomalies, the upload was again omitted. The cause of the anomalies was partly due to unclear or overlapping competencies and the transformation of the internal information system. Following the transparency authority procedure, personnel consequences related to the omission were applied at the body. [NAIH-8974/2023]

The lack or deficiency in fulfillment is often due to erroneous legal interpretation. Several bodies reached the incorrect conclusion that they only needed to provide data regarding valid contracts or only after the contract had been fulfilled. The text of Section 37/C of the Infotv. indicates that the conclusion of the contract already creates an obligation; the Infotv. does not tie the data provision obligation to the entry into force of the contract. The legislator's intention was aimed at the publication of concluded contracts, which was not conditioned by such a requirement, and based on Section 56 (3) of the Infotv., three recommendations were made to the data controller and the supervisory authority of the data controller.

III.2. The Central Information Public Data Register and the Authority's Transparency Authority

Procedure

Budgetary bodies are required to publish certain management data on the Central Information Public Data Register platform (hereinafter: Platform) based on Section 37/C of the Infotv., effective from November 29, 2022. From March 1, 2023, the Authority checks compliance with this obligation in its transparency authority procedures based on Sections 63/A and 63/B of the Infotv. Given that deficiencies in the operation of the Platform and the regular data provision by the bodies could jeopardize the payment of European Union funds, the Authority pays special attention to monitoring compliance with the new obligation and eliminating violations.

By February 6, 2024, 1,836 budgetary bodies had fulfilled 7,268 data provisions on the Platform, of which 5,930 data provisions were received on completed data sheets, free of formal errors. The Authority's Transparency Authority Department, operational since March 1, 2023, had checked 740 bodies and initiated 109 procedures by June 28, 2023. For the period from June 29, 2023, to December 28, 2023, an additional 312 bodies were checked, and 75 transparency authority procedures were initiated. Out of the 160 decisions made in the transparency authority procedures, the Authority established violations in 145 decisions, of which 25 decisions required the budgetary body to correct or supplement the data provision. Only 4 procedures required the imposition of procedural fines. The Authority did not impose any substantive legal fines, as in every procedure, the budgetary body rectified the violation before the decision was made, and in 120 procedures, no compulsion was necessary.

The obligations pertained to the rectification of minor deficiencies, and most of the data regarding missing contracts were supplemented by the bodies without compulsion. The remaining deficiencies arose from the fact that the subsequent fulfillment was carried out differently or technically incorrectly than what was stated in the Guide prepared by NAVÜ. The clients did not respond to the questions posed in the Authority's order in these procedures. Ultimately, there was no need to impose substantive legal fines in these procedures either, as the clients rectified the violation before the decision was made.

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Data Sheet Completion Guide, <https://kif.gov.hu/adatszolgaltatasok/adatszolgaltatoknak>

124

125

amount must be taken as a basis. Several budgetary authorities interpreted this provision to mean that for a contract concluded for multiple years, the portion of the total contract value calculated for one year should be indicated on the Surface. However, according to Section 37/C (3) b) ba) of the Infotv., the total net value of the contract must be published, not the value calculated for one year. In Section 37/C (4) of the Infotv., "calculation of value" refers to the operation whereby the budgetary authority determines whether the amount calculated for one year exceeds five million forints, i.e., whether the contract falls under the obligation to provide data. However, the data sheet must always indicate the total net value of the contract, even if it was concluded for multiple years. [NAIH-9468/2023]

A government office did not fulfill its data provision obligation regarding a contract because, in its interpretation, if the start and deadline for the performance of a contract fall in two different budgetary years, the value of the contract would be half of the total value, even though the contract was not concluded for a duration longer than one year. The Authority established that in the phrase "concluded for a duration longer than one year" in Section 37/C (4) of the Infotv., the term "year" should not be understood as a budgetary year, considering that in the following sentence of the same paragraph, the legislator specifically mentions the term "budgetary year." [NAIH-7650/2023]

Another recurring issue related to the value of contracts is the deduction of the value of any unutilized optional parts from the total amount of the contract. However, the Infotv. does not contain any provisions stating that the total consideration specified in a concluded contract should be modified based on the utilized or unutilized contractual option(s) or the amounts actually paid under the relevant contract during the fulfillment of publication obligations on the Surface. [NAIH-8616/2023]

As a consultation question and in a transparency authority procedure, the question arose whether the authority's own source qualifies as domestic funding. The client's (hospital's) revenue is financed 92% by the National Health Insurance Fund Manager (financial foundations of social insurance) under the

B16. Operational support revenues from within the public finances. According to the client's position, it is only obliged to publish procurement procedures financed from budgetary support under the Áht. and from EU sources, but not for contracts concluded at its own budgetary expense. The Authority established that Section 37/C (2) of the Infotv. defines three publication scopes, stating that the contracts must also be valid. [NAIH-7042-8/2023, NAIH-7253/2023]

The actual cash flow is not a prerequisite for the emergence of the data provision obligation. According to the position of an authority acting in the capacity of a central purchasing body, the contract in question did not fall under the data provision obligation specified in Section 37/C of the Infotv. because it was a framework agreement. The client did not conduct the procedure for concluding the framework agreement for its own purposes or at the expense of its own sources, but acted as a central purchasing body. In its decision, the Authority stated that considering Section 37/C (2) b), (3) b), and (4) of the Infotv., the obligation to publish on the Surface applies to contracts exceeding a net value of five million forints, and the legislation does not contain any provision stating that only data related to contracts with actual cash flow should be published on the Surface. The Authority's position is that central purchasing bodies are still subject to the data provision obligation, even though future potential payments under framework agreements will not be made at the expense of the client's budgetary sources. In the case in question, the client has extensive rights under the provisions of the framework agreement during the "Individual Procedure" to be conducted based on the framework agreement, which significantly influences the contracting freedom of the organizations concluding individual contracts. According to Section 3 (26) of the Kbt., centralized public procurement is an activity carried out on a permanent basis by the central purchasing body, aimed at ordering goods or services for resale to contracting authorities under the Kbt., or for the procurement of goods, ordering services, or concluding contracts or framework agreements for construction investments for contracting authorities under the Kbt. The Authority established that in 41 contracts, the client appeared as a contracting authority in its capacity as a central purchasing body, but only appeared as a contracting party in one contract, for which the Authority deemed the lack of data provision to be unlawful. As a result of the procedure, the client published the data related to the affected contract on the Surface.

[NAIH-5298/2023]

Section 37/C (3) b) ba) of the Infotv. also prescribes the publication of the value of contracts falling under the data provision obligation on the Surface. However, determining the value of the contracts to be published raised several legal interpretation questions. Section 37/C (4) of the Infotv. states that for periodically recurring contracts concluded for a duration longer than one year, when calculating the value, the consideration is calculated for one year.

126

127

states that the entity obligated to publish on the Platform is responsible for the completion of the Data Sheet in accordance with Section 37/C of the Infotv. and this regulation, as well as the User Guidelines. According to Section 2 (1) of the same regulation, the User Guidelines are part of the Manual. Nevertheless, it is often the case that the currencies and data regarding the legal basis and form of the contract do not appear in accordance with the Manual on the data sheets.

Based on the experiences gathered over nearly a year from transparency authority procedures, it can be established that despite the aforementioned deficiencies, the new publication obligation of budgetary bodies proves to be an effective tool for making the use of public funds more transparent. By September 27, 2023, the use of 324.9 billion HUF of public funds became more transparent on the Platform as a result of the transparency authority procedures.

Many entities also provide data to the Platform that do not have a general publication list at all, or if they do, there is no trace of the management data on it. Since the data affected by the new obligation no longer needs to be republished on the entities' websites, the new platform is increasingly becoming the central database for the most important management data. It also contains data that can already be found in other public databases, but here, procurement data, support data, and payments are collected in one database for up to 10 years. The database is searchable; for example, we can find out which ministries have contracted with a particular contracting party.

As a result of the transparency authority procedures, budgetary bodies reported that:

- the “obligation has been integrated into their workflows, regulations, and quality assurance audits,”
- “they have renewed their internal processing and commitment processes, necessitating the acceleration of those processes, therefore they initiated the development of a new regulation to speed up data entry and upload processes,”
- “they have carried out internal workforce reallocation within the organization to ensure timely compliance with their data provision obligations in the future,”
- “due to internal communication issues, the upload did not take place, but a new procedural order has been introduced.”

These organizational-level corrective solutions are noteworthy because they can facilitate not only the lawful fulfillment of the new obligation but also the general publication obligation.

namely: budgetary supports, contracts, and payments. The condition for the existence of the publication obligation is that it must be realized from domestic or EU sources exceeding five million HUF; it is not a condition that it must be realized from budgetary support. From the joint interpretation of the introductory provision, justification, and Section 1 (1) of Act CLXXXI of 2007 on the transparency of support provided from public funds, it can be established that sources from the sub-systems of the state budget qualify as domestic sources. According to point c) of Section 6/A (1) of the Act on Public Finances, the budget revenue appropriations and budget expenditure appropriations in the law on the central budget appear, among other things, as appropriations of the financial foundations of social security. Section 6/A (4) of the Act stipulates that the financial foundations of social security are used for the accounting of budget revenues to be collected in the name of the state and budget expenditures to be fulfilled during the operation of the social security system. According to paragraph (3) of Article 39 of the Fundamental Law of Hungary, public money is the revenue, expenditure, and claims of the state. Therefore, the financial foundations of social security finance the operation of the client from budget revenues to be collected in the name of the state, thus from domestic sources, public money. The Authority therefore stated in its decision that the client's own budget also qualifies as a domestic source, and therefore the data of contracts realized from it also fall under the scope of the publication obligation. [NAIH-7661/2023, NAIH-6881/2023]

Incomplete data provision could often have been avoided if the budgetary body had checked the actual data provision published on the Platform after submitting its data sheet. A common problem is that even if the entity indicates the currency of the contract/support/payment value, it does not appear on the data sheet published on the Platform. In these cases, the currency appears as formatting in the .xlsx file sent by the budgetary body, rather than as the three-letter abbreviation defined in the Manual, written after the amount. Since the currency is a format and not an entered data, it does not get into the database during processing, thus it cannot be generated in the .pdf document either [NAIH-6631/2023]. Not all submitted data appears on the Platform despite the fulfillment of the data provision if a row remains empty on the data sheet or if the entity modifies the format of the data sheet (e.g., by adding new worksheets) [NAIH-6473/2023, NAIH-8363/2023].

The Manual prepared by NAVÜ is not only an essential tool for the correct completion of the data sheet, but budgetary bodies are also obliged to complete their data sheets in accordance with the Manual. Section 4 of Government Decree 499/2022 (XII. 8.) on the detailed rules of the Central Information Public Data Registry states that...

128

129

is already known in advance. In this context, the constitutional interest in the public availability of data generally prevails over the interests of confidentiality. However, the accessibility of public interest data, which falls under the concept of banking secrecy and is managed by Eximbank, is not at all guaranteed in the current regulatory environment: the restriction of public access is comprehensive, not limited to what is strictly necessary and proportionate, and there is no possibility for any consideration regarding the release of the data. The Constitutional Court has therefore established that the legislator has caused a violation of the Fundamental Law through omission by failing to create the necessary guarantee rules that would allow for the enforcement of freedom of information concerning the accessibility of banking secrets classified as public interest or publicly available data managed by Eximbank, which performs public tasks and manages public funds. Consequently, the Constitutional

Court has called upon the National Assembly to fulfill its legislative duties related to this matter. 3525/2023. (XII. 14.) AB decision on the rejection of a constitutional complaint: until the commencement of the public task, the request for data access is premature [precedent: Budapest Court of Appeal Pf. 20.290/2023/6.]

Based on Section 53/A (1) of Act CLXXXV of 2012 on Waste (Ht.), the contract with the state entered into force on July 1, 2023, stipulating that the concession company will only be entitled to exercise the concession if it "ensures the acquisition of the necessary permits and the conclusion of contracts ensuring capacity" by no later than December 31, 2022. The plaintiff submitted a public interest data request to the concessionaire on January 31, 2023, requesting the release of the permit and one or more contracts ensuring capacity. The Constitutional Court has determined that the underlying final court decision approving the rejection of the request does not imply that the data related to the preparatory activities concerning the performance of the public task are not public interest data under any circumstances, but rather that the request for data access is, in fact, premature until the public task commences. Until the concession contract comes into effect, a dependent legal situation essentially exists; if the concession contract does not come into effect for any reason, we cannot speak of the performance of a public task concerning the concessionaire (and the concession company it established) – also considering point 5 of Section 3 of the Infotv. – and thus not of public interest data either. Based on all of this, there is no doubt regarding the unconstitutionality that would materially influence the judicial decision in the case, and therefore the Constitutional Court rejected the complaint. [see also: Budapest Court of Appeal Pf. 20.540/2023/4]

However, the deficiency of Section 37/C of the Infotv. is that it does not cover all public task-performing bodies spending public funds; only budgetary bodies fall under its scope, thus, for example, the new obligation does not apply to local governments (but it does apply to budgetary bodies established by them, such as mayor's offices). [NAIH-6137/2023, NAIH-5558/2023]

III.3. The most important decisions of the Constitutional Court and the courts regarding data transparency

III.3.1. Decisions of the Constitutional Court

3/2023. (IV. 17.) AB decision on the determination of unconstitutionality caused by omission regarding the accessibility of banking secrets classified as public interest or publicly available data [NAIH/5942/2022 – opinion issuance]

The applicant initiated a lawsuit against Eximbank for the release of public interest data. The court upheld the claim and ordered the bank to release the data. The second-instance court upheld the decision. The Curia annulled the final judgment, altered the first-instance court's judgment, and rejected the claim. According to the applicant's position, banking secrecy is not an absolute barrier to freedom of information, but rather constitutes a limitation as a business secret based on a legally regulated test. The Curia incorrectly applied it as an absolute barrier, thereby violating the enforcement of freedom of information. During the proceedings, the Constitutional Court sought the opinion of the National Authority for Data Protection and Freedom of Information (hereinafter: NAIH). According to NAIH, "in the examined case, based on the identity of the data controller (public task-performing organization) and the activity it performs (management of public assets and public funds in the interest of implementing governmental cooperation and economic policy), the provisions of the Infotv. regarding the release of public interest data are applicable." At the same time, "[a] clear legal situation would be created if references to obligations regarding public interest data – and thus the statutory exemption from banking secrecy – appeared in the provisions of the Exim law." The Constitutional Court established in its decision that in the current regulatory environment, banking secrecy excludes all data of Eximbank's (even legal entity) clients from public access in a manner that precludes consideration, regardless of the fundamental right to freedom of information, despite the fact that in connection with tied aid loans, the bank performs a public task as an executor of governmental decisions, during which it manages public funds, and this fact concerns the number of borrowers.

130

131

merely because they were concluded by the defendant, do not qualify as public interest data. The contracts requested for disclosure by the applicant were not concluded with the subsystem of the

public finances, but were based on a support contract concluded with a person belonging to the subsystem of public finances, from which the association purchased real estate from third parties using state support paid out. The data arising from the contractual relationship between the association and the third parties do not qualify as public interest data even if they concern the use of funds affecting the central budget.” According to the Constitutional Court, the judicial decision challenged by the applicant does not suffer from any deficiencies that would raise doubts about its constitutionality or pose a question of fundamental constitutional significance that would materially influence the judicial decision.

III.3.2. Judicial Decisions

III.3.2.1. Judicial decisions related to freedom of information in 2023, referencing the position of the NAIH

Curia Pfv. 20.087/2023/6., Disclosure of public interest data, (reference to NAIH/2017/2408/2/V position)

The defendant is responsible for the preparation of the documentation for the review of Hungary's National Energy and Climate Plan (NEKT) due in 2023. This includes a separate part known as the final environmental assessment (SKV). The plaintiff requested the defendant to disclose public interest data specified in four points as part of a public interest data request.

The defendant informed the plaintiff that the requested data serves as the basis for decision-making, and therefore, it is not in a position to provide them. In its response, it stated that the EU legislation serving as the basis for establishing the consultation framework does not set a deadline, the draft of the first update of the NEKT must be prepared by June 30, 2023, and the submission will be preceded by a public consultation, the process of which will be decided later. The plaintiff requested the court to compel the defendant to disclose the environmental assessment prepared for Hungary's National Energy and Climate Plan.

The second-instance court, in its justification for the judgment that granted the first-instance court's request, referred to the position of the National Authority for Data Protection and Freedom of Information NAIH/2017/2408/2/V, in which the NAIH stated that environmental information qualifies as public interest data.

3483/2023 (XI.7.) AB Decision: Public Disclosure of Benefits for Senior Employees of the OBH

In the applicant's request for the disclosure of public interest data, it sought information regarding certain benefits paid to the leaders of the National Judicial Office (OBH), broken down by name and year of payment. In its response, the OBH refused to fulfill the data request, as they believe it does not qualify as public interest data. The Constitutional Court determined in its decision that the OBH, as an organization managing public funds, is obliged to provide information about the total amount of benefits received by its employees and the background of those benefits. However, it does not constitute an unnecessary and disproportionate restriction on the right to access public interest data if the data controller refuses a request for data that covers the benefits of all senior employees in general. The final court judgment found a fair balance between data transparency and the protection of personal data, thus not resulting in a violation of the applicant's rights enshrined in the Fundamental Law. Therefore, the Constitutional Court rejected the constitutional complaint.

3359/2023 (VII.5.) AB Decision

Data arising from a contractual relationship between an association and third parties do not qualify as public interest data even if they concern the use of funds affecting the central budget. The association received 150 million HUF in state support for the development of a visitor center as part of one of the tourism agency's programs, which could be used for purchasing real estate, acquiring the sites for the planned investment, preparing feasibility studies, executing the necessary zoning classifications, preparing execution plans, and conducting procurement procedures. Subsequently, the applicant submitted a request for the disclosure of public interest data regarding the real estate purchased by the association, requesting the release of the purchase agreements. The association did not respond to the public interest data request and did not comply with it.

The court found that without the public service contract aimed at this and the budgetary support serving task financing, it cannot be said that the association was obliged to fulfill the specified public task. The court also established that the fulfillment of the specified public tasks is supported by the association's public benefit activities, thus it cannot be considered a body fulfilling public tasks. The

purchase agreements concluded by the defendant...

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the plaintiff was not required to provide further evidence regarding the public interest nature of the requested data or the defendant's data processing activities. Overall, it can be established that the requested data qualifies as public interest data, regardless of whether it directly pertains to the defendant's activities or was generated in connection with those activities.

Budapest Court of Appeals Pf. 20.236/2023/5. Disclosure of public interest data - Accessibility of government meeting data

The first-instance court correctly stated in its decision that the data requested in the lawsuit do not qualify as public interest data under Section 7 (3) of the Kit. but rather the provisions of the Infotv. must be applied. [...] The Constitutional Court (32/2016 (VII. 13.) AB) determined, on the one hand, that the classification of certain data from government meetings is not unconstitutional, and on the other hand, that government meetings are not public under Section 7 (1) of the Kit. [...] From all this, it can be established that the data requested by the plaintiff qualifies as public interest data, the defendant's status as a data controller can also be established, furthermore, the data was not classified or made confidential by an authorized person or organization in accordance with the laws, therefore the data must be disclosed upon request.

Budapest Court of Appeals Pf. 20.376/2023/4., Disclosure of public interest data, MBVK (related case NAIH-2825-8/2022.)

The plaintiff requested the disclosure of contracts with 6 legal entities concluded by the defendant, the Hungarian Chamber of Judicial Enforcement (MBVK), in connection with the performance of its public duties, along with any amendments and annexes, through a public interest data request. The defendant refused to fulfill the plaintiff's request, arguing that in its opinion, the requested data qualifies as personal data, as the contracts contain data of natural persons, and also contain business secrets. It also stated that the entirety of the contracts as documents does not fall under the concept of public interest data or data publicly available in the public interest, therefore the requested contracts cannot be disclosed even within the framework of a public interest data request.

In its judgment, the first-instance court ordered the defendant to disclose the requested documents to the plaintiff within 15 days, with the personal data in the documents rendered unrecognizable. The court stated that the defendant, based on Section 34/A (1), Section 250 (1) and (2) of Act LIII of 1994 on judicial enforcement (Vht.), must ensure the accessibility of the tasks related to enforcement, and examining the regulations of the Infotv., it can be established that the provisions limiting the accessibility of data serving as a basis for decision-making regarding environmental information – Sections 27 (5)-(6) of the Infotv. – cannot be applied, as the preparatory nature of the decision is based not only on formal aspects but also on substantive aspects.

According to the Supreme Court's ruling, the defendant's (data controller's) request for review is unfounded, as in the given case, the specific justification for the reason for restricting public access was lacking; the defendant only referred generally to the need to review the NEKT under EU legislation and that the processing and reevaluation of the requested SKV is necessary. The courts in the proceedings correctly pointed out that the disclosure of the SKV is mandated by law. According to the Supreme Court's principle determination, if a specific law mandates the disclosure of documents containing public interest data, the data controller cannot refuse to disclose the requested data by referring to its preparatory nature. A general reference to the preparatory nature without specifics is insufficient to justify the refusal to disclose the data.

Supreme Court Pfv. 20.112/2023/5. - Disclosure of public interest data, government meeting data

On January 6, 2022, the plaintiff submitted a public interest data request to the defendant (Prime Minister's Office), requesting the dates of government meetings held in October 2009, as well as copies of summaries of the meetings and their annexes to be sent electronically.

On January 22, 2022, the defendant extended the deadline for fulfilling the data request, and then in a response letter sent on February 21, 2022, rejected the request based on the reasoning of the Constitutional Court's decision 32/2006. (VII. 13.) AB, part IV.

In a previous precedent-setting decision, the Supreme Court established with legal significance that

the obligation to provide public interest data is independent of the type of the affected organization, its ownership relations, or its activities; the obligation to make public interest data accessible is established solely by the fact of possessing public interest data (Supreme Court Pfv.IV.20.911/2018/4.). The NAIH's position statement of February 28, 2022, is also consistent with this, stating that the fact that the data does not pertain to the operation of the public task-performing body or was not generated in connection with its operation does not generally hinder the disclosure of the data; the obligation to disclose data is established solely by the fact that the data is in the possession of the data controller (which was not disputed in this case).

In light of all this, the courts in the proceedings did not violate any laws when they...

134

135

Budapest Court of Appeal, Pf. 20.555/2023/6. (NAIH-873/2022, NAIH-977/2023) – new data production, formal reference

The defendant (ONYF) could not conclusively prove that it had denied the data request with valid reasons under Section 31 (1) of the Info Act, and that fulfilling the request would qualify as the production of new data based on the criteria of the Constitutional Court's decision (13/2019. (IV. 8.) AB decision). Therefore, the information requested by the claimant was classified as public interest data according to Section 3 (5) of the Info Act, which the first-instance court rightly ordered the defendant to disclose under Section 26 (1) and Section 28 (1) of the Info Act. In the claimant's data request, a breakdown of detailed data regarding the benefits provided by the National Pension Insurance Directorate for the years 2017-2022 was requested. The defendant did not dispute that the requested information could be produced; in its response letter, the NAIH also referred to the necessary data processing steps, and there was no need to supplement the facts in this regard. The legality and justification of the denial had to be proven by the data controller, i.e., the defendant, in the proceedings. The defendant argued that fulfilling the request required the production of new data, and it was not obliged to produce data. Consequently, based on Section 31 (2) of the Info Act, it had to prove that producing the requested information constituted such a complex task that, considering the reasoning of the Constitutional Court's decision, it would qualify as the production of new data, and therefore it did not treat the requested data as public interest data. It cannot be assumed that the necessary IT and legal knowledge was unavailable to the defendant, which handles a large volume of personal and other data. Neither in the proceedings nor in the procedure before the NAIH did the defendant claim that providing the information would jeopardize its operations, would involve an disproportionately significant workload, or would be abusive. Therefore, there was no need to consider whether the right to access public interest data could be restricted in the interest of protecting a constitutional interest, in accordance with the reasoning of the Constitutional Court's decision ([56] paragraph). According to the Constitutional Court's decision ([58] paragraph), it was also necessary to consider whether the requested public interest information was not available from other sources (data monopoly). The NAIH attempted to clarify the precise operations and data processing steps in its proceedings; however, in its response, the defendant did not specifically outline the data processing steps leading from personal data to the requested information, only referred to general mathematical and IT operations, based on which – considering the electronic processing of data – no conclusions could be drawn regarding the specific steps, their justification, and the validity of the denial reason. It could not be concluded how complex the described mathematical and IT operations were. In this regard, it should be noted that the defendant handles elementary data (it undoubtedly performs a public task). In light of this, the data related to its activities and operations are public interest data, which the defendant must make accessible to anyone. Regarding the references to personal data contained in contracts, it was stated that if the requested contract contains such content, it does not provide grounds for denying the release of the entire document. It was also pointed out that the defendant is obliged to fulfill the data release request while anonymizing personal data in such cases. The court stated that the law does not contain any restrictions regarding the extent of the data content of contracts burdened with the obligation to release data, and these contracts meet the definition of public interest data, which the claimant lawfully requested to be released, and therefore deemed the defendant's denial unlawful.

In its appeal, the defendant explicitly acknowledged that it performs a public task. Regarding access to public interest data, Section 26 (1) of the Info Act and Section 3 (5) are of crucial importance; this regulation does not define the management of public funds as a condition for the performance of public tasks and does not indirectly serve as a criterion for accessing public interest data. Based on the definition of public interest data, the following are of particular significance regarding the right to access public interest data: – the requested information must be in the possession of an authority performing a public task; – the data must relate to the activities of the authority performing the public task or arise in connection with the performance of its public task; – it must not qualify as personal data. The definition of personal data contained in Section 3 (2) of the Info Act can only be applied to natural persons according to Section 1 of the Info Act. The judicial practice is consistent in that if, in a case regarding access to public interest data, the defendant refers to the existence of a business secret only in general terms, citing legislation, it does not justify the restriction of public access. The relationship between the anonymization of business secrets and personal data in documents can only be applied to the personal data of natural persons; therefore, no conclusions can be drawn regarding the existence of a business secret or the disproportionate harm caused by access.

136

137

III.3.2.2. Further Court Decisions Affecting Data Publicity

Curia Pfv. 20.041/2023/6. Release of Public Data: Data Serving as the Basis for Decision

According to the defendant (Prime Minister's Office) in its appeal for review, it was not the evidentiary procedure that violated the law, but rather the second-instance court failed to give sufficient weight to the constitutional aspects related to the accessibility of the requested data, which pertains to a substantive legal question regarding the basis of the claim. [...] The starting point in these cases is that the guarantee of the quality and efficiency of civil service work is that the decision-making preparation of civil servants takes place freely, informally, and without the influence of the public {21/2013. (VII. 19.) AB decision, Reasoning [43]}.[...] Following the decision, the principle of publicity applies to the data again, and the data request can only be rejected within the time frame specified in paragraph (5) if the data also serves to substantiate future decisions, or if the knowledge of the data would jeopardize the lawful operational order of the public authority performing a public task or the performance of its duties and powers free from unauthorized external influence, particularly if it would endanger the free expression of the position that generated the data during the preparation of decisions {3190/2019. (VII. 16.) AB decision, Reasoning [39]}.[...] According to the four-step test: the data serving as the basis for the decision must be related to a specific decision-making procedure; the entire document, regardless of its content, cannot be classified as data that substantiates a decision: the principle of documents must be replaced by the principle of data; the data controller cannot refer to so-called "convenience considerations"; the decision rejecting the data request must be substantively justified, and the court must examine both the legal basis for the refusal of data provision and the substantive deficiencies based on the document that is the subject of the data request.

Curia Pfv. 20.509/2023/4. – Release of Public Data – Data Serving as a Basis for Future Decision as a Reason for Rejection

The Curia had to take a position on whether there is a reason restricting publicity that can be established based on Section 27 (6) of the Infotv. [...] According to Section 27 (6) of the Infotv., a request for access to data serving as the basis for a decision can be rejected after the decision is made only if

– the data also serves to substantiate further future decisions, or

the data in question was undoubtedly processed electronically. Thus, the same data processing operations that may be considered complex on paper involve significant workload, but electronically – depending on the circumstances and the possibilities for IT querying and anonymization – can be carried out simply and quickly by a person with IT qualifications, with or without the application of formulas and functions. The information obtained in this way can also be filtered, organized, and summarized in tables using the same operations. The necessary data for the tables can be counted by summing the rows of the tables through IT means (a simple mathematical operation). In this regard, it must be kept in mind that a request aimed at collecting, selecting according to specific criteria, and

arranging recorded data in a table cannot fundamentally be denied according to the reasoning of the AB decision ([55] paragraph). Depending on the circumstances, it is also possible that, based on the methodology known from the previous data request, the data requested by the claimant should be perceived, according to the reasoning of the AB decision ([49] paragraph), as being "ready and available." The defendant did not present any other specific facts that would make the data processing steps assessable. It did not substantively comment on the time required for the operations, the need for labor resources, or the statistics processing the data on pension payments in its responses to the questions posed in the NAIH procedure. Instead, it emphasized in both the NAIH and court proceedings that the described necessary data processing operations exceed simple mathematical and IT operations; however, this assertion could not be verified due to the lack of a derivation of the specific data generation steps. Without the possibility of substantive verifiability of the grounds for refusal, the rejection of the request for access to public data – citing the need for new data generation – proved to be a formal reference, which, according to the practice of the Constitutional Court, constitutes an impermissible restriction of freedom of information and is therefore unlawful. The Capital Court of Appeal emphasizes in this regard that, according to the reasoning of the AB decision {[61] paragraph}, it must be examined with the utmost care whether the data request indeed aims to produce new data that qualitatively differs from the processed data, as the refusal to grant access to public data may ultimately prevent informed participation in the debate on public affairs.

138

139

The pursuit or prevention of acts specifically allows for the legitimate restriction of the public disclosure of certain public interest data.

Metropolitan Court of Appeal Pf. 20.369/2023/3. Disclosure of public interest data – hospital infection data – National Public Health and Medical Officer Service

The reference that the disclosure of the data, without knowledge and evaluation of further information necessary for the analysis of the data, leads to incorrect interpretation and erroneous conclusions cannot serve as an exemption from the obligation to disclose data.

Regarding the claim that the requested data is not available, this was not mentioned during the litigation, but only referenced in the appeal, based on Sections 14 (1) and (2) of Government Decree 20/2009 (VI. 18.) EüM concerning the prevention of healthcare-related infections, the professional minimum requirements for this activity, and its supervision. [...] Based on all of this, the obligation of electronic publication does not affect the requirement for the fulfillment of the plaintiff's data request, considering that in the case, the defendant did not dispute that the links indicated in the response sent to the plaintiff during the preliminary procedure provide access to the summary reports of infection data for the given years. [...] The Metropolitan Court of Appeal also agreed with the first-instance court's position that the reference that the publication and potential dissemination of the number of infections related to certain healthcare institutions could be misleading and deceptive, and that there is a risk that the incorrect interpretation of information regarding hospital infections could decrease trust in a particular institution, cannot serve as an exemption from the defendant's obligation to disclose data. [...] Accordingly, the Curia (in its judgment Pfv. 21.081/2018/5) stated that, while the court cannot examine the purpose of lawful data processing, it deemed it important to record that the public availability of public interest data is closely related to the right to freedom of expression, which rights must also be exercised responsibly.

Metropolitan Court of Appeal Pf. 20.385/2023/4. – Fulfillment of public interest data request through inspection

The defendant did not dispute that the data sought by the plaintiff, which is held by a public authority, constitutes public interest data, thus it was necessary to examine whether the opportunity for inspection offered by the defendant qualifies as fulfillment of the plaintiff's request for access to public interest data.

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the knowledge of the data would jeopardize the lawful operational order of the public authority or the performance of its tasks and powers free from unauthorized external influence, particularly the free expression of the position that generates the data during the preparation of decisions. [...] After the

Curia also became familiar with its content, it found the second-instance court's position correct that the requested "Report" fundamentally contains facts and data, the disclosure of which does not in any way materially affect the lawful operation of the defendant, which has a professional apparatus, nor the performance of its tasks and powers free from influence. [...] In this context, the Curia refers to the constitutional role of the public availability of public interest data, which is precisely to make the operation of the state and the use of public funds transparent, and the Report is specifically related to this.

Curia Pfv. 20.234/2023/3. Disclosure of public interest data – risk of breach of information security
According to the legal interpretation of the Curia, the following provisions of the Ibtv. that ensure the protection of the electronic system contribute to achieving this statutory objective: Section 1 (1) point 8 of the Ibtv. defines the concept of confidentiality (the property of the electronic information system that allows only authorized persons to know, use, or dispose of the data and information stored therein according to their level of authorization). [...] The provisions of the Ibtv. – as the law specified in Section 27 (2) point c) of the Infotv. – clearly state that in order to protect national data assets, the access to data stored in a closed system depends on their security classification, and the principle of confidentiality must be realized throughout the entire lifecycle. [...]

According to the legal interpretation of the Curia, based on Article 28 of the Fundamental Law, while keeping in mind the purpose indicated in the preamble of the Ibtv., an interpretation of the provisions that ensure the highest level of protection for the electronic information system of personal data and address registration that makes the protection dependent on which structural element of the system it relates to contradicts the requirement of common sense. [...] While laws that restrict freedom of information must be interpreted restrictively, in the given case, an alternative interpretation would not guarantee the comprehensive protection of the electronic system of personal data and address registration; this restriction is indicated in Section 27 (2) point c) of the Infotv. as a crime.

140

141

In matters of local government, particular care and professional expertise are required for the precise delineation of data protection and data disclosure, as well as for ensuring protection, which involves not only the responsibility of the clerk and public officials but also the collective and individual responsibility of the members of the representative body, committee members, and individuals lawfully present at open or closed meetings.

Another contemporary characteristic is the expression of opinions on community internet platforms and the associated data processing, during which new data processing, communication, and publication occur using public interest data, as well as personal data that has already been made public or made public by the data subject, along with non-public personal data. This significantly affects the right related to the individual alongside the right to informational self-determination. Those committing violations generally trample on the dignity of others while cloaked in the anonymity that is beneficial to them, stepping into the swamp of areas beyond the law, disregarding the obligation of accountability. Section 1 of the Infotv. ensures that personal data that is public in the interest of the public can be known and disseminated for the realization of transparency in public affairs, in accordance with the explanations provided in the preamble of the law. The processing, use, and disclosure of data must align with this purpose, taking into account the aforementioned data processing principles, data minimization, the right to be forgotten, etc.

III.4.1. Enforcement of the rights of data subjects regarding personal data published in the Hungarian Gazette, in representative body proposals

In a data protection authority procedure, the data subject wished to have their name (personal data related to their public service appointment) deleted from the 2013 issues of the Official Bulletin, which is an annex to the Hungarian Gazette (prior to the application of the GDPR). The purpose of data processing is to ensure that Hungary's official publication – including the annexed Official Bulletin – is continuously and distortion-free accessible to the public, stemming from the legal certainty derived from Article B) (1) of the Fundamental Law. The data controller could not fulfill the deletion request based on Article 17 (3) (b) of the General Data Protection Regulation and informed the applicant of this. The issues of the Official Bulletin cannot be removed from the website, and announcements

cannot be modified retroactively. The data subject withdrew their request. [NAIH-5869/2023]

In another authority procedure, the data subject requested the deletion of their name and former workplace email address from a municipal website in a representative body proposal.

The second-instance court emphasized that according to Section 30 (2) of the Infotv., the data request must be fulfilled in an understandable form and – if the public authority responsible for data processing can fulfill it without disproportionate difficulty – in the form or manner desired by the requester.

It was not disputed in the case that fulfilling the request in the manner specified by the claimant would not have caused disproportionate difficulty for the defendant (the public authority), therefore it was obliged to fulfill the data request in the specified manner.

III.4. The accessibility of personal data public in the interest of the public

The application of the General Data Protection Regulation – GDPR – since May 2018 has posed particular challenges for public authorities as data controllers in the joint, mutually considerate application of data protection and data disclosure rules. We also highlighted this issue in the 2022 report: whether personal data should be disclosed, and if so, under what conditions, and for what data processing purposes they can be used, disseminated, and published.

Personal data can only be made public for public interest by law; such a provision is, for example, Section 26 (2) of the Infotv., but also sectoral legal provisions regarding the status of individuals performing public tasks. However, the fact that a personal data is made public for public interest by law does not mean that the provisions and principles regarding the protection of personal data do not apply to its processing at all. In the 21st century, the public nature of data and the associated consequences can be interpreted and enforced differently, despite the requirement of technological neutrality during data processing. However, for example, ensuring the right to be forgotten – on the internet, as well as on community storage spaces and applications – poses further challenges for the data subjects, controllers, and publishers of public interest data.

Cases related to data disclosure also clearly lead to violations of the right to informational self-determination when third parties, who do not have the right to access, can access protected personal data in official documents that are otherwise considered public interest data published on the internet (e.g., in municipal proposals, minutes of municipal meetings, resolutions, or communicated verbally during public sessions). Therefore, this multi-level, multi-dimensional public nature leads to...

142

143

III.4.3. Mayor's Educational Qualifications

A request for data regarding the educational qualifications of a municipality's mayor was rejected by the clerk. The applicant referred to the fact that the mayor had mentioned their qualifications during previous election campaigns and in statements. In the campaign, the mayor referred to their diploma, doctoral educational qualifications, and areas of expertise. According to applicable laws, it can be established that the mayor's educational qualifications are considered public data in the public interest to the extent that their qualifications are a prerequisite for performing a municipal task or holding the position. Based on all of this, the data regarding the mayor's qualifications is not considered public data in the public interest from the perspective of the Mayor's Office as the data controller. This is separate from the case where the mayor voluntarily disclosed their qualification-related data to another data controller based on their own clear consent. The Authority's position is that in this case, the data can be accessed as public data in the public interest. According to the clerk's response, the mayor disclosed their educational qualifications in a documented form during the election campaign, but this was not confirmed by the mayor. The Authority suggested to the mayor to consider informing the data requester in order to prevent the emergence of integrity and reputational issues or disputes within the local community as a person performing a public task and as the leader of the municipality. No data was released during the investigation. [NAIH-3526-8/2023]

III.4.4. Transparency of the Decisions of the Public Service Arbitration Committee

A question was also received by the Authority regarding the publicity of the decisions of the Public Service Arbitration Committee. The request for data in this regard was rejected by the Prime Minister's Office, citing that the Act on Government Administration (2018 CXXV) and Government Decree 69/2019 (IV. 4.) on the Arbitration Committee do not impose an obligation to publish or send the

decisions. Although the proceedings of the Arbitration Committee are limited to the legal relationship of the parties before it and the subject of the proceedings is related to the employment relationship of the specific government official, thus relating to their private sphere, there may also be a public interest in accessing the individual decisions of the Arbitration Committee as a body performing public tasks. If the adjudicating council has made a decision that extends to fundamental issues, the president of the Arbitration Committee may decide to publish it as a fundamental decision of the committee on the website. The fact that a law does not prescribe the publicity of data does not imply that they are published as part of dissemination. The municipality did not substantiate the priority of its interests related to data processing, nor did it clarify how necessary it is to further disclose personal data generated years ago in 2011 for the purpose of exercising the freedom of expression and the right to information. It also did not state specifically what public matter it would be important to discuss today regarding the continued maintenance of online publication. The Authority found the request for deletion justified, ensuring the "right to be forgotten," and determined that the rejection of the request was unlawful. [NAIH-5517/2023, 307-1/2024]

III.4.2. Public Data of Municipal Officials and Conclusions Drawn from Them

A mayor awaited a response regarding whether the net amounts of various payments (fees, bonuses, reimbursements, etc.) made to municipal representatives, mayors, deputy mayors, and external members of committees can be disclosed in response to a public interest data request. In the case of the requested public data, the gross amounts were sent to the data requester, but regarding the net amounts, certain individual benefits falling under the Personal Income Tax Act of 1995 (hereinafter: PIT Act) arose, which are considered personal data. The gross personal benefits (salary, fees, bonuses, etc.) include various taxes and contributions determined by law (personal income tax, pension insurance, health insurance, and labor market contributions). It can be established that the gross personal benefit consists of the net benefit received by the employed individual and the public burdens imposed on them. Regarding individual persons, the personal income tax benefits that reduce the gross income are specifically regulated by the PIT Act. For the specified individuals, the net income requested as public data can be disclosed to the data requester in a lump sum, just like the gross income, since the gross income is not detailed in terms of what income elements it consists of, and the taxes and contributions to be deducted are not detailed per person during data release.

[NAIH-1563-2/2023]

144

145

A different case arises if a law or a municipal regulation enacted under the authority of a law empowers the representative to access or manage certain types of data in order to fulfill their public duties, or as a member of a committee, or individually if the municipal representative body entrusts them with planning, organizing, or supervising a task falling within the municipal jurisdiction. In such cases, the representative may handle personal data that is essential for the performance of the task, in compliance with the principle of purpose limitation in data processing, as well as the personal data listed in the legislation. All other data processing, including requests for information in the capacity of a representative, is subject to the rules of the General Data Protection Regulation and the Information Act, which involve the processing of personal data. Thus, the representative's capacity alone does not entitle them to access and process personal data.

In connection with a petition, a member of the municipal financial committee requested access to the payroll records and the list of fringe benefits of public employees employed by the given municipality, as well as the basic documents of this data. The Authority pointed out the above-mentioned considerations and drew attention to the rules regarding the scope of duties of the financial committee as outlined in the Organizational and Operational Regulations (hereinafter: OOR) of the municipal representative body, which is a local municipal regulation. In this specific case, the financial committee, or its member, can act not under the Information Act but within the jurisdiction defined in the Municipalities Act and the OOR, but even in this case, attention must be paid to the accessibility of the protected data, the anonymization of such data if necessary, and the adherence to the principle of purpose limitation in data processing concerning publicly accessible personal data.

[NAIH-5878-2/2023]

III.5.2. Housing Rental Matters

The question arose regarding a municipal representative who does not have membership in a committee established by the municipal representative body, whether they can access the documents underlying the rental agreements in municipal housing rental matters. In municipal housing rental matters—highlighting social-based rentals—the committee handled not only the personal identification data of the affected individuals but also other personal data related to their financial, family, social, and health situations in making decisions. According to Section 32 (2) d) of the Municipalities Act, the municipal representative may participate in any public and closed session of any committee established by the representative body, of which they are not a member, and may access any data that is not publicly accessible as a representative without restriction. The Authority holds the view that the Decision Committee is obliged to fulfill requests for public interest data submitted regarding decisions made in procedures initiated based on complaints submitted to a specific governmental body within a defined subject area and for a specific period, in accordance with the provisions of the Information Act. Therefore, the Decision Committee is obliged to send copies of decisions concerning specific case groups—only after the anonymization that extends to their case file number as per Section 30 (3) of the Information Act—upon such a data request, in accordance with Section 29 (3) of the Information Act.

If the data requester approaches the governmental body affected by the decision with their data request, then the governmental body itself, as a party in the procedure, is also obliged to issue the Decision Committee's decisions concerning the specified subject matter or certain case groups in anonymized form as mentioned above. In terms of the obligation to fulfill the data request, it is not necessary to examine whether the public authority is a data controller as defined in Section 3 (9) of the Information Act, but rather whether the condition defined in Section 26 (1) of the Information Act is met, that is, whether the data to be accessed is actually under its control.

[NAIH-3218-6/2023]

III.5. Transparency of Municipalities

III.5.1. Rights of Municipal Representatives Based on Laws

The Authority has examined the issue of distinguishing the right of municipal representatives to obtain information and the right to access public interest and publicly accessible data in connection with several reports, that is, the joint application of the provisions of the Municipalities Act (Act CLXXXIX of 2011, hereinafter: Mötv.) and the Information Act. According to the Authority's practice, municipal representatives may access public interest and publicly accessible data in the same way as anyone else, and the provisions of the Information Act must be applied to data requests. The rights granted to municipal representatives as defined in Section 32 (2) of the Mötv. do not result in additional entitlements to access public interest and publicly accessible data.

6 Kúria Pfv. IV.21.093/2020/5., Fővárosi Ítéltábla Pf.20.023/2022/10., Fővárosi Ítéltábla Pf.20.066/2022/5.

7 Alkotmánybíróság 6/2016. (III. 11.) AB határozat [31]-[33], Fővárosi Ítéltábla 2. Pf.20.567/2022/3.

146

147

III.5.4. Transparency of Data Related to the Legal Operation of Local Governments

A question arose in a petition regarding the transparency of local governments' operations, specifically whether the legal notice issued by the Government Office qualifies as public interest data. In answering this question, the Authority referred to the Constitutional Court decision 32/1992. (V. 29.), which establishes that the primary purpose of freedom of information is to ensure the transparency of the state and to oversee public decision-making. According to Section 26 (1) and (2), as well as Section 32 of the Information Act, data generated in the course of the legality oversight duties of government offices are, as a general rule, public interest data or publicly accessible data, the accessibility of which is governed by the provisions of the Information Act. From the perspective of the enforcement of freedom of information, the Authority emphasized that in this case, a public body (Government Office) is overseeing another public body (the local government representative body), meaning that the Government Office is monitoring the activities of the representative body that implements public tasks. The purpose of the investigations is to restore legal operation and to

eliminate illegal situations, and the data related to this are considered public interest data by virtue of the definition in the Information Act. Once the legality oversight procedure has concluded and the legal notice has been issued, the document – if necessary, following the anonymization of protected data – becomes public and accessible to anyone. [NAIH-1678-2/2023]

III.5.5. Publication of Rent Arrears Data to Increase Willingness to Pay

An investigation was conducted regarding the publication of the amount of overdue rent arrears of a tenant in a municipally owned apartment, as well as the debtor's name on the municipal website. The city council enacted a regulation stating that the names of debtors with overdue market rent arrears exceeding one million forints and lasting more than thirty days should be published on the municipal website as long as the debt exists. Regarding the handling of personal data in this case (online publication), the Authority found that the data controller, the Municipality, did not have an appropriate legal basis for data processing, as the Act LXXVIII of 1993 on the rental of apartments and premises and the rules governing the utilization of municipally owned properties do not authorize the local regulation of personal data processing in this case (the proposals and minutes of the municipal council's committee meetings). However, a committee member who is not a member of that committee cannot access the proposals prepared regarding the agenda items of the closed session, nor the data necessary for the decision. According to Section 32 (2) of the Local Government Act, a municipal representative is entitled to participate in the closed sessions of committees with the right to consult. In exercising this right, they can become aware of the decision-making process even if they do not directly participate in the assessment of individual cases. In this case, the Authority established the position that knowledge of the specific individual case documents and the data contained therein is not necessary for the municipal representative to exercise their authority under the last clause of point d) of Section 32 (2) of the Local Government Act. [NAIH-5924-4/2023]

III.5.3. Regulation of Public Interest Data Requests in the Organizational and Operational Regulations

The Authority conducted an investigation against a district municipality because its Organizational and Operational Regulations included the determination of how to fulfill public interest data requests submitted by municipal representatives, stating that if the data request is extensive or pertains to a large number of data, it should be fulfilled through document inspection. The Information Act contains clear rules regarding the manner of fulfilling public interest data requests in Section 30 (2) and Section 29 (2), and it does not authorize the creation of local government regulations for further defining the manner of fulfilling public interest data requests. The Government Office of Budapest emphasized in relation to the municipal regulation that the aforementioned regulation cannot narrow or restrict the representative rights guaranteed by the joint application of the Fundamental Law, the Information Act, and the Local Government Act, and that municipal governments are not entitled to create municipal regulations concerning the essential substantive elements of the right to know and disseminate public interest data as a fundamental right. Despite the consistent position of the Government Office, the representative body adopted the regulation – the amendment of the Organizational and Operational Regulations – as stated above. To prevent future violations of the fundamental right to access public and publicly accessible data, the Authority recommended that the district municipality's representative body repeal the aforementioned regulation. [NAIH-922-11/2023]

148

149

was incorporated into Hungarian law by Act CXXXI of 2009. Article 5, paragraph 2 of the Tromsø Convention stipulates that the data controller must, if possible, forward the data request to the competent public authority, or inform the requester about which competent public authority they can turn to. The clerk forwarded the data request to the municipal-owned economic company holding the data in order to promote a prominent fundamental right, namely the applicant's access to public interest information, which the Authority considers good practice for the fullest realization of freedom of information. The decision is available on the Authority's website under the case number.

[NAIH-1096-16/2023]

III.5.8. Publication of invitations and submissions before the meeting

In the cases, the reporters complained that the invitations and submissions for the public meetings of

the municipal representative bodies were only posted on the municipalities' websites on the day before the meeting, or not at all, thus the submissions discussed were not accessible to the public prior to the meeting.

In the specific cases, the Authority found that the municipal mayor's offices acted unlawfully because they did not publish the invitations and submissions for the meetings in accordance with the deadlines set by the local regulation (hereinafter: Organizational and Operational Rules, or SZMSZ) of the respective municipality and the deadlines defined by the Infotv. Furthermore, upon examining the provisions of the SZMSZs, the Authority deemed that the deadline prescribed by the SZMSZs for sending the invitations and written submissions for regular and extraordinary meetings to the representatives, and thus for their publication on the website, was unreasonably short ("within 2 days before the meeting"), which jeopardizes the freedom of information and does not adequately serve the public's ability to become familiar with the agenda items and the submissions discussed prior to the meetings.

For the above reasons, the Authority made a recommendation to amend the SZMSZ to the municipalities, whose representative bodies took the proposal for amending the SZMSZ onto their agenda; one of them adopted the local regulation on the amendment of the SZMSZ, while the other rejected the proposal. [NAIH-2613/2023, NAIH-7613/2023]

regarding the processing), which could have been referred to as the legal basis for the contested data processing. In addition to establishing unlawful data processing, the Authority highlighted its findings regarding the purpose limitation of the data processing: the court enforcement utilized by the Municipality was successful, therefore there was no need for further processing of the complainant's personal data, especially not for the publication of personal data for the purpose of enforcing public interest. The Authority made a recommendation for the repeal of the relevant provisions of the municipal regulation, which the representative body complied with. [NAIH-2086-11/2023]

III.5.6. Disclosure of municipal employee data

Based on a report, the Authority examined the disclosure of personal data of a person employed part-time by a municipality and also involved in the operation of a workers' hostel owned by the municipality. The Authority established regarding the reporter that they perform their duties as a general legal associate according to their employment contract. From publicly available minutes of the representative body meetings and the clerk's statement, it became evident that the operator of the municipal workers' hostel qualifies as an exceptional public figure in connection with the performance of public tasks, and therefore must tolerate the public disclosure of data related to the performance of public tasks: their name, the public task they perform, their (planned) position, and the amount of their (planned) and current salary. The Reporter, as a person performing public tasks, voluntarily undertook the operation of the municipality's workers' hostel, thus accepting the publicity associated with their position and the obligation to tolerate public expression of opinion and criticism related to their activities. [NAIH-3279-17/2023]

III.5.7. Referral of public interest data requests to the public authority managing the data

In the context of an investigative case, the clerk of one of the capital's districts informed the Authority that they forwarded the reporter's public interest data request to the District Public Service Company Ltd. as the data controller, since the Mayor's Office did not possess the requested data, and they informed the Reporter of this fact as well. The Reporter subsequently submitted a request for a data protection authority procedure to the Authority, as they believed that their personal data had been transferred to another independent data controller without a legal basis. The Authority rejected the request and highlighted the relevant provisions of the Council of Europe Convention on Access to Official Documents containing public interest data, which was...

150

151

In its judgment No. Pf. 21.108/2019/8, the Metropolitan Court of Appeal established that the rules regarding access to public interest data are exclusively contained in the provisions of the Infotv. This must be distinguished from the access to documents in administrative proceedings based on the Ákr., which is regulated by Sections 33-34 of the Ákr.

According to the Ákr., the decision made in administrative authority procedures, which relates to the

public duties of the given authority, constitutes public interest data as defined in Section 3(5) of the Infotv., with respect to which Section 33(5) of the Ákr. precisely defines which authority decisions and what data content can be accessed: “If the law does not restrict or exclude the publicity of the decision, after the conclusion of the procedure, anyone may access the final decision that does not contain personal data or protected data, as well as the ruling that annuls the first-instance decision and instructs the authority that made the first-instance decision to conduct a new procedure, without any restrictions.”

In one of its proceedings, the Authority examined the accessibility of the opinion of the Minister of Heritage Protection and World Heritage in response to a public interest data request. According to the position of the ministry holding the data, the requested data is necessary for the conduct of an ongoing administrative procedure before another authority, thus forming part of the documentation of this authority procedure, to which the provisions of the Ákr. apply. The ministry refused to release the requested document, arguing that the data requester is not a client of the relevant authority procedure. Despite the Authority pointing out that the data sought qualifies as environmental data, thus its publicity should be interpreted narrowly, the positions of the Authority and the ministry did not converge, with the Authority emphasizing the public interest in revealing the information. The term “anyone” used in the Ákr. corresponds to the definition of “anyone” established in Article VI(3) of the Fundamental Law of Hungary and Section 26(1) of the Infotv., which includes the concerned client itself.

The Ákr. ensures the right to access documents for clients of the authority procedure during the procedure and after its conclusion, while for persons not involved in the authority procedure – “third” parties – the Infotv. provides the opportunity solely to access the final, anonymized decision after the conclusion of the procedure. In the case where the subject of the authority procedure – as part of the concept of “anyone” – submits a public interest data request to the authority fulfilling the public duty regarding their own case, the Curia stated in its judgment No. Pfv.20.045/2023/7:

III.6. Accessibility of public interest data managed under the Ákr. (general administrative procedure) Previously, in its 2018 report, the Authority analyzed the rules concerning the two fundamental rights – the document access under the Ákr. and the access to public interest data under the Infotv. – under the title “Ákr. vs. Infotv., or public data in administrative procedures.” The Authority expressed its position that the mere fact that the requested public interest data is used in an administrative authority procedure does not deprive these data of their public interest nature. Whether the restriction of publicity is justified in relation to the administrative authority procedure can only be assessed in relation to the specific case. In its conclusion, the Authority determined that the purpose of the restriction under Section 27(2)(g) of the Infotv. is not to limit the accessibility of data generated in closed administrative authority procedures.

According to the consistent opinion of the Authority, Section 33(3) of the Ákr. only designates those types of data whose accessibility is conditional. Regarding public interest and publicly accessible data, this section of the Ákr. does not contain any restrictions; in its interpretation, the only requirement is to make personal data or other protected data unrecognizable as prescribed by law. The commentary attached to the referenced paragraph of the Ákr. reaches the same conclusion as the Authority's reasoning, stating that the legal provision discusses documents containing protected secrets and other data protected by law (e.g., personal data). The reason for the legal formulation is that if the documents contain data qualifying as public interest or publicly accessible data, then anyone can access them without the need for a separate proof of entitlement under the rules of the Infotv.

Based on judicial practice, the interpretation of the law is also incorrect when “the authority fulfilling the public duty interprets the regulations of the Infotv. and the Ket. in the relationship of *lex generalis* to *lex specialis*.” [Debrecen Court of Appeal Gf. 30.126/2016/5.] The referenced judgment further states that “The defendant had to act according to the rules of the Ket. in the expert authority procedure; however, in the absence of an explicit prohibition and limitation in the procedural law, this could not affect the obligation to make public interest data accessible as defined by the Infotv.; as pointed out by the Curia in its judgment No. Pfv.IV.20.455/2015/4, the mere fact that the requested public interest data is used in an authority or court procedure does not automatically deprive the data of its public interest nature.”

III.7. Cases of restriction of public access

III.7.1. Business secret

The data requester sought to learn certain data from contracts concluded by an exclusively municipally owned economic company with a third party, regarding which the Authority stated in the investigative procedure that a given document (for example, a contract, a price quote) may contain data that do not fall under any of the categories specified in Section 27 (3) of the Infotv. (for example, priced budget, know-how), or which have been classified as business secrets by the other party contracting with the municipally owned economic company. The Authority summarized its position regarding the conflict between business secrets and freedom of information in its recommendation issued under NAIH/2016/1911/V. According to the recommendation, economic companies that are at least majority state/municipally owned cannot invoke business secrets concerning the public tasks they perform (including the management of public assets), while facts, information, solutions, or data that qualify as business secrets for a company operating within the framework of market competition, which it builds its corporate and economic plans and strategies upon, are of great significance, as these pieces of information are the basis for decisions that ensure its position in the market, thus the disclosure of such information could result in its exclusion from the market. Resolving the conflict between business secrets and freedom of information, Section 27 (3) of the Infotv. qualifies as public data in the public interest those "quasi" business secrets related to the management, possession, use, utilization, disposal, encumbrance of public assets, and any rights related to the acquisition of such assets, in order to ensure the transparency of the management of public funds. If the holder of the secret (whether the municipal company or its contractual partner) has taken the necessary legal measures to preserve the business secret (e.g., explicit designation of the parts related to the business secret and detailed justification for the protection), the municipally owned economic company or its contractual partner cannot unlawfully disclose it. If this data, protected knowledge comes to the knowledge of the market competitors of the public economic company or the contracting party, it could result in the infringement of the lawful economic interests of the contracting parties. [NAIH-6203/2023]

The data request concerning the requester's own case does not serve the transparency of public affairs, therefore it does not meet the requirements for the request for access to public interest data and cannot be classified as a request for access to public interest data. The purpose under the Infotv. cannot be interpreted through the data known to the requester about themselves (Curia Pfv. IV.20.419/2021/6.).

As a requester, the client is entitled to exercise their client rights according to the provisions of the Ákr., during which they can learn about relevant data and information concerning the case through document inspection. The client's access to information related to their own data, overall, cannot be reconciled with the social purpose of the fundamental right, and does not contribute to the realization of the goal declared in Section 1 of the Infotv., which is the transparency of public affairs and the right to access and disseminate public interest and public interest data in the areas covered by the law. A whistleblower turned to the Authority because the mayor's office (hereinafter: office) refused to fulfill their public interest data request, in which they requested a copy of the record made by the public space inspector regarding an on-site inspection based on a complaint about the music service of a catering establishment near the whistleblower's terrace (hereinafter: record). The office refused to fulfill the data request on the grounds that there was an obstacle to fulfilling the data request according to Section 27 (2) (g) of the Infotv., since the whistleblower, as a client – after identification – could access the requested document according to the rules of document inspection under Sections 33 – 34 of the Ákr. In contrast, the Authority found during the investigation that no administrative authority procedure had been initiated in the case referred to in the complaint, and the requested record contained information entirely related to the whistleblower. In this regard, it pointed out that the whistleblower's request for the sending of the record does not actually qualify as a public interest data request, as the whistleblower sought information regarding their own case. According to the Authority's determination, the office should have identified the whistleblower's request as a request for the sending of a copy of the personal data processed by the whistleblower, as per Article 15 (3) of the General Data Protection Regulation, and should have fulfilled it according to the provisions of Article 12 of the General Data

Protection Regulation. The Authority obliged the office to fulfill the request of the affected party – following the necessary identification of the whistleblower's person. [NAIH-7974/2023]

154

155

III.7.3. Government Integrated Public Data Disclosure Portal (KIKAP Portal), Authority Integrated Public Data Disclosure Portal (HIKAP Portal)

In the complaints examined by the Authority regarding the operation of the HIKAP and KIKAP Portals, the content of the complaints is uniformly that the public interest data or data made public in the interest of the public is accessible via the URL for 15 days following the upload; after this period, the data content is archived, and then deleted after 90 days. The public interest data "made public" on the HIKAP and KIKAP Portals is only accessible to the data requester and to the person who has the URL necessary for downloading sent by the data controller for 15 days.

The data controller (the authority issuing the data) does not monitor whether the data requester receives the data or document they wish to know. The data requester must indicate if they cannot access the document they requested for any reason; in this case, the data controller will send a new link to the data requester's email address. Another problem identified during the investigations is that the KIKAP and HIKAP systems automatically place two watermarks on the document: the email address of the data requester and the KIKAP label. According to the data controllers, the purpose of this is the "one-step identification" of the data requester.

The Authority's position is that the watermark applied to documents issued in response to public interest data requests— even if it does not obscure the public interest data in a given case—hinders the right to disseminate public interest data guaranteed by the Fundamental Law, especially when the watermark contains the personal data of the data requester (e.g., their email address).

[NAIH-7525/2023, NAIH-44/2023, NAIH-584/2023.]

III.7.4. Data Request Fulfillment Portal Used by the Hungarian Chamber of Judicial Enforcement (MBVK)

According to the complaint, the download did not start upon clicking the "Download" label in connection with fulfilling a data request, and the data series disappeared. It was further complained that the response uploaded for the data request could only be downloaded once within a two-week period, and that due to the watermark running across the entire page containing their personal data (name, date of the data request, and email address), one key piece of data was not visible.

The MBVK has established a data service portal to ensure the provision of public interest data electronically. Among its advantages, it included the prevention of data loss.

III.7.2. New Data Production

According to the practice of the Constitutional Court, ordinary courts, and the NAIH, the restriction of the public's access to public interest data is only possible at the statutory level, ensuring the data controller's discretion and obligation to protect the interests defined in the Infotv., and convenience considerations cannot serve as a basis for denying a data request.

In the case examined, the notifier did not request the transfer of an existing register but rather the assurance of access to a simple data series that could be queried through IT and data query operations. During the investigation, the Authority stated—taking into account paragraph [55] of the reasoning of the Constitutional Court's decision 13/2019. (IV. 8.)—that if the data request pertains to the collection of existing and processed (recorded) data, its selection based on specific criteria, and, for example, its arrangement in a table, the request cannot be denied. The request must be fulfilled regardless of the form of recording and even if the data must be retrieved by reviewing the records of the data controller and/or the documents stored by the data controller. Similarly, the data controller cannot deny the fulfillment of the data request on the grounds that it would require reviewing the documents they manage and separating the public data from the non-public data contained therein. It was further emphasized that purely administrative considerations cannot result in the restriction of freedom of information. [12/2004. (IV. 7.) AB decision]

In summary: the Authority's consistent position is that performing simple IT query and summation operations does not constitute the production of qualitatively new data. The fulfillment of the data request in question did not require the performance of operations exceeding simple IT, mathematical,

or other significant difficulties. In the case of the examined data request, the fact that the data sought was about the retrieval of stored data as defined in the Constitutional Court's decision 13/2019. (IV. 8.), that is, the fulfillment does not require the acquisition or collection of new data from other authorities, providing explanations, or drawing conclusions.

The actual substantive examination of certain questions of public interest data requests and the responses to them, without addressing the content, merely making a formal reference to the Constitutional Court's decision 13/2019. (IV. 8.) constitutes an unjustified restriction of the fundamental right contained in Article VI (3) of the Fundamental Law, thus being unconstitutional.

[NAIH-9111-2/2023]

156

157

The service provider may only invoke Section 27 (5) of the Information Act for the purpose of restricting public access based on its own decision-making procedures that fall within its tasks and powers. The Information Act does not permit a public service provider to restrict the public access to public interest data it manages by referring to any ongoing proceedings before any authority. Only the head of the authority conducting the proceedings is in a position to carry out the assessment prescribed in Section 30 (5) of the Information Act and to determine whether the restriction of public access is necessary for the lawful and professional operation of the authority he/she leads.

The Municipality stated that the data requested by the notifier is also necessary for a potential sales procedure in which the seller is the Municipality. According to the Municipality, the expert opinion contains statements that are difficult to interpret without sufficient expertise. In its notice, the Authority stated that according to the consistent practice of the Authority and the courts, the public access to public interest data cannot be influenced by the comprehensibility of the data. In its judgment No. Pfv. 21.081/2018/5, the Curia established that "Even the defendant can contribute to the correct interpretation. However, the possible difficulties in interpretation alone do not provide grounds for refusing to disclose the data."

The Authority further emphasized that the data requested by the notifier qualifies as environmental information according to point a) of Section 2 of Government Decree 311/2005 (December 25) on the access to environmental information. Based on the consistent practice of the Authority and the courts, the public interest associated with fulfilling the request for access to environmental information is particularly significant: "The proper protection of the environment is essential for human well-being and the exercise of fundamental human rights, including the right to life. It is a fundamental right for everyone to live in an environment that is conducive to their health and well-being, and both individually and collectively, it is their duty to protect and improve the environment for the benefit of present and future generations. To ensure this right of citizens and to enable them to fulfill this obligation, information on environmental matters must be made accessible to them, and they must be granted the right to participate in decision-making. Therefore, in matters related to the environment, the accountability and transparency of decision-making is sometimes even more important than business secrecy, thereby strengthening the support for decisions from the public. Due to the social interest in the protection of the environment, the minimization of environmental pollution and the condition of the environment is essential, as well as the provision of a clearer format for uploaded materials and the complete protection of the personal data of the data requester. The data provider receives confirmation of the download sent to users. At the same time, the data controller does not verify whether the data requester has actually accessed and downloaded the public interest data. As a result of the investigation, the application of watermarks has been discontinued, and the downloading of uploaded documents will not be restricted.

III.7.5. Data Request Fulfillment Portal Used by the Supervisory Authority for Regulated Activities (SZTFH)

The notifier complained that the SZTFH responded to his data request in a format that he could not access, and the response was archived. The notifier was not informed about how long the response letter would be available and how many times it could be downloaded.

The HIKAP Portal is intended for the fulfillment of public interest data requests, allowing the uploading of public interest and publicly accessible data, and for sending them to data requesters. Additionally,

the SZTFH referred to the rationalization of internal office procedures as an argument for using the system, aiming for more efficient, secure, and faster administration. The data requester learns the URL for accessing the data and the information on legal remedies from the letter received at the email address provided during the data request.

As a result of the investigation, the SZTFH modified the general operation of the HIKAP Portal so that the response to a data request will be available for one year after publication on the Portal, after which the data content will be archived for 90 days.

III.8. Public Access to Environmental Data

Similar to previous years, data controllers in 2023 primarily invoked Sections 27 (5)-(6) of the Information Act when rejecting requests for environmental information.

The notifier requested an expert document containing the results of a hydrological study of an area from a municipality with county rights, which the Municipality intended to sell in the future, and for which a water law permitting procedure was also underway. The municipality justified the rejection of the data request by stating that the requested data serves as the basis for decision-making. In its notice, the Authority stated that a public task...

158

159

The requested data was not available at the time of fulfilling the data request. Furthermore, it was stated that the data request was not forwarded to the authority in possession of the data because, as the client of the measurement, the Municipality has the primary right to access the measurement data, ahead of anyone else. The Authority found that the Municipality did not violate the right of the notifier to access public interest data by not fulfilling their data request, as the requested data was not in their possession and had not yet been received from the measuring authority. However, the Municipality acted unlawfully by not forwarding the data request to the authority in possession of the data and by failing to inform the requester about the identity of the authority managing the data. According to Section 12 (6) of the Kvt. (Act on Environmental Information), "If the authority contacted does not possess the requested environmental information, it is obliged to forward the request for information to the authority in possession of the environmental information and to notify or inform the requester about which authority they can request the information from."

Neither the Infotv. (Act on Information) nor the Kvt. contains provisions that exempt the authorities to which the data request is originally submitted from this obligation to inform or forward data under certain conditions. The Municipality argued that the data was not yet finalized, and therefore, it could not inform the requester about whom to approach for the requested air pollution level measurement results, nor could it forward the data request to the company producing the data. The Authority informed the Municipality of its contrary position regarding access to raw environmental information. According to Section 51 (1) of the Kvt., "Data concerning the state, use, and exploitation of the environment shall be treated according to the laws on public interest data."

Thus, raw data concerning air pollution levels that are still pending evaluation are also public interest data, as they relate to the state and use of the environment. It may occur that the evaluation and validation of the raw data lead to results different from the original data. Therefore, it may indeed raise the question of whether data that may still change should be released. Our country is a party to the Convention on Access to Information, Public Participation in Decision-Making and Access to Justice in Environmental Matters, adopted in Aarhus on June 25, 1998 (hereinafter: the Convention), which was promulgated by Act LXXXI of 2001. According to the implementation guidelines of the Convention, the Convention Compliance Committee, and the judgments of the European Court, access to data concerning environmental information takes precedence over the preservation of business secrets. Considering that the municipality intended to sell a protected area designated for the enhanced protection of drinking water supply—naturally depending on the outcome of the water rights permitting procedure—the public interest related to the transparency of the data underpinning the municipality's decision regarding the sale was, according to the Authority, particularly significant; therefore, it urged the municipality to fulfill the data request. The municipality complied with the request, allowing the requester to access the requested data. [NAIH-1387/2023.]

In another case, the subject of the notifier's data request was an expert opinion based on which trees

were cut down on the Silver Coast in Siófok. The data controller Ltd. rejected the data request based on Section 27 (5) of the Infotv. It argued that there was a concern that the improper disclosure of the data could prevent or significantly hinder the execution of the decision, and it wanted to avoid any disruption to the works. The Authority found that the data request was answered one day after the trees were cut down. On the day the data request was submitted, a justifiable reason for restricting public access would have been that "in other cases, it has occurred multiple times in Hungary that certain individuals attempted to physically prevent the execution of such decisions." The decision to restrict public access was made after the trees were cut down, i.e., after the execution of the decision. When restricting the public access to the data underpinning the decision according to Sections 27 (5)-(6) of the Infotv., the balancing of interests required by Section 30 (5) of the Infotv. must also be conducted. In the interest balancing conducted by the Ltd. after the trees were cut down—since the decision was made after the trees were cut down—the significant public interest in the transparency of environmental data should have been given considerable weight. The Ltd. complied with the Authority's request and provided the requested data to the data requester. [NAIH-575/2023]

The Authority examined the non-fulfillment of the information or forwarding obligation prescribed in Section 12 (6) of the Kvt. in 2023, similar to previous years. A municipality with county rights was requested to provide the results of air pollution level measurements ordered by it or any municipal company, the evaluation of the results, and the protocols containing these data. The Municipality justified the rejection by stating that...

8

Szekszárdi Törvényszék 13.Pf.20.706/2014/6.

160

161

on the qualification of educators, as well as on impact studies related to dismissals, and the internal decision-preparation documents prepared in connection with these. During the investigation, it was revealed that the Directorate failed to fulfill the data request due to an administrative error; however, later, after an extension of the deadline, it provided the data requested by the data requester.

[NAIH-3968/2023]

There is significant interest from parents and parental organizations regarding whether appropriately qualified educators are teaching the students and substituting during classes. The notifier also raised questions regarding the teacher shortage with the Educational Directorate, which partially denied the fulfillment of the data request, citing the Constitutional Court's decision 13/2019. (IV. 8.) AB. The subject of the data request concerning public educational institutions maintained by the Directorate included, among other things, the approved number of teachers, filled positions, the number of individuals performing educational activities without higher-level teaching qualifications, and the permanent substitution (overtime) ordered for teachers. The public interest data request also included questions about how many classes did not ensure group division according to the pedagogical program due to unfilled positions or the employment of inadequately qualified teachers, as well as how many lessons lacked proper substitution in the 2021/2022 academic year based on the KRÉTA registry.

In connection with the referenced Constitutional Court decision, the Authority emphasized that performing simple addition operations does not qualify as the production of new, qualitatively different data. The AB decision cannot be applied as an automatic rejection reason because the data cannot be produced and provided to the data requester through the physical search of the requested data individually; the data is available electronically, and beyond the managed data, the production of new, qualitatively different data, explanations, or conclusions is not necessary for fulfilling the data request. Fulfilling the data request necessarily requires a certain amount of labor investment, which is an inherent part of ensuring the institutional provision of the fundamental right to access public interest data. Limiting public access is only possible at the statutory level for the protection of interests defined in the Infotv., and convenience considerations cannot serve as the basis for denying a data request. The requested data—requested anonymously by the data requester merely as statistical numerical data—are public personal data in the public interest and can be known on a per-teacher basis. Regardless of any legislation or legal relationship, teachers are employed, and this must be interpreted

broadly according to Section 26 (2) of the Infotv. The Aarhus Convention Compliance Committee found in case ACCC/C/2010/53 that the failure to fulfill data requests for raw data violates Article 4, paragraph 1 of the Aarhus Convention. The concept of environmental information under the Convention is broad and is not limited to processed data. The Compliance Committee suggests that if the public authority has doubts about the release of raw data, it should inform the data requester that the environmental information provided consists of raw data and has not been processed according to the rules for processing raw environmental data. Therefore, raw air pollution data must also be provided by the authorities performing environmental tasks to the data requesters. The Municipality should have forwarded the data request to the authority handling the raw data or informed the data requester about which authority manages the raw air pollution data. The information could have included a note indicating that the evaluation of the data managed by the designated authority has not yet been completed. [NAIH-4044/2023]

III.9. Educational matters, transparency in public education

In 2023, most data requests were again submitted in connection with the phenomenon of teacher shortages. The Authority considers it extremely important to take into account and emphasize other fundamental children's rights alongside the transparency of education; therefore, the Authority's position is that there is a significant public interest in the accessibility of data requested in this area due to children's right to education. Uncovering problems and challenges related to education that affect society at a systemic level and conducting social discussions about them is in the public interest, as well as in the interest of children and the authorities and individuals involved in educational decision-making.

III.9.1. Statistical data on teachers employed in the educational district, positions

A public interest data request was submitted to one of the capital's Educational Directorates regarding the exact number of full-time, part-time, and retired teachers who have reached retirement age, broken down by age, subject qualification, and educational institution, as well as inquiries about the number of unfilled teaching positions on the first day of the academic year, broken down by subject and educational institution. The data request also extended to the number of educators dismissed from one high school on September 30, 2022.

162

163

In this regard, the Directorate issued the data under its management, while for the data for which the affected public educational institution is the exclusive data controller, it directed the data requester to the institutions. [NAIH-7384/2023]

III.9.2. The Recognizability of Teachers' Qualifications and Specializations

In another data request, a notifier wanted to know whether the five special education teachers named in their submission had qualifications appropriate to the type and severity of their child's special educational needs, and what legal relationship the special education teachers had with the school. The Authority stated that, referring to Section 26 (2) of the Infotv., the data requester is entitled to know the identity of the teachers, their qualifications, specializations, whether they possess qualifications appropriate to the type of special educational needs, what tasks they perform, what assignments they have received, the assignment contract itself, and, if generated, its invoices as well. The Authority further explained that the Infotv. does not recognize the concept of personal data requests or private interest data requests. If the subject of the data request consists of public interest data defined in points 5-6 of Section 3 of the Infotv., as well as publicly accessible data of public interest, it qualifies as a public interest data request, regardless of the data requester's identity or the purpose and circumstances of the data request. These purposes and circumstances cannot be examined in the context of fulfilling the data request and cannot constitute an obstacle to the release of otherwise accessible data. According to the Authority's position, the use of publicly accessible personal data requested by the data requester in proceedings before courts or authorities complies with the principle of purpose limitation. [NAIH-8522/2023.]

III.9.3. Transparency of Public Education Development Grants, Publicity of Contracts

The subject of another submission was the request to know all contracts concluded by the municipality

in the course of implementing the project titled "Development of the Natural Science Methodology and Tool System of Arany János Primary School and Gymnasium." In this matter, both the Directorate and the Municipality stated that they do not have the contracts in their possession. During the Authority's investigation, the Directorate explained that it did not receive the contracts it wished to review from the Municipality (only on a CD, which is damaged, and the materials on it cannot be downloaded), therefore the Directorate does not possess the requested contracts, nor can the scope of duties, job description, or any other personal data related to the performance of public duties be disclosed. Regarding the issue of substitution, the Authority's position was that if a teacher performs tasks belonging to another job temporarily based on the employer's directive while fulfilling their job responsibilities, this affects their scope of duties, job description, and performance of public duties, which are also public interest data according to Section 26 (2) of the Infotv. For these substitute teachers, data regarding qualifications and specializations is certainly public interest data based on Section 26 (2) of the Infotv., even if another institution is the employer of the substitute teacher. Therefore, referring to Section 26 (2) of the Infotv., data requesters are entitled to know the identity, qualifications, and specializations of substitute teachers.

Another way to access public interest data and publicly accessible data, beyond individual requests for public interest data, is the electronic publication obligation of public bodies, in this case, educational institutions. Data regarding teachers' school qualifications and specializations, as well as the number of assistants in educational and teaching work, their school qualifications and specializations based on the positions held, must be published by educational institutions on the KIR platform designated for this purpose and on their websites, according to Section 23 of Government Decree 229/2012 (VIII. 28.) on the implementation of the law on national public education. Data requesters can learn whether the substitution was documented as professional or non-professional in two ways. If they only wish to know the ratio of professional/non-professional substitutions, for example, on a given day/week/month, the institution is obliged to release the data as public interest data. However, if data requesters request the data concerning a specific teacher, since it is personal data, the data will be accessible as publicly available personal data under Section 26 (2) of the Infotv. In the case of the substitute teacher, it is also considered an additional personal data related to the performance of public duties whether they substitute as a subject-specific or non-subject-specific teacher, and thus whether the substitution is considered professional or non-professional. It is a separate question whether, despite being a non-subject-specific teacher, the institution records the substitution type as professional. This data is also accessible as public interest data, as it is also a recorded data concerning the activities managed by the school. The Authority's request resulted in...

164

165

In relation to the child protection benefit, it was stated that they are not data controllers regarding this data, and in their opinion, it can be inferred from the aggregated statistical data that a specific natural person (student) can be identified. The Authority stated that the aggregated statistical data, which does not contain personal data that the data requester wishes to know, is public data, the knowledge of which cannot be restricted by the provisions of Sections 28-30 of the Infotv. According to the provisions of Act XXXI of 1997 on the Protection of Children and Guardianship Administration, the guardianship authority, the local municipality, or the maintainer manages the data related to the regular child protection benefit for a specific child. The eligibility for the regular child protection benefit is determined by the guardianship authority, thus the primary controller of this data is the guardianship authority, and therefore, a public data request regarding this data should be submitted to the guardianship authority. Information regarding institutional child nutrition can be provided by the local municipality as well as the educational institution itself. Since, in practice, the meal and the related billing tasks are handled by the educational institution or the local municipal service provider (or another organization providing public catering and child nutrition), these bodies and organizations also manage the eligibility for discounted meals, and thus they are obliged to respond to public data requests. (A public data request can also be submitted to identify this organization at the local municipality, the district educational office, or the school.) In the case examined, the District Office managed the data related to the RGYK; however, the guardianship authority or the local municipality

does not manage the data regarding which child attends which class, thus these bodies will not be able to exclusively respond to certain questions posed in the data request. [NAIH-6566/2023]

III.9.6. Data Supporting Class Division

The Authority took a contrary position in the case where the data requesters sought to know the data supporting the class division in an anonymous, statistical report. For each student in two classes, they separately requested the student's gender, age, place of residence, academic average achieved in the previous class (grade), the foreign language studied there, whether the student receives regular child protection benefits, whether they are disadvantaged, whether they are multiply disadvantaged, and whether they have an individual work schedule. According to the Authority's position, fulfilling such a data request could violate the individual students' right to the protection of personal data, as this way individual students could be identified or could become identifiable. (e.g., if only one student lives in a certain place, they could be identified.) The local government's response letter indicated that starting from January 1, 2017, the operation of public educational institutions, such as the Arany János Primary School and Gymnasium, became a task of the district office based on legal provisions. Consequently, the tasks related to the mentioned application were also the responsibility of the District Center. Considering that no destruction has taken place according to the 78/2012 (XII.28.) BM decree on the issuance of a unified filing plan for municipal offices, the contracts related to the implementation of the application were sent to the data requester via email as a result of the Authority's procedure. [NAIH-3967/2023.]

III.9.4. Accessibility of Subject Distribution

In a consultation request, the applicant inquired whether subject distributions can be requested from the District Office as public data. According to the Authority's position, the subject distribution contains public data and publicly accessible personal data in the public interest. After its completion, the school, as well as the maintainer after August 15, manages the subject distribution. However, not all public data is public. That is, the document may be considered a decision-preparatory data under Section 27 (5)-(6) of the Infotv. before approval by the maintainer, and afterwards if the data serves to substantiate further future decisions, or if the knowledge of the data would jeopardize the lawful operational order of the public task-performing body or the performance of its duties and powers free from unauthorized external influence. However, in every case, the public task-performing body must refer to the circumstances that limit publicity. The notifier may request the approved subject distribution from the district office based on Sections 28-30 of the Infotv. [NAIH-6234/2023]

III.9.5. Release of Class Size and Regular Child Protection Benefit Data

In another consultation case, the applicant requested a position statement regarding whether the District Office is obliged to release data related to how many children attend each class in the lower grades of a primary school as part of a public data request, and how many children among the various classes of each grade receive regular child protection benefits (hereinafter: RGYK). They also requested to determine which bodies manage the data related to the regular child protection benefit. The District Office previously provided the number of children attending each class; however, the regular child protection benefit...

166

167

is authorized to act under the laws concerning the Civil Code and the Criminal Code.

[NAIH-8645/2023]

III.9.9. Higher Education – Public Access to Theses

In a case concerning higher education, the Authority responded to a consultation question from a university's data protection officer regarding the public access to theses, also seeking the position of the Ministry of Culture and Innovation. The legal environment changed significantly in 2022: it is no longer the autonomous decision of the higher education institution how to publish theses, but they must be made accessible to anyone without restriction for theses created after May 28, 2021.

According to the Ministry of Culture and Innovation, the term "without restriction" means that a person wishing to access a thesis should not encounter difficulties or costs that exceed reasonableness. The higher education institution may provide access and searchability in other suitable ways, such as through a computer located in its library, provided that the thesis is otherwise stored in the academic

system; the general rules regarding library use (opening hours, possible reasonable fee obligations for non-students) do not constitute a restriction. According to the Authority's position, the right to access is limited to inspection concerning the rights related to intellectual property, and a person wishing to access a thesis cannot request a copy of the thesis from the institution. [NAIH-5259/2023.]

III.9.10. Contracts Entered into by the Maintainer

The notifier objected that they had submitted a public interest data request to the [...] University Foundation, in which they asked, among other things, what purchase price the Foundation paid for [...] Medical Center Ltd. and [...] Medical Invest Ltd., to which they received no response either within the statutory deadline or thereafter.

According to the Authority's position, since the Foundation is also an organization established from public funds that manages public funds and performs public tasks, it falls under the scope of the Information Act. A public interest asset management foundation (hereinafter: KEKVA) is always a public body from both a task-oriented and asset-oriented approach. The assets managed by KEKVA are increasing: public assets. Therefore, from an asset-oriented perspective, the requested data can only be known aggregated by class, not individually concerning each student. [NAIH-8194/2023.]

III.9.7. Public Disclosure of Data Protection Incident Related to e-Kréta

In connection with a data protection incident affecting the internal IT systems of eKréta Informatikai Zrt., due to the name change of eKréta Informatikai Zrt. on April 20, 2023, to Educational Development Informatikai Zrt., the company informed the Authority that it had notified all data controllers of the incident affecting the Company in the form of a "bulletin board message" used in the KRÉTA system, including that the incident did not affect the KRÉTA system but only the internal IT systems of eKréta Informatikai Zrt. During the investigation, the Authority found that the Company violated the rights of the notifier related to the protection of personal data and the right to access public interest data (two areas of request) when it did not respond to the letter containing the exercise of rights by the data subjects and the public interest data request since November 13, 2022. Unfortunately, due to the large number of inquiries received regarding the data protection incident and the Company's workload, the response to the notifier's letter was delayed. The Authority acknowledged the Company's argument that it could not respond to certain questions for data and information security reasons, as the disclosure and/or public availability of this information would significantly increase data security risks and could contribute to the malicious activities of individuals/entities planning unauthorized attacks/intrusions. [NAIH-4794/2023]

III.9.8. Public Evaluation of Public Education Institutions

In relation to a notification concerning a kindergarten evaluation website, the Authority informed the notifier that upon reviewing the website, it found no unlawfully disclosed personal data, and the identification and contact details of the kindergarten appearing on the contested website matched the data on the oktas.hu website and the kindergarten's own website. The Authority does not have jurisdiction to act regarding the publication of opinions about the kindergarten; such opinions and evaluations fall within the scope of freedom of expression, and the courts have jurisdiction over them. 9 The text of the message was recorded in the incident report submitted by eKRÉTA Informatikai Zrt. on November 10, 2022.

168

169

a direct danger cannot arise (e.g., the case number). The problem may stem from the type of connection of data that allows for the identification of natural persons. Any connection of an anonymized court decision with natural persons—such as indirectly inferring the identities of individuals involved in the case by disclosing the name of the defendant company—constitutes data processing, which falls under the scope of the GDPR. [NAIH-9453/2023]

It is also worth mentioning the investigative case in which the notifier initiated the Authority's investigation because the court rejected the fulfillment of their public interest data request, which aimed to obtain copies of responses to public interest data requests submitted to the court during a specific period. The Authority pointed out that the Court, in fulfilling the public interest data request, considered the first sentence of Section 86 (1) of Government Decree 14/2002 (VIII.1.) IM (hereinafter: Bűsz.), and examined whether the notifier could be considered an interested party in accessing the

public interest data. According to Section 29 of the Infotv., the data requester can be "anyone," and the data controller cannot examine their identity, identity, or the purpose of the data request. In several published decisions, the Curia has stated that the claimant's request for the release of "documents" concerning themselves does not qualify as a public interest data request, as it does not serve and cannot serve the transparency of public affairs, and therefore does not meet the requirements for a request for access to public interest data. (Pfv.IV.20.419/2021/6., published: BH2022.16., Pfv.IV.21.269/2022/5., Pfv.IV.20.008/2023/4.) According to Section 1 (2) of the Büsz., its rules are applicable unless otherwise provided by a separate legal regulation, which means that the Authority's position should be assessed on a case-by-case basis to determine whether a different legal provision is applicable in the given case or the provision of the Büsz. that is the subject of the investigation. The Authority pointed out that it may be established that during the fulfillment of public interest data requests—i.e., concerning public interest data—the restrictive rules contained in Section 86 (1) of the Büsz. are not applicable at all, as the Infotv. establishes different provisions regarding the accessibility of documents.

If the provisions of Section 86 (1) of the Büsz. were to be applicable, they must still be applied in accordance with Section 1 (3) of the Büsz., which prescribes that during the proceedings, compliance with the provisions of the Infotv. must be ensured. This different legal interpretation leads to the conclusion that the president of the court must always determine the Foundation's status as a public task-performing body under Section 86 of the Büsz. Those obligated to provide information regarding public interest data are required to do so both due to their public task performance and their management of public funds. During the Authority's investigation, the Foundation stated that while it is the maintainer of the University, the University and the Foundation are considered two separate legal entities and, from the perspective of public interest data management, two separate data controllers. In the transaction concerning the purchase of the exclusive business share and thus the indirect ownership of [...] Medical Center Ltd., it was not the Foundation that participated as a party, but the University, and therefore only the University has access to the data related to the transaction, making it the data controller in that regard. Unfortunately, however, the Foundation unlawfully failed to inform the data requester of this fact, leaving the data request unanswered. As a result of the Authority's investigation, the Foundation forwarded the data request to the relevant organizational units of the University. [NAIH-5650/2023]

III.10. Transparency of the judiciary – the data publicity practices of courts and bailiffs

Among this year's submissions, we highlight several consultation submissions concerning courts, as well as complaints submitted against the Hungarian Chamber of Judicial Enforcement.

III.10.1. Submissions concerning courts

A consultation request regarding the publicity of court judgments asked whether the requester could publish a judgment and its reasoning—without names and addresses—for the purpose of informing union members. The Authority stated that how the parties involved in a court proceeding expressed themselves, what witness statements they made, and what behavior they exhibited in the case that served as the basis for the proceedings—an incident involving loud exchanges—along with the fact that the court deemed their testimony "problematic," are all data that do not relate to their public task performance, especially if, as employees, they are not acting within the scope of the authority's tasks and powers (e.g., porters, security guards). The data of the court proceedings that cannot be linked to a natural person are considered public interest data as long as the data does not become or cannot become personal data, meaning that it cannot be connected to a natural person, and thus the right to informational self-determination is not violated, or this right is not compromised.

170

171

that in 2021 and 2022, which companies it entered into contracts worth more than 5 million forints, the Chamber denied the request, stating that it does not keep the requested data as "aggregated data." The Authority's consistent position is that performing simple IT queries and mathematical (addition) operations does not constitute the creation of new data, and organizing these into a table does not constitute "generating a new record." To fulfill the data request at issue, there is no need to exceed the level of simple IT, mathematical, or other operations that do not pose significant difficulty. Therefore,

the MBVK is obliged to respond to the questions posed by the data requester regarding the Chamber's management and expenditures. The Authority further believed that the public interest data sought would provide important information for Hungarian society, promote the transparency of the Chamber, which has a tarnished reputation due to corruption and criminal proceedings, and strengthen public trust in the operation of the MBVK, as well as the Hungarian state and the judiciary.

The Chamber, referring to the court ruling No. 69.P.22.423/2023/3, informed the Authority that it had sent the requester a list of contracts worth net 1 million forints or more concluded by the MBVK since 2017, in the structure corresponding to the data request. They also stated that they have never received support for the development of their IT systems, and regarding the amounts spent on the development of IT systems, they maintain that the requested data provision does not consist solely of addition and subtraction operations, that the Chamber does not possess this data, and that fulfilling the data provision would require labeling all supplier invoices and payroll-type costs in its complete accounting, i.e., indicating what purpose the given cost item was used for. [NAIH-44-2023.]

Another case concerning the MBVK involved the data requester wanting to know which enforcement positions were vacant at the time of the data request and since when, as well as how long each enforcement officer had been in their position.

The MBVK informed the data requester that they could search for the currently authorized independent court enforcement officers in an up-to-date register on the mbvk.hu/registry interface. In cases where a position is vacant, a substitute enforcement officer from another area is temporarily appointed to perform the duties. In these cases, the authorized person is indicated as follows: XY permanent substitute (the last sentence of paragraph (1) must decide on the fulfillment of the public interest data request in its discretionary power, while being bound by the provisions of the Infotv. regarding the fulfillment of public interest data requests during the consideration). Therefore, the president may only refuse to fulfill the public interest data request if the reasons for refusal under the Infotv. exist, meaning that the consideration – similar to the heads of other public task-performing bodies – can only be carried out within the framework of the provisions of the Infotv.

In both interpretations of the law mentioned above, the president of the court may decide in a discretionary capacity on the fulfillment of the data request or the refusal of fulfillment, but must make their decision with regard to the provisions of the Infotv., and not by disregarding them – that is, not solely based on § 86 (1) of the Bűsz. Based on all this, the Authority called on the Court to fulfill the data request, which the Court complied with. [NAIH-7830/2023]

III.10.2. Court Enforcement

This year, the data controller for most cases related to the judiciary was also the Hungarian Chamber of Judicial Enforcement (MBVK, Chamber). The Chamber regularly disputes the positions of the Authority that oversees the enforcement of the right to access public interest data, does not comply with the Authority's requests, or leaves its inquiries completely unanswered. Unfortunately, in most cases, matters concerning the MBVK end up in court, where – since a court ruling can be enforced by state coercion – the data requester eventually gains access to the desired public interest data. Court rulings concerning the MBVK as a defendant regarding freedom of information are detailed in the chapter containing court decisions.

One complaint concerning the MBVK was about the support and expenditures received annually for the development of the MBVK's information systems between 2016 and 2022, as well as the list of contracts concluded since 2017 worth net five million forints or more.

The MBVK rejected the request for data, claiming that it does not keep records regarding how its costs for the development of each of its information systems were distributed annually. Given that fulfilling the data provision would require the Chamber to create new data, it claims it cannot fulfill the data request. The Chamber's list of contracts concluded since 2017 worth net five million forints or more, as well as the provision of that data,

172

173

referring to the company register or the land registry as a public record, etc.)

Considering that the Authority and the Chamber have not reached a consensus regarding the accessibility of the data in question, the Authority has called upon the Regulatory Authority for

Regulated Activities to conduct an investigation into whether the Chamber interprets the relationship between the Vht. (Act on Judicial Enforcement) and the Infotv. (Act on Information Freedom) in accordance with the laws. Furthermore, the Authority issued a recommendation to the SZTFH, among other things, stating that since independent judicial enforcement agents (and substitute enforcement agents) are persons exercising public authority and performing public duties, the law (preferably the Vht.) should clearly state that they fall under the personal scope of Chapters III and IV of the Infotv., and they are subject to all obligations related to freedom of information that generally burden public authorities (the accessibility of public interest data and data publicly available in the public interest based on individual data requests, as well as the publication of public interest data according to the general publication list defined in Annex 1 of the Infotv. – reasonably on the MBVK website.) [NAIH-5145/2023]

For similar reasons, the MBVK also denied the release of data in the case concerning how many cases each enforcement agent received in the independent case distribution system, and which enforcement offices were inspected in the years 2019, 2020, 2021, and 2022, and what the results of these inspections were.

In this case, the MBVK also referred to the self-serving nature of the data request; however, the Authority firmly believes that the data request submitted by the requester is not self-serving, and the data request fully aligns with the social purpose of the right to access public interest data. Corruption and criminal proceedings involving the MBVK naturally attract public interest, and there is a societal demand for increased transparency in the operations of the MBVK. During the investigation, the Authority found that the Chamber manages the data of the independent case distribution system, and it should be able to determine how many cases were assigned to each enforcement agent through simple IT query operations, and from the log data, as well as from the electronic public records and the central registry of enforcement cases, it should be able to ascertain how many cases were redistributed.

The Chamber did not state how long it retains these log data, but the fact that it has not fulfilled the data request since May 30, 2022, certainly raises concerns regarding the legal basis for the order) YX instead of an independent judicial enforcement agent. Additionally, a link to a summary Excel table was also sent to the data requester, which can be found under the "Addresses of Enforcement Offices" menu item.

The MBVK rejected the part of the data request concerning the date of the permanent substitute's appointment, citing that this data is managed in the public record according to Section 250/A (5) of Act LIII of 1994 on Judicial Enforcement (Vht.). The Chamber's position is that regarding the provision of data from the official register, the general rules of public interest data requests cannot be applied according to Section 28 (8) of the Infotv., and data provision from the register can only occur in a manner regulated by a separate law. Considering that the Vht. prescribes a data transfer obligation only for cooperating authorities performing legality oversight, judicial, or administrative tasks as a sectoral regulation, and according to Section 33 of the Ákr. (Act on Administrative Procedure), a third party may only access the register if they prove that access to the data is necessary for the enforcement of their rights or for fulfilling an obligation based on law, court, or authority decision, the data request in this context cannot be fulfilled according to the Chamber's opinion.

The Authority could not accept the arguments presented by the Chamber during its investigation and stated in its notice that the vacancy of enforcement positions is public interest data according to point 5 of Section 3 of the Infotv., while the date of the permanent substitute's appointment is public data in the public interest according to point 6 of Section 3 and Section 26 (2) of the Infotv. Since the name of the permanent substitute and the date of their appointment qualify as other personal data related to the performance of public duties by enforcement agents, they can be accessed as public data in the public interest. The vacancy of enforcement positions is also a public interest data that is important for public opinion and serves the transparency of public affairs, and its accessibility does not fall within the scope of individual data provision from the register.

The supervisory authority of the Chamber, the Regulatory Authority for Regulated Activities (SZTFH), also holds the view that the data listed in Section 250/A (2) of the Vht. can be released under a data request, except for those defined in Section 250/A (1) of the Vht.

According to the Authority's position, information regarding public interest or publicly available data cannot be denied on the grounds that the requested data is also part of a public record. (Thus, the accessibility of data regarding national assets, properties owned by the state or local governments, and shareholdings cannot be excluded.)

174

175

to gain access to public interest data that, according to the Authority's position, is otherwise accessible to anyone. [NAIH-4488/2023]

There was also a case this year in which the MBVK interpreted the notifier's public interest data request as an exercise of rights by the data subject.

In the notifier's public interest data request, they sought to find out how many complaints had been sent to the MBVK in the last 5 years, broken down by year, regarding the failure of the executor to return the full auction deposit to unsuccessful bidders in the event of auction completion or cancellation. The MBVK assessed the data request as a request for the exercise of the data subject's right of access under Article 15 of the GDPR and informed the notifier that as of March 10, 2023, they were not listed as a debtor in the electronic public registry maintained under Section 253/E (1) of Act LIII of 1994 on judicial enforcement, which is managed by independent judicial executors. During the Authority's investigation, the Chamber stated that it had interpreted the public interest data request as an exercise of the right of access due to an "administrative error resulting from filing mistakes," and after receiving the Authority's letter, the MBVK corrected the erroneous data provision to the notifier. [NAIH-8721/2023]

The concerns raised by the Authority regarding the data request fulfillment portal used by the MBVK are detailed in a separate subsection of this report.

III.11. Other public task performing bodies, civil organizations performing public tasks, organizations providing public services

The Authority, as a result of the KÖFOP-2.2.6-VEKOP-18-2019-00001 project titled "MAPPING THE DOMESTIC PRACTICE OF FREEDOM OF INFORMATION AND INCREASING ITS EFFECTIVENESS," published information on the website <https://infoszab.hu/> at the electronic link <https://infoszab.hu/node/183> regarding which bodies fall under the scope of the Infotv. The publication of this information was made in light of the significant number of notifications received by the Authority each year concerning other non-administrative organizations performing public tasks and/or managing public funds, due to certain state-owned, municipal-owned economic companies, other state or municipal-backed nonprofit organizations, public bodies, public foundations, and higher education institutions claiming that they do not fulfill public interest data requests on the grounds that, in their opinion, the provisions of the Infotv. regarding the fulfillment of public interest data requests do not apply to them.

The violation of the requirement of timeliness in exercising the rights related to accessing public interest data has caused significant legal harm to the data requester, as well as the limited storage duration of the data in question—if part of it has since been deleted.

Neither the MBVK nor the SZTFH's response letters raised any public interest-restricting reasons that would justify the rejection of the data request. In other words, if the data is available electronically and can be extracted from the databases managed by the MBVK through simple IT and data query operations, the public interest data request must be fulfilled. It is sufficient for the fulfillment of the data request if the data requested can be searched for in the MBVK's IT systems; the data request cannot be rejected on the grounds that the MBVK "does not maintain such a registry."

The fact of inspections concerning executors and the results of those inspections are considered other personal data related to the public task performance of executors under Section 26 (2) of the Infotv. and can be accessed as public data in the public interest. The data requester did not request access to the entire documentation of investigations, inspection reports, or disciplinary proceedings along with the personal data of the individuals involved in the enforcement proceedings, as interpreted by the MBVK. The data request can only be fulfilled by responding to the data requester's question, solely with the publicly accessible personal data of the executors, without releasing the personal data of other participants and affected parties in the enforcement process or the entire documentation.

In Hungarian transparency law, the data principle, rather than the document principle, is applicable: according to Section 30 (1) of the Infotv., if the document containing public interest data also contains data that cannot be accessed by the requester, the inaccessible data must be rendered unrecognizable on the copy, meaning that the release of the entire document cannot be denied on the grounds that it contains inaccessible data.

Against the Chamber's assessment, it does not follow that the absence of a public disclosure obligation established by sectoral legislation regarding the inspections conducted by the Chamber means that the data related to this can neither be accessed nor released as public interest data. Given that the positions of the MBVK and the Authority did not converge even after the Authority's third reminder, unfortunately, the data requester must turn to the court in this matter as well.

176

177

The local government collaborates with church and civil organizations in fulfilling its tasks related to ensuring the conditions for social care. According to Section 120 of the Social Act (Szocstv.), the local government may provide social services or services that ensure the right to rest through a supply contract with a church or other non-state body, church maintainer, or non-state maintainer. The Foundation was authorized in a supply contract with a municipal government to operate a nursing home providing comprehensive care in a property owned by the Municipality, thereby taking over the fulfillment of this municipal task. In providing social services, the Municipality and the Foundation – the latter to the extent of the tasks taken over from the Municipality under contract – are obliged to guarantee the enforcement of the right to freedom of information, thus making public interest and publicly accessible data available to anyone. In light of this, the Authority summoned the Foundation to fulfill the public interest data request submitted to it. [NAIH-86/2023]

In connection with a data request submitted to another Foundation, the Authority agreed with the Foundation that a misinterpretation of the law by the data requester was the reason why the requester believed that the Foundation did not adequately fulfill the data request. The framework agreement defined in Section 20 (1) of Act IX of 2021 on public interest asset management foundations (hereinafter: KEKVA Act) is not the same as the public task financing contract under Section 18 (1) e) of the KEKVA Act. Ultimately, the Foundation sent copies of both agreements to the requester. In the same case, regarding the fulfillment of a data request related to the resolutions of the Board of Trustees, the Authority found that the Foundation violated the right of the notifier to access public interest data when it sought to provide access only through inspection, citing that the resolutions contained data related to economic and business activities. The Authority pointed out that, according to the data principle, the full documents cannot be restricted in terms of public access, and the requester has the right to request copies of the documents according to Section 29 (3) of the Infotv., taking into account Section 30 (1) of the Infotv. [NAIH-29/2023]

A public interest data request submitted regarding the use of a prominent state sports facility – aimed at a detailed presentation of the facility's total revenue over several years, broken down by events, as well as a detailed presentation of warranty repairs – was rejected by the Company Limited by Shares (Zrt.) citing its market interests and potential competitive disadvantages. The Authority pointed out that the utilization of institutions under state operation cannot accept such claims.

In connection with public interest data requests submitted to a Foundation established by the state, which operates as the sole shareholder of a Zrt. under the scope of the KEKVA Act, the Authority established the following: Based on the data in the company register, the sole shareholder of the Zrt. was previously the Hungarian State, and subsequently, the sole shareholder became the Foundation. The Foundation performs a public task as defined in Annex 1 of the KEKVA Act, is an organization established from public funds, manages public funds, and performs public tasks, thus falling under the scope of the Infotv. The same applies to the Zrt., as it is also established from public funds and manages public funds, and participates in the performance of the public task to be carried out by the Foundation. The Authority's position is that, in light of this, if a public interest data request is received by the Zrt. and the data concerned by the request is managed by the company, it must fulfill the data request; if the data request submitted to the Zrt. concerns data that can only be found in the management of the Foundation, the company must provide information about the identity of the data

controller. [NAIH-5917/2023; NAIH-7325/2023]

In another case, a Limited Liability Company (Kft.) also did not fulfill the public interest data request for copies of the contracts established between the Kft. and the Foundation, as it claimed that it does not qualify as a public task performing body under the Infotv. The Authority pointed out that the church 'background' of the Foundation is not relevant, as it performs a public task, and the Kft. was involved in the performance of this public task through the contract with the Foundation. The financial background necessary for the operation of the Kft. does not solely derive from its commercial activities but partly from the fulfillment of contracts with the Foundation. According to the Authority's position in the case, it is not necessary to 'transfer' the public task from the Foundation to the Kft.; it is sufficient for the Kft. to participate in the performance of the public task for it to be obliged under the Infotv. to provide data related to the performance of the public task to the data requester. [NAIH-5436/2023]

In another case, the Authority pointed out regarding a Foundation that, according to Section 2 (6) of Act III of 1993 on social administration and social services (hereinafter: Szocvtv.), the establishment of the system of social institutions and measures and the provision of operational frameworks is the responsibility of the state and the municipal government. This task is the responsibility of the state and the municipality.

178

179

since their preparation and submission are mandated by law, they were not written in letter format and contain the substantive data required by the legislation. The data controllers also referred to the preparatory nature of the reports, as they contain data necessary for the companies' procedures, which will be used for the railway safety strategy, the preparation of the annual inspection plan, and the development of the business plan, and their content appears in accident investigation materials. The Authority pointed out that for this restriction to meet constitutional requirements, the relationship between the data serving as the basis for the decision and the future decision must be specific and direct; an abstract relationship with a decision cannot serve as a justification for restricting freedom of information.

One data controller stated that the reports are available in a format that contains personal data. The Authority drew attention to the provisions of Section 31 (1) of the Infotv., which stipulates that if a document containing public interest data also contains data that cannot be recognized by the applicant, the unrecognizable data must be rendered unidentifiable in the copy. The Authority noted that the name and job title of the reporting operational dispatcher, as well as the railway safety standby personnel and the person receiving the report from KBSZ, are considered public interest data and can be disseminated while respecting the purpose-limited data processing. Given that the data request was directed at the content of the reports and not at the individuals of the reporting and receiving parties, considering the purpose-limited data processing of publicly available personal data, the Authority recommended the redaction of the names of the reporting and receiving individuals from the documents. However, it drew the company's attention to the fact that if the data request is specifically directed at the names of the reporting and receiving individuals, in that case—along with a reminder to the data requester to comply with purpose-limited data processing—it is necessary to provide the requested information. [NAIH-4613/2023; NAIH-4615/2023; NAIH-4529/2023]

In another case, the notifier initiated an investigation by the Authority regarding the refusal to disclose an internal auditor's report concluding an internal investigation related to the delayed handover of a renovated facility. The data controller responded to the data request by stating that all current announcements, news, and information from the data controller can be found on the website, but the response did not contain any internet address, and according to the Authority's

findings—acknowledged by the data controller—the requested data was not available on the website.

Subsequently, the data controller claimed that the applicant's letter was not identified as a public interest data request, which generally refers to the risk of competitive disadvantage. There is a particularly important interest in knowing what revenues the utilization of state-maintained facilities generates. If the company fears that the revenue data alone may be misinterpreted by the requester, it has the option to send supplementary information, allowing the data requester to evaluate the data provided as a whole and form their position accordingly. The drawing of correct or—according to the

data controller—incorrect conclusions from the data cannot influence the data controller regarding the release or withholding of information. The company must also provide all data available in a fixed format regarding warranty repairs, even if the value of the warranty repairs—given that the repairs were carried out within the warranty—does not appear in its records. [NAIH-46/2023]

Certain public transport companies did not fulfill public interest data requests for daily and occasional reports (hereinafter: reports) citing various reasons for refusal. [The obligation to provide data to the Transportation Safety Organization (hereinafter: KBSZ) is prescribed for the companies by Act CLXXXIV of 2005 on the professional investigation of railway and water transport accidents and other transport events, Act CLXXXIII of 2005 on railway transport, and Government Decree 24/2012 (V.8.) on the detailed rules for the professional investigation of serious railway accidents, railway accidents, and unexpected railway events, as well as the operator's investigation.]

One company's position is that the daily reports do not contain public interest data, as they include several pieces of information related to extraordinary events concerning various railway companies, businesses, and individuals that cannot be linked to the state. The Authority established that the Company qualifies as a public task performing body, and the daily/occasional reports it prepares are under the Company's management and relate to its activities, and were generated in connection with the performance of public tasks, consequently containing public interest data.

The companies also claimed that the reports are internal professional materials, working documents, and constitute correspondence with KBSZ. The Authority found that the requested documents clearly do not qualify as working materials, were not prepared for internal use, as they are sent to KBSZ. The sending of the reports cannot be considered correspondence either,

180

181

a person cannot examine the purpose of the data request, nor can they refuse to fulfill the request on the grounds that the requester might use the provided data for unspecified purposes. The data controller also argued that the information presented in the broadcast includes details that are not related to the mayor's public duties and are not publicly accessible for the public interest. The Authority pointed out that during the fulfillment of requests, the principle of data accessibility must be upheld; therefore, the data controller must redact or distort those parts of the audio recording for which there is a justified reason, supported by the data controller, to exclude accessibility prior to fulfilling the data request. The data controller also claimed that editing the audio material would compromise the structural integrity of the interview, which would distort the information contained therein. The Authority noted that the Infotv. – considering the enforcement of the principle of data accessibility – does not recognize the violation of the integrity of the document, in this case, the audio recording, as a limitation on the accessibility of public interest or publicly accessible data. In light of this, the Authority instructed the data controller to fulfill the public interest data request of the requester in accordance with the provisions of the Infotv., and if the audio recording they wish to access contains data subject to public access restrictions, to remove such data from the audio material and inform the requester of the reasons for the removal. Subsequently, the data controller informed the Authority that, based on Section 155 (10) of Act CLXXXV of 2010 on Media Services and Mass Communication, it was obliged to retain the audio recording for 60 days; thus, in accordance with the data controller's practice, it could have been deleted during the ongoing procedure before the Authority, but this did not happen in good faith. According to its information, following the Authority's request, providing broader access than what was stated in the request, the data controller made the audio recording publicly available at a URL for anyone, but after two weeks of public access, it was permanently deleted. The data controller did not notify either the requester or the Authority about the disclosure of the audio recording. In light of the above, the Authority issued a report regarding the data controller's violation of the right to freedom of information, as the data controller not only failed to ensure the requester's fundamental right to access public interest or publicly accessible data but ultimately made it impossible for the requester to access the data they wished to know. [NAIH-2665/2023]

In light of this, the Authority called the data controller's attention to the necessity of assessing requests based on their content. Following the Authority's request, the data controller, citing Section 27 (5) and (6) of the Infotv., rejected the data request concerning the entire document. The Authority pointed out

that, on the one hand, the two grounds for rejection are mutually exclusive, on the other hand, these grounds cannot be cited in general terms, and thirdly, that the entirety of a document cannot be classified as data supporting a decision. In its repeated statement, the data controller rejected the request in consideration of Section 27 (6) of the Infotv. because the release of the results of the internal investigation would jeopardize the impartial execution of its duties and powers from unauthorized external influence, particularly the free expression of its position regarding "various" renovations and investments during the preparation of decisions. In its repeated statement, the data controller again referred in general terms to its "various" future decisions and could not justify, in response to the Authority's request, on an individual basis for each piece of data, how their disclosure would jeopardize its lawful operational order or the impartial execution of its duties and powers; therefore, the Authority did not accept the data controller's response. [NAIH-1279/2023]

Also citing Section 27 (6) of the Infotv. and referring to business secrets, another limited liability company (hereinafter: data controller) refused to fulfill public interest data requests related to the operations (financial data, workforce situation) of two closed branches. Since, according to the data controller's reference, the financial data can be accessed from the reports published on its website, and for the financial data that were not published and the data regarding the workforce, the data controller provided the requested information to the Authority and named acceptable reasons from the perspective of limiting freedom of information, justifying the necessary and proportionate limitation of freedom of information, in this case, the Authority accepted the data controller's response and terminated the investigation based on Section 53 (5) b) of the Infotv. [NAIH-961/2023]

The requester submitted a public interest data request to a limited liability company engaged in media activities (hereinafter: data controller) requesting the sending of an audio recording of an interview conducted with a mayor during a live broadcast on a radio channel (hereinafter: audio recording). The data controller stated as a reason for rejection that the audio material of the live broadcast is also protected in relation to copyright against unspecified purposes and content defined by the requester, potentially involving the highlighting of certain text passages and their use in a different context. The Authority pointed out in this regard that the public authority or

182

183

to be prepared, which shall be signed by the mayor and the clerk. The minutes are considered public documents. Also, the following provision can be found in paragraph (3) of Section 46: "Voters – except in closed sessions – may inspect the proposals of the representative body and the minutes of its meetings. The opportunity to access public interest data and data public in the interest of the public must also be ensured in the case of closed sessions. Decisions made by the representative body in closed sessions are also public." According to Section 2 (2) of the Local Government Act, local self-government expresses and realizes the local public will in a democratic manner, creating broad public access to local affairs. This includes the right to record images and/or sounds, as well as the obligation of participants to tolerate such recordings during public meetings of the representative body and its committees.

The events that take place during public meetings of the representative body and committees, as well as the minutes, images/sound recordings made thereof, are considered public interest data and data public in the interest of the public according to points 5 and 6 of Section 3 of the Information Act, which can be accessed by anyone. Therefore, from the perspective of freedom of information, the minutes and the image and/or sound recordings are treated equally, meaning they are public and can be published on the internet or on notice boards. Statements made by representatives during public meetings, as well as other personal expressions, are also considered public appearances, thus comments during public meetings are also public. [NAIH-3232-2/2023]

III.12.3. Accessibility of payment receipt documents concerning persons performing public tasks

An applicant requested information multiple times from the Authority regarding whether the clerk of a large village lawfully refused to respond to the public interest data request. The complainant requested an electronic copy from the Mayor's Office of the receipt document for the reimbursement of funeral assistance, specifying the reason for the reimbursement. The clerk refused to respond to the public interest data request, citing that the requested data does not qualify as budgetary support according to

point 14 of Section 1 of Act CXCV of 2011 on the Public Finances (hereinafter referred to as Áht.), and therefore are not public interest data. The Authority informed that Section 179 of the Public Servants Act qualifies personal data of government officials as public interest data. Regular, occasional, monetary, and in-kind benefits paid to leaders, such as severance pay, bonuses, substitute fees, salary supplements, and targeted benefits, arise in connection with the performance of public tasks.

III.12. Consultation Matters

III.12.1. Accessibility of public interest data arising from the exercise of powers delegated to the mayor
A citizen requested information from the Authority regarding whether, if the representative body delegates the powers defined in the 2016 Act LXXIV on the protection of the townscape to the mayor through a municipal regulation, a municipal representative can request specific information and regular reports from the mayor regarding the procedures he has conducted in this area.

The Authority informed the applicant that Section 42 of Act CLXXXIX of 2011 on Local Governments of Hungary (hereinafter referred to as Mötv.) provides for tasks that cannot be delegated from the powers of the representative body. According to Section 41 (4) of the Mötv., "the representative body – with exceptions defined in this law – may delegate its powers to the mayor, its committee, the body of the local government, the clerk, or its association. It may give instructions for the exercise of this power and may revoke it." According to the Authority's position, if the representative body wishes to request information or a report from the mayor regarding the procedures conducted in the area of townscape enforcement tools, it can lawfully do so. [NAIH-5605-2/2023]

III.12.2. Recording images and sounds at municipal representative body meetings

In a consultation request, the Authority's opinion was sought regarding the recording of images from open representative body meetings. The Authority's position is that participation in public meetings of the representative body and committees, as well as in an official capacity, is considered public participation in public life according to Section 2:48 (2) of the Civil Code, which, based on the provisions of the mentioned legal provision, does not require the consent of the affected party for the recording and the use of the recorded material. Third parties who may speak at the public meeting, such as invitees, affected persons, and the audience itself, are also subject to similar consideration. It should also be emphasized that according to Section 46 (1) of the Mötv., meetings of the representative body are public. This can only be deviated from based on Sections 46 (2) and (3). According to Sections 52 (1) and (2) of the Mötv., minutes must be kept of the meetings of the representative body.

184

185

III.12.5. Mayor's Representation Accounting

Did the clerk act lawfully when he did not send the requested data to the notifier in the manner requested? The complainant requested the representation costs for a specific period to be issued in a table format, broken down annually, indicating the issuer of the invoice or receipt, the date, and the amount. The clerk did not respond in the requested format, breakdown, and data content, within the legal deadline.

The Authority informed the complainant that since public funds are involved, transparency and verifiability—as a matter of public interest—are of paramount importance. At the same time, the freedom of information and the right to informational self-determination must be respected in relation to each other, thus, when determining the scope of other personal data related to the performance of public duties [Infotv. Section 26 (2)], it must be considered whether their publicity does not disproportionately violate the right to privacy. Regular occasional, monetary, and in-kind benefits paid to executives, such as severance pay, bonuses, compensation for substitutes, wage supplements, and targeted benefits, are considered personal data arising in connection with the performance of public duties, which can be accessed by anyone, thus the data controller is obliged to fulfill this part of the data request in the requested breakdown. [NAIH-7093/2023]

III.12.6. Right of Municipal Representatives to Access Data in the Context of Management

Two municipal representatives approached the public official of the office with a request to make copies of all bank statements generated by the municipality from January to September 2023 and the associated documents and to hand them over to them. The request for a position was aimed at

whether the complete financial documentation could be released to the representatives, and if so, under what conditions or restrictions. They also objected that the representatives presented their data request verbally to the public official and not to the mayor "in accordance with the provisions of Section 32 (1) f) of Act CLXXXIX of 2011."

According to the Authority's position, under Section 32 (2) b) of the Mötv., a municipal representative may request information from the mayor (deputy mayor), the clerk, or the chair of the committee on municipal matters during a meeting of the representative body, to which a substantive answer must be provided at the meeting or in writing within thirty days at the latest. Based on the same paragraph's f) point, the mayor's data is considered public information, which can be accessed by anyone, thus the data controller is obliged to fulfill this part of the data request in the requested breakdown. However, the benefits provided under Section 152 (1) of the Kttv. are disbursed by the public authority performing public duties with regard to events and life situations related to privacy, thus they can only be made public in a named breakdown with the consent of the affected individuals; therefore, in the absence of consent, they can only be released in aggregated form—as public interest data related to the management of the public authority. Following the consultative response, the complainant initiated an investigation procedure. [NAIH-9371/2023]

III.12.4. Making Asset Declarations Accessible, Issuance

A citizen requested information from the Authority regarding the legality of the municipality's action in not sending copies of the asset declarations of the representatives and the mayor in response to a public interest data request, but instead offering to provide access to the requested documents at a pre-arranged time.

According to the Authority's position, under Section 29 (3) of the Infotv., the requester may receive a copy of the document or part of the document containing the data, regardless of its storage method. The public authority managing the data may establish a cost reimbursement for fulfilling the data request—up to the extent of the costs incurred—if the amount of the incurred costs exceeds the lowest amount that can be established as a cost reimbursement in the government decree, provided that the determined cost reimbursement amount does not exceed the highest amount specified in the government decree. The requester must be informed about the amount of the cost reimbursement and the options for fulfilling the data request that do not require copying within 15 days of the receipt of the request.

With regard to Section 29 (3) of the Infotv., the fulfillment of the public interest data request by means of access is only possible if accepted by the data requester. However, the Authority also drew the complainant's attention to the fact that according to Section 29 (1a) of the Infotv., the public authority managing the data is not obliged to comply with the part of the data request that corresponds to a data request submitted by the same requester within one year, provided that there has been no change in the data belonging to the same data scope. [NAIH-6676/2023]

186

187

specific authorities are entitled to do so – the Authority found the rejection of the public interest data request to be lawful. The full text of the opinion can be read on the website.

[NAIH-6367-2/2023]

III.12.8. Criminal Information Provided by the Mayor

The mayor of a municipal government requested information from the Authority regarding the lawful manner of informing the representative body and the public. In 2019, following his election, signs indicating mismanagement emerged at the Office, prompting the municipality to file a report against an unknown perpetrator. According to the notification from the district court, a judgment was made against a former employee of the Office, declaring him guilty of embezzlement committed repeatedly, and the District Prosecutor's Office has brought charges against the former mayor and his associates for the crime of budget fraud causing significant financial disadvantage.

Section 179 of the Kttv. classifies the name of a public official and other personal data as public data in the interest of the public. Freedom of information and the right to informational self-determination must be respected in relation to each other, thus, when determining the scope of other personal data related to the performance of public duties [Infotv. Section 26 (2)], it must be considered whether their publicity

does not disproportionately violate the right to privacy. The Authority also drew the Office's attention to the fact that if another person is involved in the procedure or in the first-instance judgment, the disclosure of personal data exceeding those related to the performance of public duties by the public official, as well as personal data concerning a third party, is unlawful. Attention must also be paid during the provision of information and the release of data to whether the judgments have become final, and to ensure that the handling and disclosure of public interest personal data during ongoing procedures do not violate the presumption of innocence, and that the handling of the personal data of the affected individuals is necessary and proportionate. The data controller (the person making and executing the decision) is responsible for the legality of the processing of personal data; the Authority's opinion does not replace this responsibility.

While informing the representative body – in the case of a closed session – is considered data transmission, the disclosure of data is realized through the information provided to the public.

Consequently, in the case of a public interest data request, the Office is obliged to handle and provide information about the data in its possession according to the relevant provisions of the Infotv. and the GDPR. [NAIH-9210/2023]

The representative may request information necessary for his representative work. In matters of public interest, he may initiate action by the mayor, to which a substantive response must be provided within thirty days.

Thus, the mayor is obliged to substantively answer the questions addressed to him by the representative according to the law; failure to do so may lead to the initiation of measures by the competent Government Office exercising supervisory authority under Section 1 (2) and Section 127 of the Mötv., according to Section 132 of the Mötv.

According to the provisions of the Infotv., municipal representatives do not have additional rights, meaning that public interest or publicly accessible data can be accessed under the same conditions as anyone else. Personal data – except for publicly accessible personal data in the interest of the public – cannot be accessed at all without a legal basis. In this case, the issue is not the right to access public interest data, but rather the infringement of the specific rights concerning municipal representatives detailed above. In light of this, the Authority is not entitled to determine the scope of the representatives' right to information; this is to be assessed by the Government Office.

[NAIH-8976-2/2023]

III.12.7. Accessibility of General Ledger Extracts at a Company Owned by the Public

A municipal representative approached the Authority with a complaint, as a company wholly owned by the Municipality did not fulfill the public interest data requests for the general ledger extracts and general ledger cards for the years 2021 and 2022, which he believes he is entitled to access as a municipal representative, since he could review the company's operations in detail based on the requested data.

According to Section 30 (7) of the Infotv., specific laws govern data access requests aimed at comprehensive, account-level, and detailed audits of the operations of public task-performing bodies. In this case, the Authority concluded that the data categories in question, which the request was aimed at according to the complainant's statement, were intended for a comprehensive understanding of the company's operations, and thus qualify as a comprehensive, detailed audit, as they encompass the entire operational activity of the company over two years. Since the data request must only be fulfilled according to Section 30 (7) of the Infotv. if the request can be delineated from audits concerning the efficiency, effectiveness, and legality of the operations of public task-performing bodies – since...

188

189

however, it is not classified as a budgetary institution according to Act CXCV of 2011 on the Public Finances (Áht.), and therefore, based on the provisions of the Central Information Public Data Register established in Section 24/B of the Infotv., it is not considered an entity obligated to publish on the Platform. In this regard, it is not required to publish public interest data related to its operations. At the same time, it is important that the obligation to publish on its own or its supervisory authority's website, or on the central website (kozadat.hu) [Section 33 (3) of the Infotv.], as well as the obligation to publish regarding the more economical operation of state-owned economic companies under Act CXXII of

2009, continues to apply to economic companies performing public tasks, as previously.

[NAIH-1221-2/2023]

III.12.11. Retention Period for Publication Units Related to Operations

A university requested the Authority's opinion in its consultation submission regarding which legislation determines the retention period in connection with points 2 and 6 of the publication unit concerning Operational Data in the general publication list. According to the Authority's position, neither Annex 1 of the Infotv. nor Government Decree 18/2005 (December 27) contains provisions regarding the retention period of data published in the publication units specified in the submission. Regarding the retention of published public interest and publicly accessible data, the Authority consistently holds that the transparency of the operations of the entity performing public tasks is supported not only by the publication of current public interest and publicly accessible data but also by ensuring that previously published data remains accessible in the publication list through archiving. The Authority pointed out that a public interest data request can still be submitted regarding archived data even after one year following publication, which the data controller is obliged to fulfill according to the provisions of the Infotv. If the data sought is available in the archive of the general publication list, the data request can also be lawfully fulfilled by sending a link to the archived data. [NAIH-1588/2023.]

III.12.9. Use of Image, Exercise of Rights of the Data Subject in the Context of Freedom of the Press

A citizen requested information from the Authority regarding a complaint related to data processing conducted by the editorial office of a major news portal, in which, considering the ongoing personality rights lawsuit, the Authority did not initiate an investigation and rejected the complaint without substantive examination based on Section 53 (3) a) of the Infotv.

The face, image, and audio-visual recordings of a natural person are considered personal data, and their collection, recording, storage, and use (including publication) qualify as data processing. Since the complainant is clearly identifiable in the questioned video recording, the editorial office is conducting data processing. The Authority suggested that regarding the contested data processing, the complainant should approach the data controller (the publisher) in a verifiable manner based on Article 21 of the General Data Protection Regulation (right to object) and request, with justification, that their image be rendered unrecognizable. If the data controller does not comply or rejects the request of the data subject, the complainant may again file a complaint with the Authority. [NAIH-6297/2023]

III.12.10. Scope of Entities Obligated to Publish in the Central Information Public Data Register

It was raised as a consultation question whether the data provision obligation realized on the central website mentioned in the Infotv. applies to municipal-owned economic companies, which are not listed in the registry of the Hungarian State Treasury but are included in the company register and perform public tasks.

The Authority pointed out that the publication obligation applies to all budgetary institutions, with the exception of national security services. Consequently, it does not apply to non-budgetary entities, meaning that only budgetary institutions are obliged to publish certain operational data on the newly established Central Information Public Data Register platform (hereinafter: Platform) bi-monthly. The method and content of publication are contained in Section 37/C of the Infotv. and in Government Decree 499/2022 (December 8) on the detailed rules of the Central Information Public Data Register. The publication obligation applies to data generated on or after November 29, 2022. The Authority also pointed out that an economic company listed in the company register can perform public tasks.

191

– regarding the operation of the National Security Authority and the handling of classified data, the violation of Section 38 (3) of Government Decree 90/2010 (III.26.) was established, therefore the classifier was called upon to terminate the classification in accordance with the provisions of Section 63 (1) a) aa) of the Infotv. Based on Section 63 (2) of the Infotv., considering the possibility of legal remedy against the decision made in the secret supervision authority procedure and its suspensive effect, the Authority applied repeated classification marking in the reasoning of the decision. Since the decision was challenged by the classifier in an administrative lawsuit – which is still ongoing – the classification remains in effect. [NAIH-503/2023]

III.13.2. "Pseudo" secret supervision authority procedures

According to the essence of Section 31 (6a) of the Infotv., if the data controller refuses to fulfill the request for access to public interest data because the public interest or publicly accessible data is classified data that cannot be disclosed under the law on the protection of classified data, and the requester turns to the court for the review of the refusal of access to the public interest data, the court initiates the Authority's secret supervision authority procedure. According to Section 62 (1a) of the Infotv., if the court initiates the Authority's secret supervision authority procedure as defined in Section 31 (6a), the Authority must initiate a secret supervision authority procedure. Therefore, the Authority has no discretion regarding the initiation of the procedure based on the provision in Section 62 (1a) of the Infotv., as the Authority is obliged to initiate the secret supervision authority procedure if the court refers to this legal provision. According to Section 62 (1) of the Infotv., during the Authority's secret supervision authority procedure, it can examine the legality of the classification or the repeated classification marking of national classified data, meaning that for the procedure to be conducted, there must be classified data that was created prior to the procedure and can be examined regarding the legality of the classification. If there is classified data, there must also be a classifier (or a repeater of the classification marking), as classified data can only be created lawfully as a result of the classification procedure. The client of the Authority's secret supervision authority procedure can only be the classifier (or the repeater of the classification marking).

It is important to emphasize the above because recently several submissions have been received by the Authority in which the court refers to Section 62 (1a) of the Infotv.

III.13. Secret supervision authority procedures in the field of freedom of information

III.13.1. Secret supervision authority procedure related to the classification of the investigation report on the objective examination of the Budapest Regional Court based on decision 6.Sz/2022 (I.28.) OBHE

The Transparency International Hungary Foundation initiated a lawsuit against the National Judicial Office (hereinafter: OBH) regarding the release of all documents or data containing the findings made by the persons designated to conduct the objective examination, the conclusions or positions related to the objective examination, based on the investigation report prepared according to decision 6.Sz/2022 (I.28.) OBHE regarding the objective examination to be conducted at the Budapest Regional Court.

As the defendant in the lawsuit, the OBH stated that the documents or data referred to in the request that contain the findings made by the persons designated to conduct the objective examination, the conclusions or positions related to the objective examination do not exist, as they are included in the investigation report prepared according to decision 6.Sz/2022 (I.28.) OBHE regarding the objective examination to be conducted at the Budapest Regional Court, referred to in point 1 of the statement of claim.

The referenced investigation report was classified by the president of the OBH as a national classified document with a classification level of "Limited Distribution!" for a validity period of 10 years. In light of this, the fulfillment of the data request was refused, citing Section 27 (1) of the Infotv. The Budapest Regional Court initiated the Authority's secret supervision authority procedure regarding the legality of the classification of the data subject to the lawsuit.

As a result of the secret supervision authority procedure, the Authority established, based on Section 63 (1) a) of the Infotv., regarding the classification of the report generated during the objective examination ordered by decision 6.Sz/2022 (I.28.) OBHE;

- the violation of Section 5 (1) of the Mavtv.10,
- the violation of Section 5 (3) of the Mavtv.,
- the violation of Sections 6 (1), (2), (3), and (4) of the Mavtv., and

10 the Act CLV of 2009 on the protection of classified data.

IV. Cooperation with the European Union

Authorities and International Affairs

In 2023, significant events occurred from an international and EU legal perspective – we strive to provide up-to-date information on these under the section regarding renewed international cooperation on the NAIH website.

Since its establishment, the Hungarian data protection supervisory authority has hosted EU data protection authorities in Budapest for the third time, from May 10 to 12, 2023, at the so-called Spring Conference (<https://springconference2023.hu/>). For the closed sessions (covering topics such as new technologies, competition law and data protection, Luxembourg and Strasbourg court decisions, and best practices), 138 accredited representatives participated, while 358 external individuals (including Hungarian DPOs for the first time, particularly regarding highlighted topics related to data protection officers) registered from 39 countries for the open day. The conference adopted three resolutions on the necessity of strengthened cooperation with competition authorities, the accreditation of the San Marino Data Protection Authority, and the review of the procedural rules of the Spring Conference. The legislative process for a procedural regulation supplementing the GDPR is still ongoing in the EU, which details procedural rules applicable solely to cross-border data processing cases, thus guaranteeing stronger procedural rights for the parties, particularly the right to make statements. At the same time, significant progress has been made regarding the EU digital legislative package.

IV.1. The European Union's "Digital Legislation" (Updates)

IV.1.1. Regulation (EU) 2022/2065 on the Digital Services Single Market [(Digital Services Act, DSA), effective from November 16, 2022, with general application from February 17, 2024]

The aim of the DSA is to ensure a safe, predictable, and reliable online environment, with its direct predecessor being Directive 2000/31/EC on electronic commerce, which remains in force but is significantly supplemented by the DSA's expanded provisions. The regulation initiated the secret supervisory authority procedure with reference to so-called "intermediary services"; however, based on the examination of documents sent by the courts and the attached documents, it could be presumed even before the initiation of the procedure that no classified data had arisen in the underlying case. In these cases, the Authority determined that the conditions for initiating the secret supervisory authority procedure were lacking – such as the absence of classified data and the possibility of classification – yet it still had to initiate the secret supervisory authority procedure.

In the context of fact-finding, it was consistently established that the data subject to the litigation in the referenced cases did not include classified data; therefore, the continuation of the secret supervisory authority procedure became unnecessary due to the lack of classified data, and thus the Authority decided to terminate these secret supervisory authority procedures based on Section 47 (1) c) of the Administrative Procedure Act.

In these cases, therefore, the Authority was compelled to initiate secret supervisory authority procedures in the absence of classified data; in other words, it had to initiate and conduct the procedure despite the fact that there was actually no national classified data to be examined. In the absence of classified data, determining the identity of the classifier (or the person repeating the classification designation) would also be meaningless, as the client of the secret supervisory authority procedure is the classifier (or the person repeating the classification designation).

The number of such "pseudo" secret supervisory authority procedures is likely to decrease with an interpretation of the provisions in Sections 62 (1) and (1a) of the Infotv. that aligns with the legislator's intent. When applying these rules, it should be assumed that the data subject to the litigation conducted by the courts under Section 31 (6a) of the Infotv. includes classified data, and it is probable that the classification of this national classified data or the repetition of its classification designation is unlawful. According to the Authority's position, the initiation of the secret supervisory authority procedure by the courts under Section 62 (1a) of the Infotv. can only be interpreted in the presence of these conditions. The purpose of the secret supervisory authority procedure initiated under Section 62 (1a) of the Infotv. is not to determine whether classified data is included among the data subject to the litigation but to ascertain whether the classification of the national classified data designated by the court or the repetition of its classification designation is unlawful. The Authority considers it important to emphasize that in cases where the court initiates the secret supervisory authority procedure, it is the

court's responsibility to define as accurately as possible the scope of classified data to be examined within the framework of the secret supervisory authority procedure. [NAIH-7114/2023]

194

access. Before commencing their activities, they are required to notify their intentions to the competent authority of the relevant EU member state. The transmitted data may not be used for their own purposes, and they must distinguish their data-sharing services from other commercial activities. They are obliged to provide a fair price for their services. Any organization that engages in voluntary data-sharing activities, operates on a nonprofit basis, and is registered by the competent authorities of the relevant member state is classified as a data altruist organization. These organizations may voluntarily publish data for broader social benefits, based on the consent of the data subjects. Such benefits may include, for example, health research, combating climate change, improving mobility, or enhancing the provision of public services.

The regulation established the European Data Innovation Board, which serves as an advisory body to the Commission. It includes representatives from the competent authorities responsible for data intermediary services in the member states, the authorities responsible for the registration of data altruist organizations, the European Data Protection Board, the European Data Protection Supervisor, ENISA, representatives of the Commission, representatives of SMEs, and representatives of relevant bodies operating in specific sectors. The regulation also assigns new tasks to the NAIH, as the tasks and powers established for the competent authority responsible for data intermediary services and for the registration of data altruist organizations are exercised by the NAIH concerning entities under the jurisdiction of Hungary, as specified in the data governance regulation and the Infotv. Upon the request of the data intermediary service provider, the Authority certifies with an official certificate that the registered data intermediary service provider meets the conditions set forth in the data governance regulation. The Authority shall promptly notify the European Commission of any changes in the registered data and the cessation of activities.

IV.1.3. Regulation (EU) 2023/2854 of the European Parliament and of the Council on harmonized rules for fair access to and use of data, and amending Regulation (EU) 2017/2394 and Directive (EU) 2020/1828

[(data regulation, previously translated as data-sharing legislation) effective from January 11, 2024, most provisions directly applicable from September 12, 2025]

195

applies to, such as internet service providers, cloud storage service providers, messaging applications, online forums; however, the regulation does not apply if the intermediary service is an integral part of another, non-intermediary service (such as Uber). Due to its horizontal nature, illegal content is defined by separate EU and national norms, but intermediary service providers may be exempt from liability if they can demonstrate that they acted in good faith and with due diligence. Providers operating online platforms may not display advertisements based on profiling as defined by the GDPR for minor users, and the use of special categories of personal data is also prohibited. Providers may pose different sources of social risk due to their size and format, thus specific rules apply to providers operating online giant platforms or very popular online search engines (with user numbers exceeding 45 million). In Hungary, the designated digital service coordinator is the National Media and Infocommunications Authority.

IV.1.2. Regulation (EU) 2022/868 of the European Parliament and of the Council on European data governance and amending Regulation (EU) 2018/1724

(data governance regulation, DGA), effective from June 23, 2022, general application from September 24, 2023]

The purpose of the regulation is to facilitate data-driven innovation, namely the sharing of data between strategic areas, sectors, and EU countries in order to harness the potential of data for the benefit of European citizens and businesses. The regulation supports the establishment of common European data spaces in strategic areas involving both private and public actors in sectors such as healthcare, environmental protection, energy, agriculture, mobility, finance, manufacturing, and public administration. The regulation defines "data" as any digital representation or compilation of actions, facts, or information, encompassing both personal and non-personal data. It also specifies the

conditions for further use of data held by public sector organizations within the Union. New actors include data intermediary service providers and data altruist organizations. Data intermediary service providers are entities that establish commercial relationships for the purpose of data sharing between an indefinite number of data subjects and data holders, on one hand, and data users, on the other. Data intermediaries enable the sharing of public interest data provided by public authorities and facilitate access to data for businesses.

197

In its operation, it typically involves the processing of a significant amount of data—potentially, but not necessarily, personal data. The essence of the pioneering European approach is to create a regulation that ensures the functioning of markets and the public sphere, as well as the safety and fundamental rights of individuals (the issue of oversight remains a matter for future legislative decisions).

However, AI systems do not operate "ex lex" today, as the preamble of the GDPR (15) explicitly establishes the principle of technological neutrality in regulation, and Article 22 mandates the application of the GDPR to all automated data processing.

There is a risk that such applications, if not properly designed and implemented, can easily become a "black box," about which no one can ascertain what is happening inside, which is particularly problematic when handling personal data. The transparency of data processing and the accountability of the data controller are important data protection requirements, primarily a matter of design and the responsibility of the system's creator—among other things, this responsibility is intended to clarify the sharing of responsibilities among various actors in the AI ecosystem (developer, importer, user, end-user). One of the most challenging tasks in legislation is defining AI, but it is important to emphasize that if the related data processing falls outside the scope of the regulation, the provisions of the GDPR will still be enforceable.

The EU legislation employs an unacceptably high-risk-based classification system, with different rules and expectations associated with varying risk levels. However, the list describing the prohibited and high-risk data processing purposes involving AI is not exhaustive and does not imply that illegality or disproportionately high data processing risks cannot be sanctioned under other legislation. Under both the new regulation and the GDPR, the data controller must be able to demonstrate actual compliance, including ensuring the fundamental principles, valid legal basis, and the rights of data subjects. The new rules are expected to provide guidance for establishing the quality of data controllers, especially the joint data controller status, as the use of AIs often results from the collaboration of multiple actors. It has not yet been determined what the legal status of the authority supervising compliance with the AI regulation will be and how it will fit into the numerous authorities established as part of the EU digital package—this requires both EU and member state decisions and legislation. However, it is expected that a union-level body will also be established, in which each member state's designated authority will have a representative.

The data governance regulation, as a "counterpart," primarily regulates the data sharing between private entities (B2B), especially in the case of jointly generated data (such as the Internet of Things - IoT). It establishes obligations for the following data controllers:

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(i) those selling a product or providing a service within the territory of the European Union that generates or collects data;

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(ii) those mandated by law to provide data;

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(iii) in exceptional cases, public sector organizations and any data controller operating within the territory of the European Union, if public sector organizations request data from private sector data controllers for the purpose of managing public hazards (e.g., floods, pandemics).

The data regulation specifies and expands the right to data portability under Article 20 of the GDPR in the case of personal data (but is not limited to personal data). Access to data generated by products or services falling under the scope of the data regulation must be provided at the request of the data-generating user (in the case of personal data, the data subject) by the person who has control over the data, to the user or a third party designated by the user. Previously, access to this data was

often limited to the manufacturer or service provider, which significantly distorted free competition. The supervision of the application of the data regulation in cases involving personal data is carried out by the member state data protection authorities (in Hungary, the NAIH), while the designation of the competent authority for non-personal data requires member state legislation, which is still in progress in every member state. The European Data Protection Supervisor oversees the application of the data regulation concerning the Commission, the European Central Bank, or EU bodies. The ongoing member state legislation must also regulate the rules of task distribution and cooperation between other authorities acting under sectoral legislation and the supervisory authorities.

IV.1.4. Draft Artificial Intelligence Regulation

(legislation in progress, expected adoption: 2024)

Artificial Intelligence (AI) is not a new legal institution emerging from nowhere; it is merely a qualitatively new tool for data processing, data handling—and within that, the handling of personal data—that shapes the future. The difference—and the degree of risk—arises from the processing of large volumes of data at high speed, requiring minimal human intervention. Both in the training phase of AI,

198

199

their data cannot be disclosed, the request of the data subject is clearly unfounded or excessive within the meaning of Article 12(5) of the General Data Protection Regulation.

IV.2.3. Judgment of the Court of May 4, 2023, Case C-300/21, UI v Österreichische Post AG (ECLI:EU:C:2023:370)

For the right to compensation prescribed by the GDPR to be applicable, three conditions must be met cumulatively: a breach of the regulation, material or non-material damage resulting from this breach, and a causal link between the damage and the breach. Therefore, a violation of the GDPR provisions does not in itself give rise to a right to compensation. According to the recitals of the GDPR, a breach of the regulation does not necessarily result in damage and does not always establish the right to compensation, as a causal link must exist between the breach and the damage suffered. As a result, a claim for compensation differs from other remedies provided by the GDPR, particularly those that allow for the imposition of administrative fines and do not require proof of specific damage. The right to compensation is not limited to non-material damages exceeding a certain severity threshold. The GDPR does not impose such a requirement, and such a limitation would be contrary to the broad interpretation of the concept of "damage" adopted by the EU legislator. Furthermore, tying the severity of non-material damages to a threshold would jeopardize the coherence of the system introduced by the GDPR. The determination of the extent of compensation is the responsibility of the legal systems of the individual Member States, with particular regard to aspects that enable the full and effective provision of compensation under the GDPR, while respecting the principles of equivalence and effective enforcement.

IV.2.4. Judgment of the Court of May 4, 2023, Case C-487/21, FF v Austrian Data Protection Authority (ECLI:EU:C:2023:369)

The decision interpreted Article 15(3) of the GDPR literally, systematically, and teleologically, which grants the data subject the right to request a copy of their personal data that is the subject of processing. Although this provision does not define the concept of "copy," the usual meaning refers to the original reproduction or verbatim transcription, meaning that a general description of the data subject to processing or a reference to the categories of personal data is not sufficient. Regarding the objectives pursued by Article 15 of the regulation, the Court emphasized that the access right provided in this article must enable the data subject to ascertain that the personal data concerning them is accurate and is being processed lawfully. Thus, to ensure that the information provided in this way is easily understandable, representatives from the civil sphere will be included. Their task will be to support the uniform application of the law and legal compliance, as well as to issue opinions. There are also regulatory initiatives elsewhere outside the European Union, which mutually influence each other – for example, the Council of Europe is working on a convention on artificial intelligence, human rights, democracy, and the rule of law, the content of which shows many similarities to the draft regulation.

IV.2. Judgments of the Court of Justice of the European Union on Data Protection

Among the 18 judgments delivered by the Court of Justice of the European Union (CJEU, Luxembourg Court) in data protection matters in 2023, several are considered particularly interesting by the Authority, and their conclusions are briefly summarized below.

IV.2.1. Judgment of the Court of January 12, 2023, Case C-132/21, between NAIH and Budapest Electric Works (ECLI:EU:C:2023:2)

If the data subject simultaneously exercises the right to lodge a complaint under Article 77(1) of the GDPR and the right to judicial remedy under Article 79(1), the supervisory authority and the court are independently obliged to examine the fact of the infringement, and they may reach different conclusions, as the procedures can be conducted in parallel in order to ensure a high level of protection for natural persons within the Union regarding the processing of personal data. However, parallel and independent remedies must not jeopardize the effective enforcement and protection of the rights provided by this regulation; therefore, it is the responsibility of the Member States to determine, in accordance with the principle of procedural autonomy, the detailed rules governing the relationship between these remedies in national procedural law.

IV.2.2. Judgment of the Court of January 12, 2023, Case C-154/21, between RW and Österreichische Post AG (ECLI:EU:C:2023:3)

Article 15(1)(c) of the General Data Protection Regulation must be interpreted to mean that the right of access of the data subject includes the obligation of the data controller, as a general rule, to provide the specific identity of the recipients to whom their personal data has been disclosed or will be disclosed. Exceptions apply if the recipients cannot be identified, or if the data controller demonstrates that the protection of the specific recipients' identities is necessary.

200

201

should receive a complete copy of the documents containing the above data, provided that the provision of this copy is essential for the data subject to verify their accuracy and completeness, as well as to ensure their comprehensibility. As for the data subject's health data, this right certainly includes a copy of the health documentation containing information such as diagnosis, examination results, opinions of treating physicians, as well as any treatment or intervention performed on the data subject.

Article 23(1) of the General Data Protection Regulation does not allow for the adoption of national legislation that imposes the costs of the first copy of personal data subject to processing on the data subject for the purpose of protecting the economic interests of the data controller.

IV.2.7. Judgment of the Court of December 7, 2023, Case C-634/21. OQ v Land Hessen

Article 22(1) of the General Data Protection Regulation should be interpreted to mean that the automated determination of a probability value regarding a natural person's ability to fulfill future payment obligations, based on that person's personal data provided by a company offering business information, constitutes an "automated individual decision" within the meaning of that provision, insofar as the probability value is decisive for whether a third party, to whom this probability value is communicated, establishes, fulfills, or terminates a contractual relationship with that person.

IV.3. Activities of the European Data Protection Board

In 2023, the European Data Protection Board (Board, EDPB) adopted 12 guidelines on various topics, including the reporting of data protection incidents, the recognition of misleading patterns used on social media interfaces, but notably the guidelines 04/2022 on the calculation of administrative fines under the GDPR and 01/2022 on the right of access. All guidelines – in English or Hungarian – are available on our website.

11 <https://naih.hu/europai-adatvedelmi-testulet-edpb/edpb-iranymutatasai>

To ensure that they can be accessible, reproducing such document excerpts, or even entire documents, or even database excerpts that contain personal data subject to processing may prove essential. Particularly, if personal data are generated based on other data, or if these data originate from free text fields, meaning there is no indication that would reveal information about the data subject, then the context of processing these data is considered an essential element for enabling the data subject to have transparent access to these data, as well as for ensuring that the presentation of these data is comprehensible. If, on the one hand, the exercise of the right to full access to personal

data conflicts with the rights or freedoms of others, according to the Court's assessment, a balance must be struck between the rights and freedoms in question. Where possible, a method of disclosing personal data should be chosen that does not infringe upon the rights or freedoms of others, but it must be borne in mind that these considerations must not result in the denial of all information to the data subject.

IV.2.5. Judgment of the Court of June 22, 2023, Case C-579/21, JM v Deputy Data Protection Officer, Finland (ECLI:EU:C:2023:501)

Article 15(1) of the GDPR does not grant the data subject the right to access information regarding the identity of the employees of the data controller who performed the insights under the controller's direction and instructions, unless this information is essential for enabling the data subject to effectively exercise the rights granted to them by the regulation, provided that the rights and freedoms of these employees are also taken into account.

IV.2.6. Judgment of the Court of October 26, 2023, Case C-307/22, between FT and DW. (ECLI:EU:C:2023:811)

The data controller is also obliged to provide the first copy of the personal data subject to processing free of charge to the data subject, even if this request is justified for purposes other than those mentioned in the first sentence of recital 63 of the GDPR. In the context of the relationship between the doctor and the patient, the right to request a copy of the personal data subject to processing includes that the data subject must be provided with a faithful and comprehensible reproduction of the entirety of this data. This assumes that the data subject is provided with an original faithful and comprehensible reproduction of the data contained in the health documentation.

202

203

IV.3.2. Binding EDPB Decision No. 1/2023 in the Meta Case

The Irish supervisory authority, acting as the lead supervisory authority (LSA), submitted a request for dispute resolution under Article 65(1)(a) of the GDPR regarding the draft decision examining international data transfers, particularly to the USA, related to personal data processed by the Facebook service operated by Meta Platforms Ireland Limited (hereinafter: "Meta IE"). The objections submitted by the Austrian, French, German, and Spanish supervisory authorities against the decision of the Irish supervisory authority were deemed relevant and well-founded based on Article 4(24) of the GDPR and the EDPB Guidelines 09/2020 on relevant and well-founded objections. It is essential to note that the dispute only revolved around the further applicable corrective measures, as the concerned supervisory authorities that submitted the objection deemed it necessary to delete or return the unlawfully transferred data to the user, as well as to impose an administrative fine. In its decision issued on April 13, 2023, the EDPB instructed the Irish authority to impose an administrative fine for the violation of Article 46(1) of the GDPR, to take into account the aggravating circumstances under Article 83(2)(a), (b), (g), and (k) of the GDPR, and mandated that due to the severity of the violation, "the amount of the administrative fine" should be determined between 20% and 100% of the maximum fine amount that can be imposed according to the guidelines. The EDPB also instructed the Irish authority to decide in its final decision that Meta IE must cease the processing of unlawfully transferred personal data to the USA, including storage, within six months. In accordance with the EDPB's binding decision, the Irish supervisory authority ultimately imposed a fine of 1.2 billion euros on Meta IE.

14 https://edpb.europa.eu/system/files/2024-01/edpb_bindingdecision_202301_ie_sa_facebooktransfers_hu.pdf

15 https://edpb.europa.eu/our-work-tools/consistency-findings/register-decisions/2023/decision-data-protection-commission_en

IV.3.1. Guidelines on the Calculation of Administrative Fines under the General Data Protection Regulation No. 04/2022

The European Data Protection Board (EDPB) aims to harmonize the methodology used by supervisory authorities in calculating the amount of fines. To this end, it adopted Guidelines No. 4/2022 on May 24, 2023. These guidelines complement the previous guidelines on the application and determination of administrative fines (WP253), which focus on the assessment criteria to be considered when imposing

finer. The calculation of the fine amount falls within the discretion of the supervisory authority, taking into account the rules specified in the General Data Protection Regulation. Therefore, the quantification of the fine amount is based on an individual assessment conducted within the parameters defined in the General Data Protection Regulation in each case. Considering all of this, the EDPB has developed the following five-step methodology for calculating administrative fines imposed for violations of the General Data Protection Regulation.

First, in accordance with Article 83(3) of the General Data Protection Regulation, the data processing operations to be assessed and the relationship between any simultaneous violations must be determined. The second step involves determining the starting point for calculating the fine amount based on the following aspects: the qualification of the violation under the General Data Protection Regulation, the severity of the violation, and the size of the business. In the third step, the supervisory authority evaluates aggravating and mitigating circumstances related to the past or current behavior of the data controller/data processor and adjusts the fine amount accordingly. The fourth step involves determining the legal maximums for different violations. Increases applied in the previous or subsequent steps must not exceed this maximum amount. Finally, it must be examined whether the calculated final amount meets the requirements of effectiveness, deterrence, and proportionality. The fine can be adjusted accordingly; however, the aforementioned legal maximum must not be exceeded by the final amount.

In 2023, the Board made binding decisions in three cases, which are presented below.

12 https://edpb.europa.eu/our-work-tools/documents/public-consultations/2022/guidelines-042022-calculation-administrative_en

13 <https://ec.europa.eu/newsroom/article29/items/611237>

204

205

that it will base its data processing related to behavior-based advertising primarily on Article 6(1)(f) of the GDPR from April 5, 2023 – which was the last day of the deadline set in the Irish decisions – instead of Article 6(1)(b). However, according to feedback from several concerned supervisory authorities, the reference to (f) was also not lawful, and on May 5, 2023, the Norwegian authority requested the Irish authority, under the mandatory mutual assistance framework of Article 61(1) of the GDPR, to temporarily prohibit Meta from processing personal data related to behavior-based advertising based on Article 6(1)(f) of the GDPR in connection with the Instagram and Facebook services, and to provide information on how Meta would ensure the legality of its data processing. The Irish authority responded that it "cannot comply with the request," stating that it would be in a position to complete the evaluation of Meta's compliance reports by the end of June 2023, and it wishes to wait for the European Court of Justice's so-called Bundeskartellamt ruling, which was delivered on July 4, 2023, under case number C-252/21 (according to the ruling, the data processing for behavior-based advertising cannot be based on Article 6(1)(f)). On July 14, 2023, the Norwegian authority, through a temporary measure, temporarily prohibited Meta and Facebook Norway AS from basing the processing of personal data related to behavior-based advertising concerning data subjects residing in Norway on Article 6(1)(b) or (f) of the GDPR; thus, the temporary measure only applied to the territory of Norway and was applicable from August 4 to November 3, 2023. On July 27, 2023, Meta informed the supervisory authorities that it would base its data processing related to behavior-based advertising on Article 6(1)(a) within three months, also providing a timeline for this transition – later (on August 14), it clarified that the transition would be completed by November 24, 2023. On August 18, 2023, the Irish supervisory authority shared its final position with the concerned supervisory authorities, stating that Meta had not complied with the obligations set forth in the Irish decisions. On September 26, 2023, the Norwegian supervisory authority requested an urgent procedure for the issuance of a binding decision, stating that the EDPB should adopt a binding decision, as it believed that urgent adoption of final measures was necessary.

Based on Article 70(1)(t) and Article 66(2) of the GDPR, the EDPB issued the following binding decision on October 27, 2023: Meta IE's data processing continues to violate Article 6(1) of the GDPR, as the basis for processing is not lawful.

18 <https://edpb.europa.eu/our-work-tools/our-documents/urgent-binding-decision-board-art-66/urgent->

IV.3.3. Binding EDPB Decision 2/2023 regarding TikTok Ireland Limited

The procedure began at the request of the Irish supervisory authority as the lead supervisory authority concerning the draft decision on TikTok Technology Limited's (hereinafter: "TTL") compliance with Articles 5, 12, 13, 24, and 25 of the GDPR in relation to the TikTok platform, for the period from July 29, 2020, to December 31, 2020 ("relevant period"). The EDPB agreed with the German authorities that the registration and video publishing practices employed by TTL were incompatible with the principle of fair data processing, thus justifying the determination of a violation. Based on the objections of the Italian authority, the EDPB expressed serious concerns regarding the effectiveness of the age verification method (age 13) used by TTL during the relevant period. Following a thorough discussion of the issue, in its binding decision adopted on August 2, 2023, the EDPB concluded that there was insufficient information available to assess this matter. In compliance with the EDPB's binding decision, the Irish supervisory authority amended its draft decision and, in its final decision, instructed TTL to align its data processing with the provisions of the GDPR based on Article 58(2)(d) of the GDPR, and sanctioned the data controller for violating the GDPR under Article 58(2)(b) of the GDPR, imposing a total fine of 345 million euros for the violations committed by TTL.

IV.3.4. Binding EDPB Decision 1/2023 in an Urgent Procedure regarding Meta Platforms Ireland Limited

On December 31, 2022, the Irish supervisory authority issued its decisions IN-18-5-5 (Facebook decision) and IN-18-5-7 (Instagram decision) (hereinafter collectively referred to as "Irish decisions"), in which it found that the legal basis applied by Meta Platforms Ireland for behavior-based advertising, Article 6(1)(b) of the GDPR, was inadequate, and ordered Meta to bring its data processing into compliance with Article 6(1) of the GDPR within three months. The Irish decisions were based on the EDPB's binding decisions 3/2022 and 4/2022, which were issued following dispute resolution procedures by the EDPB. On April 5, 2023, Meta informed the Irish authority, which in turn informed the concerned supervisory authorities.

16 https://edpb.europa.eu/our-work-tools/our-documents/binding-decision-board-art-65/binding-decision-22023-dispute-submitted_en

17 https://edpb.europa.eu/our-work-tools/consistency-findings/register-decisions/2023/decision-matter-tiktok-technology_en

206

207

The Information System (hereinafter: IMI system) operates on a specially modified interface for these procedures. An important step in this process is that the national authority (hereinafter: initiating authority), to which the complaint against the data controller conducting cross-border data processing has been received, initiates a procedure in the IMI system under Article 56 of the GDPR, aimed at identifying the lead supervisory authority and the concerned supervisory authorities: the initiating authority may presume the lead supervisory authority based on the data controller/data processor's central place of activities or single establishment. Furthermore, national authorities where the data controller/data processor does not have a central place of activities or establishment may designate themselves as concerned authorities if the data processing in question is likely to affect a large number of data subjects residing in the country.

In 2023, the Authority received 672 such cases from other national authorities through the IMI system. In more than 200 cases, we were concerned, and in 5 procedures, we acted as the lead supervisory authority, as well as initiating 12 of our own procedures under Article 56.

21 According to Article 27 of the GDPR, in the case of data controllers or data processors without an establishment in the Union.

22 Article 56(3) of the GDPR

unlawfully and inappropriately referred to Article 6(1)(b) of the GDPR for the purpose of data processing related to behavioral advertising, including the processing of data regarding users' geographical location and the reactions of users to a specific advertisement, as well as unlawfully and inappropriately referred to Article 6(1)(f) of the GDPR in the processing of personal data collected through Meta's products for the purpose of behavioral advertising. Regarding the existence of an

emergency situation, the EDPB's position is clear that urgent adoption of final measures was necessary due to risks threatening the rights of data subjects. Furthermore, by failing to provide the requested information within the one-month deadline set out in Article 61(5) of the GDPR, the Irish authority neglected to respond to the Norwegian supervisory authority's request for mandatory mutual assistance, and the presumption under Article 61(8) of the GDPR could be applied in this case, which further supports the necessity of deviating from the regular course of the cooperation and consistency mechanism. According to the EDPB's position, further corrective measures were necessary in the established situation.

In its final decision issued on November 10, 2023, the Irish supervisory authority complied with the EDPB's binding decision No. 1/2023, made in an urgent procedure, applying the instructions directed to the Irish authority in the binding decision. In the meantime, Meta has shifted its data processing related to behavioral advertising to rely on the consent of the data subjects, in such a way that if the user consents to the display of such advertisements on Facebook and Instagram platforms, they do not need to pay for the services; otherwise, they must pay a monthly fee (the so-called "pay or ok" model, which is being examined by the EDPB starting in 2024).

IV.4. Overview of cooperation procedures conducted under the GDPR

Since the application of the GDPR began in 2018, the Authority has actively participated in cooperation procedures under Article 60 with EEA member states. The one-stop-shop²⁰ serves the investigation of cases initiated based on complaints related to cross-border data processing or ex officio. The communication between authorities related to cooperation procedures is governed by the Internal Market

¹⁹ https://edpb.europa.eu/our-work-tools/consistency-findings/register-decisions/2023/enforcement-notice-matter-meta_en

²⁰ GDPR Article 60

208

209

If a relevant and substantiated objection or amendment proposal is submitted by a concerned authority against the draft decision, and the main supervisory authority wishes to accept the relevant and substantiated objection, it submits a modified draft decision to the other concerned supervisory authorities for their opinion. The consultation procedure regarding the modified draft decision must be conducted within two weeks. In the case of mere amendment proposals or comments, the main supervisory authority is not obliged to modify its decision. The main supervisory authority may modify its draft decision until all concerned authorities have accepted it, after which it can be circulated to all national authorities in the form of a final decision.

In 2023, the Authority received 359 draft decisions, 32 revised draft decisions, and 439 final decisions, as well as 50 informal consultations to assist cooperation under Article 60. During the same period, we sent 3 draft decisions and 3 final decisions to other authorities within the framework of cooperation procedures.

In the event that the main supervisory authority disagrees with the relevant and substantiated objections of the concerned authorities, it may request the Board to resolve the conflict and decide on the disputed issues in the dispute resolution procedure under Article 65 (no dispute resolution procedure has yet been initiated against a NAIH draft decision). In 2023, 2 such procedures were initiated against the draft decision of the Irish authority, and the Board concluded each of the procedures with a binding decision under Article 65.

Cooperation procedures also include mutual assistance procedures under Article 61 and voluntary mutual assistance procedures. While the former is subject to strict formal requirements and requires compliance within a deadline, generally involving two Member States, the latter is a more lenient procedure regarding form and content, which is used by national authorities for purposes such as information sharing, data collection, inquiries related to examination procedures, or general consultations. In 2023, the Authority received 235 voluntary mutual assistance requests, and no mutual (mandatory) assistance procedures were received during the year. The Authority initiated 48 voluntary mutual assistance procedures during the same period.

Some interesting topics:

– The issue of surveillance remains "evergreen": discussions were held regarding onboard cameras in vehicles as well as public space surveillance.

1. Figure: Procedures accepted by the NAIH in 2023

Main supervisory authorities investigate the complaint based on their own procedural rules and prepare a draft decision on the matter. Each concerned authority has the opportunity to comment on the draft decision within four weeks in the form of remarks or relevant and substantiated objections. If no objections are received against a draft decision, the main supervisory authority sends the final version as a binding decision to all national authorities.

210

211

It is also noteworthy that in relation to cooperation between national authorities, the Authority handled 57 written procedures in 2023, which are votes in the IMI system aimed at simplifying the agenda of the Plenary Session of the Board.

Figure 2: Procedures initiated by the NAIH in 2023

Based on statistics maintained since the applicability of the GDPR from May 2018, it can be stated that the previous trend continues, whereby during procedures between national authorities, the emphasis is shifting from the identification of the main supervisory authorities towards cooperation and information exchange.

IV.5. The Authority's activities within the Coordinated Enforcement Framework (CEF)

The European Data Protection Board (EDPB) defines a topic each year within the framework of the so-called "Coordinated Enforcement Framework," which it wishes to address specifically. The coordinated measures of the supervisory authorities are related to this (in Sweden, for example, a separate permit is required by law for this).

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Several inquiries were made regarding whether the individual national authorities have implemented/transposed the relevant EU legislation, and if so, how. An example of this is Directive 2009/103/EC on motor vehicle liability insurance and the verification of the insurance obligation, the provisions of which have been appropriately transposed by the Hungarian legislator into Act LXII of 2009 on mandatory motor vehicle liability insurance.

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From the practical side of data protection incidents, the question arose whether the loss, theft of a bank card, or the case of card data obtained through manipulation techniques can be considered a data protection incident? In such cases, the conceptual elements of a data protection incident are fulfilled if the bank does not comply with the general data security requirements regarding the handling of card data as set out in the GDPR. Since misuse of bank cards in the overwhelming majority of cases cannot be attributed to security deficiencies applied by the bank, but rather the data is obtained directly from the data subject (typically through deception), a data protection incident usually does not occur from the bank's side. Nevertheless, the criminal liability of the perpetrators who obtain the card data can be established in such cases, but the bank does not bear data protection/data security liability.

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Another question is whether a data protection incident is considered to occur if, due to a system error or technical problem, banking information becomes inaccessible to the data subjects? If the unavailability of personal data can be traced back to a security event occurring on the bank's side (e.g., a denial-of-service attack against the bank's website), the conceptual elements of the incident are present. In this case, the data controller must handle the incident in accordance with the GDPR, and as a result, must also ensure the recoverability and accessibility of the data.

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The recording of telephone conversations with the insurer is also a recurring topic, which is regulated by law as a data processing activity in Hungary.

Although they are not closely related to the procedure under Article 60 of the GDPR, it is worth mentioning the opinions under Article 64 of the Board, of which 39 were received by the Authority in

2023.

212

213

Regarding the CEF in 2023, at its launch and following the acceptance of the report by the EDPB, both the EDPB and the Authority published announcements on their respective websites.

IV.6. Four-Year Review of the GDPR – The Position of the NAIH in EU Comparison²³

At the initiative of the European Commission, based on data provided by data protection supervisory authorities, the GDPR (four-year) Evaluation Report was compiled in 2023, which was also reviewed by the EDPB and includes experiences from the first one and a half years after 2018.²⁴ According to its general assessment, the GDPR has modernized and harmonized data protection principles at the EU level, and awareness regarding data protection rights and obligations has significantly increased among data subjects, as well as among public and private organizations. Supervisory authorities frequently exercise their investigative and corrective powers, and cooperation has strengthened over the past years during joint procedures and operations, with the EDPB playing a central role in this (see EDPB guidelines on cooperation, including: 09/2020 on relevant and reasoned objections under the GDPR; 2/2022 on the application of Article 60 of the GDPR; 6/2022 on the practical implementation of peaceful dispute resolution; 8/2022 on determining the lead supervisory authority of the data controller or processor; among the documents, 1/2021 on joint operations; 6/2020 on preliminary steps for handling complaints; and 1/2019 on handling cases with only local impact under Article 56(2) of the GDPR).

Based on case statistics extracted from the IMI system, the Evaluation Report indicates that the NAIH is in the mid-range among member states:

23 The full Evaluation Report is available at:

https://edpb.europa.eu/system/files/2023-12/edpb_contributiongdprevaluation_20231212_en.pdf

24 https://edpb.europa.eu/our-work-tools/our-documents/other/contribution-edpb-evaluation-gdpr-under-article-97_en

In 2023, the focus was on the appointment and status of data protection officers.

During the coordinated action, the Authority conducted a survey among a portion of domestic public sector (public task performing) data controllers regarding their data protection officers using a unified (but modifiable considering national specifics) online questionnaire prepared for participants in the action.

Following the receipt of responses – based on a template created for this purpose – the supervisory authorities prepared their own national reports. These were compiled by the Secretariat into a document that was adopted by the Board at its plenary session on January 16.

The report summarizes the findings of all supervisory authorities participating in the CEF and presents the current state of their work.

The first part of the report contains statistics regarding the responses to specific questions, while the second part analyzes the challenges faced by data protection officers and the organizations appointing them (data controllers or processors), as well as how these may affect compliance with the GDPR. For each identified challenge – specifying the relevant provision of the GDPR – the specific problem is briefly presented, and the report includes some points of caution and/or recommendations regarding each identified challenge. Among the formulated recommendations, it is important to highlight the recommendation to review the guidelines WP243 concerning data protection officers, maintained by the EDPB following the application of the GDPR, which originated from the predecessor of the EDPB, the Article 29 Working Party.

The report also reviews measures already implemented or underway by supervisory authorities, including any guidelines that may have been issued by supervisory authorities, as well as the enforcement and other measures taken by supervisory authorities.

The national reports of the participating supervisory authorities – including the Authority – which contain further details on the results obtained, as well as national-level analyses and observations, form the annex to the document adopted by the Board.

214

Figure 3: Number of procedures initiated for the identification of main supervisory and concerned authorities 2018-2023

Figure 4: Number of draft decisions received as concerned authority under Article 60

Figure 5: Number of voluntary mutual assistance procedures initiated under Article 61

Figure 6: Number of complaints received by the data protection supervisory authority on an annual basis (excluding consultation submissions) - over 2000 submissions

Figure 7: Total value of imposed fines by supervisory authority on an annual basis

Figure 8: Total amount of fines from 2018 to 2023 - between €1 and €100 million

IV.7. New Compliance Decision on Transatlantic Data Transfers

The legal framework for data transfers from the EU to the USA was first provided by the so-called Safe Harbour agreement between 2013 and 2015. However, in October 2015, the Court of Justice of the European Union declared it invalid based on the objection raised by Max Schrems and the NOYB.EU (None Of Your Business) association behind him. The new framework operated under the name Privacy Shield from 2016 to 2020, but based on another complaint submitted by Max Schrems, the Court of Justice of the European Union ruled on July 16, 2020, that the EU Commission decision established under the agreement was again invalid. Therefore, on July 10, 2023, the European Commission adopted a new compliance decision regarding the new EU-US Data Privacy Framework (DPF).

The DPF covers, on one hand, business-related data processing – thus, American companies can voluntarily join, provided they commit to implementing and maintaining data protection guarantees in accordance with the GDPR. On the other hand, US authorities may access the personal data of EU citizens only under the specified safeguards for law enforcement and national security purposes, and they must also consider the principles of necessity and proportionality. European citizens will be provided with a two-tier remedy option: they can lodge complaints with a Civil Liberties Protection Officer (CLPO) employed by US national security agencies, and they can appeal the CLPO's rejection to an independent, three-member judicial body established for this purpose (Data Protection Review Court).

In the utilization of the remedy mechanisms, national data protection authorities and the EDPB will also assist in filtering and forwarding complaints. As of the time of writing this report, the EDPB is still working on the procedural document and a unified notification form, which, after their adoption, will be publicly available on the Board's and the data protection supervisory authorities' websites.

25 List of participating US companies: <https://www.dataprivacyframework.gov/s/participant-search>

Regarding the UN Convention on Cybercrime, the Commission informed the members of the BTLE expert sub-group that negotiations have progressed, and that the draft text will be submitted for approval in September 2024. This will be an international instrument concerning cooperation between central authorities for the issuance of requests and will provide assistance in legal matters. The convention will include a provision stating that cooperation may be refused in the absence of appropriate data protection guarantees.

IV.8.2. Coordinated Supervision Committee – (CSC)

The Coordinated Supervision Committee (CSC), which coordinates the data protection oversight of the Schengen Information System (SIS), the Internal Market Information System (IMI), Europol, Eurojust, and the European Public Prosecutor's Office (EPPO), met four times in 2023. The CSC's tasks will soon expand to include data protection oversight activities related to large-scale information systems established for border, asylum, and migration cooperation, as well as police and judicial cooperation (EES, ETIAS, VIS, ECRIS-TCN).

The previously separately meeting Schengen Information System (SIS) Supervision Coordination

Group has been under the CSC since March 2023 as a result of the SIS Recast, thus the tasks belonging to the SIS SCG have been transferred to the CSC. The CSC secretariat strives to compile the agenda for the meetings in such a way that it takes into account the differing memberships of the various formations; not all member states are part of the EPPO, for example, and there are also member states that do not have full membership regarding the SIS, participating only in an observer status in the meetings.

As part of the 2022-2024 work program, the CSC decided to initiate regular dialogue with civil society organizations regarding their potential involvement in issues related to the CSC's tasks, such as migration. As a first step, CSC representatives consulted with three NGOs (EDRi, Access Now, Statewatch). One idea is to organize joint awareness-raising campaigns aimed at informing citizens about their rights and supporting the relevant authorities in combating discrimination in the field of digital rights. Potential cooperation may also involve the parties alerting each other to new relevant documents and developments, including those that are unlikely to come to the attention of data protection authorities.

IV.8. Criminal/Justice Cooperation

IV.8.1. Borders, Travel and Law Enforcement Expert Group (BTLE)

Guidelines on Article 37 of the Law Enforcement Directive (LED, PD)

In March 2020, the EDPB tasked the BTLE expert sub-group with developing guidelines regarding Articles 36 and 37 of the Law Enforcement Directive. Following the completion of work related to Article 36 of the Law Enforcement Directive (Data transfers based on adequacy decisions), a new working group was established within the BTLE expert sub-group to draft guidelines on Article 37 (Data transfers with appropriate safeguards) and prepare the draft. The draft guidelines were discussed in several meetings in 2023, utilizing the opportunity for written comments as well. The BTLE expert sub-group also consulted with the Commission on various points of discussion. Ultimately, the working group responsible for drafting the working document and the Commission reached full consensus on the draft guidelines, which were finalized in August 2023.

Draft Agreement on Electronic Evidence between the EU and the USA

The Commission presented the EU–USA agreement at the BTLE expert sub-group meeting, which allows authorities to access electronic evidence for criminal proceedings directly through service providers subject to other jurisdictions. The agreement particularly covers content data and aims to resolve the conflicts that currently hinder service providers' access and responses to requests from foreign law enforcement authorities. On the U.S. side, this is an executive agreement under the U.S. Cloud Act, while on the EU side, it takes the form of a separate international agreement. Negotiations began in 2019, and the European Data Protection Supervisor issued an opinion on the negotiation mandate.

The head of the Commission's negotiating delegation met with the President of the European Data Protection Board in early November 2023 and also spoke at the plenary session in December to present the current situation.

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IV.8.3. Training for Experts on Schengen Evaluations

The Regulation (EU) 2022/922 on the establishment and functioning of the Schengen evaluation and monitoring mechanism (hereinafter: Schengen Regulation) has been in effect since October 2022, and periodic evaluations are now conducted based on a new approach by experts. The so-called Schengen 3.0 adopts a country-specific approach rather than a sector-specific one to assess the performance of individual Member States in the application of Schengen acquis. The pre-announced periodic checks are supplemented by unannounced evaluations and thematic checks. The periodic checks will change from the previous five-year duration to seven-year periods and will play a key role in regular monitoring, including repeated and verification visits. To ensure that the expert base conducting the Schengen evaluations can perform its work at a sufficiently high standard, regular training is necessary. Accordingly, the Commission has developed a training plan for experts participating in the so-called "expert pool." As the first step of this training plan, training in the field of

data protection commenced in 2023, in which staff from the Authority also participated.

IV.8.4. Working Group Supervising the Data Protection of the Visa Information System (VIS Supervision Coordination Group)

In 2023, the VIS SCG developed a common inspection plan aimed at assisting the supervisory authorities in their work and somewhat standardizing the process of conducting inspections at the national level, thereby enabling more effective analysis and comparison of results. The common inspection plan provides support to the authorities as supervisory bodies for conducting inspections, taking into account that the procedural rules and inspection methods at the national level can vary significantly. Therefore, each data protection authority can adapt the inspection plan to its own procedures, as the methods and questions described therein will serve as a kind of guide for the inspecting authority. The common inspection plan contains a series of questions (checklist) that are relevant during the examination of the Visa Information System (VIS) from a data protection perspective. The thematic questionnaire aims to explore compliance with the requirements of Regulation (EC) No 767/2008 (VIS Regulation), Regulation (EC) No 810/2009 (Visa Code), and Council Decision 2008/633/JHA (VIS Decision). The questionnaire is well-divided into sections according to which actor of data processing the questions pertain to, e.g., data controller, data processor, external service providers.

The Dutch data protection authority organized a workshop in September 2023 for the purpose of exchanging experiences, to gain a closer insight into how individual data protection authorities are preparing, how they are handling new supervisory tasks arising from the expansion of EU information systems, data flows, and interoperability at the national level. Staff from the Authority also participated in the workshop.

Regarding Eurojust, the issue of secure communication channels and the use of encryption when transferring personal data from national authorities to the national branches of Eurojust has arisen. Most of the EDPS recommendations have been implemented. The new legislative framework concerning Eurojust – the amendment of the Eurojust Regulation – is expected to address several issues in 2025. Eurojust will also receive a new CMS, among other things, to facilitate the processing of electronic evidence.

The EDPS presented the main findings related to the 2022 annual inspection report on Europol. The report focused on the processing of personal data of minors, specifically targeting those under 15 years of age. The investigation centered on the transfer of data from third countries and international organizations, where, in some cases, lower standards are applied in the processing of minors' data than in EU Member States. The EDPS particularly noted that Europol must conduct its own assessment of the legality of processing the received data. The EDPS also informed the CSC about ongoing procedures against Europol, which were initiated based on complaints, either due to insufficient justification for denying access requests from data subjects or because Europol responded late to requests for access from data subjects. According to Europol, the delay arises from a structural issue in the Europol Regulation, which prescribes a short, three-month deadline for responding to access requests, while this period may not necessarily be sufficient for Europol to obtain information from national law enforcement authorities.

The EDPS shared some findings regarding the annual inspection of PNR data for 2023 as well. The EDPS particularly noted that the assessment and manner of national-level action vary significantly among Member States. CSC members agreed that the issue concerning PNR data falls within the scope of the BTLE expert sub-group, and therefore agreed that the deputy coordinator should approach the BTLE expert sub-group to clarify and identify possible measures.

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IV.9.

Hungarian Ratification of the "Modernized" Data Protection Convention of the Council of Europe

The Convention for the Protection of Individuals with regard to Automatic Processing of Personal Data, signed in Strasbourg on January 28, 1981 (the so-called Convention 108 or Data Protection Convention), is the first and so far the only instrument with binding international legal force that comprehensively regulates the framework of the right to the protection of personal data. Its

significance extends beyond the European continent, as the parties to the Convention are not only members of the Council of Europe but also non-European states without membership (e.g., Argentina, Uruguay, Morocco, Tunisia, Mexico, Senegal).

The review of the Convention's regulation and its "modernization" took place in parallel with the European Union's data protection reform. As a result of the review process, the member states of the Council of Europe agreed on the text of the additional protocol amending the Convention (ETS 223 Additional Protocol), which was adopted by the Committee of Ministers of the Council of Europe on May 18, 2018, and was open for signature from June 25, 2018. By January 2023, thirty-one states had ratified the additional protocol, but its entry into force under international law—subject to the fulfillment of the conditions for such entry as stipulated in the additional protocol—still awaits. Hungary signed the additional protocol amending the Convention on January 9, 2019, which was promulgated by Act XLIII of 2023 on the promulgation of the amending protocol of the Convention for the Protection of Individuals with regard to Automatic Processing of Personal Data, signed in Strasbourg on January 28, 1981, in Strasbourg on October 10, 2018, and ratification took place on October 19, 2023. Following its entry into force under international law—which is expected in 2024—the "modernized" Data Protection Convention will undoubtedly have an even more significant global impact on the protection of personal data than before, becoming a standard to which subjects of international law will align in the future, shaping their own regulations on the protection of personal data in consideration of the legal institutions of this instrument.

In preparing the joint inspection plan, the VIS SCG took into account previous recommendations made within the framework of the Schengen evaluations (SCHEVAL) regarding the VIS in various member states.

The Authority prepared for Hungary's Schengen evaluation due in 2024 by already utilizing the common inspection plan in 2023. As in previous years, the Authority's staff conducted inspections at the Ministry of Foreign Affairs and Trade and the National Directorate-General for Aliens Policing as data controllers of the Visa Information System.

IV.8.5. Eurodac System Data Protection Supervisory Working Group (Eurodac Supervision Coordination Group)

In its work plan for the period from 2022 to 2024, the Eurodac SCG set as one of its most important tasks the national-level determination of the scope of authorities accessing the Eurodac system for law enforcement purposes and the verification of the legality of such access. Chapter VI of the applicable Eurodac Regulation provides for a procedure that allows for the comparison and transmission of fingerprints with those stored in Eurodac for law enforcement purposes. However, due to the fundamental right to respect for private life, law enforcement authorities may only use Eurodac for comparison if no other means are available for the prevention, detection, or investigation of a terrorist offense or serious crime. In light of potential future changes to the Eurodac Regulation, the Eurodac SCG deemed it important to examine the current application of this procedure by Europol and national law enforcement authorities. To enable authorities to monitor the practice at the national level, the Eurodac SCG developed a common inspection methodology.

In 2023, the Authority conducted an ex officio investigation at the national level regarding data processing related to the implementation of the Eurodac Regulation. Based on the questions compiled by the Eurodac SCG, the Authority first examined in writing and then through an on-site inspection the data processing of fingerprint data conducted by the National Expert and Research Center and the National Directorate-General for Aliens Policing.

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As a result, it became necessary to amend the country reports under Article 14.

The agenda of the most recent meeting of the expert group included, among other things, these amendments, as well as the evaluation reports for Bosnia and Herzegovina, Moldova, and Lithuania. In Spain, the Convention entered into force on January 1, 2024, thus the Secretariat called upon the Spanish party to complete a questionnaire regarding legislative and other measures related to the implementation of the provisions of the Convention.

Any state that meets the accession requirements set out in Article 17 of the Convention may still join

the Convention.

IV.10. The Council of Europe Convention on Access to Official Documents

The Council of Europe Convention on Access to Official Documents entered into force on December 1, 2020. The Convention currently has 15 contracting parties: Albania, Armenia, Bosnia and Herzegovina, Estonia, Finland, Hungary, Iceland, Lithuania, Montenegro, Norway, the Republic of Moldova, Slovenia, Spain, Sweden, and Ukraine.

The Tromsø Convention was the first binding international legal instrument that provided the right to access documents containing public interest information to anyone, without discrimination, based on a data request, regardless of the applicant's status or the purpose of the access request. According to the Convention, all documents containing public interest information are, as a general rule, public and can be disclosed, and this can only be restricted for the protection of rights and legitimate interests specifically listed in the Convention, unless there is a compelling public interest in disclosure. There are also rules that must be adhered to regarding the prompt and fair processing of access requests by authorities, the costs of access, and the right to appeal to a court or other independent body in the event of a denial of the request.

Two monitoring bodies were established under the Convention: the expert group on access to documents containing public interest information (Access Info Group or AIG) and the Consultative Council of the Parties. The AIG is composed of independent and impartial experts with the highest level of integrity in the field of access to official documents, which conducts assessments and prepares reports on the legislative and other measures adopted by the parties to implement the provisions of the Convention. In carrying out its tasks, the Access Info Group may seek information and opinions from civil society. One member of the ten-member expert group is the president of the National Authority for Data Protection and Freedom of Information (NAIH).

In the past three years, the contracting parties have submitted their reports under Article 14 of the Convention, in which they outlined the legislative and other measures taken to implement the provisions of the Convention. The responsible officials assigned to each party prepared preliminary draft evaluation reports on the country reports, and then, in the most recent phase of the process, at the instruction of the expert group, the Secretariat prepared the draft evaluation baseline report based on the reports. Recently, information freedom laws have also been amended in several member states, resulting in...

226

227

V.1. Enforcement of Claims Arising from Infringement of Personality Rights Against Meta Platforms Ireland Limited as Data Controller

The Facts

The defendant provides a social media service called "Facebook," with its registered office in Ireland, which is also the center of its business activities. On Facebook, users can create profiles and pages, allowing them to share information about themselves with others in the form of posts, photos, etc. It is possible to share such information published by other users on one's own page, as well as to comment on information and content published on others' pages.

Section 4.2 of the Facebook Terms of Service (hereinafter: Terms of Service) allows the defendant to suspend or permanently disable a user's access to their account if the user evidently, seriously, or repeatedly violates the Terms of Service or other regulations of the defendant, particularly including the so-called Community Standards. In the event of a violation of the provisions set out in Sections 3.2.1-3.a of the Terms of Service, if Facebook removes any content shared by the user due to a violation of the Community Standards, it will inform the user and outline the available options for requesting a review, unless the user seriously or repeatedly violates the Terms of Service, or if doing so would expose Facebook or others to legal liability, cause harm to the user community, hinder or obstruct the operation or integrity of Facebook's services, systems, or products, if technological limitations prevent such possibility, or if it is prohibited for legal reasons. According to Section 3.1 of the Terms of Service, after deletion, the specific content will not be visible to other users; due to technical limitations, immediate deletion is not possible, and it will actually be deleted within a maximum of 90 days from the deletion date. Similar rights apply not only to the defendant but also to

the administrator of the affected page. The individuals managing the specific Facebook page (three roles are relevant for the legal dispute: administrator, editor, and moderator) were all entitled to respond to comments and posts written on that page, delete them from the page, or "block" or "ban" other Facebook users from the page. The administrator and the editor were also entitled to create and delete posts on behalf of the page, as well as to edit the page. Furthermore, administrators have the option to take actions beyond this regarding the page.

V. The Authority's Legal Cases

In 2023, the Authority had a total of 47 closed legal cases at the Metropolitan Court and the Curia. Of these, the Authority was 100% successful in 29 cases, predominantly successful in 6 cases, 1 case was dismissed by the court at the outset, 3 legal proceedings were terminated by the court, and the Authority was unsuccessful in a total of 8 cases. The judicial guidelines ordering the Authority's repeated proceedings almost exclusively pertain to the correction of procedural-type errors or the more precise determination of the amount of fines.

In 2023, the Authority imposed a fine of 524,375,000 HUF, of which 518,500,000 HUF was a data protection fine, 5,345,000 HUF was a procedural fine, and 530,000 HUF was an enforcement fine. Of the imposed fines – including late payment surcharges calculated after the fine – 325,502,768 HUF was paid voluntarily by the obligated parties, and enforcement actions by the NAV were initiated regarding a fine amounting to 89,015,000 HUF, meaning that approximately 62% of the imposed fines are voluntarily paid by the obligated parties.

Based on the Authority's litigation experiences, it can still be stated that the emphasis of legal proceedings has shifted towards administrative lawsuits following requests for data protection authority proceedings. In the fifth year of the application of the General Data Protection Regulation, it can be stated that the Authority must answer increasingly complex data protection legal questions both factually and legally, and the same is true for judicial application. A clearly observable trend is the increase in the number of legal proceedings, which correlates with the rising amounts of fines imposed by the Authority.

Below, we highlight a few of the more interesting and significant court cases.

****228****

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therefore, he can no longer comment on the articles and posts shared on the public figure's Facebook page in his own activity log. During the trial, he noticed that among his comments made between October 1, 2020, and October 21, 2022, 436 comments had been deleted (became inaccessible), while in 110 cases, information regarding the recipient of the comments was also deleted.

****The Claim****

In his claim, the plaintiff requested, based on Section 2:51 (1) a) of the Civil Code, a declaration that the defendant, as the data controller, violated his personal rights related to freedom of expression and human dignity, as well as the protection of personal data and human dignity.

Due to the aforementioned violations, the plaintiff requested, based on Section 2:51 (1) b) of the Civil Code, that the court prohibit the defendant from similar violations in the future by ensuring that users identifying themselves as public figures in the Facebook system, as the authorized representatives (editor, moderator, administrator) of the given Facebook page, cannot apply decisions (bans) that would result in the restriction, prohibition, or deletion of his comments and reactions regarding past and future comments. He also requested, based on Section 2:51 (1) d) of the Civil Code, to obligate the defendant to eliminate the harmful situation by restoring his access to the public figure's Facebook page and his deleted comments within 15 days, as well as restoring all subsequently deleted comments (110+436 pieces).

According to the plaintiff's argument, the defendant is not merely a passive hosting service provider but an independent (or at least a joint) data controller (GDPR Article 4(7); GDPR Article 26). He himself is the "data subject" as defined in GDPR Article 4(1), and his comments are considered "special personal data" under GDPR Article 9(1). According to GDPR Article 4(2), the deletion of personal data (comments) stored in the system operated by the defendant constitutes data processing. Even if the

defendant did not delete the comments himself, the hosting and system he developed and operated enabled third parties (administrators, editors, and moderators) managing the given page to delete them, thus he is also a data controller. It is solely the defendant's responsibility that his comments were deleted not only from publicly accessible Facebook pages but also from his activity log. In the absence of the conditions specified in GDPR Article 6(1), the management of roles and settings belonging to the defendant is in question. If a Facebook user creates a page, they automatically become its administrator.

In the case of a "block" on a user profile, the blocked user cannot see the content published by the blocker; it is not accessible to them, and they have no means of finding the given page or viewing the posts published there. In the case of a "ban" on a user, the banned user can view the content of the given page but cannot comment on the posts. Users who are banned or blocked by another user do not receive notifications about the action.

The Facebook Data Protection Policy (15/A/3.) specified the contact details of the data controller responsible for the data and the data protection officer, and defined the data that the defendant processes to support the services offered. In this context, the defendant collects information and content provided by the user during the use of Facebook, gathers data regarding which people, accounts, Facebook pages, and groups they are associated with, how they interact with them, and the intensity of the relationship. It collects information about how the service is used, such as what types of content are viewed; it logs when the service is used and which posts and content are viewed. According to the Data Protection Policy, the defendant may use this data to provide and support the products and services of the defendant as defined in the Terms of Use. The Data Protection Policy also includes the manner of use and sharing of the mentioned data, the legal basis for data processing, and a warning regarding the possibility of exercising rights provided by the GDPR.

Only the so-called "Help Center" provided information about what managerial roles (five types of roles) are associated with individual pages, and that if a user blocks another user's profile, the blocked person does not receive a notification about the blocking of their profile. The "activity log" is a feature of Facebook that allows the user to review and manage their activity; it includes the posts they have published, activities on pages, comments written by others, messages, and other activities.

As a Facebook user, the plaintiff noticed in August-September 2021 that his comments made on articles and posts shared on the public figure's Facebook page were no longer accessible either in the indicated log...

230

231

In the absence of opening, the liability of the joint data controllers is joint and several in accordance with Article 82(2) and (4) of the GDPR. The National Authority for Data Protection and Freedom of Information (NAIH) referred to the guidance document No. 7/2020 of the European Data Protection Board (EDPB) for the correct interpretation of the GDPR. It pointed out that access to the data subject to processing is not a prerequisite for the quality of being a data controller; joint data processing can take the form of a joint decision, resulting from coordinated decisions, if the decisions complement each other and are inseparable. It highlighted that the defendant's quality as a data controller has been established by the Court of Justice of the European Union (CJEU) in several judgments (CJEU C-319/20; C-645/19). In its judgment C-210/16 (Wirtschaftsakademie Schleswig-Holstein, paragraph 26 and following), the CJEU stated that an administrator of a social network page and the defendant are joint data controllers. The CJEU also confirmed in C-40/17 (Fashion ID judgment) that an organization's decision to use a tool developed by another organization for its own purposes, or another system that enables personal data processing, is likely to be considered a joint decision regarding the manner of data processing by the mentioned organizations.

Judgment of the First Instance Court

With its judgment, the first instance court dismissed the claim. It did not share the plaintiff's view that the defendant qualifies as a data controller (or joint data controller) in connection with the acts in question. The defendant's data processing activity was of a different content and purpose than that of

the complainant, primarily aimed at supporting other products and functions it offered. The defendant had no influence over the exercise of user rights provided by the Facebook system (deleting another user's post or blocking another user). The existence of joint data controller status under Article 26 of the GDPR can only be determined by conducting the so-called "decisive influence test." The defendant had no influence over the data processing activity in question, including the deletion of data, the goal to be achieved through deletion, and the determination of the scope of comments to be deleted, as well as the management of the data processing practice. The mere fact that the defendant provided users of Facebook pages (in an administrator, editor, or moderator role) with the ability to delete comments from other users or to block another user from a given page does not render the data processing lawful. Due to the (reverse) burden of proof rules applicable under Articles 5, 24, and 82 of the GDPR, it is the defendant who must prove that this was not attributable to them. By accepting the Terms of Use (which cannot be considered a waiver of rights), the defendant only accepted the legal consequences of lawful blocking and deletion, but not the restrictions applicable to the case at hand. The content of the Terms of Use that contradicts the GDPR must be disregarded. Regarding the public figure's page, the defendant should not have provided the opportunity for third parties (administrators, editors, and moderators) to delete and block, but if they did, they would have been obliged to operate the system in compliance with the GDPR according to Articles 24(1) and 25(1)-(2).

The unlawful data processing by the defendant and the deficiencies in information led to the inability to properly exercise the rights of the data subjects. The Privacy Policy only identifies the defendant, does not refer to the data processing by the administrators managing the individual pages, the relationship between the defendant and these administrators, or the distribution of responsibility and rights. The possibilities for exercising the rights of the data subjects are not transparent, and such data processing is not fair.

In the plaintiff's view, the defendant violated the principles of personal data processing under the GDPR: (1) the principle of "lawfulness, fairness, and transparency," as it did not provide prior, adequate information regarding the data processing (Article 5(1)(a) of the GDPR); (2) the "purpose limitation principle," as the comments became inaccessible not only to the public but also to the plaintiff, who could not comment on the given page (Article 5(1)(b) of the GDPR); (3) the "integrity and confidentiality" principle, as it did not take appropriate technical and organizational measures to protect personal data against loss and destruction, resulting in the data being subsequently unmodifiable and no longer accessible to the plaintiff (Article 5(1)(f) of the GDPR).

In favor of the plaintiff's success in the case – solely concerning the claim for the determination of the violation of the right to the protection of the plaintiff's personal data – the intervening NAIH requested the court to make a decision in accordance with the plaintiff's claim. It argued that the defendant is a joint data controller with another Facebook user applying deletion and blocking (Article 26 of the GDPR), as the operation and functionality of the software used for this purpose (through the establishment of data processing conditions) participated in determining the means and purposes of data processing. The legality of the data processing is governed by Section 23(2) of Act CXII of 2011 on the Right to Informational Self-Determination and Freedom of Information (hereinafter Info.tv.).

232

233

The first-instance court correctly established the lack of the defendant's status as a data controller (joint data controller) regarding "the first phase of data processing," namely the deletion of the claimant's comments on the side of another user, as well as the blocking of the claimant by another user. The first-instance court rightly recognized that the data processing by the defendant and the individual user was of a different nature and purpose, and these purposes were not closely related or complementary (EDPB Guideline 07/2020, point 60). By registering in the Facebook system and accepting the Terms of Use (as a general contractual condition), the rights of other users concerning their own pages became part of the relationship between the parties. The user who qualifies as a data controller concerning the disputed data processing operation (the page administrator) became entitled to this. The administrator (admin, editor, moderator) of the given page necessarily utilized the system

developed by the defendant for this purpose. However, the use of a joint data controller system or infrastructure does not necessarily lead to joint data processing (EDPB Guideline 07/2020, point 68). This is particularly true when there is no joint data processing concerning the consequences arising from the system's settings, which cannot be overseen by the administrator of the given page.

In the context of the first phase of data processing, it was significant that exclusively the administrator of the given Facebook page positioned themselves—based on the substantive evaluation of the comment and the qualification of the commenter—over which content to delete and which user to exclude from the page, meaning that only they had "decisive influence" over the page's visibility and content, and the defendant had no influence over this. From the perspective of the data controller's "influence" (the purpose and fundamental means of data processing), there is no question of a joint (collective or not solely made) or coordinated decision. Therefore, the defendant did not need to enter into a legal agreement with individual users regarding the sharing of responsibility, contrary to what was stated in the appeal (EDPB Guideline 07/2020, summary and points 39, 40, 55, 59). The use of the first-person plural in the Terms of Use does not refer to joint data processing; it is merely a linguistic form applicable solely to the defendant (and is ungrammatical). The defendant's system does not distinguish (and cannot distinguish) between the rights of public figures and non-public Facebook users. It is also consistent with the data processing purposes that the administrator of the affected Facebook page can terminate the visibility of their page within the Facebook system, either by limiting it to a comment from another user or regarding the entire activity of the other user. In the case of blocking a profile, the deletion of the entire publicly expressed activity of the blocked user on the given page aligns with the rights of the page administrator, the purpose of data processing, and its visibility.

The joint determination of the purpose and means of data processing is not achieved by the fact that the administrators of the questioned Facebook page exercised their independent decision-making options from the defendant, necessarily using the tools provided by the defendant; however, within the framework of the possibilities provided by the tools, they decide themselves which tool to use. The factual circumstances of the cases cited by the claimant's intervenor to justify joint data processing differ from the present case and are therefore not applicable.

During the registration process, it is publicly known that the Terms of Use must be accepted; they are part of the parties' relationship, and their acceptance constitutes consent to data processing under Article 6(1) and Article 9(2) of the GDPR. The Terms of Use do not specifically address the roles related to individual pages, but information regarding this is available in the so-called Help Center, and the claimant had to be aware that an administrator, editor, or moderator managing a given page is entitled to delete comments and block or restrict other users concerning that page. The fact that the comments of the claimant deleted by other users are not accessible from the claimant's own activity log does not violate the data controller obligations under Article 24(1) and Article 32 of the GDPR, as the defendant did not make any commitment to ensure the accessibility of deleted comments in the activity log despite their deletion.

The claimant and the Authority, which intervened on the claimant's side, also filed an appeal against the first-instance judgment.

The second-instance judgment

In relation to the deletion of the claimant's comments from the activity log, it could be established against the defendant that certain data processing provisions were violated, contrary to the first-instance judgment. However, since the entirety of the claimant's lawsuit aimed at enforcing personality rights (and not specific data protection sanctions under the Infotv.), the appellate court did not find a violation of the personality rights that were the subject of the lawsuit against the defendant despite the data processing violations. Therefore, neither the examination of the adequacy of the defendant's information nor the need to repeat the first-instance proceedings was justified, as the defendant was supposed to prove the lawfulness of the data processing during the first-instance proceedings according to Article 23(2) of the Infotv., but no evidence was presented on this matter.

before the deletion or blocking, it was already determined that after the deletion/blocking, the data processing was considered unnecessary even at the activity log level, thus in this regard it qualifies as an independent data controller. The principle of data minimization—provided there is adequate information—could justify the legality of the defendant's data controller decision. With appropriate information, the plaintiff could have prepared to create backups of the comments stored in their activity log, which constitute a tangible form of their "sense of mission," with sufficient regularity. According to this principle, the scope of stored data must be limited to the minimum necessary for the purpose. It must be ensured that the storage of personal data is limited to the shortest possible duration; therefore, the data controller establishes deletion or regular review deadlines (GDPR Recital 39). In accordance with Articles 5(1)(c) and (e) of the GDPR, the defendant could have stipulated that data that had ceased to be public due to the actions of the affected page's controller should be deleted from the activity log immediately or within a specified time frame. However, neither the Terms of Use nor the Privacy Policy contains such regulation (with this justification). Section 3.2 of the Terms of Use only records the legal consequences if Facebook itself (as a hosting service provider) removes any content shared by the user, but it does not address the case where deletion or blocking occurs by another user and what further consequences that has.

The defendant violated Article 12(1), Article 13(2)(a), Article 24(1), and Article 25(1) of the GDPR, and their actions were not in accordance with the principles set out in Article 5(1)(a) and (f) of the GDPR. The obligation to provide information under Articles 12 and 13 of the GDPR burdened the defendant regardless of the request from the affected party. At the same time, the defendant correctly referred to the fact that the exercise of rights under Articles 15, 16, and 20 of the GDPR presupposes a request from the affected party, and it was not proven that the plaintiff had made such a request, thus the violation of the aforementioned provisions cannot be established against the defendant.

For the establishment of a violation of personality rights—according to the explanations above—not just any breach of data processing rules provides a basis. The right to personality in the protection of personal data ensures the external protection of personal data, protecting it outwardly (from the public), fundamentally providing protection in cases of unauthorized acquisition, disclosure to unauthorized persons, or public disclosure of personal data. In the case at hand, the opposite is true. The controller exercising the right to delete and block the Facebook page made an error, however, when the first-instance court did not establish the defendant's data controller status regarding the "second phase of data processing," concerning the data processing of the activity log. Among the data processing provisions specified in the lawsuit, only those related to the deletion of comments from the activity log attributable to the defendant had significance. The defendant correctly referred to the fact that they fundamentally act as a hosting service provider (Elker.tv. § 2(1)(c)). However, they are also an application service provider (Elker.tv. § 2(1)(m)), as they developed and provide the system that enables the establishment of a wide-ranging communication (relationship) network among individual users. The plaintiff's argument is correct to the extent that it is unlawful for Facebook—exclusively determined by the defendant's system—resulting in measures consistent with the data processing purposes to automatically lead to the consequence that after 90 days, the user's comments containing special personal data are deleted from the plaintiff's activity log (as the plaintiff's storage), and then after another 90 days, from the entire system operated by the defendant (from the backup interface) without prior notification to the affected user.

The plaintiff correctly pointed out that neither the Terms of Use nor the Privacy Policy alone could have made the page controller or themselves aware of what effect blocking the profile would have on the plaintiff's activity log. The Terms of Use contained no information regarding the consequences affecting the activity log, only discussing the consequences of the deletion of shared content by the defendant and the deletion affecting the user's own page. During the appeal hearing, the defendant indirectly acknowledged this. Against the defendant's argument, the partial information appearing on the "help" interface is also insignificant, because, in addition to the fact that they are not part of the parties' contract without the user's activity (placing an "x" in the relevant box) (GDPR Recital 32), they do not refer to any legal consequences extending to the activity log. The deletion of personal data from the activity log, which is solely managed and accessible by the plaintiff (as storage), can no longer be considered data processing necessary for the performance of the contract [GDPR Article 6(1)(b)]. The

plaintiff did not consent to this, thus the data processing is unlawful, lacking a basis under Article 6 of the GDPR. The defendant is not a joint data controller regarding the content of the activity log with the controller of the other Facebook page (GDPR Article 26). The consequences of the other controller's decision affecting the activity log are independent of the defendant—

236

237

Furthermore, the court also asked whether the independent status granted to the supervisory authority by Article 51(1) and Article 52(1) of the General Data Protection Regulation should be interpreted in such a way that the supervisory authority is independent in its procedure and decision regarding complaints under Article 77 from the final judgment of the court with jurisdiction under Article 79, and thus may reach a different decision regarding the same alleged infringement?

In this case, the Authority also acted in its own name before the Court of Justice of the European Union.

In its judgment in case C-132/21, the Court of Justice of the European Union determined that in light of Article 47 of the Charter of Fundamental Rights of the European Union, Article 77(1), Article 78(1), and Article 79(1) of the General Data Protection Regulation should be interpreted as allowing for the parallel and independent exercise of the remedies provided for in Article 77(1) and Article 78(1) on the one hand, and Article 79(1) on the other. It is the responsibility of the Member States to determine, in accordance with the principle of procedural autonomy, the detailed rules governing the relationship between these remedies in order to ensure the effectiveness of the protection of rights guaranteed by this Regulation, the consistent and uniform application of the provisions of the latter Regulation, and the right to effective judicial protection mentioned in Article 47 of the Charter of Fundamental Rights. Following the defendant's decision, the relationship between the final judgment of the Civil Panel of the Metropolitan Court of Appeal and the defendant's decision was examined by the Metropolitan Court based on the administrative procedural law and the judgment of the CJEU. Regarding the administrative jurisdiction and civil court jurisdiction, the CJEU judgment did not exclude the possibility of parallelism according to the Metropolitan Court, but deemed it the responsibility of national legislation to determine the detailed rules governing the relationships between the remedies, in accordance with the principle of procedural autonomy, taking into account the obligation of effective legal protection. In this regard, the court could only establish that there is no such detailed regulation in Hungarian law, and that a judicial individual norm control procedure cannot be initiated for the elimination of unconstitutionality caused by omission, in accordance with Section 25 of Act CLI of 2011 on the Constitutional Court.

In the case of the deletion of personal data lawfully deprived of their public nature from the claimant's activity log, the protected legal object is not the external protection of the personal data, but rather the storage of the data itself (as information of value to the claimant in some respect) in the activity log functioning as a storage space for the claimant.

This infringement—by its nature—does not provide grounds for establishing a violation of the right to personal data protection or another personal right that is the subject of the claim (human dignity) (Győri Court of Appeal Pf.III.20.070/2023/11-I.).

V.2. The Budapest Electric Works Zrt. case before the Court of Justice of the European Union and its domestic aftermath (C-132/21.)

In this case, the Metropolitan Court turned to the Court of Justice of the European Union (hereinafter: CJEU) with the following questions:

Should Article 77(1) and Article 79(1) of Regulation (EU) 2016/679 (hereinafter: General Data Protection Regulation) be interpreted in such a way that the administrative remedy provided for in Article 77 is a means of public law enforcement, while the judicial remedy provided for in Article 79 is a means of private law enforcement? If so, does it follow that the supervisory authority with jurisdiction over the administrative remedy has primary jurisdiction to establish the fact of the infringement? If the data subject—who believes that the processing of their personal data has violated the General Data Protection Regulation—exercises both the right to lodge a complaint under Article 77(1) of the General Data Protection Regulation and the right to judicial remedy under Article 79(1) simultaneously, which interpretation is in accordance with Article 47 of the Charter of Fundamental Rights:

- a.) the supervisory authority and the court are obliged to examine the fact of the infringement independently of each other, and thus may reach different conclusions; or
- b.) the decision of the supervisory authority—regarding the assessment of the fact of the infringement—takes precedence over the powers provided for in the authorization in Article 51(1) of the General Data Protection Regulation and the powers granted in points b) and d) of Article 58(2)?

238

239

final judgment of the civil court. In the present case, the administrative court, that is, the first-instance court could have deviated from the findings of the civil court's judgment. This would have served the purpose of legal certainty, as opposed to the position that prioritizes the harmony between civil and administrative judgments—regardless of the correctness of legal interpretation. The Curia rightly pointed out, as the Authority did in its request for review, that the procedure of the first-instance court does not meet the requirement of resolving legal uncertainty: it is unacceptable to claim that there is harmony between the judgments of the civil court and the administrative court, interpreting EU law in the same way, if this follows a mistaken legal interpretation, elevating it to the level of a final judgment. The Authority also rightly objected that the first-instance court disregarded the defendant's statement questioning the correctness of the civil final judgment in this context; however, during the review procedure, the decisive significance was not this, but rather the incorrect solution chosen by the first-instance court and its outcome. Based on all of this, the Curia annulled the final judgment of the first-instance court of the Capital Court and ordered the first-instance court to conduct a new procedure (Curia Kfv.V.37.595/2023/6.).

V.3. Application of voice analysis software, emotion analysis, artificial intelligence, and the enforcement of the rights of the affected parties

The Authority examined the data processing of the credit institution as the plaintiff, according to which the recorded material of customer service calls is automatically analyzed by the plaintiff based on the emotional state of the calling customer and the customer service employee, as well as other characteristics of the conversation, and using the results of this analysis, it decides which customer needs to be called back. The plaintiff introduced the voice analysis application (hereinafter: software) on May 26, 2017, stating that its purpose was to make the work of employees more effective, to proactively call customers to prevent complaints, to facilitate the shortening of call times, to reduce erroneous banking transactions, to ensure effective customer service, and to support the effectiveness of control procedures. It explained that the software ranks calls in a closed system without storing identifiable individual data, filters the calls to be evaluated based on specific rules and keywords, and then the managerial employees randomly select callbacks from the list of calls suggested by the software; the software allows for the individual replay of ranked calls with a click; caller identification is necessary for complaint handling.

According to the Capital Court, the judgment of the CJEU [54]-[56] is relevant to the resolution of the case in that it establishes in relation to Articles 78 and 79 of the GDPR that contradictory court decisions would weaken the protection that natural persons are entitled to regarding the processing of their personal data, resulting in legal uncertainty due to the lack of harmony. The protective obligation articulated by the CJEU also appears in the ruling of the CJEU, emphasizing the effectiveness of legal protection and the requirement for consistent and uniform application of the law. In light of Section 85(6) of the Kp., the final judgment did not bind the court of the administrative case; however, considering the highlighted part of the CJEU judgment, it was not in itself decisive, but the Capital Court took it into account as a fact relevant to the case. Therefore, the Capital Court decided to annul the Authority's decision and ordered the Authority to conduct a new procedure, following the final judgment of the Capital Court of Appeals in the parallel civil litigation regarding the substantive legal data protection issue instead of the Authority's legal interpretation.

In the aforementioned principle question, based on the facts of the given case, the Curia established that the CJEU judgment provided an answer to the parallelism of civil court remedies, jurisdiction, and administrative recourse (defendant's jurisdiction, administrative court remedy, jurisdiction) by stating that the question falls within the competence of the Member States. The first-instance administrative court, the Capital Court, therefore rightly established that—although the CJEU judgment deemed the

determination of detailed rules regarding the relationships between parallel remedies to fall within the realm of Member State legislation in accordance with the principle of procedural autonomy—there is no such detailed regulation in the Hungarian legal system. Following the establishment of the existence of Member State jurisdiction and the absence of domestic detailed regulation, however, the judgment drew a mistaken conclusion from the CJEU judgment [54]-[56] (which established that contradictory court decisions would weaken the protection that natural persons are entitled to regarding the processing of their personal data, resulting in legal uncertainty due to the lack of harmony).

The task of the Member State's legal practitioners, the Member State courts, is to interpret EU law. In the present case, the GDPR is a directly applicable regulation in the Member States. Consequently, if in the given case the civil court's final judgment precedes the issuance of the administrative court's final judgment in time due to parallel remedies, but the interpretation or application of EU law according to the civil judgment is erroneous, as the Curia believes occurred in this case, the subsequently deciding administrative court may deviate from the...

240

241

Examining the information provided to data subjects and the right to object, the Authority found that with voice analysis, automatic emotion analysis and evaluation, as well as the subsequent possibility of recall, the data subjects receive no information at the beginning of the conversation. The plaintiff does not provide information in accordance with Article 13 of the GDPR, except for the legal basis, and the purpose is not fully specified either, as it does not refer to quality assurance, complaint prevention, or increasing internal efficiency. Due to the complete lack of the right to object, there is a violation of Article 21 of the GDPR, and thus consent would not be an acceptable legal basis; the plaintiff violated the provisions specified in the operative part of the decision of Articles 5, 12-13, and 21 of the GDPR. Regarding the qualification of the balancing of interests, it was pointed out that in the absence of appropriate prior information and the provision of the right to object, the method of data processing empties the rights of the data subjects. The plaintiff conflated the purposes of data processing and did not demonstrate the actual examination of alternatives, with particular attention to the employees' right to object. Due to the invalidity of the plaintiff's balancing of interests, the primacy of legitimate interest cannot be established in the data processing. However, the Authority did not find the application of the rules regarding automated data processing under Article 22(1) of the GDPR to be ascertainable. Due to the invalidity of the balancing of interests, it was established that the data processing carried out by the software is unlawful, as the legal basis under Article 6(1)(f) of the GDPR is missing, and no other legal basis exists, thereby also violating Article 6(4) of the GDPR. In relation to the systemic violation of data subject rights, referring to the (47) recital of the GDPR, it was emphasized that due to the implementation method chosen by the plaintiff, the conditions of foreseeability and guarantees were not met at the systemic level. The plaintiff conducted data processing solely considering its own business interest, excluding the choice of the data subjects, and could not provide basic information to the complainant; thus, the data processing practice was also contrary to the provisions highlighted in Articles 12 and 24-25 of the GDPR.

On March 9, 2023, the Metropolitan Court issued a final judgment in the case, fully rejecting the plaintiff's claim, agreeing with the factual and legal position of the Authority, and the Curia denied the acceptance of the review request submitted by the plaintiff.

In its contested decision, the Authority established that the plaintiff's data processing practice related to the analyzed voice recordings violated Articles 5(1)(a) and (b), 6(1) and (4), 12(1), 13, 21(1) and (2), 24(1), and 25(1)-(2) of the GDPR. It instructed the plaintiff to modify its data processing practice in accordance with the GDPR, namely, "not to analyze emotions during voice analysis and to adequately ensure the rights of data subjects in relation to data processing, particularly, but not limited to, the right to appropriate information and the right to object. The data processing concerning employees must be limited to what is necessary to achieve the objectives related to them, and appropriate information must be provided to them regarding the evaluation criteria and consequences. Any separate balancing of interests regarding data processing for different purposes related to employees must address the vulnerable situation arising from this subordinate relationship and must establish appropriate internal

guarantees in this regard." The plaintiff was also ordered to pay a data protection fine of 250,000,000 HUF ex officio.

Regarding the data processing related to the analysis of recorded voice recordings, the Authority found that the analysis of the speaker's emotional/affective state is carried out automatically with the assistance of artificial intelligence-based speech signal processing; the data processing is personally identifiable and sensitive, but does not pertain to special categories of data as defined in Article 9(1) of the GDPR. With regard to the application of the GDPR, it was established that both parties in the call are clearly identifiable in the examined system—customer service employees directly due to the storage of their names, and the third party due to the identification that is part of every call. It referred to the judgment of the Court of Justice of the European Union (CJEU) C-582/14 and established that the emotional state recognized by the software and the data linked to the call identifier and phone number used in the software are personal data that can be linked to an individual, thus the GDPR applies to the data processing carried out using the software. Regarding the artificial intelligence used in the software, it referred to information available on the English and Hungarian language websites of the company developing the software, stating that the software is suitable for the automatic evaluation of received and initiated calls according to predetermined rules, therefore the software processes personal data automatically using artificial intelligence, consequently Article 21 of the GDPR also applies to the examined data processing. It also established profiling under Article 4(4), as dissatisfied customers are categorized for recall based on keywords and emotions.

242

243

The operation of the beauty center violated Article 5(1) of the GDPR by failing to implement default settings that minimize data processing, and by not providing the necessary tools for the highest level of protection of personal data, as well as violating Article 32(1)(b) and (2) due to the failure to implement system security measures; fourthly (4), by recording guests' health data, it violated Article 6 and Article 9(2) of the GDPR. The Authority imposed a data protection fine of 30,000,000 forints on the plaintiff due to violations 1-4. The Metropolitan Court, in its final judgment delivered on November 21, 2023, rejected the plaintiff's lawsuit against the decision.

V.5. On the press's significant moral and data protection legal responsibility, and the domestic legal assessment of paparazzi activities

The Curia, in its final judgment delivered on October 18, 2023, also took a principled stance on the data protection legal questions in the title. The Curia emphasized that one consequence of social engagement and participation in public affairs is a lower level of privacy protection. However, the fact that the applicant was a prominent public figure for years does not imply that their right to privacy can be disproportionately restricted and that all data concerning their private life would be public data in the interest of the public. Public figures are also entitled to the right to privacy.

According to the Curia, the identity of a public figure or former public figure does not, in itself, embody a public or political debate; the nature of the press article must be examined on a case-by-case basis, as the public role of the public figure does not deprive them of the protection of their privacy. The Curia stated that the publication of photographs and articles whose sole purpose is to disclose the private life of the well-known applicant to satisfy mere curiosity or gossip cannot be considered content that contributes to a public interest social debate. The Curia, following relevant Constitutional Court decisions, established that photographs depicting the applicant engaged in household work in their garden during private activities, as well as descriptions of this activity, the applicant's external appearance, current lifestyle, and residence (private property), do not contain information of public interest.

V.4. The data protection consequences of camera surveillance at the Beauty Center

The plaintiff's main business activity is "services improving physical well-being." The plaintiff offers various beauty care services to consumers at the beauty center operated at its headquarters, where facial and body treatments, as well as medical aesthetic procedures, are performed in two diagnostic rooms and fifteen treatment rooms. During the relevant period, there were a total of 32 cameras in the beauty center: two at the reception, four in the hallways, one at the back entrance, one in each of the two diagnostic examination rooms, one in each of the 10 treatment rooms and the 5 VIP treatment

rooms, one in the storage room, one in each of the two customer service areas, one in the training room, and two in the control office. The control office consists of a double room, in which there was also a camera in the other part. The training room is used for corporate events and meetings, and several employees also spend their lunch breaks in this room. There was one additional camera in the office of the HR manager and one in the so-called "interview" room. There was no data processing information regarding camera surveillance at the reception. Access to the cameras was possible through software, which employees could access via a command icon placed on the desktops of the computers. The recordings stored in the camera system could be exported in AVI format, which could be downloaded by any user who accessed the system using the software. The software could be opened on the economic manager's computer, where the live images from the installed cameras were continuously visible, and recordings saved for 24 hours could also be accessed and downloaded for up to 7 days. The usernames and passwords for the managerial computers were found on a paper note stuck to the monitor. The saved camera recordings showed, on the one hand, the workstations of the employees, so that the employees could be seen and heard while working at each location. The images from the cameras placed in the treatment rooms showed the cosmetic beds in their entirety, without any covering, in such a way that guests lay on these beds during treatments, covering their upper bodies with a bath towel. The cameras in the treatment rooms also recorded sound.

The Authority, in its decision, established that the plaintiff, on the one hand (1.) violated Article 5(1)(a) and (b) and Article 6(1) of the GDPR by continuously recording work and monitoring guests; on the other hand (2.) violated Articles 13(1)-(2) of the GDPR, as it incorrectly and misleadingly informed the data subjects about the processing of their personal data in its information and consultation data sheet; thirdly (3.) the camera system...

244

245

VI. The Authority's Legislative Activities

VI.1. Statistical Data on Legal Regulation Matters

The number of the Authority's opinions related to legal regulation, broken down by source of law

Source of Law/Year

2014

2015

2016

2017

2018

2019

2020

2021

2022

2023

Law

33

79

85

82

72

61

73

77

68

78

Government Decree

63

133

98

89

47

49

52

74

56

55

Ministerial Decree

85

126

83

94

55

41

27

15

16

49

Government Resolution

21

61

29

33

40

34

22

14

4

8

Other (Parliamentary Resolution, Instruction, etc.)

7

27

20

23

17

29

10

16

19

16

Total

209

426

315

321

231

214

184

196

163

206

Statistics on Substantive Comments Made in Legislative Reviews

Nature of Comments

Number of Comments

2014

2015

2016

2017

2018

2019

2020

2021

2022

2023

Related to Data Protection

145

298

461

461

487

323

436

488

311

341

Related to Freedom of Information

21

53

28

28

22

39

80

89

40

97

Other

53

137

92

92

79

78

37

9

26

36

Total

219

488

581

581

588

440

553

586

content contributing to the discussion of public affairs. The public figure is only obliged to tolerate it in connection with their public activities.

The Curia stated regarding the role of the press that the enhanced protection of the disclosure of facts and information related to public affairs particularly pertains to the operation of the press, as the press has a constitutional mission to uncover and inform the public about events, circumstances, and connections that influence the development of public affairs. The media's free informative activity is a crucial component of modern democratic public life; therefore, it is of central importance that the press can perform this task without uncertainty, compromise, and fear. This does not mean that legal provisions cannot apply to the press's informative activity. The press's activities are extremely diverse, ranging from political reporting to sports, scientific, public affairs, and even gossip content. Journalistic activity differs from all other activities. Individual press products cannot be assessed according to the same standard. According to the Curia, the data processing involved in the case clearly served the appearance of a press product satisfying "gossip hunger." The Curia specifically emphasized that the plaintiff, as such a press product, fundamentally performs data processing operations and handles personal data. Thus, it must make compliance with data protection rules a part of its general practice and must consider how its activities align with data protection requirements. This is particularly important because the written and electronic press plays a significant role in shaping the morals of society and its participants.

The Curia highlighted that if the press exceeds the limits set by law, it cannot be considered unlawful if this activity is examined by authorities and courts, and if the given behavior is prohibited and appropriately sanctioned.

Based on the above, the Curia agreed with the first-instance, final judgment of the Capital Court, which rejected the plaintiff's claim, and upheld it, including the 10 million forint data protection fine imposed on the plaintiff by the Authority.

The amendment also allows for the suspension of the procedure. According to Section 48 (2) of Act CL of 2016 on General Administrative Procedure (hereinafter: Ákr.), the law may allow for the suspension of the procedure if the preliminary question falls under the jurisdiction of another authority, or if it cannot be decided on a sound basis without another closely related decision of the same authority regarding the given case. In the secret supervision authority procedure, the Infotv. previously did not provide for the suspension of the procedure. If the Authority conducts a secret supervision authority procedure regarding the repeated classification, the outcome of the procedure in some cases may depend on whether the classification is valid and lawful, the determination of which cannot be made within the framework of the secret supervision authority procedure concerning the repeated classification. Therefore, in this case, the Authority decides on the suspension of the procedure for the duration of another – separate – procedure regarding the lawfulness of the classification. After its conclusion, the suspension of the procedure concerning the repeated classification can be lifted, and the procedure can continue. [NAIH-3370/2023]

Act CI of 2023 on the System of Utilization of National Data Assets and Certain Services.

As of September 24, 2023, the European Union Data Governance Regulation (Digital Governance Act – DGA) is directly applicable, which aims to regulate access to large public databases at the European level. Following the amendment introduced by Act CI of 2023, the Infotv. designates the Authority as the competent authority responsible for the implementation of the DGA. In accordance with the provisions of the DGA, the Authority meets the requirements that it is independent in the performance of its tasks, is subordinate only to laws, cannot be instructed in its area of responsibility, cannot seek guidance from other persons or authorities in the performance of its duties, and performs its tasks separately from other authorities and free from any influence.

The law established the basic process and details of the procedures to be conducted under the DGA, taking into account the rights of clients and the rules of jurisdiction, which complement the provisions of Act CL of 2016 on General Administrative Procedure. The Authority registers data intermediary

service providers upon request, issues a certificate of compliance with the DGA for them, and registers data altruist organizations. Furthermore, upon request and ex officio, it checks the compliance of data intermediary service providers and data altruist organizations with the DGA in an authority supervisory procedure.

According to Section 8 of Act CXXXI of 2010 on Social Participation in the Preparation of Legislation, a general consultation must be held in every case as part of social consultation, and the draft submitted for social consultation must be published on the website maintained by the government for this purpose. The summary of the preliminary impact assessment defined in the Act on Legislation must also be published together with the draft. Section 38 (4) point a) of the Infotv. grants the Authority the right to propose the creation or amendment of laws concerning the processing of personal data, as well as the knowledge of public interest data and data publicly available in the public interest, and to comment on the drafts of laws affecting its area of responsibility.

Unfortunately, in 2023, the Authority experienced on numerous occasions that the ministry preparing the draft law only sent the already submitted proposal for opinion after its submission to the National Assembly. In such cases – even if serious objections arise from a data protection perspective – there are only limited opportunities to modify the content of the proposal, much narrower than before submission. Such delayed requests for opinions clearly do not fulfill the right granted to the Authority in the Infotv.

VI.2. Highlighted Issues

VI.2.1. Amendment of the Infotv.

In 2023, the National Assembly adopted several laws that amended the Infotv. on some essential issues. These included:

Act XXXII of 2023 on the amendment of Act CLV of 2009 on the protection of classified data, as well as Act CXII of 2011 on the right to informational self-determination and freedom of information, which re-regulated the provisions regarding the possible content of decisions made in the secret supervision authority procedure. According to this, the Authority may now also examine the lawfulness of the repeated classification marking, and in connection with this, the law also defines legal consequences. As a legal consequence, the Authority may determine that the classification of national classified data was not lawfully established, and in this case, it calls upon the classifier to remedy the unlawful situation with appropriate measures – namely, by deleting the unlawfully applied classification marking from the document.

248

249

However, the duration of proceedings falling under other branches of law may well exceed the limitation periods set forth in the general administrative procedure for the Authority to order enforcement and execution. The new paragraph (7) ensures that there is no need to take action for annulment or deletion during enforcement if these data are still required in other ongoing cases, which could even mean the destruction of evidence.

VI.2.2. Body Cameras on Baggage Handlers

The amendment to Act XCVII of 1995 on Civil Aviation, effective from January 1, 2024, mandates as a compulsory data processing measure that ground handling services at civil airports operate body cameras mounted on baggage handlers in close proximity to aircraft during baggage handling, around cargo doors, and within the cargo hold, as well as during the baggage loading process in the cargo hold and around the cargo doors. According to the justification of the law, if baggage handlers have unrestricted access to prohibited items placed in baggage by passengers without supervision in the cargo hold, the airport area loses its security classification. Therefore, monitoring the baggage handling process via cameras is necessary, as it is the only way to guarantee the sterility of the internal, most sensitive areas of airports, known as enhanced security zones, as well as lawful baggage handling, thereby ensuring compliance with international and European Union regulations. During the consultation on the draft law, the Authority noted that considering the purpose of data processing, it does not support the recording of audio, as it is neither necessary nor suitable for achieving that purpose. [NAIH-9136/2023]

VI.2.3. Access to Death Examination and Autopsy Records

The Hungarian Medical Chamber approached the Authority with a legislative proposal and requested its support for further representation of the proposal. The essence of the proposal concerning the accessibility of death examination and autopsy records, which poses a serious problem for general practitioners, is that the death examination and autopsy records of the deceased patient may only be accessed by a person authorized by the deceased, or in the absence of such authorization, by the first close relative who requests it.

This law also supplemented Section 30 of the Act on the Freedom of Information (Infotv.) with a new paragraph (2a), which states that during a public interest data request submitted to a public authority, the public authority is not obliged to collect data not in its possession or to produce qualitatively new data regarding data in its possession for the purpose of fulfilling the data request.

Furthermore, the law supplemented the provisions regarding the Authority's procedures to enable more effective exercise of powers. To strengthen practices related to transparency and access to public interest information, the Authority shall conduct inspections at least twice a year, as well as in case of complaints, among state and municipal actors within its supervisory jurisdiction to determine whether they comply with the requirements for the transparency of public interest data and the provision of access to public interest information. [NAIH-4724/2023]

Act CXV of 2023 on Certain Authority Matters

Act CXV of 2023 supplemented Section 61 of the Infotv. with a new paragraph (7) concerning the destruction of data affected by the Authority's decision establishing unlawful data processing.

According to paragraph (6) of Section 61 of the Infotv., until the expiration of the deadline for initiating a lawsuit against the decision or, in the case of administrative litigation, until the court's final decision, the disputed data affected by the data processing may not be deleted or destroyed. The rationale for this rule is that, according to the general rule of the law on administrative authority procedures, there is no suspensive effect for initiating a lawsuit against the Authority's decision, but it is an important interest that the data affected by the data processing cannot be deleted or destroyed—according to the legislator's justification—"in the interest of the adjudicability of the legal dispute before the court."

The purpose of the new paragraph (7) is to provide for the fate of these data during the execution of decisions, meaning that if there is a constitutional interest in the continued availability of the data affected by deletion or destruction, it must be preserved. Due to the enforcement rules applicable to the Authority's procedures, the limitation period for the right to enforce decisions is three years subjectively and six years objectively. However, in practice, it often occurs that other public authority proceedings are initiated in parallel with the Authority's proceedings, either under the same factual circumstances but under a different branch of law (e.g., criminal law), or the availability of data affected by deletion or destruction as evidence remains a fundamental interest even after the above deadlines for both the acting authorities (courts) and the parties involved in the proceedings or litigation.

250

251

The primary means of identifying staff, detainees, and other entering individuals will be the facial recognition system, which is suitable for tracking individuals present within the correctional facility. The workload arising from monitoring communications—including phone calls and emails—would be reduced with the help of artificial intelligence, utilizing voice analysis, keyword monitoring, text analysis, and facial image analysis. To implement this, it is also necessary to record the voice of the detainee and the contact person. Based on the decision of the commander of the correctional facility, emailing by detainees could be permitted. This would, on one hand, prevent the introduction of prohibited items via mail, and on the other hand, this method of communication would be easily verifiable through IT means.

Due to the increasing use of drones, plans are in place to detect conspicuous unmanned aerial vehicles around the correctional facility for the sake of security, as well as to prevent entry into the airspace of the correctional facility.

To support the work of the personnel, robot supervisors equipped with cameras could be used to monitor specific areas and detainee sections by traversing pre-programmed routes. The personnel would be provided with a special personal protection device in the form of a signal transmitter wristband during their service, which allows for precise location tracking, can issue alerts, and is also

capable of sensing health data. The detainee wristband is suitable for identifying detainees and can also be equipped with other special functions: sensing vital signs, determining location, and possibly in the future, enabling electronic signatures.

With all these innovations, the Authority has so far only been able to familiarize itself with them for demonstration purposes; an analysis of the planned data processing has yet to take place. However, it is already evident that the current legal framework does not allow for the introduction of all planned innovations, and a review and amendment of the statutory regulations is essential for these.

[NAIH-8718/2023]

Section 24 (11) of Act CLIV of 1997 on Health Care states that in the event of a patient's death, their legal representative, close relative, and heir are entitled to access health data related to or connected with the cause of death, as well as health data related to medical treatment prior to death, to be included in the health documentation, and to prepare extracts or copies of such data, as well as to receive copies at their own expense in the manner specified by the law on the management and protection of health and related personal data.

However, the Authority did not support the proposal, as it would significantly restrict the rights of the deceased's relatives. It is easily understandable that the acceptance of the proposal would provide significant relief for general practitioners, as after a minimal examination of eligibility (verification of authorization and close relative status), the obligation to inform could be fulfilled in a single act, which undoubtedly supports the proposal. At the same time, this would impose a restriction from the perspective of the entitled parties that is unjustifiable from a legal standpoint, unnecessary, and disproportionate to the intended goal. Access to the deceased's health data after their death may be in the legitimate interest of other affected parties, and this group of affected individuals is designated by the Health Act among the legal representative, close relatives, and heirs. There is no other interest that could justify the limitation of the exercise of rights against the legitimate interest presumed by the law. Furthermore, the proposal states that only the first exercising party among close relatives—practically, the one who arrives first—would receive information, which is explicitly incompatible with the right to informational self-determination. [NAIH-3090/2023]

VI.2.4. Construction of a New Correctional Facility in Csenger

In November, the National Command of the Prison Service informed the Authority that it is undertaking a new investment. A correctional facility is being built in the administrative area of Csenger that surpasses the radical security technology developments of previous years. The operation of the unique, modern correctional facility equipped with technical, IT, and security solutions is planned to commence on September 1, 2024.

The Authority received the following information regarding the planned data processing solutions:

252

253

In 2023, two factors were particularly significant for the Authority's budget: financing the expenses of works increased by the rate of inflation and the closely related, continuously monitored cost savings. This year, several operational and due maintenance expenses arose that were not incurred in the previous budget year. Furthermore, it is worth highlighting that the overhead costs have multiplied for our Authority as well, which posed a significant challenge from a management perspective.

The NAIH successfully held the Congress of European Data Protection Authorities in 2023 in Budapest. The initially planned budget was maintained even though prices drastically increased during this period.

Overall, it can be stated that based on the experiences of previous years, special attention was focused on the cost optimization of all contracts entered into, and if necessary, negotiations were held to recalculate prices. Examining the capital expenditures, the Authority scheduled several works for 2023 aimed at restoring the original condition of the building, as well as value-enhancing investments that serve the secure and satisfactory operation of the Authority's core activities in the long term.

These activities were carried out with the permission of the Hungarian National Asset Management Inc.

The Authority's surplus from its core activities for the year 2023 is HUF 98,823 thousand, all of which is a surplus burdened with obligations.

The figures regarding the NAIH's budget for 2023 (in HUF thousand) are illustrated in the following table:

VII. Appendices

VII.1. The Authority's Management in 2023

As of December 31, 2023, we can look back on the 12th year of the operation and management of the National Authority for Data Protection and Freedom of Information. Below, we provide a brief overview of the data related to this management.

VII.1.1. Revenue forecasts and performance data for the year 2023

The Authority received and accounted for operational and capital support for the financing of the highlighted project titled "Mapping the Domestic Practice of Freedom of Information and Increasing Its Effectiveness."

Among the revenue data, the Authority's operational revenue did not show any significant change in either composition or value compared to the 2022 budget year. A substantial portion of the Authority's capital revenue came from the sale of one official vehicle.

The allocation of the 2022 budget surplus increased the original revenue forecast by HUF 92,976 thousand.

In addition to the original budget support, the Authority received an additional HUF 145,000 thousand from the central budget during the year to cover personnel and capital expenditures, approximately in equal parts.

VII.1.2. Expenditure forecasts and performance data for the year 2023

Based on the early 2023 amendment of the Infotv., the Authority's core activities were expanded with a new task: conducting transparency authority procedures based on notifications and ex officio. For this reason, the Authority received supplementary budget support to cover the additional expenditures. The total amount of personnel benefits and related employer contributions exceeded last year's data by 6.7%. The increase was influenced by further staff increases and an optimized, balanced, responsible wage management.

254

255

The following graph shows the fulfilled expenditures of the modified forecasts in percentage distribution:

Designation

Original

Forecast

Modified

Forecast

Performance

Core Activity 2023

Surplus

Operational Other Support from Chapter

23,460

23,460

Capital Other Support from Chapter

48,077

48,077

Value of Mediated Services

7

7

Invoiced VAT

91

91

Exchange Rate Gain

46

46

Other Operational Revenues

3,812

3,812

Cost Refunds

7,696

7,696

Sale of Tangible Assets

7,116

7,116

Repayment of Loans from Capital

1,629

1,629

2022 Budget Surplus

92,976

92,976

Central, Supervisory Authority Support

1,624,500

1,769,899

1,769,899

Total Revenue Forecasts:

1,624,500

1,954,809

1,954,809

-

Personnel Benefits Forecast

1,089,800

1,150,983

1,150,983

-

Employer Contributions and Social Contribution Tax

146,700

165,358

165,358

-

Material Expenditures Forecast

388,000

454,351

355,528

98,823

Other Operational Expenditures

3,735

3,735

-

Investments

180,382

180,382

-

Total Expenditure Forecasts:

1,624,500

1,954,809

1,855,986

98,823

256

257

Shop of the Italian Data Protection Authority event – Budapest, Italian Cultural Institute – opening presentation

•

May 24, 2023 – 3rd ARB Data Protection Conference, 5 years of GDPR – Budapest, Stefánia Palace – “The GDPR has turned 5” unconventional online interview

•

May 31, 2023 - Professional event organized by the Hungarian Association for Data Protection Awareness on the new generation of the data protection profession, the challenges and effectiveness of training – Budapest, MÁV Baross Gábor Educational Center – roundtable discussion

•

May 31, 2023 – Conference titled “Humans among the latest technologies” organized by the Constitutional Court, the National Authority for Data Protection and Freedom of Information, and the NKE Institute for Information Society Research – Budapest, National University of Public Service, Educational Center - Artificial Intelligence and Data Protection: regulatory experiences

•

September 5-7, 2023 – 32nd Economic Forum “New Values for the Old Continent – Europe on the Threshold of Change” conference – Karpacz, Poland – “Two sides of the coin” – privacy and the right to freedom of information in Hungarian legislation

•

September 27, 2023 – Conference titled “Parliaments at the Gate of Artificial Intelligence” organized by the Legislative Directorate of the Office of the National Assembly – Budapest, Parliament Delegation Room – The data protection aspects of AI

•

October 4, 2023 – Semmelweis Data Protection Forum – Budapest, Semmelweis University - The procedures of the NAIH

•

October 17, 2023 – Compliance Conference organized by the University of Debrecen – Debrecen, University of Debrecen – Data protection and freedom of information in corporate culture

•

November 20, 2023 – Online DPO conference of the National Authority for Data Protection and Freedom of Information – Budapest, NAIH - Updates on information rights, statistics for the year 2023

VII.1.3. Changes in the Authority's Staff

As of December 31, 2023, the Authority's employment figure was 120 employees. Staff management is based on positions according to the Küt., specifically in our Authority's case, four administrative positions (leading advisor, chief advisor I, chief advisor II, leading chief advisor), and two managerial positions (leading an independent organizational unit and leading a non-independent organizational unit). Although since the introduction of the Küt., the Authority has strived to provide competitive salaries for its employees, high inflation and a challenging economic environment have induced high turnover within our organization. During the year, 16 employees left, and 21 new colleagues joined. In 2023, 11 employees were permanently absent, while 1 employee returned from long-term absence.

VII.1.4. Development of Fine Revenues

The total amount of fines received by the Authority was 366,838 thousand HUF, which approached the record amount of the previous year. It is still worth noting that the fine is not entirely the revenue of the Authority, but rather that of the central budget.

VII.2. Participation of the Authority's President in Domestic and International Professional Conferences

and Events in 2023

- March 1, 2023 – Opening event of the Green Project on Energy Efficiency of the Circular Economy Analysis Center at the Hungarian University of Agriculture and Life Sciences - Gödöllő, Szent István Campus - The data protection aspects of artificial intelligence
- April 18-21, 2023 – Privacy Symposium – Venice, Italy - “Two sides of the coin” - privacy and the right to freedom of information in Hungarian legislation
- May 4, 2023 – ELTE JOTOKI 50 Café Current Data Protection Issues Conference – Budapest, Eötvös Loránd University, Faculty of Law and Political Sciences, Legal Continuing Education Institute – Current issues in data protection
- May 11, 2023 – Within the framework of the Spring Conference 2023 “Vulnerable individuals: tools for online protection. Children and age verification” work-

258

259

VII.4. List of Legislation and Abbreviations Mentioned in the Report

- Data Governance Act: Regulation (EU) 2022/868 of the European Parliament and of the Council (30 May 2022) on European data governance and amending Regulation (EU) 2018/1724
- Data Regulation, previously translated as data sharing legislation: Regulation (EU) 2023/2854 of the European Parliament and of the Council on harmonized rules for fair access to and use of data, and amending Regulation (EU) 2017/2394 and Directive (EU) 2020/1828
- Data Protection Convention or Convention 108: Convention for the protection of individuals with regard to the automatic processing of personal data, done at Strasbourg on 28 January 1981
- Áht., Act CXCV of 2011 on Public Finances
- AJBH: Office of the Commissioner for Fundamental Rights
- Ajbt.: Act CXI of 2011 on the Commissioner for Fundamental Rights
- Ákr., Act CL of 2016 on General Administrative Procedure
- Fundamental Law, Fundamental Law of Hungary (25 April 2011)
- General Data Protection Regulation: see GDPR
- BRFK: Budapest Police Headquarters
- Be., Act XC of 2017 on Criminal Procedure
- BTLE (Borders, Travel and Law Enforcement Expert Group): Expert Subgroup on Borders, Travel and Law Enforcement
- Büsz., Government Decree 14/2002 (VIII.1.) on the Rules of Court Administration
- BVOP: National Command of the Prison Service
- Bvsztv., Act CVII of 1995 on the Prison Service
- Bvtv., Act CCXL of 2013 on the Execution of Sentences, Measures, Certain Coercive Measures, and Administrative Detention
- CEF: Coordinated Enforcement Framework
- Charta: Charter of Fundamental Rights of the European Union
- CIS: Customs Information System
- CSC: Coordinated Supervision Committee (the committee responsible for the joint supervision of large-scale information systems of the European Union)
- DÁP Act: Act CIII of 2023 on the Digital State and Certain Rules on the Provision of Digital Services
- DGA: Data Governance Act, Regulation (EU) 2022/868 of the European Parliament and of the Council (30 May 2022) on European data governance and amending Regulation (EU) 2018/1724 (data governance regulation)
- 7 December 2023 - Conference titled "Acta Humana - The Sustainability Paradigm" organized by the Institute for Environmental Sustainability of the National University of Public Service and the editorial board of Acta Humana – Budapest, National University of Public Service Orczy Street Dormitory – opening lecture

- 11 December 2023 – Human Rights Conference: "Caught in the Clutches of Cancel Culture and the Woke Movement" – Budapest, Petőfi Literary Museum - panel discussion

VII.3. Recipients of the NAIH Commemorative Medal

According to the NAIH regulation No. 19/2012 on the awarding of the "National Authority for Data Protection and Freedom of Information Commemorative Medal," the "National Authority for Data Protection and Freedom of Information Commemorative Medal" may be awarded to those who have achieved outstanding, exemplary results in the field of data protection, as well as the right to informational self-determination and freedom of information, or have significantly contributed to such achievements. The silver commemorative medal is the work of master jeweler Tamás Szabó. It is awarded annually on the occasion of Data Protection and Freedom of Information Day.

In 2023, the commemorative medal was awarded to Hajnalka Szilvia Ledvina, a teacher of mathematics, computer science, and digital culture at Baár-Madas Reformed High School, for her dedicated and committed work in educating and raising awareness about data protection among children.

260

261

- Ibtv.: Act L of 2013 on the electronic information security of state and local government bodies
- IMEI: Institute of Forensic Observation and Psychiatry
- IMI system: Internal Market Information System
- Infotv., Infotörvény: Act CXII of 2011 on the right to informational self-determination and freedom of information
- KBSZ: Transport Safety Organization
- KEKVA tv.: Act IX of 2021 on public interest asset management foundations performing public tasks
- Ket., Act CXL of 2004 on the general rules of administrative authority procedures and services
- Kftv.: Act LXIII of 1999 on public area supervision
- Kit.: Act CXXV of 2018 on governmental administration
- Kttv., Act CXCI of 2011 on public service officials
- Mavtv., Act CLV of 2009 on the protection of classified data
- MBVK: Hungarian Chamber of Judicial Enforcement
- Mötv., Act CLXXXIX of 2011 on local governments in Hungary
- NAVÜ: National Data Asset Agency Ltd.
- NEBEK: International Criminal Cooperation Center
- NSZI: National Institute of Social Policy
- NSZKK: National Expert and Research Center
- Nytv., Act LXVI of 1992 on the registration of citizens' personal data and addresses
- OBH: National Office for the Judiciary
- OIF: National Directorate General for Aliens Policing
- Panasztv.: Act XXV of 2023 on complaints, public interest disclosures, and rules related to the reporting of abuses
- Pp., Act CXXX of 2016 on civil procedure
- Ptk.: Act V of 2013 on the Civil Code
- Scheval regulation: Regulation (EU) 2022/922 of the Council (June 9, 2022) on the establishment and operation of a mechanism for evaluating and monitoring the application of the Schengen acquis, and repealing Regulation 1053/2013/EU
- Szaktv., Act XXIX of 2016 on judicial experts
- Szja tv.: Act CXVII of 1995 on personal income tax
- Szocvtv.: Act III of 1993 on social administration and social benefits
- DPF (Data Privacy Framework): EU-U.S. Data Privacy Framework
- DSA: Digital Services Act, Regulation (EU) 2022/2065 of the European Parliament and of the Council (October 19, 2022) on the single market for digital services and amending Directive 2000/31/EC
- ECRIS: European Criminal Records Information System
- ECRIS-TCN: centralized system for identifying Member States holding information on judgments against third-country nationals and stateless persons

- EDPB: European Data Protection Board
- EDPS: European Data Protection Supervisor
- EES: European Border Registration System
- EESZT: Electronic Health Service Space
- EMÖI: Europol Hungarian Liaison Office
- EPPO: European Public Prosecutor's Office
- E-privacy directive: Directive 2002/58/EC of the European Parliament and of the Council (July 12, 2002) on the processing of personal data and the protection of privacy in the electronic communications sector (Electronic Communications Data Protection Directive)
- ETIAS: European Travel Information and Authorization System
- EUB: Court of Justice of the European Union
- Eurodac system: European Dactylographic Comparison System
- Europol regulation: Regulation (EU) 2016/794 of the European Parliament and of the Council of May 11, 2016, on the European Union Agency for Law Enforcement Cooperation (Europol), and repealing Council Decisions 2009/371/JHA, 2009/934/JHA, 2009/935/JHA, 2009/936/JHA, and 2009/968/JHA
- Eüaktv., Act XLVII of 1997 on the management and protection of health-related and associated personal data
- Eütv., Act CLIV of 1997 on healthcare
- GDPR, General Data Protection Regulation: Regulation (EU) 2016/679 of the European Parliament and of the Council on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC.
- GVH: Hungarian Competition Authority
- Haktv.: Act XCVII of 2013 on military data management and military administrative tasks related to the fulfillment of certain defense obligations
- Ht.: Act CLXXXV of 2012 on waste

262

263

- Detailed rules on the execution of imprisonment, detention, pre-trial detention, and detention replacing public order enforcement, Decree 16/2014 of the Ministry of Justice
- Act LXXIV of 2016 on the protection of the urban landscape
- Act CLXXXIV of 2005 on the professional investigation of railway and water transport accidents and other transport events
- Act CLXXXIII of 2005 on railway transport and Decree 24/2012 (V.8.) of the Ministry of National Development on the detailed rules for the professional investigation of serious railway accidents, railway accidents, and unexpected railway events, as well as the operator's investigation
- Act LXXXI of 2001 on the proclamation of the Aarhus Convention
- Act CLIV of 1997 on healthcare
- Act XLIII of 2023 on the proclamation of the Protocol amending the Convention for the Protection of Individuals with regard to Automatic Processing of Personal Data, signed in Strasbourg on January 28, 1981, and the Protocol signed in Strasbourg on October 10, 2018
- Act CXV of 2023 on certain official matters
- Act CCXXII of 2015 on the general rules of electronic administration and trust services
- Government Decision 1538/2018 (X. 30.) on the establishment of a working group coordinating government measures necessary for the development of the European Border Registration System and the European Passenger Information and Authorization System
- Regulation (EC) No. 765/2008 of the European Parliament and of the Council (July 9, 2008) establishing requirements for accreditation and market surveillance regarding the marketing of products and repealing Regulation (EEC) No. 339/93
- Act CXXXI of 2009 on the proclamation of the Council of Europe Convention on Access to Official Documents
- Decree 31/2008 (XII. 31.) of the Ministry of Justice on the operation of judicial experts
- Decree 78/2012 (XII.28.) of the Ministry of Interior on the issuance of a unified filing plan for municipal offices

- Act LXXVIII of 1993 on the utilization of properties owned by local governments, regulating its rules, leasing of apartments and premises, and certain rules regarding their alienation
- Act CXXII of 2021 on the amendment of certain laws related to justice and related matters
- Tromsø Convention, the Council of Europe Convention on Access to Official Documents (CETS No. 205, proclaimed in Hungary by Act CXXXI of 2009)
- Act LIII of 1994 on judicial enforcement
- VIS: Visa Information System
- VIS Decision: Council Decision 2008/633/JHA (June 23, 2008) on access for designated authorities of the Member States and Europol to the Visa Information System (VIS) for the purpose of preventing, detecting, and investigating terrorist offenses and other serious crimes
- VIS Regulation: Regulation (EC) No. 767/2008 of the European Parliament and of the Council (July 9, 2008) on the Visa Information System (VIS) and on the exchange of data between Member States regarding short-stay visas

Other legislation:

- Directive 2009/103/EC on motor vehicle liability insurance and the verification of insurance obligations
- Government Decree 149/1997 (IX. 10.) on guardianship authorities and child protection and guardianship procedures
- Act XXXI of 1997 on the protection of children and guardianship administration
- Act XXI of 2022 on the management of defense data
- Act LXII of 2009 on mandatory motor vehicle liability insurance
- Government Decree 499/2022 (XII. 8.) on the detailed rules of public data registration
- Act CLXXXI of 2007 on the transparency of support provided from public funds
- Government Decree 499/2022 (XII. 8.) on the detailed rules of the Central Information Public Data Registry
- Act CXXII of 2009 on the more economical operation of state-owned economic companies
- Decree 18/2005 (XII. 27.) of the Ministry of Informatics on the publication templates necessary for the publication of data on publication lists
- Act XCVII of 1995 on civil aviation
- Act CLXXXV of 2010 on media services and mass communication
- Act CLV of 2009 on the protection of classified information
- Act CI of 2023 on the system for the utilization of national data assets and certain services

264

265

II.2.6. Matters related to closed data management.....70

II.2.7. Proposal for the amendment of the Authority's Act on Data Protection (Bvtv.).....74

II.2.8. Requests from detainees for access to recordings made in connection with the camera data management of correctional institutions.....76

II.2.9. Management of personnel files of individuals previously belonging to the professional staff for defense purposes.....80

II.2.10. Examination of data management of the public area surveillance system of Kerepes City.....81

II.2.11. Officially initiated inspections.....88

II.2.12. Consultation and cooperation with other authorities.....92

II.3. Data protection authority procedures regarding secret supervision.....94

II.4. Reporting of data protection incidents.....96

II.4.1. Significant data protection incidents falling under the General Data Protection Regulation.....96

II.4.2. Data protection incidents falling under the scope of the Information Act (Infotv.).....101

II.5. Data protection authorization and preliminary consultation procedures.....104

II.5.1. Data protection authorization procedures.....	104
II.5.2. Preliminary consultation procedure for impact assessment regarding the use of body cameras during airport baggage handling.....	105
III. Freedom of Information.....	108
III.1. Data provision by public task performing bodies and statistical data of the Authority's freedom of information investigations conducted in 2023.....	110
III.1.1. Data provision by public task performing bodies.....	110
III.1.2. Statistical data of the Authority's freedom of information investigations conducted in 2023.....	119
III.2. The central public information database and the Authority's transparency authority procedure.....	122
III.3. Key decisions of the Constitutional Court and the courts affecting data transparency.....	128
III.3.1. Decisions of the Constitutional Court.....	128
III.3.2. Court decisions.....	131
III.4. Accessibility of personal data made public in the public interest.....	140
III.4.1. Enforcement of rights of data subjects regarding personal data published in the Hungarian Official Gazette and in municipal council proposals.....	141
III.4.2. Public interest data of municipal officials and the conclusions that can be drawn from them.....	142
III.4.3. Educational qualifications of the mayor.....	143
III.4.4. Transparency of the decisions of the Public Service Decision Committee.....	143
Table of Contents.....	
Introduction.....	3
I. Statistical data on the operation of the Authority, the Authority's social relations.....	7
I.1. Statistical characteristics of our cases.....	7
I.2. Annual conference of data protection officers.....	21
I.3. The appearance of the National Authority for Data Protection and Freedom of Information in the media.....	25
II. Data protection matters.....	26
II.1. Application of the General Data Protection Regulation.....	26
II.1.1. Data management of judicial experts.....	26
II.1.2. Matters related to health documentation.....	28
II.1.3. Data of deceased individuals.....	34
II.1.4. "Blocking" of websites.....	36
II.1.5. Matters related to political campaigns and elections.....	37
II.1.6. "Borderline" matters.....	41
II.1.7. Other important matters falling under the General Data Protection Regulation.....	45
II.1.8. Acting as a main authority.....	53
II.1.9. Recommendations and opinions issued by the Authority.....	56
II.1.10. Cooperation in the work of other authorities.....	59
II.2. Matters related to the processing of personal data for law enforcement, defense, and national security purposes (data processing operations falling under the scope of the Infotv.).....	60
II.2.1. Responses to requests for the exercise of rights of data subjects under the Infotv.....	60
II.2.2. Evaluation of repeatedly submitted requests for the exercise of rights of data subjects.....	61
II.2.3. Legality of data processing related to mail received by detainees from organizations specified in Section 174 (4) of the Bvtv.....	63

II.2.4. Violation of the principles of purpose limitation and data minimization in criminal proceedings.....	
Ijárásban.....	66
II.2.5. A police station did not inform the contacted Bank that the restriction set forth in Section 264 (7) of the Be. can be lifted.....	68
266	
267	
III.9.9. Higher Education – the public accessibility of theses.....	167
III.9.10. Contracts concluded by the maintainer.....	167
III.10. Transparency of the judiciary – the data publicity practices of courts regarding the MBVK and bailiffs.....	168
III.10.1. Submissions affecting courts.....	168
III.10.2. Court enforcement.....	170
III.11. Other public task performing bodies, civil organizations performing public tasks, organizations providing public services.....	175
III.12. Consultation matters.....	182
III.12.1. Public interest data arising from the exercise of powers delegated to the mayor.....	182
III.12.2. Recording audio and video at municipal council meetings.....	182
III.12.3. Accessibility of payment receipt documents related to public task performers.....	183
III.12.4. Making asset declarations accessible, issuance.....	184
III.12.5. Mayor's representation accounting.....	185
III.12.6. Right of municipal representatives to access data in relation to management.....	185
III.12.7. Accessibility of general ledger extracts at state-owned economic companies.....	186
III.12.8. Criminal information that can be provided by the mayor.....	187
III.12.9. Use of images, exercise of rights of affected parties in the context of the enforcement of press freedom.....	188
III.12.10. Scope of entities obligated to publish in the central information public data register.....	188
III.12.11. Retention period for publication units related to management.....	189
III.13. Secret supervision authority procedures in the field of freedom of information.....	190
III.13.1. Authority procedure related to the classification of the investigation report prepared based on the 6.Sz/2022. (I.28.) OBHE decision of the Capital Court.....	190
III.13.2. "Pseudo" secret supervision authority procedures.....	191
IV. Cooperation with the authorities of the European Union and international matters...	193
IV.1. The European Union's "digital legislation" (updates).....	193
IV.1.1. Regulation (EU) 2022/2065 on the single market for digital services.....	193
III.5. Transparency of local governments.....	144
III.5.1. Rights of local government representatives under the laws.....	144
III.5.2. Housing rental matters.....	145
III.5.3. Regulation of public interest data requests in the SzMSz.....	146
III.5.4. Transparency of data regarding the lawful operation of the	

local government.....	147
III.5.5. Publication of data related to rent arrears to increase payment willingness.....	147
III.5.6. Disclosure of data of local government employees.....	148
III.5.7. Referral of public interest data requests to the public task performing authority handling the data.....	148
III.5.8. Submission of invitations and proposals for publication before the meeting.....	149
III.6. Accessibility of public interest data managed under the Ákr. (General Administrative Procedure Act).....	150
III.7. Cases of restriction of publicity.....	153
III.7.1. Business secret.....	153
III.7.2. Production of new data.....	154
III.7.3. Government Integrated Public Interest Data Portal (KIKAP Portal), Authority Integrated Public Interest Data Portal (HIKAP Portal).....	155
III.7.4. Data request fulfillment portal used by the Hungarian Bailiffs' Chamber (MBVK).....	155
III.7.5. Data request fulfillment portal used by the Supervisory Authority of Regulated Activities (SZTFH).....	156
III.8. Publicity of environmental data.....	156
III.9. Educational matters, transparency of public education.....	160
III.9.1. Statistical data on teachers employed in the district, job positions.....	160
III.9.2. Accessibility of teachers' qualifications and certifications.....	163
III.9.3. Transparency of public education development grant applications, public contracts.....	163
III.9.4. Recognizability of Subject Matter Distribution.....	164
III.9.5. Release of Class Size and Regular Child Protection Benefit Data.....	164
III.9.6. Data Supporting Class Division.....	165
III.9.7. Public Disclosure Regarding E-Kréta Data Protection Incident.....	166
III.9.8. Public Evaluation of Public Education Institutions.....	166
268	
269	
IV.8.1. Borders, Travel and Law Enforcement Expert Group (BTLE).....	218
IV.8.2. Coordinated Supervision Committee (CSC).....	219
IV.8.3. Scheval Training for Experts.....	221
IV.8.4. Working Group Supervising the Data Protection of the Visa Information System (VIS Supervision Coordination Group).....	221
IV.8.5. Working Group Supervising the Data Protection of the Eurodac System (Eurodac Supervision Coordination Group).....	222
IV.9. Hungarian Ratification of the Council of Europe "Modernized" Data Protection Convention.....	223
IV.10. Council of Europe Convention on Access to Official Documents.....	224
V. Authority's Legal Proceedings.....	226
V.1. Enforcement of Claims Arising from Violation of Personality Rights Against Meta Platforms Ireland Limited.....	227
V.2. The Budapest Electric Works Zrt. Case Before the Court of Justice of the European Union and Its Domestic Aftermath (C-132/21).....	236
V.3. Use of Voice Analysis Software, Emotion Analysis, Artificial Intelligence, and the Enforcement of	

Rights of Affected Parties.....	239
V.4. Privacy Implications of Camera Surveillance in a Beauty Center.....	242
V.5. Supreme Court Ruling on the Press's Outstanding Moral and Data Protection Legal Responsibility, and the Domestic Legal Assessment of Paparazzi Activities.....	243
VI. Authority's Legislative Activities.....	245
VI.1. Statistical Data on Legal Regulation Matters.....	245
VI.2. Highlighted Cases.....	245
VI.2.1. Amendment of the Infotv.....	246
VI.2.2. Body Cameras at Baggage Handlers.....	249
VI.2.3. Access to Autopsy and Post-Mortem Examination Records.....	249
VI.2.4. Construction of a New Correctional Facility in Csenger.....	250
VII. Appendices.....	252
VII.1. Authority's Financial Management in 2023.....	252
VII.1.1. Revenue Estimates and Performance Data for 2023.....	252
VII.1.2. Expenditure Estimates and Performance Data for 2023.....	252
VII.1.3. Changes in Authority's Staffing Levels.....	256
VII.1.4. Trends in Fine Revenues.....	256
VII.2. Participation of the Authority's President in Domestic and International Professional Conferences and Events in 2023.....	256
VII.3. Recipients of the NAIH Commemorative Medal.....	258
IV.1.2. Regulation (EU) 2022/868 of the European Parliament and of the Council on European Data Governance and Amending Regulation (EU) 2018/1724.....	194
IV.1.3. Regulation (EU) 2023/2854 of the European Parliament and of the Council on Harmonized Rules for Fair Access to and Use of Data, and Amending Regulation (EU) 2017/2394 and Directive (EU) 2020/1828.....	195
IV.1.4. Draft Regulation on Artificial Intelligence.....	196
IV.2. Judgments of the Court of Justice of the European Union on Data Protection Matters.....	198
IV.2.1. Judgment of the Court dated January 12, 2023, Case C-132/21, NAIH v Budapest Electric Works (ECLI:EU:C:2023:2).....	198
IV.2.2. Judgment of the Court dated January 12, 2023, Case C-154/21, RW v Österreichische Post AG (ECLI:EU:C:2023:3).....	198
IV.2.3. Judgment of the Court dated May 4, 2023, Case C-300/21, UI v Österreichische Post AG (ECLI:EU:C:2023:370).....	199
IV.2.4. Judgment of the Court dated May 4, 2023, Case C-487/21, FF v Austrian Data Protection Authority (ECLI:EU:C:2023:369).....	199
IV.2.5. Judgment of the Court dated June 22, 2023, Case C-579/21, JM v Deputy Data Protection Officer, Finland (ECLI:EU:C:2023:501).....	200
IV.2.6. Judgment of the Court dated October 26, 2023, Case C-307/22, FT v DW (ECLI:EU:C:2023:811).....	200
IV.2.7. Judgment of the Court dated December 7, 2023, Case C-634/21, OQ v Land Hessen.....	201
IV.3. Activities of the European Data Protection Board.....	201
IV.3.1. Guidelines on the Calculation of Administrative Fines under the General Data Protection Regulation No. 04/2022.....	202
IV.3.2. Binding EDPB Decision No. 1/2023 in the Meta Case.....	203
IV.3.3. Binding EDPB Decision No. 2/2023 in the TikTok Ireland Limited Case.....	204
IV.3.4. Binding EDPB Decision No. 1/2023 in the Urgent Procedure Regarding Meta Platforms Ireland Limited.....	204

IV.4. Overview of Cooperation Procedures Under GDPR.....	206
IV.5. The Authority's Activities Within the Coordinated Enforcement Framework (CEF).....	211
IV.6. Four-Year Review of GDPR – The Position of NAIH in EU Comparison.....	213
IV.7. New Compliance Decision on Transatlantic Data Transfers.....	217
IV.8. Criminal/Justice Cooperation.....	218

270

271

VII.4. List of Legislation and Abbreviations Mentioned in the Report.....	259
Table of Contents.....	264

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